

Ireland under the Tudors, with a Succinct Account of the Earlier History. Vol. 2 (of 3)

Richard Bagwell

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IRELAND UNDER THE TUDORS

VOL. II.

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IRELAND UNDER THE TUDORS

WITH A SUCCINCT ACCOUNT OF THE EARLIER HISTORY

BY

RICHARD BAGWELL, M.A.

IN TWO VOLUMES

VOL. II.

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MAP.

IRELAND ABOUT 1570

To face p. [149](#).

Errata.

Page 46, line 2, for 1561 *read* 1562.

- " 47, headline, for 1561 *read* 1562.
- " 156, *for* Archbishop of Ross *read* Bishop of Ross.
- " 173, *for* Henry III. *read* Charles IX.
- " 283, *for* Thomas Butler *read* Theobald Butler.
- " 367, *for* Dermot O'Diera *read* Cornelius O'Dea.

IRELAND UNDER THE TUDORS.

CHAPTER XIX.

FROM THE ACCESSION OF ELIZABETH TO THE YEAR 1561.

The proclamation of Anne Boleyn's daughter can hardly have caused general satisfaction in Ireland, but it was hailed with joy by Protestant officials whose prospects had been clouded during the late reign. Old Sir John Alen was soon in Dublin, whence he wrote to congratulate Cecil on his restoration to office, and to remind him of his own sufferings under Queen Mary. Thomas Alen, when reminding the new secretary of his great losses, rejoiced that God had sent light after darkness, and that he and his friends were going to have their turn. A sharp eye, he said, should be kept on Sir Oswald Massingberd, who was suspected of a design to pull down Kilmainham, lest its beauty and convenience should again attract the Lord Deputy. Massingberd should be sternly restricted to his revenue of 1,000 marks, and the great seal should be transferred to a lawyer of English birth. The prior was so far successful that Kilmainham soon afterwards ceased to be a royal residence. He probably sold the lead, and the damage being aggravated by a great storm, the commandery was not thought worth repairing, and the chief governor's abode was transferred to Dublin Castle. Sir Ralph Bagenal, formerly lieutenant of Leix and Offaly, had been dismissed for denying the Papal supremacy, and had been forced to seek refuge in France, where he lived by selling at a great sacrifice a property worth 500*l.* a year. Queen Elizabeth gave him the non-residence fines of twelve bishoprics; but there were legal obstacles, and he begged for something more substantial. Staples, the deprived Bishop of Meath, pointed out his griefs to Cecil, and thinking, no doubt, more of the Queen than of his correspondent, complained that Pole had made it a grievous article

Accession of
Elizabeth. Joy of
the Protestants.

against him that he had presumed to pray for the soul of his old master. Pole probably hated Henry VIII. enough to wish his soul unprayed for, but the complaint is a very odd one from a Protestant divine.^[1]

Sidney, whom most men spoke well of, was confirmed in the office of Lord Justice, and had soon plenty of work in the North. The old Earl of Tyrone was sinking fast, and the horrors of a disputed succession were imminent. Henry VIII. had conferred the Earldom on Con O'Neill for life, with remainder to Matthew Ferdorogh O'Neill and his heirs male for ever. The Barony of Dungannon was at the same time conferred upon the remainder man, with a proviso that it should descend upon the heir to the Earldom. Matthew's mother was Alison Kelly, and at the time of his birth she was the wife of a smith at Dundalk. He was reputed to be Kelly's son until he was sixteen, when his mother presented him to Con as his own child. 'Being a gentleman,' said his eldest son, 'he never refused no child that any woman named to be his,' and he accepted Matthew with a good grace. There was a Celtic law or doctrine that a child born in adultery should belong to its real father, but there is no evidence to show that the rule was actually binding in Ulster in the sixteenth century. Shane, the legitimate eldest son, made a plain statement to the contrary, and illustrated it by an Irish proverbial saying that a calf belongs to the owner of the cow, and not to the owner of the bull. Matthew became a good soldier, and Con was willing to have him for a successor. But as Shane grew up he learned to oppose this arrangement, and, having good abilities and boundless ambition, he was designated by a great portion of the clan as successor to the tribal sovereignty. Shane oppressed his father, and perhaps ultimately induced him to acquiesce in the popular choice; but to make all safe, he took the precaution of murdering the Baron of Dungannon, whose prowess he had reason to remember, and whom he had no wish to meet again in the field. He steadily maintained that his victim was the smith's son, and no relation; but the Irish annalists lend him no countenance, for they remark that the deed was 'unbecoming in a kinsman.' The Baron had left a young son, on whom his title devolved, and the government were bound by the patent to maintain his ultimate rights to the Earldom. It is uncertain whether Henry VIII. knew that Matthew Ferdorogh was born

The limitations of the Tyrone Patent are disputed. Shane O'Neill.

while his mother lived in wedlock with the smith, but probably he may be acquitted of having encouraged one of the worst Brehon doctrines.^[2]

Yet Shane's case against the Government was a strong one; for it was not disputed that his father had known the facts, and he was thus able to contend that the King had been deceived, and that the limitation in the patent was void. Besides, it was asked, why was not the Earldom given in the usual way to Con and his heirs male? Whether Shane knew of the above-mentioned Brehon regulation or not, it was his interest to affect ignorance, to represent both his father and King Henry as the victims of deception, and to take his stand on strict hereditary right for the title, and on tribal election for his personal supremacy. About strict veracity he was no more scrupulous than Queen Elizabeth herself. The dilemma was complete, for English lawyers could not for very shame deny the moral claims of the legitimate heir, nor could politicians ignore those Irish captainries which the Crown had acknowledged over and over again. By Celtic usage Con had of course no power whatever to alienate or transmit the property of the tribe: in that he had only a life interest. Shane argued, moreover, that according to the law of the Pale no lands could pass by patent without an inquisition previously taken. None could be taken in Tyrone, for it was no shire. If the English law were followed, there was, therefore, no power to divert the inheritance from him as rightful heir; if the Irish law prevailed, then he threw himself on the suffrages of the tribe.^[3]

Strength of Shane's position.

Shane O'Neill robbed his father and mother of all they possessed, and drove them into the Pale, where the unfortunate Con died early in 1559. Shane, who had recovered from his defeat by the O'Donnells, and secured himself by assassination against his most dangerous rival, claimed both the Earldom of Tyrone and the tribal sovereignty of the North. At first the Queen was strongly inclined to admit his pretensions. The patent was indeed fatal to them, but Elizabeth had an eminently practical mind, and the fact that Shane was in quiet possession weighed with her more than his legitimacy. In the absence of positive orders, Sidney did his best to maintain peace in the North. He repaired to Dundalk, and summoned Shane to attend him. The wily chief was loud in his professions of loyalty, but feared possible loss of reputation among his own people, and refused to go. Having less

Sidney visits Shane O'Neill.

reason to regard appearances, Sidney visited Shane in his camp, and consented to act as god-father to his son, and to enter the mysteriously sacred bond of gossipred, or compaternity. O'Neill bound himself to keep the peace until the Queen should have pronounced on his claims, and Sussex, who hated him, expressed a belief that he would not keep his promise. Sidney could obtain nothing more, and Shane's arguments were indeed such as could not easily be refuted.^[4]

Sussex struggled hard to avoid returning to the hated Irish service, and pleaded occupations public and private. He declared, with perfect truth, that Sidney would govern Ireland much better than he could, and he was doubtless unwilling to leave the field clear to Lord Robert Dudley. But the Queen would take no denial, and he had to go. She was at this time inclined to govern Ireland in her father's cheap and rather otiose fashion, and the number of pardons granted during her first years shows that she aimed at a reputation for clemency. She understood the magnitude of the task awaiting her in Ireland, but declared herself unable to spare the necessary forces on account of the huge debt bequeathed by her sister, and of the expensive legacy of a Scotch and French war. The exchequer of Ireland had been much mismanaged, and its reform was urged on the restored governor, whose standing army was fixed at 1,500 men, 300 of them horse and 300 kerne. He was authorised to spend 1,500*l.* a month, but urged, if possible, to reduce the expense to 1,000*l.* The amount either of men or money was not to be exceeded, except under the pressure of necessity. The first duty of the new Lord Deputy and his council was to set the service of God before their eyes, and, pending a Parliamentary inquiry, all English-born officials were, at least in their own houses, to use the rites and ceremonies established in England.^[5]

Sussex, Lord Deputy, 1559. His instructions.

Sussex landed at or near Dalkey, and on the following day rode into Dublin. He was received on St. Stephen's Green by the Mayor and Aldermen. Shaking hands with the chief magistrate, the Earl is reported to have said, 'You be all happy, my masters, in a gracious queen.' Three days later he was sworn in at Christ Church, Nicholas Darton, or Dardy, one of the vicars-choral, chanting the Litany in English before the ceremony, and the choir singing the *Te Deum* in English afterwards. Ormonde at the same time

Arrival of Sussex. The Protestant ritual restored.

took the oath as a Privy Councillor and as Lord Treasurer of Ireland. Thus was the Protestant ritual quietly re-introduced, Sidney having been sworn with the full Roman ceremonial. The work of painting the two cathedrals, and of substituting texts of Scripture for ‘pictures and popish fancies,’ had begun three months before.^[6]

Many important men had hastened to offer their services and forward their petitions to the new Queen. Conspicuous among them was Richard, second Earl of Clanricarde, called *Sassanagh*, or the Englishman, of whose loyalty the Queen had a very good opinion, but who in one important respect fell short even of a Court standard of morals. The names of seven of his wives and sultanas have come down to us, and of these at least five were living at this time. He was acknowledged as captain of Connaught, his Earldom was confirmed by patent, and he received other marks of favour. The Queen also lent a favourable ear to Ormonde’s uncle, brother, and cousin, and to the new Earl of Desmond. Connor O’Brien, whom Sussex had established in the Earldom of Thomond, and MacCarthy More, were also well treated, and so were several of the corporate towns.^[7]

The Queen is gracious to the Irish nobility.

The first Parliament of Elizabeth met on January 12, 1560, and was dissolved on February 1. It was attended by three archbishops, seventeen bishops, and twenty-three temporal peers, including all the earls then extant in Ireland. Ten counties sent two knights each, and twenty-eight cities and boroughs were represented by two burgesses each. Ten other counties, King’s and Queen’s among them, are mentioned, Connaught counting as one, and Down being divided into two; but they either received no writs or made no returns, and the same may be said of the borough of Kilmallock. James Stanihurst, Recorder of Dublin and member for that city, was chosen speaker. The chief business was to establish the Queen’s title, and to restore her father’s and brother’s ecclesiastical legislation. First-fruits were restored to the Crown, and so was the commandery of St. John. Massingberd’s alienations were annulled, and, as he was suspected of secret dealings with the Irish, he was attainted unless he should surrender within forty days.

Parliament of 1560. The royal supremacy restored.

So far English legislation was closely followed, but in two important respects the Church was made more dependent on the State than in

England. Royal Commissioners, or Parliament in the last resort, were to be the judges of heresy without reference to any synod or convocation, and *congés d'élire* were abolished as useless and derogatory to the prerogative. These matters having been arranged to his satisfaction, Sussex again went to England, and Sir William Fitzwilliam, who had just come over as Treasurer at War, was appointed Lord Justice in his room.^[8]

Variations from the Anglican theory.

Fitzwilliam, who was new to Ireland, at first found the Irish pretty peaceful, but admitted that the overtaxed people of the Pale were less so than they were bound in duty to be. Causes of disturbance were not long in coming. Old O'Connor escaped from Dublin Castle, and uneasiness was immediately observable in the districts where he had influence. Calvagh O'Donnell's wife, who was Argyle's half-sister, had brought over some 1,500 Scots, 'not to her husband's enrichment,' as the Lord Justice supposed, but as a plague to Shane, who had married O'Donnell's sister and ill-treated her. Shane had engaged a similar force, and all these combustibles could scarcely be stored without mischief. The priests who were beaten in England showed signs of an intention to transfer the struggle to Ireland, where they had many partisans and might create more. At all events, they were flocking across the Channel, 'not for any great learning the universities of Ireland shall show them as I guess.' The Government only was weak. There were but fifty hundredweight of lead in store, and Fitzwilliam thought he might have to strip the material for bullets from some house or church.^[9]

The Catholics will not yield.

Kildare, whose foreign education and connection made him more dangerous than any of his ancestors had been, was undoubtedly playing with edged tools. Desmond refused to pay cess. The two earls had met at Limerick, and would certainly join Donnell O'Brien if he landed with the expected foreign aid. There were rumours of French ships on the coast, and frequent messengers passed between Kildare, Desmond, and Shane O'Neill. Edmond Boy, a Geraldine who was usually employed on this dangerous service, warned a relation who had married an Englishman to sell all and fly the realm, for if all promises were kept, her husband would never reap that he had sown. Kildare not only kept his followers under arms, but declared that he and his friends would be slaves no longer,

Intrigues of Kildare. Lord Justice Fitzwilliam expects a general rising.

presided at assemblies of Irishmen, and ostentatiously heard mass in public. Of all this there was ample evidence, and in addition, Lady Tyrone had sought interviews with the Lord Justice, and sworn the interpreter to secrecy. Laying the Bible first on her own head and then on his, 'which is the surest kind of oath taken with them,' she made a very positive statement as to the alliance of her son Shane and the two Geraldine earls. The Countess indeed, Fitzwilliam told Cecil, was 'something busy-headed and largely-tongued, crafty and very malicious, no great heed to be given to her, unless some other thing might lend credit to the tale she telleth, as in this there is.' There was quite enough to cause anxiety, and the Government were almost defenceless. 'Send us over men,' the Lord Justice cried, 'that we may fight ere we die.'^[10]

It was still the policy of Philip II. to appear as Elizabeth's protector, anxious to save her from the consequences of her own rashness and to give her time to repent. This half contemptuous patronage was the result of mere statecraft, and the Queen gave no credit for kindness to a man who had no such element in his nature. The first sighs of the great storm had been heard in the Netherlands. With France and Scotland united, and with England crushed as Philip thought she might be, the power of Spain in Northern Europe would be endangered. The Catholic King would therefore give no help to Catholic Ireland. The Christian King could give none; nor even maintain his ground in Scotland. The French fleet had been cast away, and the Huguenots were at no pains to hide their sympathy with English and Scotch reformers. The conspiracy of Amboise showed what might be expected. Francis II. was nought, and the hatred of Catherine de' Medici for her lovely daughter-in-law paralysed the efforts of the statesmen who ruled about him. Brave and full of resource, but without help or hope, D'Oysel was shut up in Leith, the national skill of his followers making the best of rats and horseflesh while Winter's ships lay off Inchkeith, the unchallenged tyrants of the sea. Mary of Lorraine died with a Calvinist preacher by her bedside, and the power of Rome was for ever broken in Scotland. Under such circumstances no outbreak in Ireland could have a chance of success, and the plottings of the Geraldines with O'Briens and O'Neills came for the time to nothing.

Attitude of Spain,
France, and
Scotland.

Fortified by constant intercourse with the Queen and Cecil, Sussex returned to Ireland with the title of Lord-Lieutenant, which had not been conferred since the death of Henry VIII.'s son, and which was not to be conferred again till it was given to the rash favourite whose fate darkened Elizabeth's last days. He told the Queen that he was willing to surrender his post to anyone who would go against Shane O'Neill on easier terms. 'She seeth,' he said, 'that I affect not that governance.' He had repudiated with scorn the accusation that he had put to death those who surrendered under protection. 'If the cause,' he said, 'were mine own I would ask trial like a gentleman, but it is the Queen's. My word is not the Earl of Sussex's word but Queen Elizabeth's word, my lie her lie.' Noble words: but too imperfectly remembered in the hour of trial.^[11]

Sussex made Lord-Lieutenant, 1560.

Sussex's written instructions show no apprehension of foreign enemies, except that he was authorised to contribute a sum not exceeding 250*l.* to the fortification of Waterford. If Sorley Boy MacDonnell's profession of loyalty were fulfilled, he might receive a grant of the lands he claimed. But Shane O'Neill was to be curbed either by fair means or force. There was no longer a disposition on the Queen's part to accept him as an established fact, and the young Baron of Dungannon was if possible to be maintained against him. Noblemen and gentlemen were to be encouraged to surrender their estates and to receive them back by fresh grants, while Sussex was urged to proceed with the settlement of Leix and Offaly, which was visible only on paper. The garrisons were in fact the only fixed inhabitants. The remaining instructions were such as were generally given to Irish governors, and were chiefly concerned with improvements in the revenue and with the satisfaction of private or official suits.^[12]

Private and public instructions to Sussex.

But in private conversation with her representative Elizabeth held language of which her indefatigable secretary did not fail to make a minute, and which showed how deeply impressed she was with the magnitude of the Irish difficulty. The chief danger was evidently from Kildare's dealings with the foreigners, and Sussex was to persuade him if possible to go to England. It was the habit of Irish lords on such occasions to plead the want of ready cash, and the Earl was to be authorised to draw to

The Queen sees the difficulty of Irish government.

any reasonable amount on London on giving his bond for repayment in Dublin. Kildare would have been a gainer, and the Queen a loser by the exchange. If he would not cross the Channel by this golden bridge Sussex was authorised to use a letter written by the Queen herself to Kildare, in which she commanded his attendance at Court. A date was to be affixed which might make it appear that the royal missive had followed and not accompanied the Lord-Lieutenant to Ireland. If this failed, Kildare and his most prominent friends, including Desmond, were to be arrested at the earliest opportunity. ‘And for satisfaction of the subjects of the land the Lord-Lieutenant shall cause to be published by proclamation or otherwise the reasonable causes of his doings, leading only to the quiet of the realm.’^[13]

The death of the Regent and the expulsion of the French from Scotland put an end for the time to any apprehensions from France. If Desmond and Ormonde were once at peace the Lord-Lieutenant would have leisure to settle Shane O’Neill’s account. The manors of Clonmel, Kilsheelan, and Kilfeacle had long been in dispute between the two earls, and a thousand acts of violence were the result. The lawsuit was now about to be decided in a pitched battle. Men came from the Lee and the Shannon on one side and from Wexford on the other, and met near Tipperary, but separated without fighting, probably owing to the efforts of Lady Desmond. Sir George Stanley, Marshal of the Army, the veteran negotiator Cusack, and Parker the Master of the Rolls, were sent to Clonmel to decide the most pressing matters in dispute, which consisted chiefly of spoils committed by the tenants and partisans of the two earls on each other. The White Knight especially, whose lands bordered on Tipperary, was constantly at war with his Butler neighbours. An award was given, on the whole favourable to Desmond; but the peace thus obtained was not destined to endure.^[14]

Attempts to reconcile Desmond and Ormonde.

Meanwhile Shane O’Neill, in spite of his ‘misused’ MacDonnell wife, sought Argyle’s sister in marriage; but that chief was engaged in the English and Protestant interest, and sent the letter of proposal to Elizabeth. So far from allying himself with the O’Neills, Argyle offered to provide 3,000 Highlanders for immediate service in Ireland, if the Queen would pay them, and 1,000 for permanent garrison duty on the same terms. James MacDonnell was willing

Shane O’Neill holds his own.

to serve in person. These were no empty promises, for Argyle and MacDonnell had the men ready in the following spring; and the Queen thought she saw her way to ‘afflict Shane with condign punishment to the terror of all his sept.’ Gilbert Gerrard, Attorney-General of England, who had been sent over to report on the revenues, told Cecil that Ireland would be difficult to govern, and that many people cared for nothing but the sword. O’Donnell, O’Reilly, and Maguire might be induced to act loyally in hopes of throwing off O’Neill’s tyranny, and the MacDonnells from the fear of losing their estates. All pointed to the necessity of vigorous action; but the summer passed and nothing was done. ^[15]

These were the days when everyone expected Elizabeth to marry. Cecil went to Scotland, where the general wish was that the half-witted Arran should unite the two kingdoms. On his return he found that his policy had been thwarted by ‘back counsels;’ and he talked of resigning his place. Sussex wrote in horror at the prospect, for he thought the Queen would be but slenderly provided with counsel elsewhere, and under certain circumstances, such perhaps as a Dudley ministry, he himself would not serve ten months in Ireland—no, not for 10,000*l*. The dark tragedy on the staircase at Cumnor left Dudley free, and for a moment most men supposed that the Queen’s partiality would end in marriage. Sussex did not take so unfavourable a view of the match as the secretary. According to his view the great national requirement was an heir to the Crown, and there would be a better chance of one if Elizabeth married the object of her affections. Sussex declared himself ready to serve, honour, and obey any one to whom it might please God to direct the Queen’s choice. Had this advice been given to Elizabeth the writer might be suspected of flattery, and of seeking friends of the mammon of unrighteousness; but, spoken to such unwilling ears as Cecil’s, it must be considered highly honourable. ^[16]

Reports as to the
Queen’s marriage.

In Ireland as in England, Elizabeth gained great and deserved credit by reforming the coinage. From the time of John till that of Edward IV. there had been no difference between the two standards; but in the latter reign that of Ireland suffered a depreciation of twenty-five per cent. An Irish shilling was henceforth worth no more than ninepence in England. There must have been a loss to the public and a gain to the Exchequer at first, but bullion

Reform of the
coinage.

finds its own level like water, and there were no further fluctuations. Having become a settled and understood thing, the difference caused little trouble. But when Henry VIII. began to tamper with the currency great loss and inconvenience followed. The quantity of silver—the common drudge 'twixt man and man—in any given piece of money could scarcely be guessed at by the ordinary citizen. Barrels full of counterfeit coin were imported, and added much to the confusion. Tradesmen raised prices to save themselves. All good coin was exported to buy foreign wares, and the course was continually downwards, as it must inevitably be under similar circumstances. Inconvertible notes proved highly inconvenient in America and in Italy; but they were nothing to the metallic counters of the Tudors, which depended less upon credit than upon uncertain intrinsic values. Communications were difficult, there were no newspapers, and money dealers flourished. At every exchange a burden was imposed on industry. Those who have been in Turkish towns, and have seen a sovereign waste as it passes from one currency to another, can form an idea of what Dublin and Drogheda suffered through the ignorance and dishonesty of the English Government.

What Henry began Edward and Mary continued, and Ireland was deluged with innumerable varieties of bad money. Some of Mary's shillings were worth little more than the copper they contained. She also by proclamation authorised the adulterated rose-pence of her father and brother to be used in Ireland, though they were prohibited in England. In a paper drawn up for Elizabeth's Council, five kinds of small coins are enumerated, of every degree of baseness, and of values between $5\frac{1}{3}d.$ and $1\frac{1}{3}d.$ English. One of these, the old Irish groat, was worth threepence, but had several varieties. Thus *Dominus* groats were those struck before Henry VIII. assumed the royal title, *Rex* groats were those struck after; none were of a good standard. The quantity of coin no more than three ounces fine was estimated at from 60,000 to 100,000 lbs. To cleanse the Augean stables it was proposed to restore the Irish mint, which had been abandoned for want of silver at the end of Edward VI.'s reign. The repair of the furnaces was begun, wood was cut, and the mixed money was cried down for a recoinage. But the inducements offered proved insufficient, and the merchants hoarded the Irish money instead of bringing it in. The plan was then changed. A reward

Chaotic state of the currency.

was offered for bringing in the bad coin, and fresh money was struck in England on the basis of the practice which prevailed from Edward IV. to Henry VIII. Ninepence sterling was fixed as the value of an Irish shilling; some of the old money, particularly that of the lower denominations, seems to have been put in circulation, but it was used merely as counters and was not complained of. The currency question slumbered until 1602, when Elizabeth fell away somewhat from her early virtue, and partially revived the grievance which she had redressed. ^[17]

Kildare had the wit to see that times were changed, and that the Crown would be too strong for any possible combination; but others were less well informed, or more sanguine. Some of the O'Mores held a meeting at Holy Cross in Tipperary, where Neill M'Lice was chosen chief of Leix. The object of this unfortunate clan was of course the retention of their lands, to which they clung with desperate resolution. Shane sent a rymmer, one of those *improvisatori* who were always at hand to carry dangerous messages, bidding them to trust no man's word, but to wait for orders from him. Desmond was also consulted. According to one account he offered the conspirators a refuge in the last resort; according to another, he had promised to send actual assistance. The matter came to Ormonde's ears, and he appeared suddenly at Holy Cross, dispersed the meeting, and took three of the principal men prisoners. ^[18]

The O'Mores.

Elizabeth saw that nothing of importance could be done without an effort, and being in one of her frugal moods, she was disinclined to make that effort. She summoned Sussex over for a personal conference, reminding him that she had formerly been charged with other items besides his salary, and suggesting that part of it should now be devoted to the payment of a Lord Justice, 'which, considering our other charges, we think you cannot mislike.' As soon as Fitzwilliam's commission arrived, Sussex left Ireland; but Shane O'Neill did not wish to let the Lord-Lieutenant have the sole telling of the story. Shane was in communication with Philip, who bade him not be discouraged, for that he should not want help. Letters to this effect were brought by the parish priests of Howth and Dundalk, and O'Neill then wrote to the Queen in a very haughty strain. He asked leave to correspond freely with the Secretary, and solicited the admission of his messenger to

Fitzwilliam made Lord Justice. Shane O'Neill holds out.

the Queen's presence. 'There is nothing,' he said, 'I inwardly desire of God so much' as that 'the Queen should know what a faithful subject I mean to be to her Grace.' For her Majesty's information, he stated forcibly his case against the Dungannon branch, invariably calling his rival Matthew Kelly, and laying great stress on his own election by the tribe. 'According,' he wrote, 'to the ancient custom of this county of Tyrone time out of mind, all the lords and gentlemen of Ulster assembled themselves, and as well for that I was known to be the right heir unto my said father, as also thought most worthiest to supply my father's room, according to the said custom, by one assent and one voice they did elect and choose me to be O'Neill, and by that name did call me, and next under your Majesty took me to be their lord and governor, and no other else would they have had.' The effect had been magical. All the North for eighty miles had been waste, without people, cattle, or houses, 'save a little that the spirituality of Armagh had,' and now there was not one town uninhabited. If the Queen would give Ireland into his keeping, she would soon have a revenue where she had now only expense.

As to Matthew Kelly, he had tried to turn him out of lands which his father had long ago given him, in which the bastard pretender was 'maintained and borne up by the chin' by Sussex. Had he not been wholly occupied in hunting Matthew up and down, he would long since have expelled the Scots, who had been reinforced by Lady Tyrone, and supported by Sussex. The Lord-Lieutenant had given them MacQuillin's land, 'which time out of mind hath been mere Englishman,' having held his estate since the first conquest. The Queen was thus answerable for the strength of the Scots, and without her help he could not undertake to drive them out. Kelly had been killed in a skirmish by chance of war, and he was not to be held answerable for so usual an accident. In fact, he was a blameless subject, who had committed no fault knowingly; 'but through being wild and savage, not knowing the extremity of her Majesty's laws, nor yet brought up in any civility whereby he might avoid the same, having also many wild and unruly persons, and hard to be corrected in his country.' By a stretch of legal ingenuity their misdeeds might possibly be laid at his door, and to avoid that, and 'not for any mistrust of his own behaviour,' he asked for protection. Unable to trust Sussex, he had sent over the respectable Dean of

Shane will not
acknowledge
'Matthew Kelly.'

Armagh to bring a safe-conduct from the Queen herself, which would enable him to lay his case in person before the English Council, and to return safely. For his expenses he should require 8,000*l.* sterling, which, with a fine irony, he declared himself quite willing to repay in Irish currency. For fear of mischances, the Earl of Kildare and other men of rank should be directed to put him safely on board, and to deliver him at Holyhead into Sir Henry Sidney's charge. After his return Sussex should not be allowed to molest him for three months.

Besides the main grievance about Matthew Kelly, Shane had fault to find with governors in general, and Sussex in particular. When a very young man he had discovered a plot to attack the Pale, and having respect to the common weal of his native country, he had gone boldly to Sir Anthony St. Leger without any safe-conduct. St. Leger had been so much impressed with his virtue that he and all his Council had signed a contract, 'which I have to be showed,' to give him 6*s.* 8*d.* sterling a day. Since that he had suffered much, but not a groat of the pension had ever been paid. Still he bore no malice, and had offered his services to Sussex against the Scots. The Lord-Lieutenant was nevertheless firmly prejudiced in favour of Matthew Kelly, and determined that he, the legitimate chief, should be no officer of his. He accused Sussex of putting innocent men to death, and thus making it impossible for any one to trust him. Sussex always indignantly denied this charge, and he was borne out by Kildare and by the Irish Council.

Shane's grievances
against Sussex.

Shane proudly contrasted the state of his country with that of the Pale, and suggested that the Queen should send over two incorruptible men joined in commission with the mayor and aldermen of Dublin and Drogheda, 'which are worshipful and faithful subjects,' to judge which country was the better governed. They might hear the charges against him, and also the complaints of the families of the Pale, 'what intolerable burdens they endure of cess, taxes, and tallages both of corn, beefs, muttons, porks, and baks.' Not only did the soldiers live at free quarters, but they had 'their dogs and their concubines all the whole year along in the poor farmers' houses, paying in effect nothing for all the same.' Not less than 300 farmers had gone into Shane's county out of the Pale. These men were once rich, and had good houses, but they dared not so much as tell their griefs to the

He compares
Tyrone favourably
with the Pale.

Queen, 'yet the birds of the air will at length declare it unto you.' Shane considered it 'a very evil sign that men shall forsake the Pale, and come and dwell among wild savage people.'

Besides his pretensions to the Earldom, or to the captaincy of Tyrone, Matthew Kelly also advanced a claim to the manor of Balgriffin, in the county of Dublin, which had been granted to Con O'Neill, with remainder to his son, Matthew O'Neill, and in default of him and his heirs, with remainder to the right heirs of Con. Shane had taken legal opinions, and was advised that he had a title to Balgriffin, because there was no Matthew O'Neill at the time of the grant. 'It follows plainly,' he argued, 'that I am my father's right heir, legitimate begotten, and although my said father accepted him as his son, by no law that ever was since the beginning, he could not take him from his own father and mother which were then in plain life.' Besides which he had inherited the land of 'his own natural father the smith.' If the premise that Matthew was Kelly and not an O'Neill be admitted, the reasoning is irrefragable.

Shane's legitimacy.

Badly as he had been treated, Shane declared himself ready to make restitution wherever anything could be proved against him. His savagery, which he confessed again and again, he thought could best be eradicated by an English wife, 'some gentlewoman of some noble blood meet for my vocation, whereby I might have a friendship towards your Majesty.' This impossible she would indeed be much more than an intermediary between him and the Queen to declare his grief and those of his country. 'By her good civility and bringing up, the country,' he hoped, 'would become civil, and my generation so mixed, I and my posterity should ever after know their duties.' Some educated companion was necessary to him; for the men of the Pale would not even show him how to address his letters properly, and he feared to offend, whereas he desired nothing so much as her Majesty's approbation and favour. How Shane treated an accomplished woman when he had her in his power will appear hereafter.^[19]

He desires an English wife.

To enforce his demands, and to show how disagreeable he could be, Shane burned three villages on the borders of the Pale. Their crime was giving asylum to Henry, son

Shane threatens the Pale.

of Phelim Roe O'Neill, who had offended by his loyalty. With much difficulty and many smooth words, the invader was prevented from spreading his ravages further; but he went so far as to threaten the town of Dundalk for sheltering his disobedient namesake, and he demanded an authority equal to that which Desmond had over the western seaports.^[20]

Shane's proposal to go to Court was accepted in order to gain time. A safe-conduct was sent, and Fitzwilliam was instructed to make his departure easy. Either really suspicious, or anxious to make it appear that he was ill-treated, the troublesome chief then began to make excuses, the most valid being that he had no money. Fitzwilliam wrote him a soothing letter, and Shane then said his retinue could not be ready for nearly two months. He held out stoutly for 3,000*l.* at least, but it was feared that he would rebel on receipt of it, 'conduct,' said the Lord Justice, 'which to his kind best belongeth.' In the meantime he amused himself by plundering the O'Reillys and those on the borders of the Pale.^[21]

He proposes to go to England.

While Fitzwilliam was temporising with Shane in Ireland, Sussex was intriguing against him in Scotland. His messenger carried credentials to the Ambassador Randolph, to Argyle, and to James MacDonnell. He was directed to visit them all, and if possible to see O'Donnell's wife, a sister of Argyle, who continually hovered between Ireland and Scotland. He was then to cross the Channel, find his way to O'Donnell, and offer him the Earldom of Tyrconnel in the Queen's name. To Argyle Cecil wrote as to a friend whom he had learned to value when in Scotland, urging him to 'use stoutness and constancy, or the adversary will double his courage, where contrariwise the Papist being indeed full of cowardness ... will yield.' Large offers were made to James MacDonnell and his brother Sorley Boy, and it was hoped that all the most powerful men in the North might thus be united against the redoubtable Shane.^[22]

Intrigues with Scotland.

Sir Henry Radclyffe, the Lord-Lieutenant's brother, thought Shane had money enough if he would be contented with reasonable expenses, but that he had sought counsel of those who were against the journey, and was chiefly anxious to gain time. He daily muddled

The Queen prepares for war, but endeavours to conciliate the Irish nobility.

his ‘unstable head’ with wine, and every boon companion could affect his judgment. That drunken brain was nevertheless clear enough to baffle Elizabeth for a long time. Perhaps Shane really expected help from Philip. Radclyffe thought him hopeless, and quoted Ovid as to the desirability of cutting out incurable sores before they had time to poison the blood. These opinions prevailed, and warlike preparations were swiftly and silently made. Six hundred additional men were sent to Ireland, and a general hosting was ordered. O’Reilly was encouraged to hope for the Earldom of Brefny, and robes and coronets for him and for O’Donnell were actually sent. O’Madden and O’Shaughnessy in Connaught, were thanked for former services, and exhorted to deserve thanks in the future. Shane, wrote the Queen, was the common disturber. He had offered to go to Court and then drew back, though she had with her own hands given the required safe-conduct to his messenger. Conciliation had been tried in vain; and she was now obliged to resort to force. They were directed in all things to be guided by Sussex, whom her Majesty quite exonerated from Shane’s slanders. ^[23]

While his official superior was at Court, Fitzwilliam had no easy time in Dublin. He disliked and distrusted Kildare, who declined all responsibility for his bastard kinsfolk, the old scourges of the marches living at free quarters and disdaining honest industry. The MacCoghlan surprised one of the Earl’s innumerable castles, in which they were assisted by Ferdinando O’Daly, an Irishman in Fitzwilliam’s service. Kildare made a prisoner of O’Daly, and the Lord Justice thought his position as the Queen’s representative required his liberation. They were ‘tickle times, and many evil and rude men depend upon his Lordship, who with one wink might stir mischief.’ The Lord Justice offered to make good any harm that O’Daly might have done, but insisted on his enlargement, because it did not stand with the credit of his office that any servant of his should lie in gyves. Kildare at first refused to give the man up, and on the Lord Justice persisting, said he was in the custody of his captor, who had been promised a ransom of forty marks. O’Daly was ultimately released, and probably Fitzwilliam paid the forty marks. In the meantime Shane had been acting while his opponents talked. ^[24]

Fitzwilliam and Kildare.

The O’Donnells, under a son of the chief, besieged an island in Lough Veagh, occupied by one of those pretenders who were never wanting in any

Irish country. The chief himself lay at a Franciscan friary, eleven miles from his son, and with only ‘a few soldiers, besides women and poets.’ Among the women was his wife, by birth a Maclean, widow of an Earl of Argyle, noted for her wisdom and sobriety, a good French scholar with a knowledge of Latin, and a smattering of Italian, but at heart a rake who had been dazzled by Shane’s successful career. She contrived to let the object of her admiration know her husband’s defenceless condition, and he was only too ready to take the hint. A meeting of the two chiefs was arranged for May 15. O’Neill was not far off, and on the night of the 14th he appeared in force at the monastery gates. Had they been shut defence might have been possible, for O’Donnell had 1,500 Scots mercenaries within five miles; but they had been left open, probably on purpose, and O’Donnell and his wife were carried off into Tyrone. The night attack of four years before was thus amply avenged. Calvagh was kept in close and cruel confinement, and as Shane’s mistress the wise countess soon had reason to deplore her folly and perfidy. [\[25\]](#)

Shane seizes
O’Donnell and his
wife.

A messenger whom O’Neill had sent to Fitzwilliam used very insolent language, such as he had no doubt been accustomed to hear from his chief’s mouth. The Lord Justice complained, and Shane, whose cue was not to offend the Queen or her representative, said that his envoy was a scamp who had exceeded his instructions, and that he had tortured him and slit his ear. But the Government thought Shane incorrigible, and in this at least they were supported by Kildare. O’Neill was proclaimed a rebel and traitor. Either on this or some later occasion an Irish jester remarked that, except traitor was a more honourable title than O’Neill, he would never consent to Shane’s assumption of it, a joke which gained point from the feebleness of the proceedings against him. In the eyes of the Lord Justice he was the bully of the North; in the eyes of the Irish he was King of Ulster from Drogheda to the Erne, with power very little diminished by the opposition of the English. [\[26\]](#)

Shane is supreme in
Ulster.

FOOTNOTES:

[1] Sir John Alen to Cecil, Dec. 16, 1558; Staples to same, Dec. 16; T. Alen to same, December 18. Harris's *Dublin*, chap. ii.

[2] *Ancient Laws and Institutes of Ireland*, vol. iii.; Preface to *Book of Aicill*, p. cxlviii.; Shane O'Neill to Queen Elizabeth, Feb. 8, 1561; Campion's *History; Four Masters*, 1558. Maine's *Early History of Institutions*, chap. ii.

[3] See the arguments in *Carew*, 1560, vol. i. p. 304.

[4] There is an account of the interview in *Hooker*.

[5] Instructions to Sussex, 1559, in *Carew*, pp. 279 and 284.

[6] Mant from Loftus MS.; Ware's *Annals*.

[7] Memorial of answers by the Queen, July 16, 1559, and Instructions to Sussex, July 17, both in *Carew*; note of the Earl of Clanricarde's wives and concubines now alive, Feb. 1559 (No. 18).

[8] The list of this Parliament is in *Tracts relating to Ireland*, vol. ii., Appendix 2; *Printed Statutes*, 2 Elizabeth; *Collier*, vol. vi. p. 296 (ed. 1846); Ware's *Annals*; *Leland*, book iv. chap. i.

[9] Fitzwilliam to Sussex, March 8 and 15, 1560.

[10] Fitzwilliam to Cecil, April 11, 1560; Advertisements out of Ireland, May (No. 15), and many other papers about this time.

[11] Memorial by the Earl of Sussex for the Queen, May 1560 (No. 21).

[12] See the two sets of Instructions in *Carew*, vol. i. May 1560, Nos. 223, 225.

[13] Memorial of such charge as the Queen's Majesty has given by her own speech to the Earl of Sussex, &c., May 27, 1560, in *Carew*.

[14] Orders taken by the Lord-Lieutenant and Council, Aug. 1, 1560. Award for the Earl of Desmond, Aug. 23.

[15] The Queen to Sussex, Aug. 15, 1560, and Aug. 21; list of plain rebels, July 19. Gerrard, A.G., to Cecil, Sept. 5.

[16] Sussex to Cecil, Oct. 24 and Nov. 2.

[17] Ware's *Antiquities*, by Harris, chap. xxiii.; 'Le case de mixt moneys' in Davies's Reports. There are a great many letters on this subject in the R.O., 1560 and 1561. See particularly the valuation of silver coins, &c., Dec. 1560 (No. 62), several of Feb. 23, 1561; Fitzwilliam to Cecil, May 4; to the Queen May 5; and the Queen's letter of June 16. See also Queen's Instructions to Sussex, May 22, 1561, in *Carew*, and the proclamations near the end of the last volume of that collection.

[18] Queen to Sussex, Dec. 15; to Ormonde, Dec. 16, 1560. Examinations of Donell MacVicar, Jan. 14, 1561.

[19] The whole of Shane's statements are from his letter to the Queen, Feb. 8, 1561. For the refutation of his charge against Sussex, see the Queen to the

Nobility and Council of Ireland, May 21, and the Council's answer, June 12.

[20] Lord Justice Fitzwilliam to Cecil, Feb. 8, 1561; Jaques Wingfield to Sussex, Feb. 23.

[21] Protection for Shane O'Neill, March 4, 1561; Fitzwilliam to the Queen, April 5, 8, and 26.

[22] Sir William Cecil to Argyle, April 2, 1561 (not sent till the 27th); Instructions by Sussex to William Hutchinson, sent into Scotland, April 27.

[23] Sir Henry Radclyffe to Cecil, May 3. The lines from Ovid are:—

Cuncta prius tentanda, sed immedicabile vulnus
Ense recidendum est, ne pars sincera trahatur.—*Met.* i. 190.

They were quoted by Sir Edward Dering in his speech against Bishops, &c., in the Long Parliament. The Queen to the Nobility and Council of Ireland, May 21. Sussex to Cecil, July 17.

[24] Wingfield to Sussex, Feb. 23; Fitzwilliam to Cecil, April 5, and the enclosures.

[25] Fitzwilliam to Cecil, May 30, 1561, and to Sussex same date. The *Four Masters* incorrectly place the event under the year 1559.

[26] Shane O'Neill to the Lord Justice, June 8. He calls his messenger 'nebulo,' and says 'diversis torquidibus torturavi eum et auriculam ejus fidi.' *Campion. Four Masters*, 1561.

CHAPTER XX.

1561 AND 1562.

Sussex landed on June 2, and advanced within three weeks to Armagh, where he fortified the cathedral and posted a well-provided garrison of 200 men. Shane could do nothing in the field, but withdrew with his cattle to the border of Tyrconnel. Calvagh O'Donnell was hurried about from one lake-dwelling to another; and Hutchinson, the confidential agent of Sussex in Scotland and Ulster, retired to Dublin in despair. Believing that the possession of Armagh would give him an advantage in negotiation, Sussex made overtures through the Baron of Slane; but O'Neill refused to come near him until he had seen the Queen, who had given his messenger a superlatively gracious answer. In the meantime he demanded withdrawal of the garrison, maintaining that the war was unjust and unprovoked. He had not, he said, libelled the Lord-Lieutenant, and had he done so he would have scorned to deny his authorship. He professed great readiness to go to London, but repeated that money was necessary, and laid upon the Viceroy the whole responsibility of nullifying the Queen's good intentions. In future, he grandly declared, he would communicate only with head-quarters, and he hoped that her Majesty would support his efforts to civilise his wild country. He was not such a fool as to put himself in the power of an Irish Government, and he gave a long list of Irishmen who had suffered torture or death through their reliance on official promises. Sussex replied that the money was ready for Shane if he would come for it before the campaign began, and he issued a proclamation calling on the O'Neills to support the young heir to the Earldom of Tyrone. Shane merely warned the Baron of Slane to look out for something unpleasant; for Earl of Ulster he intended to be. That great dignity had long been merged in the Crown, and the Baron could hardly fail to see what Shane was aiming at.^[27]

Sussex returns and
invades Ulster.

When all was ready the army encamped near Armagh, which it was proposed to make a store-house for plunder. Five hundred cows and many horses were taken in a raid northwards; but the Blackwater was flooded, and nothing more could be done for several days. Not to be quite idle, Sussex sent Ormonde to Shane, who offered worthless hostages for his prompt departure to England, but refused to give up O'Donnell. An attempt was then made against some cattle which were discovered on the borders of Macmahon's country. In compliance with a recognised Irish custom, Macmahon was probably obliged to support a certain number of his powerful neighbour's stock. Sir George Stanley, with Fitzwilliam and Wingfield, went on this service with 200 horse, seven companies and a half of English foot, 200 gallowglasses, 100 Scots, and all the kerne in camp. Ormonde was ill, and Sussex in an evil hour, as he himself says, stayed to keep him company. The cattle were driven off, and no enemy appeared. On their return Shane overtook the troops with twelve horse, 300 Scots, and 200 gallowglasses. Wingfield, who commanded the rear guard of infantry, allowed himself to be surprised, and for a time all was confusion. The column was long, and some time passed before Stanley and Fitzwilliam knew what had happened. They at once attacked the Irish in flank, and Shane in turn suffered some loss; indeed, the annalists say, with a fine rhetorical vagueness, that countless numbers were slain on both sides. But the cattle, the original cause of the expedition, were not brought into Armagh. The moral effect of the check was disastrous, and Sussex, though he put the best face on the matter when writing to Elizabeth, exaggerating Shane's losses and making light of his own, did not conceal the truth from Cecil. 'By the cowardice of some,' he wrote, 'all were like to have been lost, and by the worthiness of two men all was restored.' Wingfield was chiefly blamed, but the Lord-Lieutenant bitterly reproached himself for remaining behind when so large a force was in the field. Fifty of his best men were killed and fifty wounded, and it was impossible to take that prompt revenge which alone can restore the reputation of an army when defeated in a hostile country by a barbarian enemy. 'This last July,' said the unhappy Viceroy, 'having spent our victuals at Armagh, we do return to the Newry to conduct a new mass of victuals to Armagh.'

Shane surprises the
Viceregal army.

When Cecil heard the evil tidings he says himself that he was so appalled that he had much ado to hide his grief, the rather that Lord Pembroke being away there was no one with whom he could share it. To the Queen he spoke as lightly as he could of a little bickering in which Shane had the greater loss, which to the letter was true. For the benefit of the general public Cecil gave out that Shane had been overthrown with the loss of two or three captains. Privately he urged Sussex to use strong measures with those who had shown cowardice. But it was seldom possible to hide the truth from Elizabeth, and she soon knew all. She gave orders that Wingfield should be deprived of all his offices, and dismissed her service with ignominy. But the wrath of Sussex soon cooled, or perhaps his conscience made him generous. It was discovered that Wingfield's patent as Master of the Ordnance could not be voided, because he had acted only as a simple captain. His services among the O'Byrnes were remembered, and both Sussex and Ormonde interceded for him. At his own urgent request he was summoned to Court, when he probably succeeded in rebutting the charge of actual cowardice, and he remained Master of the Ordnance till his death in 1587.^[29]

Anger of the Queen.

Having driven the English out of his country, Shane O'Neill proposed to treat with Ormonde, no doubt with the deliberate intention of insulting Sussex. To Ormonde accordingly he sent his messenger, Neal Gray, with power to make terms. Shane was ready to go to the Queen, and to repair the church at Armagh. But he would not make peace while the soldiers remained there, and he declared that no one in his senses would believe in the peace while such a sign of war remained. To show his own idea of peace and friendship he asked Sussex to be his gossip, and to give him his sister's hand. The Lord-Lieutenant declined to withdraw the garrison until the Queen's pleasure should be known. Fitzwilliam had gone to her, and Ormonde, knowing that nothing would be done till his return, had gone home. If Shane hurt any of his neighbours in the meantime, he was warned that he could never hope to see the Queen's face. Sussex marvelled at the constant changes in Shane's answers. 'O'Neill desired me to procure the Queen's pardon and protection, for the which at his request we have already sent Mr. Treasurer, and now he desireth to send his own messengers, whereby it seemeth he should seek delays, for that his messengers cannot

Shane again proposes to go to the Queen.

go and return with such speed as Mr. Treasurer will do. And we know not to what other purpose he should send his messenger thither. Therefore we will him to send us word by writing directly whether he will go to the Queen's Majesty, according his oath taken, if Mr. Treasurer bring him the Queen's pardon and protection.' To this Shane haughtily answered that he would make no peace with any of his vassals (urraghs) but at his own time and in his own way, and that he would receive neither pardon nor protection from the Queen unless they were delivered to his own messenger. In his natural anger at such an answer, Sussex called loudly for strong measures: 'if Shane be overthrown, all is settled; if Shane settle, all is overthrown.' It was no fault of his that the arch-rebel would not go to the Queen. Indeed, it was well known that Kildare had first advised that step to gain time, and then prevented its being taken for the same reason.^[30]

Fitzwilliam was instructed to ask for an immediate aid of 200 men, and 3,000*l*. The men were ordered from Berwick, and 2,000*l*. of the money was sent. Transports were pressed upon the Lancashire coast, and the Queen wrote in her best style to encourage Sussex. His ill success, she was sure, had come from no want of goodwill, and the chances of war were to be borne patiently; but she marvelled that the General had not punished those who showed cowardice. Traitors and cowards were to be sent to gaol without favour or affection. The Queen impressed the value of patience upon Sussex, her own principle being rather to recover the subject by persuasion than force. She was willing to give Ormonde a reasonable sum for Shane's expenses, leaving the question of security to Sussex. She would not withdraw the garrison, but would undertake that it should molest no one except notorious traitors proclaimed before last March. In the meantime Sussex was to prepare for war by discharging unserviceable men, and by withholding the pay of runaways. The Lord-Lieutenant was required to forget his private dislike to Kildare, and to work with him loyally for the good of the service.^[31]

Renewed preparations.

Stung by failure, and fearing to be outwitted after all, Sussex now devised a safer and surer method than either war or diplomacy. There had perhaps already been one attempt to stab O'Neill, which he attributed to Sussex; but we are not bound to believe this, for a chief who punished unsuccessful

Sussex proposes to have Shane O'Neill killed.

agents by torturing them and slitting their ears was not likely to gain much affection. Neill Gray now declared that he was ready to serve the Queen, if Sussex would write to her on his behalf. The nature of the service required was not such as could be publicly avowed, and Gray swore on the Bible to keep it secret, on pain of death, if it became known during the continuance of the Earl's government. 'For the benefit of his country and his own assurance,' he agreed to do whatever Sussex wished, and 'in fine I brake with him to kill Shane, and bound myself by my oath to see him have 100 marks of land by the year to him and his heirs for his reward. He seemed desirous to serve your Highness, and to have the land, but fearful to do it, doubting his own escape after. I told him the way how he might do it, and how to escape after with safety;' and at last Gray promised to do it if he saw a prospect of security. Sussex assured the Queen that his accomplice might do it without danger if he chose, 'and if he will not do what he may in your service, there will be done to him what others may. God send your Highness a good end.' To hire a man to murder your enemy, and to determine to murder that hireling in the event of failure, are hardly matters deserving of divine favour, and it is deeply to be regretted that no letter is extant from Elizabeth expressing horror at the scheme. Such a letter may nevertheless have been written, for it would have been the interest of Sussex to destroy all evidence of the contemplated crime. On the same day that the Lord-Lieutenant attempted to make his sovereign an accessory before the fact, he informed her of the way in which he had received Shane's matrimonial proposal. 'I told him he should at his coming find my sister at the Court, and if I liked the other, I would further it as much as I could.' The treachery of Judas was hardly more dramatically complete. It must not, however, be forgotten that Shane was a proclaimed traitor, and that the political morality of the day was very different from ours. Sussex may have thought he was doing little more than putting a price upon an outlaw's head. ^[32]

Nothing came of the plot; but Neill Gray was too deeply implicated to venture on a double treason, and the Lord-Lieutenant's secret was kept. But 'slandrous bruits' against him were rife on other accounts; for the feeling on the border was in Shane's favour, and there was a general hesitation about putting him down effectually. It was said that Sussex would be superseded, and the date of his intended departure was named positively. The hundred tongues of rumour

General
disaffection.

were busy in giving the sword to one man to-day and to another to-morrow. Everything was believed but the truth, and as a natural consequence orders were badly obeyed. Sussex urged strongly that the campaign must be prosecuted, or that everything must be left to Shane, who claimed jurisdiction over all inhabitants of the northern province, including those who held direct of the Queen, and had never been subject to any O'Neill. 'So as we see, Ulster is the scope he challengeth,' and if he once gained that there was no reason why he should not shoot even higher. Amid the general disaffection Sussex was afraid to carry out the Queen's orders about punishing Wingfield and the other delinquents in the affair of July, when, as common report affirmed, the army was overthrown with small loss to Shane. ^[33]

With a heavy heart the Lord-Lieutenant led an unusually large force to Armagh. The magnitude of the effort may be estimated from the fact that four out of the five earls then in Ireland took part in the expedition, Thomond and Clanricarde being left to defend the principal camp, eight miles north of Dundalk. From Armagh Sussex made a rapid march across Slieve Gullion to the head of Glenconkein, a wild forest tract near the southern boundary of what is now the county of Londonderry. No resistance was offered, and 4,000 head of cattle, with many ponies and stud mares, were driven back, 'so that they might see them who would otherwise have been hard of belief.' Knowing by experience how hard it was to progress when thus encumbered, the Lord-Lieutenant ordered all the beasts to be slaughtered, except a few which were kept for provisions. All the country between Armagh and the mountains was destroyed, and the army then proceeded to Omagh, and thence to Lough Foyle, where Con O'Donnell and others were expected to appear, and where a victualling fleet was supposed to be in waiting. But the ill fortune which attended Sussex in Ireland did not desert him here. The ships, which had been forty days at sea, were not to be seen, and the Earl, having had the poor satisfaction of seeing Lough Foyle, returned to Newry with 500 cows which he picked up on the march. 'Man,' he said, 'by his policy doth propose, and God at His will doth dispose.' Con O'Donnell and Maguire, who were already well affected, had been sworn to continue so; but no general confederacy had been formed against Shane, and the impotence of the military administration had been demonstrated once more.

Sussex again takes the field.

Yet Sussex thought himself justified in saying that the credit of the army had been restored, though no enemy had been seen, because Shane had lost 5,000 cows, and had been forced to fly from wood to wood. The cunning chief was only waiting till the transient effort of civilisation was exhausted, and he soon attacked Meath, in fulfilment of his promise to Lord Slane. Some villages were burned, and Sir James Garland, a gentleman of importance who had ventured to stray from his armed company, was taken prisoner. A brother of Macmahon was with Shane, and we are told that 1,000 cows were taken from his tribe in revenge; but the result of all the operations was to prove that Sussex could neither conquer Ulster nor even defend the Pale. ^[34]

When Shane was returning practically victorious to Tyrone, Kildare brought a letter authorising him to treat and coax O'Neill to visit England. Fitzwilliam had already brought a conditional pardon. Sussex was ordered to co-operate cordially with the Earl, who lost no time in seeking a meeting with Shane. Accompanied by Lords Baltinglass, Slane, and Louth, he came to Carrickbradagh, the usual place of meeting; but Shane was in bad humour, and would listen to nothing. Next day he proved more amenable, and the conversation resulted in his making a written offer of terms, to which Kildare agreed with a readiness for which he was afterwards blamed. The arrangement was generally condemned in official circles, and was, with difficulty, accepted by the Lord-Lieutenant and Council. Yielding everything and suggesting nothing, it was said that Kildare had shown no regard for the Queen's honour, taken no pains to fight her battle, and consented to abandon Armagh, for the retention of which he should have held out to the last. The Earl merely answered that the thing was done and could not be undone, and he had certainly full power to treat. ^[35]

Kildare makes a truce with Shane.

It was agreed that Kildare and Ormonde should meet Shane, and remain in his company till he came to the Queen's presence. His passport to go and return safely was to be signed by the five Irish Earls, who were to undertake for the safety of his dependents in his absence. Kildare in particular undertook that the soldiers of Armagh, upon whose immediate withdrawal Shane did not insist, should do no harm until after the appointed meeting. A sum of money was to be advanced by Ormonde and Kildare, and

Arrangement for Shane's visit to England.

paid through the latter. No Irishman owing Shane allegiance was to be maintained against him, and if such a person drove his cattle into the Pale it was to be restored. In return he was to go to the Queen, giving the very hostages which had been before rejected, and to forbear taking vengeance on Maguire and others. Shane refused any alteration in these terms; what he had written he had written. It was retorted that 'seeing he would put no more in writing than was in writing already, he should look for the performance of all things written and of nothing else.' Shane's own terms were granted, but there was little goodwill or sincerity on either side. [\[36\]](#)

Having practically humiliated the Lord-Lieutenant, Kildare had enough address to give the Queen the appearance of a diplomatic triumph. It had been agreed that the garrison should be withdrawn from Armagh, but the Earl persuaded Shane that by not insisting strictly on this article he would put her Majesty in good humour and make her favourable to his suits. After expressing some indignation that any attempt should be made to vary the written letter, Shane was at last graciously pleased to humour the Queen, 'but as to th'erle of Sussex he would not molefye one yoote of his agrements; and hereupon sent his man the garison to remayne.' Five hundred pounds were paid over to Shane before starting, 1,000*l.* awaited him at Chester, and a second 500*l.* in London.

Shane sails for
England, 1561,

Shane came to Dublin and waited upon Sussex, who received him graciously; but this outward politeness scarcely concealed the real feelings of the two men.

Shane perhaps feared that the Lord-Lieutenant, who now had him in his power, might after all send him over as a prisoner. For the same reason an encouraging letter from Mary Stuart, which only reached him in Dublin, had not the desired effect of preventing his journey. And thus, accompanied by Kildare and Ormonde, without whose escort he had positively refused to stir, and with a train suitable to his pretensions, the uncrowned monarch of Ulster took ship to visit that great princess whose authority even he was ready to acknowledge, upon the sole condition that she should never exercise it. Shane afterwards complained that he was treated as a prisoner on the journey, and that Sussex had charged the Earls on their allegiance to secure him by handcuffs. [\[37\]](#)

visiting Sussex on
the way.

Sussex did not conceal from the Queen his mortification at the treaty which he had been obliged to sign, at the powers given to Kildare, and at the abandonment of the campaign, from which so much had been hoped, and for which such great preparations had been made. Her Majesty's letters had contained expressions of disgust which not only reflected on himself, but discredited the whole English interest of which he was the head, and he bitterly resented the small thanks given him for five years of arduous service. 'Our nation in this realm,' he said, 'is likened to the French in Scotland. We be railed on at tables with terms not sufferable. The people be incensed to wax mad, and this is hoped to be the jubilee year.' He complained that the Queen's Irish policy was as useless and unprogressive as Penelope's web, woven by one governor only to be picked to pieces by the next. It would be for the Queen's honour either to support her representative cordially, or to recall him honourably and employ him in some other place, 'where I can do her better service than I can now do here.' These criticisms were well deserved. The peace with Shane was of Elizabeth's own making, and yet, with that want of generosity which she sometimes showed, she tried to make out that its terms were not sufficiently favourable to her. Sussex showed conclusively that he had done the best thing possible under the circumstances which the Queen had thought proper to create. ^[38]

Unpopularity of English rule.

No sooner was Shane gone than Sussex obtained leave to follow him. The Government was left to Fitzwilliam, whose expenses were to be borne out of the pay and allowances of the absent Lord-Lieutenant, and who was directed to give all possible help to Brian O'Neill. It was perhaps thought profound policy to support the boy's claim to the Earldom of Tyrone while the real chief of Ulster was out of the way. Sussex rightly observed that if the Queen wished to support the young Earl she could best do so by treating Shane coldly at first, and by keeping him at arm's length till he himself arrived. This advice, which was not only sound in itself but calculated to restore the credit of Sussex in Ireland, came too late to be of much use; for Kildare had already presented Shane to the Queen. The bare rough heads of his gallowglasses, who did not lay aside their axes, their long curls, their wide-sleeved saffron shirts, their short tunics, and their shaggy cloaks of fur or frieze, which in Ireland covered a multitude of sins, made Englishmen stare; not less, says

Shane O'Neill at Court, 1562.

Camden, than they now stare at Chinamen or American Indians. The Ambassadors of Sweden and Savoy were present, and doubtless shared in the general astonishment created by her Majesty's distinguished subject. Shane prostrated himself before the Queen, and then on his knees 'confessed his rebellion with howling,' and made his submission in Irish, which few or none could understand. The language was perhaps less humble than the posture. But Cecil was not to be put off thus; the supposed meaning of the speech was engrossed in English, and two days afterwards was signed and sealed by Shane. 'For lack of education and civility,' he is made to say, 'I have offended.' He thanked the Queen for his pardon, promised to deserve well for the future, begged her favour for the gentlemen of his company, his kinsmen and friends, and admitted in writing that he had done homage on his knees to Elizabeth as Queen of England, France, and Ireland. Shane's pretensions were so extraordinary that the courtiers exercised their wit in inventing a style for him, and they dubbed him 'O'Neill the great, cousin to St. Patrick, friend to the Queen of England, enemy to all the world besides.'^[39]

Sussex received a copy of Shane's submission at Holyhead, forwarded it to Fitzwilliam, and then went on to London; a journey which bad weather and bad roads extended to about ten days. On his arrival he had to defend himself against those who had tied his hands by the commission to Kildare, and who now blamed him for not using them more vigorously against Shane. He showed very conclusively that he had done his best under the circumstances, and threw the blame on the Irish Earl, who was entirely responsible for the terms of the treaty. Either Kildare made good his case, or it was not thought prudent to follow the matter up closely; for there seems no reason to suppose that he was censured. With the help of Sussex, Cecil immediately set himself to discover the points on which Shane differed from the Government. Written interrogatories were drawn up and answered by Shane; and then the Lord-Lieutenant replied. The nature of the controversy will be best understood from an abstract of the papers, which bring out very clearly how entirely different were the English and Irish points of view.

Negotiations with
Shane in England.

1. What petitions did Shane intend to make to the Queen when he first proposed to come over?

Interrogatories
administered.

A. To acknowledge my duty, to become known to her Highness as a protection against unjust Governors, and to become civilised by the sight of her Majesty's nobility.

R. The implied accusation is too vague.

2. Shane has been profuse in offering his services—what are they?

A. To help the Governor in preventing foreign enemies from landing in the North. Sussex has brought in the Redshanks 'to the great danger of the Crown of Ireland.' Their lands should be restored to loyal subjects such as me, O'Neill, and my friends.

R. Judging from Shane's antecedents, is he likely to perform such a promise?

3. Why should not the Baron's son be Earl according to his patent?

A. That Kelly was born in wedlock and reputed the son of John Kelly and Alison his wife until sixteen. He was adopted by my father 'contrary to all order of law and to the old proverb "who bulleth my cow the calf is mine."' Matthew Kelly was then a trader in Dundalk called 'Matthew the seller of salt.' My father rechristened Matthew, 'Ferdoragh,' who then tried to usurp the headship of the O'Neills. Even if I were out of the way there are one hundred of my name who would not allow Matthew's pretensions.

Any patent must be void, for Con had no estate in the country, which was held only by consent of the Lords and inhabitants.

By the law of the Pale no letters patent took effect without inquisition, which could not be held in Tyrone because it was no shire. If 'the Queen's law' is to prevail, then I am heir-at-law.

R. The Baron's son claims by letters patent, not by legitimation, and the freeholders were consenting parties. Shane's Pale law is 'used in shire-ground and not in the Irishry, where the Prince holdeth by conquest, and ever hath done, and the breach thereof overthrows all the new Earls' states in Ireland.'

4. How he proves his title to be O'Neill, having never been admitted by the sovereign?

A. In Tyrone and most Irish countries the people assemble on the death of a chief and choose 'the most ablest and the worthiest of the headmen.' Shane was so elected without the usual contest. His ancestors never used to be confirmed by the Crown, 'yet none the less do I mean to be as good and true a subject as though any such confirmation were had in that behalf.'

R. The eldest is not accounted the worthiest, but the strongest. Shane forced the country to elect him. There are many precedents for the admission of captains of countries by letters patent, and the practice should of right be universal.

5. What authority and jurisdiction does Shane claim by virtue of tribal election?

A. What my ancestors have always claimed and no more. Most of them have held the pre-eminence by indenture, and the old men of the country will not deny the extent of the jurisdiction.

R. The claim is bad, and more particulars are required.

6. What countries doth Shane claim to rule thereby?

A. Magennis, MacMahon, Maguire, O'Kane, O'Hanlon, MacCartane, Dufferin, the Savages, and many O'Neills are under my rule. Clandeboye and the Rowte should belong to me, 'which the Scot engageth by the means aforesaid.' I have also ancient rights over O'Reilly's country, and rents out of 'other lords of small reputation which it were prolix to write.' The old black rent of 40*l.* out of Louth was remitted by my father. Whatever men may say, I mean to spend all my power in the Queen's service.

Shane's 'Urraghs,'
according to
himself.

R. Fuller particulars are required, and records are extant to disprove all these claims.

7. What obedience and service hath O'Neill hitherto borne to the Crown of Ireland?

A. Bare allegiance only to the Lords of Ireland, and peace with the Pale. My father first acknowledged Henry VIII. King of England, France, and Ireland; I do the same 'with a more perfection' to serve her Majesty than my

ancestors. When I undertook to come I fully knew what influence the Earl of Sussex had with the nobility. Nevertheless, I had ‘hope in the Queen’s Highness and the uprightness of her honourable Council, and my own truth.’ I now crave favour and despatch.

R. All this is false. O’Neill owes great service to the Crown of Ireland as appears by record.^[40]

Other controversies there were of a more personal character between Shane and Sussex; a study of which shows how hopeless it was to suppose that they would ever act together, or be anything but enemies to each other. Shane declared truly enough that Sussex had designs on his life. His charges may be summed up in the statement that he thoroughly mistrusted the Lord-Lieutenant, ‘by reason of which mistrust he hath escaped his traps, by the help of God and grace of the Queen, and now at length come to her gracious presence, which he hath long wished.’ Refuting some charges and denying others, the Earl concentrates his wrath in the supposition ‘that Shane’s nature is so accustomed to lying, as after her Majesty’s gracious dealing with him he is not ashamed to show the same now in her presence;’ and is therefore much less to be trusted when absent.^[41]

Personal differences
between Shane and
Sussex.

That Cecil was anxious to do right in O’Neill’s case may be inferred from the great labour which he evidently took to understand both the legal and moral aspect of the question. The ‘Tower Records’ were searched for precedents as to the Earldom of Ulster, through which Edward IV. and all his successors were entitled to Tyrone, and as to the relations of the Crown with Irish captains. Inquiries into Irish customs were also set on foot with special reference to Shane’s claims under them. His proved rights there was clearly no intention of withholding. But there was culpable procrastination, a hope that something might turn up, and an idea that it was well to keep Shane away from his own country and to accustom his country to do without him. O’Neill clamoured for his release, and produced evidence of the distractions of his country in his absence. Many spoils were taken to the Pale, and many disturbances raised by the Baron of Dungannon’s sons and by other enemies. Tirlough Luineach took too much on himself; ‘and the sept of the Neills,’ said the chief’s correspondent, ‘do not maintain one another but are

Consequences of
Shane’s detention.

scattered abroad, every one doing for himself, and the "kereaghts" of the country (the nomad herdsmen of Ulster) in every side are dropping away to eschew the trouble of the country ... every man spake largely for the defence of the country at your being with them, yet is the country now evil defended. It is easier to redress now than hereafter, therefore come in haste and do as the proverb says, "Principiis obsta; sero medicina paratur," come with haste and you shall be welcome.'

[42]

The Queen not unreasonably declared that she could not decide fairly in the young Baron's absence; but this should have been thought of before. About the time the order to send him reached Ireland the question was settled as between Shane and his nephew, or supposed nephew, by the murder of the younger claimant to the Earldom of Tyrone. Tirlough Luineach, who was probably tanist, and was certainly the second man among the O'Neills, waylaid the unfortunate boy before daybreak with 100 horse and 200 foot, somewhere between Carlingford and Newry. The victim had no more than twenty with him. He hid in a thicket, and stripped off his clothes, intending to swim the river, when the pursuit slackened. But one of his followers who was taken offered, to save his own life, to betray a better person. His hiding-place was soon found, and he was killed, 'not far, as I think,' said Fitzwilliam, 'from the spot where his father had the like friendship of his men.' Brian O'Neill left a brother behind him, who was neglected on account of his youth, but who lived to be the most formidable of all Elizabeth's Irish enemies. The murder could not be traced to Shane; and indeed Tirlough, as his presumptive successor, had an interest of his own in getting rid of a pretender who relied on letters patent. Under Tirlough's leadership the O'Neills did nearly as much harm as when Shane was present, and the last crime was considered evidence that no one but the latter could keep order.

Murder of the
Baron of
Dungannon.

We have but scanty information as to how Shane spent his time in London. He was present at a Court hunting party, where he saw a brother of Guise, who was on his way home from Scotland, kill two stags with a single arrow. A diarist of the time has recorded that one day 'John O'Neill, the wild Irishman, came riding into Cheapside, and dined at St. John's Head, at Master Daniel's, the goldsmith;' and that on another day he ran at the ring beyond St. James's in

What Shane did in
London.

the field. No doubt Shane rode well enough in the field; but probably he did not shine in the tilt-yard; for he asked the Queen, until she had found him an English wife to amuse him, to appoint him 'to attend on the Lord Robert, that I may learn to ride after the English fashion, to run at the tilt, to hawk, to shoot, or use such other good exercises as I perceive my said good lord to be meet unto.' This may not have been displeasing to the Queen, and was certainly not so to the favourite, who afterwards corresponded with Shane. O'Neill sent him hawks, horses, and greyhounds, and thanked him for his gentle and loving letters. Shane did not get the wife 'to be chosen by the Queen such as she and I may agree,' and he may have ceased to press the matter when he found that he might be expected to 'change his garments, and go like an Englishman.' Nothing was further from his thoughts than to conform to English customs, either in dress or religion, and he was in constant communication with the Spanish ambassador De Quadra, who encouraged him to hope for Philip's favour, and took care that he should not want the means of confession and absolution, which he must have required pretty often. The interpreter at these interviews was an Irish priest, who afterwards went to Louvain, and thence to Spain or Rome. One supposed consequence of his journey was that the Holy See gave Shane all the ecclesiastical patronage in his country.^[44]

Shamed or frightened by the death of the young Baron, the Queen at last let her barbarous subject go. He was acknowledged, with a formal reservation of young Hugh O'Neill's claims, as actual captain not only of Tyrone, but of O'Cahan's county, and of the greater part of what is now the county of Antrim; but with a proviso that he should not levy Irish exactions outside of his own proper district. He promised to do his best to persuade the chiefs thus placed under him to come to Dublin and do homage, and to support those who thus evinced their loyalty against those who refused to do so. Shane agreed to attend all general hostings in Ulster, and to keep the peace with O'Donnell, O'Reilly, and the rest for six months, during which a board of arbitration, consisting of the Earls of Kildare and Ormonde, and of four members of the Irish Privy Council, two named by himself and two by the opposite party, should sit and determine all differences. O'Neill promised to retain no mercenaries born out of Tyrone, and to take no pledges beyond the same limits. Phelim Roe's sons, and others in Tyrone who had done the Queen service, were not to be molested, and internal disputes were to be settled by arbitrators; the powers of an umpire being retained by the Council, who might send Commissioners to the border. Shane covenanted not to molest the garrison of Armagh, on condition that they were victualled out of the Pale. He consented to bring Calvagh O'Donnell into the presence of the Earls of Ormonde, Kildare, Thomond, and Clanricarde, and to submit to their decision as to Calvagh's liberation, and as to other matters in dispute. Such was the general tenor of the treaty: it was one which could not work well without complete good faith on both sides. The Queen probably acted under the advice of Sidney and of his brother-in-law Dudley, and this may have laid the foundation of the bad feeling afterwards existing between Sidney and Sussex. Shane was indeed completely triumphant. He left three hostages in London, but as they were all persons of no importance, he probably made the sacrifice with great equanimity.^[45]

Shane returns to Ireland.

Unfortunately, good faith existed on neither side. Elizabeth dismissed Shane with honour because she knew not what else to do, and Shane agreed to her terms because he was in the net and saw no other means of escape. Three hundred pounds certainly, perhaps more, was lent, or rather given, for the return

The Queen puzzled.

journey, and the Queen issued a proclamation declaring Shane's virtues, and appointing Commissioners to determine his controversies with the Pale.

Shortly before Sussex left Ireland Munster was disturbed by the chronic jealousy between Butlers and Geraldines. Desmond accused Ormonde of waylaying him on his return from the great hosting, and thereupon invaded his country; but a peremptory order from the Lord-Lieutenant averted a collision for the time. Ormonde went to Sussex when sent for, but Desmond, while professing his readiness to obey, kept out of reach, and made Lord Roche and Lord Barry swear allegiance to him. Sussex recommended that both the Earls should be sent for to England as the only means to save the whole South-West from disorder, which nothing short of a regular campaign could repress. Ormonde was willing to incur the expense of the journey, for he was in an awkward dilemma. Either he must allow his country to be wasted with impunity, or he must incur the Queen's displeasure by attempting to defend it. [\[46\]](#)

Desmond and Ormonde.

On receiving his patent as Lord Justice, Fitzwilliam was able to say that Shane's departure had made an instantaneous peace. Ormonde had shown extraordinary obedience and forbearance, or his rival's wilfulness and pride would have made great work. The usual causes of disturbance were still present, and the vacillation of the English Government confirmed the evil disposition of a people who, in Sir H. Radclyffe's opinion, were naturally 'addicted to sedition, desirous of alteration, contented with nothing but will and liberty.' Desmond was at war with all the gentlemen of the West, and they with him. The outlaws maintained by him burned towns and carried all their plunder into his country, where there was no danger of rescue. Ormonde had been ready to accompany Shane O'Neill to England, but the Queen had ordered him to wait for Desmond, lest he might leave his country exposed. The Geraldine Earl urged as a reason for staying at home that he was at war with his uncle Maurice, who bore the significant title of 'na totane,' or the incendiary, and whose propensities age had not tamed. The pretext was taken away by Thomas Fitzmaurice, who went to England and promised for himself and for his father to keep the peace during Desmond's absence. The Earl was reported to have said that he would never be in England at the same time with Kildare and O'Neill, the inference

Desmond shows signs of insubordination.

being that they had all an interest in disorder. Summoned by a letter from the Queen herself, Desmond did not answer for nearly a month, and then put in mere dilatory pleas, while he burned villages and robbed Ormonde's people of 500*l.* collected for his expenses in England. The two Earls met Fitzwilliam at Waterford, and Desmond dared the Lord Justice to interfere with the pirates who infested the Blackwater. He promised, however, that they should do no harm, and the Corporations of Cork, Kinsale, and Youghal declared that he was their only defence. The Lord Deputy and Council, said the Kinsale people, were so far off that they would rather lose their rights than hazard their lives to maintain them, and they made this their excuse for addressing the Queen directly. Desmond promised to go to England at Easter, and with this Fitzwilliam had to be content. Like Shane O'Neill, the Geraldine was willing to keep some order, provided he was not interfered with when he proposed to build a castle in Lord Roche's country. Fitzwilliam could see only rebellious intentions, but the people probably preferred one tyrant to many, and the known shortcomings of Desmond to the fluctuating policy of Lords-Lieutenant and Lords Justices. Determined to show no politeness to Fitzwilliam, Desmond slipped away at last without his knowledge, and Ormonde went over about the same time. In spite of his professions of poverty, Desmond was accompanied by an immense retinue.

[47]

Fitzwilliam took a very gloomy view of the country committed to his charge. He was, he said, a banished man wearing himself out among unkind people, a people most accursed, who lusted after every sin. Murder and incest were everyday matters, and a lying spirit brooded over all the land. It was difficult to make out any man's pedigree or title; for heraldry was discountenanced, records destroyed or embezzled, and everyone greedy for the reputation conferred by rhymers, whose trade was to set forth 'the most beastliest and odious parts of men's doings and their own likewise, for whom the rhymes be made; such be cherished, defended, and rewarded with garments till they leave themselves naked, besides the best piece of plate in the house, and chiefest horse away with them, not altogether departing empty-handed when they come among the Earls and others the nobility of English race.' The English Pale was, indeed, in a dreadful state, every one prophesying a total change of policy, and refusing to obey any law. Pirates

Fitzwilliam's
gloomy view of
Ireland.

infested the sea, blockading Cork and Kinsale, and even lying openly under Lambay, while the Queen's ships were nowhere visible. Robbery and arson were commonly committed with impunity. Thus Richard Keating, whose family had for generations given their service as swordsmen to the Earls of Kildare, amassed great wealth by preying on the property of the English settlers in Wexford. No one exerted himself to make the Keatings disgorge their ill-gotten gains, fearing the vengeance of their great patron, and even Ormonde was unwilling to press them hard. 'There be such with us,' said Fitzwilliam, 'as can serve two masters, and neither truly.'^[48]

Most important families had friends in official circles, and among the lawyers the jobbing was frightful. Records were made away with or altered, so that of seven attainders affecting the Crown's title to land, not one could be proved by documentary evidence. The judges were not above suspicion, and public justice had little chance against well-connected individuals. 'There is,' said the Lord Justice, 'neither judge, counsellor-at-law, nor any gentleman who is not by blood or marriage very near linked together, and though I cannot accuse any for doing things contrary to their conscience or corruptly, yet have I seen such things pass, whether for kindred's sake or neighbourhood I know not, but sure I am no man out of Ireland in the like case but would have made some stay for colour sake at least.' Where private interests were to be forwarded, decisions were given with indecent haste, while Crown business was systematically delayed. Fitzwilliam saw and described abuses clearly, but he had too much experience of Ireland to dream of a speedy reform. He had come with sanguine expectations, but had learned that a man may wear to skin and bones without effecting anything. The English Government had aggravated the difficulty by sending over officials of small parts or credit, far inferior to those born in Ireland. 'Let those sent hereafter,' he said, 'be as good as the best here,' and let 'every one that comes bid farewell to peace and quiet.'^[49]

The Irish lawyers.
Jobbing.

FOOTNOTES:

^[27] Sussex to the Queen, July 16, and the enclosures there; to Cecil, June 23. In his letter of June 28 to Sussex, Shane talks of the Queen's 'suavissima et benevola et gratiosa responsio;' as to the libels he says, 'si scriberem non

renuntiassem meæ sententiæ.’ Fitzwilliam to Cecil, June 22. *Four Masters*, 1561.

[28] Lord-Lieutenant and Council to the Queen, July 31, the official account for Elizabeth’s eye. The fuller and truer account is in a letter of the same date from Sussex to Cecil. *Four Masters*, 1561.

[29] Instructions to Sussex in *Carew*, July 4, 1562. Sussex to Cecil, Aug. 23, 1562, and Jan. 11, 1563; to the Queen, Aug. 23, 1562; Ormonde to Cecil, Jan. 11, 1563. Sussex was much blamed for not punishing Wingfield himself, but in the end his view prevailed, for the disgraced officer carried confidential instructions on his return to Ireland. See the Queen to the Lord-Lieutenant, July 19, 1563. See also two letters from Cecil in Wright’s *Queen Elizabeth*, Aug. 21 and Dec. 18, 1561.

[30] Shane O’Neill to the Lord-Lieutenant, Aug. 9, ‘from his woods:’—‘Pacem tractare non quo modo solidarii manebunt in aliquâ parte terrarum mearum, nam nemo sanæ mentis intelligat tranquillam pacem esse inter me et amplitudinem vestram si dicti solidarii manebunt in patriâ meâ.’ The ‘Urraghs’ whom Shane claimed as vassals were in fact all the chiefs of Ulster except O’Donnell. The word is given in O’Reilly’s Dictionary as ‘a chief next to a king;’ as used by Shane O’Neill, it means any chieftain over whom he claimed jurisdiction. Memorial for an answer to Shane’s letters, Aug. 12.

[31] The Queen to Sussex, Aug. 20.

[32] Sussex to the Queen, Aug. 24. In his answer to Cusack, dated Sept. 10, 1563, Shane talks of an attempt to kill him ‘tempore parliamenti.’ The Parliament was in 1559, but the words may mean merely ‘in a time of negotiation.’ ‘Parliament’ was sometimes so used even in English.

[33] Lord-Lieutenant and Council to the Queen, Sept. 1.

[34] Lord-Lieutenant and Council to the Queen, Sept. 21; Sussex to Cecil, Oct. 3 and 6. Kildare did not land in Ireland till Oct. 5.

[35] Sussex to the Queen, Nov. 21; to Cecil, Oct. 23, Nov. 3, 16, and 21; Kildare to Cecil, Dec. 3. Shane was persuaded to let the garrison of Armagh remain, though against the treaty.

[36] Sussex to Cecil, Nov. 21.

[37] Articles whereupon the Earl of Kildare is to be spoken with, Feb. 1, 1562 (in Cecil’s hand); Kildare to Cecil, Dec. 3, 1561; ‘Causes and matters moving Shane O’Neill’ in 1565, in *Carew* (No. 248). Ware says Shane sailed Dec. 3, 1561; he was at Court by Jan. 6. The terms virtually granted are in Shane’s letter to Sussex of Oct. 18, 1561. For the intention of Sussex to interpret them literally and narrowly, see his letter to Cecil, Nov. 21. For Shane’s fears, see Arnold to Cecil, Sept. 23, 1562, and Ware’s *Annals*.

[38] Sussex to Cecil, Oct. 19 and 23, and Nov. 3; to the Queen, Oct. 23, and Nov. 21.

[39] For Shane's reception at Court, see Machyn's *Diary*, Jan. 4, 1561-2; his submission, with the names of those present, Jan. 6; Camden; and Campion. Spenser afterwards characterised the Irish mantle as 'a fit house for an outlaw, a meet bed for a rebel, an apt cloak for a thief.'

[40] Articles to be answered by Shane O'Neill, Feb. 7, 1562. His answers, same date. The Earl of Sussex's reply, Feb. 14.

[41] Shane's answers to the Articles of Treason, &c., of June 8, 1561; Feb. 7. Confutation of same, Feb. 14.

[42] Brief collection of material points, Feb. 14; Private Memoranda by Cecil, March 1562 (No. 43); nameless correspondent to Shane O'Neill, March 21, with a note by Shane for the Council referring to other letters.

[43] Fitzwilliam to Cecil, April 23, 1562. The murder is not mentioned by the *Four Masters*.

[44] Machyn's *Diary*, Feb. 13 and 14; Shane's complaints to the Queen, March 13; Private Memoranda by Cecil, March (No. 43); Shane O'Neill to Lord Robert Dudley, Nov. 2, 1562; to the Cardinals of Lorraine and Guise, Feb. 1, 1567; Sir Nicholas Arnold to Cecil, Nov. 23, 1562. See Froude's *History of England*, Elizabeth, chaps. v. and vii. The 'Marquis' alluded to by Shane, in his letter to the Cardinals, would seem to be D'Elbœuf; but was he in England with Shane?

[45] Indentures between Queen Elizabeth and Shane O'Neill, April 30, 1562; Sidney's opinion, April 11, substantially agreeing with the above. In his letter of Jan. 2 to Cecil, Sussex wrote that no man of credit accompanied Shane to England. Shane was back in Ireland by the end of May.

[46] Lord-Lieutenant and Council to the Queen, Oct. 23 and Nov. 23, 1561; Sussex to Cecil, Dec. 20, 1561, and Jan. 2, 1562; to the Queen, Jan. 2.

[47] Fitzwilliam to Cecil, Jan. 15, Feb. 13, April 23, May 4; to the Queen, March 13 and 27; Sir H. Radclyffe to Cecil, Jan. 12; Ormonde to Sussex, Feb. 2; Kinsale, Cork, and Youghal to the Queen, April 8, 10, and 18; the Queen to the Lord Justice and Council, March 20.

[48] Fitzwilliam to Cecil, April 14 and 29; Lord Justice and Council to the Queen, April 17.

[49] Fitzwilliam to Cecil, May 13, with the enclosures; Matthew King to Cecil, May 7. King was Clerk of the Check, and of course saw a good deal.

CHAPTER XXI.

1561 TO 1564.

Queen Elizabeth might show clemency or policy by her treatment of Shane O'Neill, by ignoring Kildare's intrigues and utilising him in her service, and by summoning Desmond and Ormonde to submit their controversies to her personal arbitrament; but she could not close her ears to the complaints which reached her as to the state of the English Pale. It was then, as it still is, the custom for Irish students to keep some terms in London, to study the common law at head-quarters, and to carry back legal traditions and modes of thought to their own country. The bar was the recognised road to power and influence, and young men of family chose it almost as a matter of course. Twenty-seven of these students signed a memorial specifying the miserable state of the Pale, and this document was delivered to the Privy Council. Among the names of the signatories we find Talbot, Bathe, Dillon, Barnewall, Burnell, Fleming, Netterville, Wesley, or Wellesley, and others scarcely less known. The complaints were arranged under twenty-four heads, and interrogatories were delivered to Sussex, who made the best answer he could to each. The first article set forth that the whole expense of the Government and forts was nominally borne by Dublin, Kildare, Meath, West Meath, and Louth; but that West Meath and Louth hardly paid anything, and that the real weight rested on the three first only. To this it was answered that Carlow and Wexford were contributory, and that there was also some help derived from Irish countries: poverty there might be, but not caused by the soldiers; otherwise why should West Meath, where there were seldom any troops, be the least peaceful county of all? The rejoinder was that Wexford and Carlow sometimes paid a trifle under protest, that the Lord Deputy sometimes lived at Leighlin Bridge, with the express object of getting something out of the country irregularly,

State of the Pale.
Memorial of Irish
law students.

and that West Meath suffered from Irish exactions, to which the Marshal and Cowley, the Governor of Philipstown, were parties. Forced labour for insufficient pay, free quarters for soldiers, goods taken far below the market price, coyne and livery, private jobbing under colour of the public service—such were the principal heads under which the law students arranged their heavy indictment. No doubt there was exaggeration, and in some cases Sussex was able to give a conclusive answer; but the students admitted that writing at a distance they made no claim to infallibility, and craved indulgence for mistakes, preferring to incur blame rather ‘than that the miserable estate of our poor country should not be known to our gracious Queen.’ They courted the fullest inquiry, and they certainly made a case strong enough to startle a sovereign who could never be justly accused of neglecting her subjects’ welfare. Lord Robert Dudley, glad no doubt of an opportunity to annoy Sussex, and perhaps supplied with information by Sidney, supported the students; but the general official voice was loud and confident against them, and a rumour reached Ireland that the Queen gave no heed to their complaints. Thereupon twenty-seven gentlemen of the Pale addressed Elizabeth directly, supporting the original charges, protesting that their poverty and not their will made them impatient of taxation, and confiding in the Queen’s readiness to learn the misery of her subjects, ‘yea, from the basest sort.’ They demanded an independent commission of inquiry, and begged that their interests might be represented by Lord Baltinglass and John Parker, Master of the Rolls in Ireland, himself an Englishman, but a bitter critic of Sussex and his government, and in their estimation a just and upright man. ^[50]

One complaint of the students deserves special mention.

They alleged that martial law interfered with the regular tribunals, and being pressed for particulars they stated

Martial law.

positively ‘that Sir Ralph Bagenal, being lieutenant of the army, was for killing of a soldier arraigned at the King’s Bench, who pleaded his pardon. Whether justice hath been done by the Marshal of soldiers complained on to that we say that the man before mentioned to have been arraigned at the King’s Bench, and attempted to be taken thence by the Marshal, but upon resistance of the judges stayed and committed to gaol, was after by the Marshal taken from thence, and had none other punishment than put on the pillory, muffled, as it should seem, lest he might be known, which we count

rather a mockery than execution of justice.’ No answer in effect was given to this heavy charge, but that the Marshal had authority over the military, and that the Governor had orders to maintain him. If the lawyers in Dublin were guilty of factious opposition to the Government, they were not altogether without excuse.^[51]

Encouraged probably by the success of Shane O’Neill, Desmond behaved in London very much as he had behaved at Waterford. Being charged before the Council with openly defying the law in Ireland, he answered contumaciously, and when called to order refused to apologise. He was accordingly committed to the custody of the Lord Treasurer, on hearing which Fitzwilliam expressed an opinion that Desmond lacked both education and wit, and that the effect of bringing him to such senses as he had would be most beneficial in Ireland. ‘The news,’ he said, ‘made some not only to change colour, but greatly sigh, whose nature God amend, make them banish flattery, malice, and other misdeeds.’

Desmond in London.

The Queen wrote to Lady Desmond to complain of the Earl’s inordinate conduct, and to state her conviction that a little gentle imprisonment would do him good. Unheard-of favour had been ill requited; nevertheless, the royal patience was inexhaustible. No harm was intended to Desmond, and his wife was charged to keep order until his return. Between her son and her husband, the position of the countess was not pleasant. Fitzwilliam thought she did her best to hold the balance, and keep the peace between them; but her husband’s friends accused her of unduly favouring Ormonde, an imputation which she indignantly denied. ‘I always,’ she declared with a certain pathos, ‘wished them to be perfect friends, as two whom I love as myself.’^[52]

The Queen’s views about him.

Sussex followed Shane O’Neill back to Ireland, taking with him his sister, Lady Frances, the dainty bait at which it was supposed that wary fish might rise. During his stay at Court he had taught the Queen to see Ireland partly with his eyes. About the desirability of abolishing illegal exactions there could of course be no difference of opinion; and Elizabeth was now further inclined to divide the country into presidencies, to persuade the principal chiefs to take estates of their lands and accept titles of honour, to hold a Parliament, and

Projects of Sussex.

to establish a Star Chamber. On other points she was at issue with her Lord-Lieutenant. Thus Sussex wished to expel Shane O'Neill absolutely from Ulster, to divide Tyrone into three districts, to encourage and flatter the Scots as long as their help was wanted, and then, with a refined duplicity, to drive them out in their turn. Elizabeth was for making the best of Shane, alluring him, if possible, to keep his promises. The Presidency Courts when established were to administer both law and equity. Sussex wished to acknowledge what was good of the Brehon law, and by systematising it gradually to accustom Irishmen to written and settled forms. The Brehons he proposed to admit, not as arbitrators, but as counsel entitled to receive fees; and by empanelling juries to find the facts, he hoped in time to fuse the two systems together. It is much to be regretted that this really statesmanlike idea was not allowed to bear fruit. The difficulty of getting juries to find verdicts against the members of powerful factions was great in Elizabeth's time, as it is now. Sussex proposed to meet it by freely changing the venue from one county to another, an obvious expedient which has only very lately and by a subterfuge been partially introduced. The constitutional pedantry of lawyers often stands in the way of justice, for the furtherance of which they are themselves supposed to exist. ^[53]

The Queen's evident readiness to hear the complaints of the Pale encouraged William Bermingham, who had his own ideas of reform, and who was in correspondence with the Irish law students. He went to London, and his representations perhaps decided Elizabeth to send over a Commissioner with authority and ability to discover the truth, and to report it fearlessly. The person selected was Sir Nicholas Arnold, Wyatt's fellow-conspirator, a man of resolution and industry, who cared little for popularity, and who might be trusted to carry out his orders. Arnold was instructed to confer with Lord Baltinglass and three others as to the county of Kildare, with Lords Dunsany, Howth, and three others as to Meath and Louth, and with Talbot of Malahide and three others as to Dublin. Notwithstanding this success, Bermingham complained bitterly that he had been ill-treated and his advice slighted. If he had had full and favourable hearing he would have showed how the Queen might save 30,000*l.* He was 45*l.* out of pocket by his journey, and had gained little or nothing for the public. 'I shall be the last of my country,' he said, 'that shall come hither again to complain or to

The Queen sends Commissioners to report on the Pale.

declare anything for the Prince's commodity, although the occasion be never so vehement.' Anxious to get home for the harvest, Bermingham left London soon afterwards, overtook Arnold at Harlech, where he was waiting for shipping, and presented him with a long string of interrogatories proper, in his opinion, to be administered to the Queen's subjects in Ireland. The insinuations were that martial law was grievous to the innocent, and no terror to evil-doers, that officers and soldiers oppressed the people, that false musters were habitually taken, and that the Queen was kept in ignorance of the real state of Ireland. There were many covert insinuations against Sussex; and Arnold, when he reached his destination, was thus forewarned against official statements, and perhaps slightly prejudiced against the officials themselves. ^[54]

The payment of cess for maintaining soldiers was the most grievous of burdens. It was impossible to dispense with it altogether; but Sussex suggested that a more economical management of the Crown lands might furnish the means of lightening it considerably. The Queen acquiesced, suspended the granting of leases, and invited the Lord-Lieutenant to consult with his Council as to the redemption of those which were still unexpired. Commissioners were instructed to summon the landowners, and to inform them that the Queen was most anxious to lighten the cess; but that the monastic lands had been improvidently leased, and that she had therefore no sufficient revenue. If the country was inclined to buy out some of the lessees, their farms might be re-let at such a profit as to reduce the cess materially. The Commissioners, who were chosen from among the chief families, reported adversely to the scheme. The inhabitants of the Pale could not afford money for such a small and uncertain benefit. If they could be for ever relieved of all military burdens by letters patent, confirmed by Parliament, then they would make an effort, but for nothing less. This could not be done, and the matter dropped. ^[55]

Burdens of the Pale.

Back in Ireland, with the consciousness that he had gained a substantial victory, and that his most dangerous enemy was dead, Shane O'Neill was at first in high good humour; and he wrote courteously to the Lord Justice saying that the Queen had enough men to inhabit her land, and that his must go with himself. Fitzwilliam, who thought he had not learned much in England, was glad

Shane O'Neill
professes loyalty.

that he showed his hand so openly. Very soon the wording of the letters became warmer. Shane set up a claim to correspond in future directly with the Queen, and there were signs that he was already weary of well-doing, or rather of doing nothing. When Sussex landed he found that there was but little chance of the London articles being fully carried out. A meeting was appointed at Dundalk, and Sussex began to cast about for means to get Shane into his power by straining the language of the safe-conduct, which was nevertheless full and plain to every commonly candid understanding. The Dean of Armagh, the intriguing Terence Danyell, went to confer with Shane, and on his return dined with the Lord-Lieutenant. After dinner he talked freely, advising his host not to trust Shane, who would now be worse than ever, having rejected the advice of all his principal clansmen to attend Sussex at his landing. Shane complained with some reason of his treatment in England, said he went there to get and not to lose, demanded the withdrawal of the garrison from Armagh, threatened to take back his MacDonnell wife and make friends with the Scots once more, and nevertheless clamoured for the hand of Lady Frances Radclyffe. Dean Danyell thought Shane would not appear on the appointed day. Meanwhile, at least 20,000 head of cattle belonging to the O'Donnells were driven into Tyrone, and the O'Mores and O'Connors, the miserable remnant of two powerful clans, hung upon Shane's words and waited for him to give the signal of revolt. ^[56]

On the day fixed for the execution of the indentures made in England, the Lord-Lieutenant and Council repaired to Dundalk; but no Shane appeared. Letters from him came in plenty. He complained of hurts done during his absence, asserted his right over Maguire, MacMahon, Magennis, and others, and refused to come to Sussex if those rights were to be disputed. Kildare, Clanricarde, and Thomond were deputed to meet O'Neill, and to insist in temperate language upon the performance of the articles. If the worst came to the worst, they were to procure a truce for six months between him and his neighbours, and an open market for the garrison of Armagh. The meeting led to nothing, and Shane withdrew to his woods in high disdain. Maguire, O'Reilly, and the rest, who, on the faith of English promises which could not be performed, had hoped in vain for protection and peace, 'seeing him so proudly departed and not having received that

The loyal people of Ulster complain of being deserted.

which they long had hoped on, for two or three years depending continually on the Queen's Majesty, did forthwith burst out in so large, unseemly, and also lamentable talk, yea, in effect cursing him that would believe any promise from the Queen's Highness, either by mouth or letter.... Old O'Hanlon openly swore it were better to serve the worst Irishman of Ulster than to trust unto the Queen. MacRandal Boy, a Scot, who is as wise and subtle an Irishman as any among them,' spoke to the same effect, and Maguire complained bitterly of his losses, 'both at the coming in of the tide and going out of the same.' Sussex was almost ready to advise that the loyal chiefs should be allowed at once to submit to Shane, as the likeliest way to save some part of their property.^[57]

The Pale was not less hostile to Sussex than Tyrone itself, and his policy was constantly counteracted from behind. Robert Fleming, attorney of Drogheda, who had been employed by Shane to bring his letters to Dundalk, sought a private interview, and on being admitted to the Lord-Lieutenant's presence looked in every corner and under every hanging to see that no one was listening. He declared that if his evidence were known it would cost him his life. Sussex gave him his word of honour not to disclose it, and he begged the Queen to keep the secret. Fleming then said that Shane, who had daily information out of the Pale, had heard of Sussex bringing over his sister only to entrap him, and that 'if he came to any governor he should never return.' According to Fleming, most of the nominally loyal Irish had a secret understanding with Shane, who had agreed to keep Calvagh O'Donnell a perpetual prisoner, and to make his son Con chief. Con was to marry Shane's daughter; the Macleans were to give their services in ransom of the unfortunate countess; O'Neill himself was to take back MacDonnell's daughter and marry her openly; and Sorley Boy was to seek a foster-mother for his children among the O'Neills, to give Shane great gifts, and to furnish a contingent of 400 or 500 men. Whether Fleming was intentionally deceiving Sussex, or whether he really believed what he said, it is impossible to say; but the Earl evidently gave him no credit as against Con O'Donnell, whom he reported to be 'the likeliest plant,' as he thought, that ever sprang in Ulster to graft a good subject on. Con himself wrote to the Queen begging for help in earnest language, and telling her that he would rather give himself up than see his father and mother in such miserable

Ill-treatment of
O'Donnell.

captivity. The treatment of Shane's prisoners was indeed frightfully cruel. Calvagh had to wear an iron collar round his neck fastened by a short chain to gyves on his ankles, so that he could neither stand nor lie by day or night. 'Afterwards,' he said, 'Shane thought to torment me after another manner, to the intent that he might have all my jewels, and so he caused the irons to be strained upon my legs and upon my hands, so sore that the very blood did run down on every side of mine irons, insomuch that I did wish after death a thousand times.' Shane demanded Lifford as a ransom. This was the stronghold which old Manus had built in his best days, in spite of the O'Neills, and its surrender would lay Tyrconnel at an invader's feet. Shane could not be trusted, for he had already plundered the O'Donnells treacherously of 20,000 kine; nevertheless, it would be necessary to try the 'loathsome' experiment, unless the Queen could help her own. Con spoke for himself, and for Maguire, O'Reilly, MacMahon, Magennis, and O'Hanlon. The misery of the loyal tribes could not be exceeded, and Con's own people were dying of starvation on the highways. Shane was the tyrant of the North, inordinately ambitious, devoid of truth, and stained with every vice. If only the Queen would bestir herself, 'his pride,' said Con, 'I hope shall have a sudden fall.'^[58]

While the Government hesitated O'Neill acted. He attacked O'Reilly, swept 10,000 more cattle out of Tyrconnel, though he had sworn to keep the peace, procured the escape of his hostages from Dublin Castle, took away cattle from Armagh and then contemptuously restored them, and threatened the garrison itself. The MacDonnells were forced for safety to make an agreement with Shane, and Sussex returned to Dublin and wrote an official letter to Elizabeth. This humiliating despatch was in fact dictated by Shane to the Queen's representative, whom he had outwitted, and whom he now forced to write in his favour. It was followed by another letter, in which Sussex advised Elizabeth to show no mercy to the rebel: he had only written to stop Shane's mouth, and to gain time. Maguire described in piteous language the outrages to which he was subjected, only for being a loyal subject. Shane had crossed the Erne at Belleek and burned corn and houses, falling upon the harvest people and killing 300 men, women, and children. 'I am,' Maguire had written to Sussex, 'upon my keeping every day since his coming to Ireland. In his absence I might do him much hurt, if it were

Shane's violence.
Maguire.

not for fear of your Lordship's displeasure. Shane made offers to me, but my answer was that I will never forsake your Lordship, till your honour do forsake me. Except your Lordship will see to these matters Shane will come to destroy my country, and I shall be cast away, or else I must yield myself unto him.' The invasion had now taken place; and Hugh O'Donnell, to whom Belleek belonged, was afraid to offer any resistance. He thought it safer to join Shane, and Fermanagh was at the mercy of these two. 'I told Shane,' said Maguire, 'that I would never forsake you till you had forsaken me first; wherefore he began to wax mad, setting all on fire, and did never spare neither church nor sanctuary. He could not pass westward where my cattle were, because I stopped the passage with the help of certain hagbuteers that I have. Shane O'Neill should never have the power to banish me, except it had been through Hugh O'Donnell's castles, that stand in the borders of my country. I desire your Lordship to see to my great losses, which is innumerable to be reckoned. For I promise you, and you do not see the rather to Shane O'Neill's business, ye are likely to make him the strongest man of all Ireland, for everyone will take an example by my great losses. Wherefore take heed to yourselves betimes, for he is likely, with the help of Hugh O'Donnell, to have all the power from this place till he come to the walls of Galway, to rise against you.'

[\[59\]](#)

O'Neill's tyranny was certainly hateful to his neighbours, who protested their loyalty and prayed earnestly for help. Maguire begged Sussex to write only in English, for clerks, 'or other men of the country,' might know his mind if he used Latin. The poor man seems not to have had a horse left to ride, and was fain to beg one of the Lord-Lieutenant, who sent him an animal for which he had given the high price of twenty-four marks sterling. The prevalence of official corruption is seen here, for the horse actually delivered was worthless. A similar mishap seems to have befallen four hand-guns. Nothing was left in Fermanagh, Shane's machinery for robbery and murder being perfect, except in some islands in Lough Erne, and Hugh O'Donnell was preparing a flotilla to harry these also, while the O'Neills lined the shores. 'I cannot,' said Maguire, 'scape neither by land nor by water, except God and your Lordship do help me at this need; all my country are against me because of their great losses and for fear, and all my men's pleasure is that I should yield myself to Shane.' It was a far cry to

Ulster at Shane's mercy.

Lough Erne, and Sussex could only enlarge upon the value of patience. To Shane's violence he could oppose nothing but intrigues. The most brilliant expedient which occurred to him was to go to Armagh during the moonlight nights, and there parley with the enemy, so that he might not use them to plunder his neighbours. A State policy which depends upon the phases of every moon is really beneath criticism. January had been marked by the wild man's appearance at Court. December left him with Ulster at his mercy, the Government baffled, and all those who adhered to the Queen fugitives, prisoners, or at the very least robbed of their goods, and hourly expecting a worse fate. ^[60]

Like everyone who visits Ireland to learn the truth, Sir Nicholas Arnold found there was a general desire to throw dust in his eyes. The business of the musters proceeded very slowly. Bermingham was unable to prove his allegations, or many of them, and the gentry of the Pale began to think that Sussex would, after all, come well out of the inquiry. Sir Christopher Cheevers and others, who in the spring had taken an active part in denouncing abuses, were in the autumn anxious to persuade the Lord-Lieutenant that they had no hand in Bermingham's doings. Bermingham, said Sussex, was Bermingham; the knave might do his worst, but his instigators were better known than Sir Christopher and his friends supposed. The musters were but a cloak for intrigue, and he hoped the Queen would 'command Bermingham's ears to the pillory for example, for the Earl of Sussex himself (so much more being the Queen's Lieutenant) was no person to suffer to be threatened by a varlet to be touched in word, and not to be touched in deed.' ^[61]

Arnold and Sussex.

Parker, the Master of the Rolls, who had strongly advocated the cause of the Pale, was suspected of compiling libellous pamphlets against the Lord-Lieutenant, and was subjected to interrogatories on the subject. After much unseemly wrangling at the Council Board in the presence of Arnold, Parker at first refused to answer, and, being outvoted on that point, asked a delay of two days, and then put in merely a general denial, requiring special orders from the Queen before proceeding further. Had the Master of the Rolls been his equal, Sussex told the Queen he would have taken personal satisfaction, at the risk of his life and goods. He could forgive plots against his life, 'but he that seeketh falsely to procure me to live discredited with you, and

Recriminations.

defamed with the world, doth, I confess, touch me so near at the bottom of the heart, as I may without offence, I trust, of conscience, pursue the party to the uttermost by my own truth and discover his falsehood.... The malicious practices of Ireland seek first by secret and sinister means to utter matter of slander, thinking that the same going without punishment from hand to hand will breed to a common rumour, and so (holpen with time) endure credit, whereby, excepting indeed without punishment, they bring their intent to effect and leave the honest slandered, which danger I most humbly crave your Majesty to avoid from me, by open purgation in this and in all other like matters.’ It is true that public men in Ireland have been at all times peculiarly subject to baseless and self-seeking calumnies, and Sussex may be freely acquitted of any dishonesty in his office; but his indignation would better become him did not his own letters convict him of the grossest treachery against an Irish enemy. Was not Queen Elizabeth in truth far more deeply disgraced by the conduct of her Lieutenant than by any slanders which might pursue him in the fearless discharge of his duty? It is evident that Cecil did not share the Lord-Lieutenant’s feelings against Parker, for he continued to consult him, and the Queen granted his suit for a lease of certain lands. ^[62]

Among the many pie-crust promises of Shane O’Neill was one not to attack Dundalk, and on the faith of it the townsmen left their cattle in the fields, and lost them. Sussex feared for the safety of the town, and offered a garrison of 400 foot and 100 horse, to be victualled at the Queen’s prices. This was refused, the chance of losing all by Shane appearing a less terrible alternative than the support of 500 soldiers for three months. As the townsmen well knew, Sussex would be obliged to do his best for them, whether they helped or not. Nor were the Dundalk people altogether without excuse. The best men in Ireland, even Ormonde himself, were loth to incur expense which was almost sure to be followed by failure. Sussex had shown too clearly that the Irish problem was beyond his powers. He murmured at the general remissness. ‘I pray God,’ he exclaimed, ‘to rid me from serving with such as speak with their mouths what they mislike with their hearts, and put forth with their words that which they overthrow with their deeds, of which mischievous and direful practices I fear I shall hereafter bear the blame.’ ^[63]

Evident unfitness of Sussex for his work.

Great exertions were made to collect two months' victuals in the Pale, and in Wexford, Carlow, and Westmeath; and to do it in the way least burdensome to the country. A general hosting was ordered, but to avoid the cost of cartage the bulk of the stores were sent by water to Newry and Carlingford, and thence to Armagh by country ponies requisitioned for the purpose. Five hundred labourers were taken out of the Pale in the same way, to cut a pass in the woods between Dundalk and Armagh. The season was a bad one, but great hopes were excited, and the people professed willingness to exert themselves to the utmost. A general hosting was ordered. The Irish chiefs who were already committed against Shane promised to do their best, and there were even hopes of Tirlough Luineach, the second man in Tyrone. ^[64]

Great preparations
to attack Shane.

At last the army moved. Its composition was so heterogeneous that only a general of exceptional powers could hope to lead it to advantage, and Sussex was not such a general. The Keating kerne, the scourges of Wexford, did not agree with their Northern congeners: an affray took place, and blood was shed. There were small skirmishes with Shane's men. The soldiers chased a party to the edge of some bog or wood; then the wild horsemen appeared suddenly on all sides, or shots were fired from behind turf-ricks, and a retreat was beaten, seldom without loss. One day's work was exactly like another's. A few cows were taken, but no real service was done. For the first week the army lay encamped outside Armagh, and one dark night, while the rain was falling in torrents, a gang of thieves crept up to the lines and stole 300 pack-horses. This shameful negligence Sussex excused only by the fact that it was Easter Monday, and that it had been devoted to prayer, Sunday having been spent on the march. He forgot the natural connection between watchfulness and prayer. St. George's Day was spent by the Lord-Lieutenant in his tent, keeping the festival of the Garter; but the saint seems not to have been propitiated. Perhaps he thought the red cross should have been exhibited in the field. Three inglorious weeks passed away, and at the end the provisions were gone. The Blackwater had been crossed only for a few hours, and the baffled Viceroy returned to the Pale to bemoan his hard fate, and to lay the blame of failure upon every head but the right one—namely, his own. ^[65]

Small results.

Notwithstanding the perfidy of his own intentions towards them, Sussex expected the Scots to keep their promises made through Hutchinson and Randolph. Piers, the indefatigable constable of Carrickfergus, went both to Cantire and Red Bay. At the latter place he made an arrangement with James MacDonnell, by which the latter bound himself and his brother Sorley Boy to send a contingent to Armagh. Sussex had succeeded in making peace between the Scots and Andrew Brereton, the turbulent farmer of Lecale, who had called Tyrone traitor at the Council Board fourteen years before. Alaster MacRandal Boy, the acknowledged chief of the MacDonnells in that district, was a tried friend of the English, and willingly accepted Brereton's invitation to sup at Ardglass. That same night a number of Scots, including the chief and his brother Gillespie, were killed in their beds by Brereton's orders, and a third brother underwent the same fate in another village. These murders of course destroyed all hopes of help from the MacDonnells, and Scots and Irish alike called loudly and justly for vengeance. 'The voice is common,' said Sussex, 'that every Irishman that cometh to the Queen's service is either left undefended or murdered by treason, which toucheth as much the surety of the Queen's order in this realm as the breach of my "slantie" toucheth me in honour.' Brereton fled, having first sold his interest in Lecale to the Earl of Kildare. It does not appear that he was ever punished, and ten years afterwards we find the Lord Deputy recommending him for a good service pension. Such things did indeed touch the honour both of Queen Elizabeth and of her most distinguished servants. [\[66\]](#)

Treachery of
Andrew Brereton
against the
MacDonnells.

After a fortnight's rest Sussex again took the field. Led by an O'Neill, his army crossed the Blackwater at Braintree, and penetrated to Clogher. Some cattle were taken, but the majority were driven off into Fermanagh, which was now quite under Shane's control. Provisions were short, and the raid, for it was nothing more, was supported by the beasts taken. Tirlough Luineach and the unfortunate Maguire met the Lord-Lieutenant, but the former did not, and the latter could not offer any effectual help. A general hosting was ordered, but the overtaxed and desponding Pale scarcely answered the call. The summons was repeated, and the Earls of Ormonde, Desmond, Clanricarde, and Thomond, were directed to meet the Lord-Lieutenant at Dundalk on

Sussex can obtain
no decisive success.

June 14. In the meantime Sussex collected a small force at Armagh, and advanced to Dungannon. Tirlough Luineach was sent for; but he had not been favourably impressed by his last interview, and he did not come. A few O'Neills and a few soldiers, including one English captain, were slain in skirmishes, some cows were captured, and many ponies ham-strung. Shane hovered in the neighbourhood and prepared a Caudine ambushade for Sussex near Lough Neagh. The Lord-Lieutenant escaped by taking another road, and returned to Armagh to find that MacMahon's hostages had flown. On the way back to Dundalk some plunder worth noting was taken, 3,000 kine and 1,600 stud mares belonging to the O'Neills, which had purposely been mixed up with the MacMahons' property. MacMahon sent to ask for peace. His request was granted, and he was invited to attend the Lord-Lieutenant; but, like Tirlough Luineach, he declined to respond. Sussex returned to Drogheda, and on the same night Shane's people plundered Henry O'Neill's property close to Dundalk. Such was the usual, almost the inevitable end of these expeditions.^[67]

The preparations of Sussex for a new invasion of Tyrone led to nothing of importance. Negotiations were again tried, and Ormonde and Kildare were sent to argue the point with Shane. He agreed to a conference without listeners; there to make only such proposals as in matter and manner were worthy of a loving subject, and in sworn secrecy. The Earls offered not to divulge his statements, except to the Lord-Lieutenant and such of the Council as he should name. The desired conference took place, but Shane stiffly declared that he was not such a fool as to treat with the Scots without proper securities from the Government. He again demanded all that could be claimed by an O'Neill, and hinted to Ormonde that he had some understanding with the southern Geraldines, and that he might be worth conciliating.^[68]

Negotiations.

While Shane was defying the State in Ireland, Sir Thomas Cusack was at Court advocating a conciliatory policy. In desperation the Queen sent him back with large treating powers. How much she felt the humiliation may be inferred from her thinking it necessary to apologise to Sussex. While sweetening the pill thus, she told him plainly that he had failed, that his failure had been a

Cusack makes a virtual surrender to Shane.
Mortification of Sussex.

direct encouragement to the disaffected, and that he had confessed himself powerless to carry matters with a high hand. Under the circumstances there was nothing for it but to temporise. The mere form of a submission was the best that could be looked for. Cusack and Kildare accordingly met Shane, who descanted largely on his losses, on the attempts made to assassinate him, and on the persistent enmity of the Lord-Lieutenant towards him. He was, however, brought to consent to a treaty, by which he gained everything and yielded nothing. He was acknowledged as O'Neill, with all the powers ever exercised under that name. The Earldom of Tyrone was again dangled before his eyes, but the Queen said that for her own honour she could not go far into the matter until she had scrutinised the patents. With characteristic frugality she asked about the robes and collars sent to Sussex when he purposed to make O'Reilly and O'Donnell Earls, so that they might be available in case of a new creation. By the treaty concluded, Shane's differences with Maguire and O'Reilly were reserved for Commissioners, but they were to have no power to enforce their award. Chiefs who had committed the crime of loyalty were abandoned, and Shane was released from all obligations to appear in person before the Viceroy. His former promises to the Queen were cancelled, and he was exonerated from all responsibility for the murder of the Baron of Dungannon's son. Armagh Cathedral was to be restored to him, and he agreed to use it as became the Metropolitan Church of Ireland. Some trifling alterations were made in the treaty before ratification, but the surrender on the Queen's part was complete. Sussex felt this bitterly, but put a good face on the matter, and wrote to Shane in a conciliatory tone. ^[69]

Shane still professed much anxiety to live clearly after the English fashion. An English wife was the best means to that end, and of all eligible persons he preferred Lady Frances Radclyffe. In this he had probably no other design than to humiliate Sussex, but he suggested that the Queen should give Mellifont as a dowry. If her Majesty would not make a match, then he begged leave to seek a foreign alliance; but he greatly preferred an English woman—Lady Frances above all others—to increase his civil education, and to make his followers acknowledge their duties to the Queen. In any case he was determined to be good in future, to be the 'plague of all rebels in those parts,' and to do all more cheaply for his

Shane again desires an English wife. Lady F. Radclyffe for choice.

sovereign than she could do it for herself. Elizabeth prudently answered that the question of an English wife must be adjourned until Shane had proved his love of civilisation by deeds as well as words. ^[70]

Just before the peace or truce an attempt had been made to poison O'Neill in wine, of which he was accustomed to drink a great deal. He and his servant suffered from the dose; but no one died. It is not disputed that the guilty man was John Smythe, who appears to have been a foot soldier of Irish birth, one of a company in the Queen's pay of which Ormonde had the command. O'Neill demanded redress, and the Queen, when she heard of the affair, wrote with becoming indignation and horror. If there was any difficulty about getting a fair trial in Ireland, the accused man was to be sent to London. Elizabeth declared her willingness to bear with much that was disorderly in Shane, and to trust him more for the future on account of this great provocation. Smythe was arrested and examined, but no punishment followed. Whether Sussex or other great men were implicated, or whether Ormonde wished to screen his man, will never now be known, and Shane was induced to forgive Smythe. The suave Cusack pointed out that he could not be hanged for a mere attempt, and O'Neill despised any other punishment. Cusack advised Cecil to let the thing blow over; and no doubt this suited the Queen, who could not have forgotten the Lord-Lieutenant's plain-spoken letters in that other affair of Neil Gray. ^[71]

Attempt to poison
Shane.

Having pacified Ulster, or rather shut her eyes to its true state, Elizabeth turned her attention to the state of the Pale. The complaints of the Irish law students in London, of Parker, of Bermingham, and of Shane O'Neill himself, had been partially investigated by Arnold. Matthew King, Clerk of the Check, was found to have been very remiss, and declared that some of his gravest misdeeds had been done under direct orders from the Lord-Lieutenant. Nothing could much exceed the ill-feeling shown by Sussex to the party of inquiry, though he did not actually obstruct Arnold, who, on his return to London, made out a case too strong to be safely neglected. Parker and Bermingham were consulted again, and Arnold received a new commission. To make the investigation thorough, all members of the Irish Council who had no men in the Queen's pay under them, and most of the principal gentlemen of the Pale, were put into the

New Royal
Commission on the
Pale, 1563.

Commission. Sir Thomas Wrothe was associated with Arnold, and William Dixe, a professional auditor, was afterwards joined to them. Their instructions involved inquiry into almost all civil and military, and into some ecclesiastical affairs. The Queen notified her intention of establishing provincial presidencies, and suggested a plan for a University in Dublin, to be endowed out of the revenue of St. Patrick's.^[72]

The indefatigable Cusack, whose great idea was the conciliation of Ireland by arrangements with the native nobility, was as anxious to obtain terms for Desmond as for Shane. The Earl was tired of his detention in England, where he was hard pressed for so moderate a sum as 4*l*. He agreed to be responsible for order in Munster, to see that the Queen got her feudal dues, and to pay her a tax of 4*d*. a year on every cow. He promised to put down the Brehon law, as well as the bards or rhymers who seem to have been thought still more important; 'for that they do by their ditties and rhymes made to divers lords and gentlemen in Ireland, in the commendation and high praise of extortion, rebellion, rape, raven, and other injustice, encourage those lords and gentlemen rather to follow those vices than to leave them.' For every shilling paid to these men, two were to be forfeited to the Queen, whose Commissioners were to have power to fine the rhymers at discretion.^[73]

Cusack and
Desmond.

It is probable that neither Cusack's intercession nor Desmond's promises would have prevailed, had not the Earl's enforced absence left Munster in confusion. A dispute about the title to Kilfeacle was one difficulty, and the legal question cannot have been very hard to decide. But Desmond may have distrusted the impartiality of lawyers rather than the justice of his cause, and he preferred the old way of deciding lawsuits. His brother John spoiled the Butlers, while Ormonde, who was forbidden to retaliate, poured forth his griefs to Sussex. With just pride he dilated upon the loyalty of his ancestors, who had always been able to defend themselves, and to take and keep the Desmond's goods. His own services were not small, but for fear of disobeying orders he had to stand by, while he and his suffered more in two or three years than his forefathers had in two centuries. Towns were burned, women and children murdered, half Kilkenny and Tipperary lay waste. 'All this spoil, I assure your lordship, doth not so much grieve me as that the Earl of Desmond with his evil doings is like to speed as well as I that with

Desmond and
Ormonde.

my service have deserved at least to be restored to my own.’ In trying to defend his property, Ormonde’s brother John had been dangerously, if not mortally wounded. The Earl was forced to see all this, and do nothing. ‘My lord, you see what I get by sufferance; my brother left as dead, and mine enemies living upon the spoil of my goods. My lord, who shall render my brother his life if he die? Shall I live and suffer all this? If I may not avenge my brother on these disobedient Geraldines, as you are a just governor lend your force against them, and let not my obedience be the cause of my destruction.’ He begged that in case of Desmond being sent back to Ireland, he might at least be detained in Dublin until restitution should be made, and the rebels delivered to Sussex to be ‘justified.’ Ormonde threw out the significant hint that, failing this, he would leave his estate to take care of itself, and go to the Queen, ‘like some other private men.’^[74]

Desmond’s head was in the lion’s mouth, and he professed loyalty, while doubting the capacity of the Munster chiefs for civil life. If he was expected to do anything he must have guns and gunners to take castles, and have the right to arrest malefactors in the corporate towns. The Queen was silent on these points, but urged Desmond to put down private war, ‘which hurts the innocent, to the great displeasure of Almighty God, and to our dishonour, whereof we pray you to have due regard.’ She ordered him to wait at Dublin for Cusack, whose help he had himself asked. ‘The Queen’s sword,’ she said, ‘shall touch the guilty, and no other shall be drawn.’ Brave words! but much belied by facts.^[75]

Desmond is restored.

FOOTNOTES:

^[50] Book by twenty-seven students of Ireland, March 21, 1562, and the documents arising out of it (52 to 59). Sir Oliver Plunket, of Rathmore, and twenty-six others to the Queen, May 27, and their letter of the same date to Lord R. Dudley.

^[51] Interrogatories by the Earl of Sussex, &c., March 21, and the answer, same date.

^[52] Fitzwilliam to Cecil, June 19, 1562; the Queen to Lady Desmond, June 7, 1562; Joan, Dowager Countess of Ormonde and Countess of Desmond, to Cecil, July 22, 1563.

[53] Instructions to the Earl of Sussex, July 4, 1562; Report of the Earl of Sussex, 1562 (No. 236). Both in *Carew*.

[54] Instructions for Sir N. Arnold, July 7, 1562; W. Bermingham to Northampton, July 16; Arnold to Cecil, Aug. 13.

[55] Instructions for Sir N. Arnold, July 7; W. Bermingham to Northampton and Cecil, July 16; Arnold to Cecil, August 13; Instructions for the Earl of Sussex, July 3, the original in *Carew*; Sussex to Cecil, Aug. 23.

[56] Fitzwilliam to Cecil, June 13 and 19, and Aug. 31, 1562; Sussex to Cecil, Aug. 1; Sussex to the Queen, Aug. 27, with the enclosures. The words of the safe-conduct are, to come and go, 'absque ulla perturbatione sive molestatione nostra, sive alicujus subditi Dominae nostrae Reginae.' Sussex reached Ireland on July 24.

[57] Lord-Lieutenant and Council to the Queen, Sept. 20, with enclosures; Fitzwilliam to Cecil, Sept. 20; Arnold to Cecil, Sept. 23; Sussex to the Queen, Sept 29.

[58] Con O'Donnell to the Queen, Sept. 30, 1562; Calvagh O'Donnell to Sussex, Oct. 29; Sussex to the Queen, Sept. 29 and Oct. 1.

[59] Extracted from three letters of Shane Maguire to Sussex, printed in Wright's *Queen Elizabeth*, Aug. 15, Oct. 9 and 20, 1562, from the Cotton MSS. The last is also in the R.O. collection. The letter written to humour Shane, by the Lord-Lieutenant and Council to the Queen, is dated Oct. 20, and the Lord-Lieutenant's corrective, Oct. 26.

[60] O'Reilly and others to the Queen, Nov. 6, 1562, against 'illum nepharium Johannem.' Shane Maguire to the Lord-Lieutenant, Nov. 25; Sussex to Maguire, Dec. 15, and to the Privy Council, Dec. 28.

[61] Lord-Lieutenant to Cecil, Sept. 29.

[62] Sussex to the Queen, Sept. 6; Abstracts of Letters, Sept. 8; Calendar of Patent Rolls, Nov. 9, 5th Eliz. An anonymous duodecimo pamphlet of 29 pages calendared under June, 1562 (No. 37), is not in Parker's hand, and he denied having written anything of the kind.

[63] Sussex to the Privy Council, Feb. 5 and Feb. 19.

[64] Lord-Lieutenant and Council to the Privy Council, Jan. 26; Sussex to the Privy Council, Feb. 5 and 19, 1563.

[65] Sussex left Dundalk on April 5, and returned to it on the 25th. St. George's Day was the 22nd. Many particulars in *Carew*, under June 7, 1563.

[66] Shane O'Neill is the authority for the details, but they do not seem to have been disputed; see his memorial in *Carew*, 1565, p. 369. Sussex to the Queen, April 24, 1563. Lord Deputy Fitzwilliam to Cecil, Feb. 20, 1573.

[67] Sussex to the Privy Council, May 11, and to his own Council, May 20; and see his Journal in *Carew*, June 1 to 7.

[68] Instructions for Ormonde and Kildare, July 26. Memorial of parley, July 30.

[69] See the treaty in *Carew*, Sept. 11, 1563; Sussex to Shane O'Neill, Sept. 16.

[70] See four letters from Shane O'Neill to the Queen, to Cecil, and to Cusack, all calendared under Nov. 18, 1563; also Terence Danyell to the Queen, Nov. 28.

[71] Shane O'Neill to Cusack, Sept. 10, 1563—'Per potionem vini in quo clam venenum, &c.' Memorial for Cusack, Oct. 20, 1563; for Wroth and Arnold, same date. Cusack to Cecil, March 22, 1564. There was an apothecary named Thomas Smythe in Dublin about this time, and he was probably a relation of John, and may have got the poison for him. The would-be assassin was afterwards known as 'Bottle Smythe;' see *Irish Archæological Journal*, N.S., vol. i. p. 99.

[72] Notes for musters, Sept. 8, 1563; Instructions to Arnold, Wrothe, and Dixe, Oct. 20, 1563, and Jan. 5, 1564, in *Carew*.

[73] Orders for Desmond, Dec. 20, 1563.

[74] Ormonde to Sussex, Dec. 10 and 17, 1563.

[75] Desmond to the Privy Council, Dec. 20, 1563; the Queen to Desmond, Jan. 15, 1564.

CHAPTER XXII.

1564 AND 1565.

The trouble which it cost Wrothe and Arnold to reach Ireland pretty accurately foreshadowed the trouble which awaited them there. After waiting a long time at Holyhead they at last ventured to sea, but were taken aback before they gained mid-Channel, and had to choose between scudding under bare poles towards Ulster, or returning to Wales. They chose the latter course, but failed to make the harbour. They lay for a time under the shelter of some rocks, and were glad to scramble ashore at three o'clock on a February morning, wet and sick, but safe. Nine days later they were more fortunate, and reached Dublin to find that Leix and Offaly were again in rebellion, and that the financial confusion had not been exaggerated. All captains, castellans, sheriffs, and municipal officers were at once called on to produce accounts. The inquiry into the musters was begun by demanding an accurate return of all changes and vacancies in the Lord-Lieutenant's own company. Sussex said he was ready to obey the Queen in all things, but that this had never been required of any chief governor, and was, in fact, out of his power. The debts to the Crown were great, and many of them desperate. There was not one groat in the Treasury, and the 11,000*l.* which the Commissioners brought was quite inadequate. The Pale and the wild Irish were at daggers drawn, for the former clung to their own customs and bye-laws, and looked for the Queen's protection in their attempts at self-government. The Church was in no better case than the State, but there was a pretty general wish to have St. Patrick's turned into a University. The Commissioners recommended that the judges should put the Act of Uniformity generally in force, 'not meddling with the simple multitude now at the first, but with one or two boasting mass men in every shire, that it may be seen that the punishment of such men is meant.'

Difficulties of
Wrothe and Arnold.

[76]

It soon became clear that Wrothe was not exactly the fittest man for the work. He was anxious to do right, but very nervous about exceeding the letter of his commission, and from the first wishing to be recalled.

Wrothe's horror at the general corruption.

He fell into a fever which he felt certain would be attributed to riotous living, and he assured Cecil that he seldom took more than one meal in twenty-four hours, which was not the way to preserve health. His sense of the general corruption made it hard for him to gain friends, though he was generally praised for his willingness to work hard. The whole rapacious pack of jobbers longed to be rid of him, for he was bent on even-handed justice, a scarce commodity, and not in demand with any party. The Queen was considered fair game for every robber. Arnold, a man cast in a much rougher mould, had little regard for his colleague's feelings, and a coolness soon sprung up between them. On Sussex obtaining sick leave, the general government was entrusted to Arnold, and the new Lord Justice expected Wrothe to do the business of the Commission single-handed. He was willing enough to take routine work on himself, but declined to be responsible for any matter of moment unless Arnold was joined with him in it. 'God deal with me,' he wrote, 'as I have meant to serve the Queen here. My mind is troubled and my conscience, for God's sake help me.... Our bowls here be so much biassed, and I have no skill but with upright bowls, and therefore unfit for this alley.'^[77]

After a partial examination of the public accounts, Auditor Dixe estimated that the Queen's debts were between 30,000*l.* and 40,000*l.* The victualler and the officers engaged on fortifications gave in their accounts, but they were full of mistakes. The cessors of the Pale, who were very numerous and often very incompetent, were slow to produce their books. Captains of companies delivered muster-rolls from May 1560, when they had been fully paid off by the Lord-Lieutenant's warrant, but declined to do so for the previous year on the ground that it was contrary to custom. In many cases the books were not forthcoming, but this was not unnatural in the case of officers who constantly changed their quarters, and who did not expect any further question to arise. The real fault was in the Government. We are accustomed to clock-work regularity, and can scarcely imagine the loose way in which things were done even much later than Elizabeth's days. When Lord

Great abuses.

Shelburne joined Colonel Wolfe's regiment, the future hero of Quebec told him that he must not draw his pay, but let it accumulate for the benefit of deserving officers. But it was not only in money accounts that Wrothe and Arnold found the army in Ireland defective. There was an old order that every captain should find pay for his Irish soldiers if he thought proper to have more than five in his company. As a matter of fact many companies were half Irish, and this had long been winked at. The captains were now told that the Queen wanted no Irish soldiers. Wild Irishmen could not be trusted, and tame Irishmen were necessarily a deduction from the strength of the Pale. It was not for the Queen's interest that the rebels should know all the secrets of the service and all the art of war. Irish soldiers would take less pay than Englishmen, and it was therefore for the private interest of officers to enlist them. The captains pleaded the Lord-Lieutenant's orders to make up their strength. Englishmen could not be had, and they threw themselves on the Queen's mercy; they were ready to serve her while life lasted.^[78]

But Bermingham, who was Arnold's principal adviser, understood the duties of the Commission differently. According to his view every officer, from the Lord-Lieutenant downwards, was to be visited with extreme penalties for every technical error. No allowance was to be made for men who were irregularly and not highly paid, and who had too often to make her Majesty's bricks without straw. It was hard in Queen Elizabeth's time—it is hard enough in Queen Victoria's—to apportion the blame between the English Government and its servants in Ireland, but the irregularities themselves were scandalous enough. Even Bermingham had some doubts about the policy of employing anyone living in Ireland to inquire into matters personally affecting the Queen's representative, but the Commissioners were peremptory, and he had to deliver a book of exceptions to the Lord-Lieutenant's muster. A roll of his own, accompanying this document, contained 213 names, but of these twenty-five were holders of other offices, thirty were occasionally employed by other captains, and sixty-four were of Irish birth, though by rights all but eight should have been Englishmen. Of the Englishmen born ten were no soldiers, but at best retainers. A soldier's pay was drawn in the name of the clerk of Christ Church, and still more strangely in the name of Adam Loftus, 'primate and bishop of Armagh, almost these two years.'

Harsh proceedings
of Arnold.

Sussex could muster 155 men, but no more than forty-three were really fit for service, and of these twenty-eight were officers. Thomas Smythe, the apothecary, who probably kept drugs for poisoning as well as for healing, was borne on the strength, and so were butchers, carters, woodcutters, scullions, makers of arras, musicians, a mariner, an old fisherman, a blind man, and a dead man. Brian Fitzwilliam's company should have mustered 200, exclusive of officers, whereas the rank and file in reality only numbered 128. Captain Fortescue's followers were found to be nearly all Irish; they were disbanded, and as Fortescue declined to account, he was committed to prison.^[79]

When the Commission had been at work for a year, Elizabeth found out that it was very slow and very expensive. She recalled Wrothe, much to his own delight, but to the despair of Dixe, who was left single-handed to cope with Arnold and Bermingham. Unrestrained by an English colleague, the Lord Justice now proceeded to extremities, a course in which he was encouraged by the local magnates joined with him in the Commission. The captains were required to enter into recognizances, binding themselves under penalties to give a detailed account of all they had received, and to make good deficiencies. The captains were willing to bind themselves to account for all the money or value which they could be proved to have received, and confessed that they had been negligent about the preservation of books, but refused to admit the evidence of private soldiers instead of documentary proofs. Any one who has had anything to do with paying troops will know that they were amply justified in the refusal. The Commissioners proceeded in the most arbitrary way, refusing to make any allowance for men employed as servants, and proposing to pay all according to the roll, and without the knowledge of the captains. All Irishmen above six in each company were to be peremptorily disallowed, without considering the explanations offered on this head. The Commissioners swore in twelve soldiers from each company, and encouraged them to say all they could against their captains; and having thus collected much hostile evidence, they refused copies to the officers concerned. Captain George Delves having declined to submit to the requirements of the Commissioners, though he offered to give all reasonable security, was sent to prison. Sir

Wrothe is recalled, 1564. Irregularities in the army. Proceedings against the officers.

Henry Radclyffe, the Lord-Lieutenant's brother, and Sir George Stanley, the Marshal, 'seeing their staves to stand next the door,' as they themselves expressed it, protested strongly against the 'opening of matters, we do not say the forging of matters,' to their prejudice. They significantly added that all the Commissioners were blood-relations to each other and to Bermingham. Auditor Dixe, who seems to have been really anxious to do right, heard the Lord Justice talk much of the 'exactions, impositions, cessings, and cuttings,' of Sussex and the captains, to the impoverishment of the Pale, and warned him that he would be considered partial if he did not report the same of the native nobility, who extorted twice as much. The auditor reminded Cecil that he was but one man against fourteen. The jobbing of family parties, as they have been called, has indeed been for centuries one of the chief difficulties of ministers who have been successively charged with the government of Ireland.^[80]

Sir Henry Radclyffe, the most highly placed and best connected officer in Ireland, was summoned before Arnold to give fuller answers to Bermingham's charges. He refused to go back to a period before the last general payment, but offered to wait on the Commission at any time after one hour's notice, and begged that his soldiers might not be paid in his absence. Well might Radclyffe exclaim, 'fiat justitia,' when this common measure of justice was denied to him. Dixe was ordered to settle with Sir Henry's company according to their own report. He obeyed; but took the precaution to have some of the Commissioners present, and declined to be bound by the results of such a monstrous order. It was hardly worth while to brand the character of the Queen's officers, and to destroy the discipline of her troops for the sake of 10*l.*, saved in the payment of a company of fifty. Radclyffe asked for a passport, and even offered to be tried by his own soldiers. Both requests were refused, and the Commissioners, who seem to have surrendered themselves to Bermingham's guidance, declared that if fraud appeared on the face of the incriminating document drawn up by him, they would force Radclyffe to give the details which he had already refused. He was made to appear about 6,000*l.* in debt, nearly half of which was on account of Irishmen enlisted above the number officially allowed. The accused officer was then committed to prison, and Arnold, having

Arnold is too harsh and too zealous. Sir Henry Radclyffe's case.

Arnold imprisons the Lord-Lieutenant's brother

undertaken to see his men paid, refused to settle the tradesmen's bills for necessities, alleging that all should fall on the captains. There may have been great negligence, but the Lord Justice did not venture to accuse Radclyffe of any false statement; and it must be admitted that, whatever his faults, he had managed to keep Leix and Offaly quiet. As much could not be said for Arnold, whom the English Council gently rebuked for taking such an extreme course with an officer of high rank, a Privy Councillor, and a man of family. There could be no objection to detaining him in Ireland if necessary, but he might have been left at liberty. Cecil and Leicester, after privately examining the voluminous and contradictory reports, declared themselves puzzled in some things, and advised Arnold to take a good many of the Irish Council into his confidence. They reminded him that Dixe, with whom he appeared unable to agree, was chosen for a man of honesty and ability. What Leicester and Cecil could not fully understand at the time, we shall hardly be able to clear up now. That Radclyffe had committed irregularities was not denied, that they were much smaller both in amount and in kind than Arnold supposed may be gathered from the fact that he was afterwards allowed to give a bond for 600*l.* to repay all moneys overpaid to him, if the balance should be against him at a final closing. Sir George Stanley gave a similar bond for 300*l.* Nicholas Heron, another captain whom Arnold treated with great rigour, was afterwards knighted, and died in the enjoyment of the Queen's favour.^[81]

While Arnold was occupied in exposing, and perhaps exaggerating the defects of military administration, the optimist Cusack was trying to keep Shane O'Neill in good humour. 'Sir Thomas Cusack's peaces' became a byword in official circles. The last was made on the basis of leaving Shane all the glories of the O'Neills until the Queen gave him his father's title. He was not to be brought before the chief governor against his will, and the disputes between English and Irish in the North were to be referred to arbitration. The Queen had made up her mind to brook the fact of a great O'Neill; but she positively refused to confirm the articles exempting him from attending on the Viceroy, and referring all to arbitration. Shane then declared that he would have all or none; but he signed a temporary agreement for the pacification of the borders, and he appears to have kept it for a time. Cusack, who was never tired of singing Shane's praises, wished

'Sir Thomas
Cusack's peaces.'
Shane in his glory.

to have the Great Seal affixed to the original treaty; but the Privy Council dared not mention it to Elizabeth, the alterations being deemed necessary for her honour. That saved, there was every desire to humour the tyrant of the North. Elizabeth said she thought she had yielded enough, but was willing to have Shane's disputes with the Baron of Dungannon's sons decided in the next Irish Parliament. Shane dared to claim Lady Frances Radclyffe as having been 'appointed to him by the Queen's Majesty,' and the Privy Council were afraid to say more than that the question must be left till Sussex reached the Court. How Lady Frances would have fared as Shane's wife may be inferred from the way in which he treated his mistress. The Countess of Argyle, the accomplished lady who had left her husband for his sake, was chained by day to a little boy, and only released when wanted to amuse her master's drunken leisure.

Lord Robert Dudley, mindful of their old sport together, advised the chieftain to do some notable service, and thus deserve the royal favour. He answered that the Scots were rebels and traitors, who usurped the Queen's lands and revenues in the North, and that he would drive them all out of Ireland for no greater reward than the pay of forty men. In other words, he would gladly have had the Queen's help in adding the MacDonnell lands to his own. ^[82]

Shane's offers of service.

Cusack's anxiety to please Shane was so great that he had no feeling left for O'Donnell, whose fate might well have moved the hardest heart. Seven years before, he told the Queen, O'Neill when hard pressed by the Government had been glad enough to take refuge in Tyrconnel, to marry his daughter, to profess loyalty to the Queen, and to swear eternal friendship to his hospitable host. O'Donnell had been glad to hear his son-in-law talk so, and said that he would befriend him only as long as he was loyal. Then Shane had taken to intriguing with his clansmen, and probably, if we may judge by the sequel, with his father-in-law's wife. After his treacherous capture O'Donnell was bound hand and foot, an iron collar round his neck being tightly chained to the gyves on his ankles. Night or day he could neither lie down nor stand up. 'When he perceived,' said the victim, 'that I could not be undone after this manner, he thought to torment me after another manner, to the intent that he might have all my jewels, and so he caused the irons to be strained upon my legs and upon my hands so sore

Ill-treatment and torture of O'Donnell.

that the very blood ran down on every side of mine irons, insomuch that I did wish after death one thousand times.’ No Christian or Turk, he thought, had ever been treated worse, and besides his personal wrongs not less than 500 people of some condition, and at least 14,000 of the poor, had lost their lives through O’Neill’s cruelty. His son Con, whose cousins delivered him to Shane, had been induced by torture to promise the surrender of Lifford. The tribesmen refused to give it up, and Shane threatened to strike off his prisoner’s leg. While Con daily expected death, his tormentor blockaded Lifford with earthworks, and his cattle ate down the green corn for miles round. The castle was taken, and all Tyrconnel was then at Shane’s mercy. [83]

O’Donnell himself was released after a captivity of two years and nine months, partly perhaps because he had been a troublesome prisoner. According to Cusack, or rather to Shane, who was his informant, he had given up Lifford, promised many kine and much plate and jewels, and released his ancient claim to the suzerainty of Innishowen. In the absence of documentary evidence no one is bound to believe this, and in any case, promises extracted by torture could hardly be thought binding. O’Donnell was indeed in no condition to pay such a ransom, for he had lost all control over his country. He had incurred unpopularity by paying a pension to Argyle as the price of his faithless wife. O’Neill had, however, seized Con in revenge for the alleged breach of contract. ‘Con,’ said Sir Thomas Wrothe, ‘is as wise and active an Irishman as any in Ireland:’ he was married to an O’Neill, and there was a suspicion that the lady favoured her father rather than her husband. Cusack advised Arnold to give O’Donnell nothing but fair words, and a letter to Shane bidding him use his prisoner well. On reaching Dublin O’Donnell was accordingly received with outward marks of respect, but Arnold refused to give him any help or to allow him to go to England. He was reminded that his grandfather, who was ‘the honestest O’Donnell that ever was,’ never came to the governor but to ask aid when banished by his son, and that son was in turn banished by his son the present suppliant. Calvagh was told that he came not now for service but for help, for which he would go to the Turk, and that no O’Donnell ever did come for service, nor was able to hurt the Pale, except when allied with O’Neill, Maguire, Magennis, O’Rourke,

Release of O’Donnell. He goes to Dublin, where he gets scant comfort, and thence to England, where

and O'Reilly. The family quarrels of the O'Donnells could not be denied, but they might at least be matched by those of the O'Neills, and there was something savouring strongly of meanness in the rest of the answer, when we reflect that Calvagh had been in alliance with the English Government at the time of his misfortune. The cause had been determined against him beforehand, but he came before the Lord Justice and Council to hear his statement read, and to add what might be required by word of mouth. 'Hearing his bill read,' says Wrothe, 'he burst out into such a weeping as when he should speak he could not, but was fain by his interpreter to pray license to weep, and so went his way without saying anything. Sure it pitied me to see him, and more because his present help is doubtful, for although it may be said that the wisest to win peace will take war in hand, and that it is likely Shane will not be reformed but by war,' yet the poverty of Ireland and the occupation of England made war well-nigh impracticable. ^[84]

Arnold seems to have thought himself bound to do in all things exactly the opposite of Sussex, and he accepted Cusack's rose-coloured view of Shane's intentions. But Wrothe's reasoning was more dispassionate. He saw the danger of letting O'Donnell's country come under the power of O'Neill, who gave good words but went his own way nevertheless. If possible he was to be pacified, but war might prove inevitable, and to be successful it would have to be conducted in a new way. He saw that O'Donnell was determined to go to the Queen with or without license, and if necessary by way of Scotland. The Queen said she would willingly see O'Donnell at Court if it would do him any good, but that the causes between him and Shane would have to be tried in Ireland, and she did not see what he could gain by the journey. She saw Arnold's bias clearly enough, and said plainly that the Dean and Chapter of Armagh, who had been named, were no fit Commissioners to judge of this matter. Terence Daniel and his colleague had a too natural affection towards O'Neill. As Wrothe had foreseen, O'Donnell, who feared that chains and torture awaited him in Ulster, would not be denied, but took the first opportunity of slipping over to England during Arnold's temporary absence, and he made his appearance at Court, where he told his griefs to the Queen, and to Leicester, Winchester, and Cecil. Elizabeth evidently felt much for the unfortunate chief, gave him money, and sent him back to Ireland,

the Queen receives him kindly, but he fears Arnold, and withdraws to Scotland.

directing Arnold to make him some allowance until his causes were decided. 'We are not,' she said, 'without compassion for him in this calamity, specially considering his first entry thereto was by taking part against Shane when he made war against our good subjects there.' No one was ever able to resist Elizabeth when she spoke graciously, but O'Donnell's experience of Arnold had not been satisfactory, and he thought it prudent to withdraw for a time to the Scottish Court, where he was sure of sympathy from the relations of his foolish and guilty wife, the daily victim of Shane's brutality.^[85]

His hereditary enemies having been reduced to a harmless state, Shane proceeded, with the full approval of the Government, to attack the Scots, who prevented him from doing as he pleased in the North. But Arnold was not so completely blinded by his professions as to make him free of Carrickfergus, which he claimed as of ancient right. Neither was it thought convenient to withdraw Kildare from the defence of the Pale, as Shane urgently desired. Eight or nine hundred Scots, under the command of Sorley Boy, lay near the left bank of the Bann, opposite Coleraine, where Shane had made the old castle tenable. His object being to get complete command of the estuary, he sent over a small party in the country boats or 'cots,' which were his only means of transport, and having posted them strongly in the Dominican Friary, withdrew to his main body. The Scots attacked the outpost like madmen, as Dean Danyell expressed it, and lost many men, but succeeded in killing all the defenders except the mounted men, who were seized with a panic and swam their horses over the flooded river. Neither party had much to boast, but Shane could point to the affair as a test of his sincerity. He bragged about what he would do next time, when there might be no flood, and he again suggested that he might be allowed to make Carrickfergus his base until preparations for renewing the war were complete. Arnold yielded so far as to sanction his entry with some of his chief followers. Captain Piers was to show the formidable visitor every civility, but for sparing of the poor town was to keep the multitude of his company as far off as possible. Shane's views changed, or the policy of Piers was successful in keeping him at arm's length, but he plundered the town of Carlingford before doing any further service against the Scots, burned the country all about, and ravished the women far and wide, up to the walls of Dundalk.

Shane attacks the Scots.

More damage has been done, said Fitzwilliam, ‘than seven years of such profit as is from Shane.’^[86]

When Sussex left Ireland Leix and Offaly were pretty quiet, but his departure had been the signal for disturbance. Arnold was accused of oppressing the remnant of the O’Connors, and by his own account he cared little for peace. Ormonde’s brother persecuted the O’Mores, who were reduced to a state not much above brigandage. He killed a dozen kerne near Castle-comer, and apologised for not doing more: ‘if we had any ground for horsemen we should have made a fair haul.’ Arnold praised Sir Edmund’s activity, but looked forward to general disorder as soon as the long nights, which are still dreaded in Ireland, should give better opportunities to the disaffected. By way of precaution he imprisoned Calvagh O’Connor, as some said, with little or no cause, but, as Arnold maintained, for intriguing with tribes on both sides the Shannon, and for engaging Scots mercenaries. Yet there is good ground for believing that this poor O’Connor tried to be a loyal subject, with the result of being mistrusted by both parties. ‘When I was a rebel,’ he said, ‘I had friends enough, but now I serve the Queen’s Majesty I am daily in fear of my life.’ Unable to get a hearing, Calvagh, though heavily ironed, managed to break prison, and having been treated as a rebel became one in earnest. Great preparations were made on the borders of the Pale. Arnold demanded help from all the Irish clans in the central parts of the island. The Earl of Kildare was ordered to assemble his people, and letters were sent to the gentlemen of the Pale and to the settlers in the King’s and Queen’s counties. Wexford and Carlow were not forgotten, and Ormonde, who received a special commission and pay for 200 kerne for three months, was directed to watch the rebels, who were proclaimed by name, and to attack them if they came near his border. These tremendous preparations for the hunt, for it was little more, were crowned with such success as was possible. Calvagh O’Connor was killed by a near kinsman, and his head presented to the Lord Justice. Sir Barnaby Fitzpatrick, Edward VI.’s old companion, dutifully attacked the O’Mores. But Sir Barnaby himself was little better off than an outlaw, for his father, the first Baron of Upper Ossory, had but imperfectly laid aside Celtic usages when he accepted an Anglo-Norman title; and under the influence of a wicked second wife, he persecuted his loyal and civilised

Nothing so dangerous as loyalty. Calvagh O’Connor.

heir. The O'Connors were dispersed into little parties of eight or ten, who lived as best they might in the bogs. The O'Mores had wider contiguous wastes, and managed to keep better together, but they were glad to sue for peace. It was an inglorious campaign, which only served to show how completely the settlement of the country had failed to reconcile the native population.^[87]

FOOTNOTES:

[76] Wrothe and Arnold to Cecil, Feb. 5, 1564, and to the Privy Council, March 14.

[77] Wrothe to Cecil, July 13, 1564; see also same to same, March 16, April 7, 16, and 26.

[78] Wrothe and Arnold to the Privy Council, April 7, 1564; Dixe to Cecil, May 10.

[79] Bermingham's Book of Defects in the Lord-Lieutenant's band, July 1564 (No. 23), and other papers (Nos. 24 and 25); Memorandum in Cecil's hand on Sir T. Wrothe's letter of July 30; Dixe to Cecil, Nov. 22.

[80] The Queen to Wrothe, Oct. 4, 1564; Dixe to Cecil, Nov. 22 and Jan. 26, 1565; Wrothe to Cecil, Nov. 14; Sir Henry Radclyffe, Sir George Stanley, and Captain George Delves to the Privy Council, with enclosures, Jan. 10, 1565.

[81] For Radclyffe's case, see his letter to Cecil, Jan. 31, 1565, and the memorial of his other letters, Feb. 4; Bermingham to Cecil, Feb. 24; Answer to the Commissioners by the Earl of Sussex; Auditor Dixe to Cecil, Jan. 17 and 26. Dixe says he was not disliked, because he kept himself 'in a mean and quiet state.' See the Queen's letter to Lord Deputy Sidney, July 22, 1567.

[82] Articles between Cusack and O'Neill, Nov. 18, 1563. The following is the article struck out by the Queen:—'Non est habendum pro violatione pacis si non accedat personaliter ad gubernatorem, antequam intelligat an is est illi amicus et favorabilis an non, et si aliqua contentio oriatur inter Angliam et Hiberniam a boreali parte, quod probi viri eligantur ab utraque parte ad dirimendum has controversias sine pacis violatione.' Truce between Cusack and O'Neill, March 1, 1564; the Queen to Cusack, June 24, 1564; Privy Council to same, April 2; Cusack to Cecil, March 22; Randolph to same, Dec. 24 (S.P., *Scotland*); Cusack to Dudley, June 9; O'Neill to Lord Justice and Council, Aug. 18, 1564:—'Ipse autem et mei non intelleximus in hac boreali parte majores rebelles et proditores Celsitudini Reginae quam Scotos qui absque Suae Celsitudinis consensu usurpant.'

[83] O'Donnell to the Queen, May 14 and Oct. 24, 1564; Wrothe to Lord R. Dudley, July 23. The deed for the surrender of Lifford is dated July 12. Old O'Donnell was released before April 17.

[84] Wrothe to Lord R. Dudley, July 23, 1564; Cusack to same, June 9, and a paper dated June 13, which summarises his case against O'Donnell; Cusack to Cecil, June 9, and to Arnold, June 13. The *Four Masters* say Con O'Donnell was taken by Shane O'Neill, May 14, but they have not a word of the alleged breach of contract: they are, however, partial to the O'Donnell family.

[85] Wrothe to Cecil, June 18; the Queen to Lord Justice and Council, July 15 and Dec. 13; Randolph to Cecil, Dec. 24, 1564 (S.P., Scotland).

[86] Lord Justice and Council to O'Neill, Aug. 22 and Sept. 14; Terence Danyell to Lord Justice, Aug. 21 and Sept. 10; Shane O'Neill to Lord Justice and Council, Sept. 5—'Non est opus nunc habere me suspectum quantum ad servitium impendendum contra Scotos.' This did not prevent him from clamouring for aid at the Scotch Court; see Randolph's letter before cited. Randolph had seen two of Shane's letters. Lord Justice and Council to Piers, Sept. 17; Fitzwilliam to Cecil, Jan. 17, 1565; and the Declaration of Sussex, Jan. 29.

[87] Wrothe to Cecil, Oct. 21 and Nov. 2, 1564; Lord Justice and Council to Ormonde, Nov. 21. Some thirty years before Sir Barnaby's father had assumed the character of an independent prince, when complaining to Henry VIII. of his sufferings at the hands of Ormonde's grandfather. The story is that his messenger stood among the crowd of courtiers assembled to see the King pass, and called out 'Sta pedibus, Domine Rex. Dominus meus MacGillapatricius misit me tibi dicere ut si non vis castigare Petrum Rufum, ipse faciet bellum contra te.'

CHAPTER XXIII.

1565.

After his return from England, Desmond kept quiet for a time. The indefatigable Cusack visited Waterford for the purpose of settling his dispute with Ormonde, but had to leave his work unfinished so as to proceed with the more pressing business of O'Neill. But Desmond's men were not idle, for they were allowed to interfere in the affairs of Thomond, taking part with Sir Donnell the tanist against the Earl. The help of Clanricarde, whose interests inclined him to the side of the latter, alone prevented him from being driven out of the country. Clanricarde expressly says that Desmond himself crossed the Shannon, and set on him by surprise, killing 30 men, and taking 800 cows, which helped to pay the intruder's gallowglasses. They were indeed well paid, for they received more than half the cattle of Thomond. There was some talk of giving Clanricarde cannon to take the castle of Inchiquin, and Desmond was straightly charged by Arnold to abstain from further interference. Royal Commissioners, of whom Parker was one, visited Cork, and the gentlemen of the county appeared, offering to hold their lands by knight service, and to give security for good behaviour. Desmond described the proceedings in glowing language, but did not recall his gallowglasses from Thomond, whence the Earl continued to beg earnestly for help. Ormonde was directed to give such help as he could spare from pursuing the O'Mores, and Cusack, the general pacificator, again made his way to the South, when it was agreed that Manus Oge O'Sheehy, with his 400 gallowglasses and 200 musketeers and horsemen, should be withdrawn, and that those who ferried them over Shannon should be punished. Differences were to be settled by arbitration, and all were to live happily ever after. Thus, to borrow the contemptuous language of Sir

Desmond,
Thomond, and
Clanricarde.

George Stanley, 'did Sir Thomas Cusack conclude according to his accustomed manner a fyckelede peace.'^[88]

Ormonde had been brought up in England. He was a personal favourite with the Queen, and there can be no doubt that he was sincerely anxious to live the life of a civilised nobleman rather than that of a barbarous chief.

Ormonde resolves to put down coyne and livery.

Money rents, which he might spend at Court or at home in building such houses as Carrick, had a greater attraction for him than the ancient habit of eating up the country with turbulent soldiers and useless horse-boys, three or four to every horse. Perhaps too he longed to boast that, while an Earl of Desmond had been the first to bring in the curse of coyne and livery upon Ireland, an Earl of Ormonde had been the first to take it away. He accordingly issued a proclamation which throws much light on the state of the country. Reciting his right to regal power and jurisdiction in Tipperary, he confessed his obligation to see it properly governed. War and disorder had hitherto forced him and his ancestors to exact coyne and livery, necessarily showing a bad example to others who had not the excuse of responsibility. He spoke of 'the poverty, misery, and calamity whereunto the poor subjects be brought by the licentious multitude of Irish rascals which be bred and maintained by the said coyne and livery.' The Earl's officers could not do their duty, the Queen was defrauded of her revenue, and it was therefore agreed 'by the consent and assent of all the lords and gentlemen of the same county, that no coyne or livery or Irish exactions should be thenceforth levied.' This extended to the possessions of all the Butlers, of the Prendergasts, and of the Archbishop of Cashel, north of the Suir, and within the bounds of Tipperary. Proclamation was to be made in all market towns that severe penalties would be incurred by levying the said exactions after August 1, every one being licensed to resist by force. But there was danger lest this godly victory over the horrible and devouring monster should leave the country defenceless, and therefore a quarterly muster of the able-bodied people was to be taken. Every landowner was to furnish a certain fixed quota of horses, harness, and men ready for any sudden emergency. It was hoped that the towns would then increase, and that their inhabitants would supply no mean force. In case it was absolutely necessary to bring strangers into the county, they were to be regularly waged, the Earl being authorised by the freeholders to exact a fixed sum of money for the

purpose. Every strange soldier was to pay for all he had at the rate of 2*d.* a meal for himself and 1*d.* for his boy, and similar payments were to be made when it became necessary to move the local militia. The lords and gentlemen of Tipperary subscribed this treaty.^[89]

Ormonde, however, was not able for this time to carry out his good intentions. Desmond attacked his tenants, and he was forced to ‘continue one disorder to withstand another.’ The cheerful views of Cusack, who believed that he had really pacified Munster in a manner redounding to his own and the Queen’s honour, were soon woefully belied. The real pacificator had been Lady Desmond, and her death at this juncture removed the last restraint from her husband, and cured her son of his last compunction. Sir Maurice Fitzgerald of the Decies, who lived at Dromana on the Blackwater, and who was descended from the second son of the seventh Earl, possessed part of the original Desmond estate, which he claimed to hold of the Crown by feudal tenure. But Desmond preferred to regard him as a subordinate Irish chief, liable to the payment of various Irish dues and exactions. Sir Maurice, who was Ormonde’s first cousin, appealed to him for protection against distraint, and requested him to take charge of his cattle until the storm had blown over. Desmond alleged that distress had been taken time out of mind in the Decies, but Ormonde held that it was part of the county of Waterford, and that all such pretensions were therefore void in law. Having also good reason to believe that an attack upon Tipperary was meditated, Ormonde led a force to Clonmel, and encamped at Knocklofty, near the foot of the mountain pass leading into Sir Maurice’s country. In due course came a special messenger to say that Desmond was already on his way, and Ormonde lost no time in obeying the summons. With 100 horse and 300 or 400 foot, and accompanied by his brothers Edmund, James, and Edward, he hastened across the mountains, and found that Desmond was already collecting rents in the familiar fashion of his House.^[90]

His reforms interrupted by threats from Desmond.

From the preparations made, it can hardly be supposed that the Geraldine chief had no design beyond the avowed one of making Sir Maurice pay his dues. Some of the O’Connors, proclaimed traitors, were with him, and he went to Clare to summon those O’Briens who

Desmond attacks the Decies. Ormonde goes to the rescue.

were in the same case. The White Knight came to Lismore with an armed party, and the Knight of Kerry, with MacCarthy More, and O'Sullivan Beare were reported to have come as far as Conna. The Earl himself was accompanied by his brother Thomas, by John FitzEdmund, seneschal of Imokilly, a valiant man, who afterwards gave much trouble, and by the White Knight's eldest son. His force consisted of 80 or 100 horse, 300 or 400 foot, and several hundred of the mixed camp followers and plunderers, comprehensively described as 'rascally.' Desmond was intriguing among such of the Butlers as were inclined to oppose the head of their House. Sir Piers Butler, of Cahir, who complained that he was oppressed by Ormonde, was with the White Knight at Lismore, and Desmond, though his wife was only just buried, already sought the hand of Lord Dunboyne's daughter. The marriage eventually took place, and was not destined to bring good fortune to the Geraldines.

Desmond left Lismore with the first light of a winter's morning, and marched to a place called Bewley, where there is now a bridge over the Finisk, near the highest point to which the tide comes. He sent Lord Power and one of his captains to demand Irish service from Sir Maurice, who rode with them towards Desmond, and offered to abide by the order of the Lord Justice and Council, or by the award of four lawyers, two to be chosen by either side. He professed himself willing to do as his ancestors had done. Desmond insisted that all should be left to the decision of 'his own judge,' probably a Brehon, and in any case a partial person. He prepared to encamp in the neighbourhood, killed sixty head of cattle, and sent to Dungarvan for wine. Sir Maurice rode back, without having met the Earl, and saw three houses on fire, one of them being that in which the invader had rested during the forenoon. Sir Maurice and two of his men then went to watch his progress from a neighbouring hill, whence they espied Ormonde and his men coming down the opposite mountain.

Attitude of
Desmond.

The Butlers rested on the hill side. Their horses were scattered about at grass, and a countryman galloped off to Desmond, offering himself as guide, and advising an immediate attack. Desmond inquired eagerly whether my Lord of Ormonde were there himself, and on receiving an incorrect answer in the negative, exclaimed, 'Let us go upon them, for they are but

The fight at Affane.
Desmond is taken
prisoner.

young boys, and rascally, and we shall take them grazing their horses.’ Lord Power advised him not to meddle with the Butlers, who were perhaps in superior force, but to retire to his house at Curraghmore, where they could not harm him. Desmond’s road to Youghal was also open, but he preferred the middle course of returning to Lismore, where his auxiliaries were, with whose help he might hope clearly to outnumber the Ormondians, who refreshed themselves, and continued the even tenor of their way southwards to the ford at Affane. The Geraldine foot went on in advance, and no collision seems to have been at first intended, for they passed Ormonde’s main body at the cross roads; but as soon as their leader saw his hated rival, he put spurs to his horse like Cyrus at Cunaxa, and some of his men discharged their pieces. Ormonde seems to have been still unwilling to fight, for he allowed the hostile foot to recross him. Being actually charged, the Butlers stood on their defence, and soon proved the wisdom of Lord Power’s advice, for Sir Edmund Butler broke Desmond’s thigh with a pistol shot, and some 300 of his men fell. Desmond afterwards said that many of his people tried to escape by swimming the Blackwater, where they were intercepted by armed boats; and he offered this as a proof that the fight resulted from a plot hatched between Ormonde and Sir Maurice. But this was strenuously denied. The wounded Earl was carried to Clonmel, and thence to Waterford, and his adherents withdrew to their own homes.^[91]

The battle or skirmish at Affane seems to have been the last on English or Irish ground in which two noblemen without any commission made private war upon each other. Sir Maurice Fitzgerald says that banners were displayed on Desmond’s side, and that Ormonde ‘staying still at the beginning of the conflict, did suddenly put up a thing of red silk upon a staff.’ It was probably intended as a rallying point for his men, but Ormonde himself denied that a flag had been displayed. The Queen had declared that no sword but hers should be drawn, and angrily summoned the two Earls to her presence. Both letters are guarded in expression, but that to Desmond is rather the more severe of the two. With the consideration which she often showed to old and tried servants, she wrote very graciously to Cusack, the failure of whose policy was now apparent to all. ‘He had done his best,’ she said, ‘but the enmity between the two Earls was greater and

The Queen’s anger.
The Earls are
summoned to
England.

Ormonde charges
his rival with high
treason.

deeper rooted than could be reformed by any but her own princely directions.' Arnold came to Waterford soon after the arrival of Ormonde and his prisoner, and interrogatories were administered to the persons principally concerned. To do the legal business, the Lord Justice took with him Mr. Justice Plunkett, who was married to Kildare's daughter, and thus, in the language of the country, 'ajainte and follower to the garontynes.' Sir George Stanley, Marshal of the Army, who had no reason to love Arnold, declared that it was as much as he could do to prevent the Lord Justice from prejudging the case in a sense unfavourable to Ormonde. Arnold began by demanding the custody of the prisoner, as no doubt he had a right to do; but he did it in such a way as to make it appear a slight to the captor, who demanded an order in writing. At last he was promised a copy of the entry in the Council Book, and he then brought Desmond himself. 'My Lord Justice,' he said, 'hither have I brought to you my Lord of Desmond, according to your straight commandment given me, which in no way I meant to disobey. And I deliver him unto you as the Queen's Majesty's prisoner, being taken in the field by me with his banner displayed, burning and spoiling the Queen's Majesty's good subjects within shire ground, with sundry traitors in his company.' He then charged him with high treason, and earnestly besought that he might be kept securely, and not allowed to communicate with anyone till the Queen's pleasure should be known. 'And seeing,' he continued, 'you have thus taken him from me, if men's mouths be stopped, as I fear they will, and by means thereof some part of his heinous treason come not to light, I trust therein I shall be discharged to her Majesty.' The policy of isolating Desmond had indeed been approved at the Council table, but Arnold nevertheless allowed all men free access to him. The Council were inclined to have the interrogatories administered to the two Earls answered by counsel, but Stanley refused to agree to this on the technical ground that Desmond was accused of treason. In law he was right, but morally wrong, and had Arnold dealt the same measure to both sides, little could have been said against him. But Ormonde was required to answer at once in his own person, while Desmond was allowed several days, during which he had answers drawn in writing by a lawyer. Stanley again objecting, the Lord Justice told him that he was a wilful man, and affectioned to my Lord of Ormonde. But Vice-Treasurer Fitzwilliam, who had some experience of Desmond and his doings, took exactly the same view as Stanley. 'So good an offer given of God, and so overthrown, I will

not judge too far, hath not lightly been seen, but 20,000*l.* will not buy out that which (if he had been honourably kept, so it had been with restraint from common speech) might have been had.' Arnold stayed seven weeks at Waterford without much furthering the business, and Ormonde soon went to England. Desmond, accompanied by MacCarthy More and O'Sullivan Beare, was sent over in the custody of Captain Heron, who records that his distinguished prisoner was very sea-sick. Arnold borrowed 200 marks to defray expenses, but Heron, writing from Liverpool for orders, complained that he was not furnished with money. The Earl's long halt at Chester may have been caused less by sickness and fatigue than by a wish to hear the last news from Ireland. The Queen wrote strongly to Lords Roche, Barrymore, Power, and Dunboyne, urging them to maintain order during Desmond's absence, and the amiable Cusack doubtless felt that under his skilful management all would still go merry as a marriage bell. ^[92]

After his exploit at Carlingford, Shane O'Neill lay quiet for a long time, watching the Scots, to whom he had lately done much damage. These hardy warriors were over confident. They neither took the trouble to negotiate with Shane, nor abstained from saying that Englishmen had no right to Ireland; boasting that they had already 70 miles out of the 120 between Coleraine and Dublin, and that they would soon have the rest.

Shane O'Neill
attacks the Scots,

After Easter Shane quietly collected a strong force at Edenduff Carrick, or Shane's Castle, and having cut passes to secure a retreat, marched rapidly by Broughshane and Clogh to the North. The warning fires went up from the hills about Fair Head, and James MacDonnell, who was in Cantire, came at once to the rescue. He landed at Cushendun only to find that his castle on Red Bay was already burned and dismantled. Sorley Boy had suffered severe loss while trying to stop O'Neill in the pass of Knockboy, but he effected a junction with the new comers. Sorley had a fortified residence at Ballycastle, on the north coast, and thither Alexander Oge was expected to bring a strong reinforcement. The brothers retreated towards Ballycastle, but for some unaccountable reason did not occupy it. Perhaps it was held by a hostile garrison. Shane followed to the castle, the islemen, who numbered about 1,000, lying in Glenshesk, and having thus some advantage of rising ground. No help came, and very early the next morning Shane made his

and gains a
complete victory.

attack. The O'Neills, who were more than two to one, gained a complete victory. According to Shane and his secretary, the Scots lost some 700 men, but other eye-witnesses reduce the number by one half. James MacDonnell was dangerously wounded, and taken prisoner. Sorley Boy was also taken, and a third brother, Angus, was killed. Two chiefs of the Macleods, with many other men of note, fell into the victor's hands. [\[93\]](#)

On the following day Alexander Oge brought 900 men to Rathlin, but returned to Scotland on hearing the bad news. Dunseverick and other MacDonnell castles at once surrendered. Dunluce, which was nearly impregnable by an Irish army, held out for three days; but the garrison opened their gates when they heard that Sorley Boy had had no food during that time, and that his gentle captor would give him none as long as the place held out. Shane remained the unchallenged master of the North, and had the satisfaction of bragging about the obligations under which he had placed the Queen. His secretary, in a letter written some weeks afterwards, said that O'Neill had exhorted his men before the battle to be true to their Prince, that is, Queen Elizabeth; but Shane, who wrote on the day of the fight, says nothing of this, and his worthy secretary's correspondent was Sir Thomas Cusack, perhaps the only man living who would have believed such a story. [\[94\]](#)

Shane supreme in the North, 1565.

Cusack was much delighted at Shane's services against the Scots, and continued to write in glowing terms of his good conformity. But others could tell of his twice plundering Dundalk, and the Queen had already decided in her own mind that Ireland could not be governed any longer by accommodation, and had determined to send over Sir Henry Sidney, cheaply, if possible, but if necessary, at any expense. Sidney's advice was plain. Leix and Offaly must be pacified by a general pardon, followed by gentle dealings, or else the people must be extirpated. The former would be the easier course, the latter the more thorough. Munster might best be managed by keeping the nobles at Court, and by appointing a President and Council to rule it: 200 foot and 100 horse would be a sufficient force. Thomond should be divided among as many men as possible, supreme military command being given to the Earl. The Scots should have no grant of land, which would only be a back door for the Queen's enemies. They might be winked at until Government was strong enough to expel them

Sidney advises the Queen to put him down.

thoroughly; in the meantime all ports should be held, so that the fleet might cut off access to the isles. As for Shane, he was a common robber, never to be reformed unless by force; O'Donnell should be restored, and Newry, Dundalk, and Carrickfergus made thoroughly defensible, with as little noise as possible. Shane O'Neill knew that he could neither hoodwink Sidney nor hope to defeat him openly, and he began a new correspondence with Scotland. He refused to give up his prisoners to their Queen or to the Earl of Argyle, until he knew the will of his own Queen; and in the meantime he talked about enormous ransoms. Secretary Fleming says James MacDonnell offered O'Neill all his property in Ireland and Scotland for bare liberty, but that Shane declined on the ground that he was the Queen's officer, and that the quarrel was none of his. Treated with cruelty or neglect, MacDonnell died of his wounds, and Shane, who retained Sorley Boy by his side, soon began to talk about marrying the widow, Lady Agnes Campbell. So matters rested; while Sidney, among bitter recriminations, was forging a sword for his old gossip's destruction.^[95]

The war of the two great Houses did not end with Ormonde's victory at Affane, but was carried on vigorously in London. Ormonde hated Leicester, and it is easy to see that there was a certain difference of opinion, corresponding in some degree to the Butler and Geraldine factions, between the parties of Sussex and Leicester, both in England and Ireland. Sussex, being interrogated, stated of his own knowledge that Desmond had harboured proclaimed traitors whom he refused to surrender, while Ormonde was always ready to obey the Government in such matters. Desmond had maintained the rebels in Thomond, and about this there could be no doubt. Sussex showed by records that Sir Maurice Fitzgerald's lands were in the county of Waterford, and that Desmond had no legal right there. Desmond, in short, had been a disobedient subject, and an oppressor of his neighbours, both Anglo-Norman and Celtic. Desmond kept Sussex waiting three weeks at Waterford, and refused to come to Dublin at all, though an ample escort was offered him; while Ormonde was always ready to obey the summons of the Government and Council. Sir Henry Radclyffe and Francis Agarde, both of whom had good opportunities of judging, spoke to the same effect.^[96]

Desmond and Ormonde.

Sidney preferred to dwell on the services of the late Earl of Desmond. The present man had never refused to come to him, and had come readily even

to Drogheda, ‘a place to him and all his county most odious for that his great grandfather upon a like letter sent from a governor was there put to death as they constantly affirm.’ Desmond had offered to stand or fall in his suits on trial either by the common law or by the Governor and Council; and if Sidney had stayed in Ireland he would have been taken at his word. As to Ormonde, Sidney ‘never saw a more willing man to serve the Queen, and during the time of my being there he went in more journeys and saved more to his charge than any man of Ireland birth.’ As to Desmond’s rights in the county of Waterford Sidney expressed himself very cautiously, merely noting that several Earls of Desmond had claimed supremacy over the Decies, and had levied grievous distresses there.^[97]

Sidney inclines to
favour Desmond,

Six weeks later, the controversy having waxed hot in the meantime, Sidney was more decidedly favourable to Desmond. The Earl’s entry into the Decies was indeed not justified by law, but still less was Ormonde’s interference justifiable. Both deserved punishment for unlawful assembly, but Desmond’s should be the lighter, for that he had better colour of distress than Ormonde of rescue. Desmond had but followed the custom of his ancestors up to the time of the fight, and whoever made the first onset should be answerable for the slaughter. Both Earls should be made to contribute to the support of a Presidency intended to bridle both, and in future to obey, and to make others obey, as if they lived within the Pale. Both should be bound in great sums to stand to the decision of the Governor, Chancellor, and three Chief Justices as to the lands in dispute between them. Sussex, who fortified his argument by many references to Acts of Parliament, urged that Desmond had committed treason by his invasion of Waterford, and that Ormonde in resisting him had done no more, or at least very little more, than became a loyal subject of the Queen.^[98] But these statutes were confessedly obsolete, and the Crown had winked at similar irregularities too long and too often to insist on rigid adherence to written law.

and maintains this
position against
Sussex.

Desmond submitted to the Queen to abide her judgment concerning the many treasons, murders, burnings, and other such things objected to him by the Privy Council since he last received pardon. Ormonde did the same, protesting his peaceable intention in entering the Decies. Both Earls entered into recognizances in 20,000*l.* to abide such orders as her Majesty might prescribe. With a view of bridling Desmond, MacCarthy More was created Earl of Clancare, and Sir Owen O'Sullivan received a grant of his country subject to such rents and services as the new-made Earl could prove himself entitled to. [\[99\]](#)

The two Earls submit.

The general voice both of England and Ireland pointed to Sidney as the fittest man to govern. But he knew well that he was more likely to lose a great reputation than to gain fresh laurels, and he determined not to go unless treated fairly. He declined to be responsible for any debts contracted by his predecessors, and required a clear balance-sheet to start with. Stores must be put in decent order, and at least 200 horse and 500 foot given him over and above the usual establishment. Every captain should have the pay of eight dead men borne on the books, so as to enable him to reward deserving soldiers. It was desirable that St. Patrick's should be turned into a military hospital. Dublin Castle, Kilmainham, Leighlin Bridge, and Carlow must be put in repair. The Great Seal should be given to a good English lawyer, and Archbishop Curwen should be suitably provided for in England. [\[100\]](#)

Sidney will not go to Ireland unless his demands are granted.

By serving the Queen Sidney complained that he was 3,000*l.* poorer. His plate and his wife's jewels were in pawn. To secure him from further impoverishment he asked for an ample commission, to be continued Lord President of Wales for life or during good behaviour, and to have the right of going to the Queen at all times without license. The privilege of making steel, and the right to export 6,000 coarse-dressed cloths and corn for his own household, were the other means by which he proposed to stave off financial ruin. 'If you will not grant these things,' he said to the Queen, 'give me leave to serve you anywhere except in Ireland, or to live private shall be more joyous to me than all the rest and to go thither.' [\[101\]](#)

Some of his conditions.

Sidney's demands were only partially granted. He was allowed to retain the presidency of Wales. His salary was the same as his predecessors. He had license to export provisions for his household, but nothing was said about the coarse-dressed cloths. Some of the ruined castles were to be restored, Kilmainham at the expense of the lessees, Dublin and Carrickfergus at that of the Government. The military force was not to be increased, and Sidney was expected to heal the distracted land with 882 soldiers and 300 kerne. It was even supposed that he could put down piracy, for though the Queen was willing to lend a ship and a pinnace, she refused to give a single sailor, and coolly told her representative that he might man them out of his ordinary garrison. The captains were allowed six 'dead pays' instead of the eight which were asked for. All ecclesiastical patronage was vested in the new Governor, except archbishoprics and bishoprics, and he had the appointment of all civil officers except the Chancellor, the Treasurer, the sub-Treasurer, the Chief Justice of the Queen's Bench, the Chief Baron, and the Master of the Rolls. The powers given to Sidney were almost identical with those which Sussex had enjoyed. It was at first intended to give him the title of Lord-Lieutenant also, but either because his importunities annoyed the Queen, or to lessen the mortification which the Earl may be supposed to have felt, Sidney was obliged to be content with the lower title of Lord Deputy.^[102]

The terms actually granted.

Sidney received minute instructions as to the principles on which he was to conduct the Government. He was to make close inquiry as to the best available means for establishing the 'Christian religion' among the people, and St. Patrick's was to be at once surveyed, with a view to founding a college. The judicial bench was to be purged of partial men; and if necessary, lawyers with increased stipends would be sent from England. The jurisdiction of the courts was to be extended as much as possible in the Irish districts. Sheriffs were to be regularly appointed for Leix, Offaly, and for what is now the county of Wicklow. The Celtic countries between the Shannon and the Pale were, if possible, to be joined to Meath, or to the King's and Queen's Counties. Besides the five shires of the Pale, Carlow, Wexford, Kilkenny, Waterford, Tipperary, Cork, Kerry, and Limerick were, as a matter of course, to be considered under the law; and Desmond and Ormonde were to

Sidney's instructions.

protect sheriffs and coroners in the execution of their duties. A Presidency would be established for Munster, and perhaps another for Connaught; and in the meantime every means was to be taken to substitute English manners for Irish customs, fixed payments for arbitrary exactions, and estates of inheritance for tribal chiefries. Many existing statutes were unknown, because they had never been printed, and Sidney was directed to send exemplifications of such as appeared fit to be published and observed.^[103]

The finances were to be reformed, if possible, without further charge to the Queen, and with greater ease to the subject, an impossible task, which Sidney well knew that he could never perform. Many of the rules laid down were, however, very good, and it was clearly seen that much of the financial confusion arose from private jobbing, and from a faulty system of public accounts. What Elizabeth would not as yet see was that the first and greatest irregularity consisted in leaving soldiers unpaid, and in fixing salaries at rates which would not support the incumbents. In order to keep the reforming spirit alive, the Lord Deputy and Council were ordered to read their instructions over every three months, and to report progress to the Queen. ‘How strange a thing it may seem to be,’ says her Majesty in Council, ‘that such a realm as that is, where no just cause is to fear invasion of any other prince, where any person dwelling in that land has never directly or indirectly denied the sovereignty of that Crown to belong to the Crown of England, yet nevertheless to remain so chargeable to the Crown of England for the governance thereof only, and the revenues thereof to be so mean as the like burden and charge is not found in any place of Christendom, where commonly though the countries be subject to titles of other princes, or full of rebellions even for the sovereignties, yet the same do contribute sufficiently to the charge for their own government.’^[104]

Revenue.

Besides the public instructions, Sidney received others for his own use only. Elizabeth had evidently still some hope of Shane, and desired to temporise with him, and with the Scots; in the meantime extending the rule of Carrickfergus as far as possible, and perhaps fortifying Carlingford and other coast towns. Shane’s claims were to be strictly scrutinised in Parliament, and Sidney was to confer personally with him, and to give him a safe-conduct if he demanded

Private instructions.

it. If still undutiful, he was to be left to his fate, which could not but overtake him at last.^[105]

O'Donnell was to go back to Ireland, to be supported by the Government in Dublin, and restored, if possible, by policy and not by war. Yet war would be preferred to Shane's holding Tyrconnel. The O'Reillys were to be persuaded into holding their lands of the Crown, and into making their country as obedient to law as those of Desmond and Ormonde were supposed to be, but were not. Sir John of Desmond was to be sent to England as a sort of hostage for his brother's performance of promises lately made.^[106]

Treatment of certain Irishmen. Sir John of Desmond to be security for his brother.

Even more interesting than these private instructions is a letter which Elizabeth herself wrote to Sidney. It is in her usual involved style, and must be read over and over before it yields its full meaning. The Queen's chief object seems to have been to make Sidney take a view favourable to Ormonde in his controversy with Desmond. Too many, she said, were partial to the latter. 'If I did not see the balances held awry, I had never myself come into the weighhouse.' 'Make some difference,' she said, 'between tried, just, and false friends. Let the good service of well deservers be never rewarded with loss. Let their thank be such as may encourage more strivers for the like. Suffer not that Desmond's "denyinge dedes," far wide from promised work, make you trust to other pledge than either himself or John for gage; he hath so well performed his English vows, that I warn you trust him no longer than you see one of them. Prometheus let me be, and Prometheus hath been mine too long ... then are we ever knitting a knot never tied, yea, and if our web be framed with rotten hurdles, when our loom is well-nigh done, our work is new to begin.... Let this memorial be only committed to Vulcan's base keeping without any longer abode than the leisure of the reading thereof, yea, and with no mention made thereof to any other wight. I charge you as I may command you. Seem not to have had but secretaries' letters from me.' The letter nevertheless was kept safely at Penshurst, where Arthur Collins found it in the reign of George II.^[107]

The Queen writes a private letter to Sidney.

Like many who have tried their hands at the Irish problem, Sir Nicholas Arnold began with great professions, and after much disturbing men's

minds showed that he was no cleverer than those who had gone before him. Great as his failure had been in dealing with Shane, Sussex had at least kept tolerable order in the districts which paid some regard to law. Arnold was accused of caring little whether there was war or peace. His harsh treatment of the O'Connors has been already noticed, and the O'Reillys were handled in much the same way. They had plundered on the border of the Pale, and Shane O'Neill, anxious to assert his power, offered to compel restitution. Arnold preferred to make Kildare the instrument of punishment. A parley was first held, and promise of restitution made by old Malachias O'Reilly and his sons, Hugh and Edmund. Cahir O'Reilly, the chief offender, was to be punished. It soon appeared that Cahir was out of reach in Shane's country, and that some of the hostages demanded were also there. The camp was the scene of much confusion, Kildare's men threatening and even throwing stones at Sir George Stanley, the Marshal, and raising the ominous cries of 'Cromaboo!' and 'Down with the English churls!' The Earl with difficulty pacified his men, but Arnold, who all along showed the most extraordinary subservience to Kildare, and was on the worst terms with Stanley, declined to notice the outrage. ^[108]

Arnold's policy not successful.

A remarkable conversation took place between Arnold and Hugh O'Reilly, whom he urged to take the government of the country on himself. Hugh answered that O'Donnell was evil spoken of for assuming the government while his father lived, and that he saw not those punished who killed the Queen's subjects. Shane O'Neill murdered his father, and procured the murder of his brother, who was five times as valuable to the Crown as any O'Reilly could be. The politicians of the Pale would maintain his half brother against him, and perhaps seek his life. If O'Neill ceased to protect Cahir, 'then,' said Hugh, 'I say for O'Reilly, your prisoner, and for his eldest son, if any of them receive men or meat from O'Reilly's country, I will die but they shall be delivered to your governor, or all their hurts past be paid for presently.' He was quite willing to give hostages, but not to undertake to give those beyond his reach. According to Fitzwilliam Hugh meant well, and in any case the original aggressor was not Cahir O'Reilly but Kildare himself. Any damage done to the Pale had been more than paid for already. 'Arnold,' he

The O'Reillys.

said, ‘means well, but Ireland, in my opinion, though it be brute and rude, is not known to every man for a year or two’s trial.’^[109]

No doubt Arnold had a hard task, but it is clear that he was not the man to make it easier. The Queen’s best officers in Ireland were slighted daily. The Lord Justice treated Archbishop Loftus with marked rudeness at the Council Board. The Irish service had so completely bewitched him that no Englishman could look for favour. Everything was hoped for from Shane, whom he praised continually to the Queen, though obliged to remind O’Neill himself that his deeds were not so very laudable. Seeing that the men who opposed him favoured Ormonde, Arnold was in all things partial to Kildare, and to the Geraldine party generally. The irregularities which he found in every branch of the public service were really matters of long standing, hardly to be visited on individuals, and largely the fault of the Home Government. Arnold insinuated many things against Vice-Treasurer Fitzwilliam; but when Fitzwilliam’s accounts were produced they were found to be quite correct. Stanley was recalled less because of Arnold’s accusations than because he was disliked by Sidney, and the Queen particularly stated that she did not despise the Marshal’s service, nor credit the reports against him. The difficulty of finding out the exact truth was no doubt very great. Even Cecil was not always well served, for portions of a letter addressed by Fitzwilliam to him were copied out, and transmitted to Arnold. Excuses may be made for a man who with good intentions had raised a hornet’s nest about his ears; but he was evidently quarrelsome, arbitrary, credulous, and deficient in personal dignity, a quality which probably carries as much weight in Ireland as in any country in the world.^[110]

Mistakes of Arnold.

FOOTNOTES:

^[88] Cusack to the Privy Council, June 8, 1564; Clanricarde to the Queen, April 12, 1565; Lord Justice and Council to Desmond, July 1, 1564; to Thomond, July 2; Desmond to Winchester, July 26; to Cecil, July 27; Wrothe to Lord R. Dudley, Aug. 16; Orders taken by Sir Thomas Cusack and others between the Earls of Desmond and Thomond; Desmond, Dunboyne, Curraghmore, and others to Cusack, Sept. 11. Stanley’s letter is in the *Arch. Journal of Ireland*, 3rd series, i. 405; *Four Masters*, 1564, who say Corcomroe Abbey, with its church patronage, was given to Donnell O’Brien as an equivalent for surrendering his claims by tanistry.

[89] Earl of Ormonde's proclamation, July 1, 1564. The copy in the R.O. is by Sir T. Wrothe's clerk, and the signatures are not given.

[90] Ormonde to Cecil, Nov. 22, 1564; Cusack to same, Jan. 12, 1565; Desmond's petition to the Queen, June 1, 1565 (No. 53), and Ormonde's answer, June 6.

[91] The official correspondence about this affray is among the S.P., *Ireland*, Eliz., vol. xii. It is printed in the *Irish Arch. Journal*, 3rd series, i. 394. Russell, the *Four Masters*, O'Daly, and O'Sullivan Beare all say Desmond was outnumbered, and Ormonde treacherous. I see no reason to believe either statement. Desmond's own account is certainly incorrect. Lord Power's is unfortunately missing. The best is Sir George Stanley's, who took the trouble to visit the place, and to make a sketch or plan; he is perhaps rather partial to Ormonde. The 'ford' of Affane was perhaps that over the tributary river Finisk. I have inspected the ground carefully. The Blackwater itself is mentioned by Desmond as being passable only by swimming or in boats. It is, on the other hand, generally believed that the ford in question was over the great river, and arms and spurs have been found near the bank. The Finisk, however, was on Ormonde's direct road to Dromana, and the Blackwater was not.

[92] Sir George Stanley and Sir W. Fitzwilliam to Cecil, April 3, 1565; Cusack to same, April 22; Lord Justice and Council to the Privy Council, April 23; Captain Nicholas Heron to the same, April 27.

[93] Fitzwilliam to Cecil, May 17, 1565. The fight was on May 2.

[94] Shane O'Neill to the Lord Justice, May 2; Gerot Fleming to Cusack, June (No. 82).

[95] Fitzwilliam to Cecil, June 8, July 13, and Aug. 23; Gerot Fleming to Cusack, already cited. Sir Henry Sidney's articles for Ireland, May 20, 1565.

[96] Answers of Sir H. Radclyffe, F. Agarde, and the Earl of Sussex, Aug. 8, 1565. Fitzwilliam and Stanley generally supported Sussex. Arnold, Cusack, and Sidney inclined to Leicester's side.

[97] Answer of Sir H. Sidney, Aug. 8, 1565.

[98] Sir H. Sidney's simple opinion, Sept. 16, 1565; Opinion of the Earl of Sussex, Sept. 22. The twenty-seventh clause of the Statute of Kilkenny seems to the point:—'Item ordonne est que si debate soit entre Englois et Englois par quoi les Englois dune parte et daultre ceillent a eux Englois et Irrois en pais illeque a demourer pour guerre et greves aultre a grande damage al destruction de liege pouple du Roy, Accorde est et assentu que nule Englois soit si hardide mener guerre entre autre damener nuls Englois ny Irrois en paix desormais par telle a chescun, et si les faict et de ces soit atteint soit jugement de vie et de membres leur terres forfaitz.'

[99] Submission of Desmond, Sept. 12, 1565, and of Ormonde, Sept. 24. Both recognizances are dated at Westminster, Nov. 22.

[100] Curwen became Bishop of Oxford as Sidney advised.

[101] Sir H. Sidney's suits, May 20, 1565.

[102] The Commission, dated Oct. 13, is in *Sidney Papers*, p. 86. Even the last draft of the instructions, dated Oct. 5, has the higher title, for which Lord Deputy was substituted on revision.

[103] Instructions for Sir H. Sidney.

[104] Instructions for Sir H. Sidney, Oct. 5, 1565.

[105] The Queen to Lord Deputy Sidney, Nov. 12, 1565.

[106] Instructions for Sir H. Sidney, Oct. 5, 1565.

[107] *Sidney Papers*, vol. i. p. 7.

[108] Shane O'Neill to the Lord Justice and Council, June 30, 1565; Fitzwilliam to Cecil, Aug. 23.

[109] Fitzwilliam to Cecil, Aug. 23, 1565.

[110] In his 'articles,' Dec. 2, 1565, Oliver Sutton accuses Arnold of frequenting low haunts. Writing to Shane, Aug. 27, Arnold says, 'facta tua non quadrant cum meis laudibus' Yet Fitzwilliam says the Council were not allowed to write the truth about Shane's doings (to Cecil, Nov. 28). The Queen to Sir George Stanley, Oct. 23.

CHAPTER XXIV.

1566 AND 1567.

Sidney was wind-bound for nearly two months in Wales and Cheshire. He and his wife were forced to flit about the coast, staying sometimes in places where food, drink, and lodging were alike bad, weary of their lives, and with no news more cheering than that one vessel carrying their horses and furniture had foundered with all hands, and that the cargo of another had been much damaged, though the men were saved. ‘God send me a better proceed,’ said he, ‘and a good end of this froward beginning.’ He lost all his wine and other property, worth 1,500*l.*, and was inclined to attribute to witchcraft an extraordinary series of storms which shattered nearly all the ships between Liverpool and Chester. William Thwaites, a faithful and useful servant, perished, and Sidney mourned his loss more than any quantity of property. The Lord gave, he said, and the Lord hath taken away. The stone pier at Chester was ruined, and Sidney, not forgetting that he was Lord President of Wales, declared that the city would be irreparably damaged unless the Queen sent help. Yet great as the storm was, he feared lest his jealous mistress should accuse him of loitering, and begged the Vice-President of the Welsh Marches to corroborate his accounts of the weather. He wished Cecil a long life, and himself a speedy departure from ‘this hungry head.’ Elizabeth afterwards expressed sorrow for Sidney’s losses, but it does not appear that she did anything in the way of compensating him. At last the wind changed, and Sidney found himself in charge of a country as unquiet as the sea that washed her shores.^[111]

Sidney arrives in Ireland, 1566.

Sidney’s first care was to let Shane O’Neill know of his arrival, and to urge him to appoint a meeting at Drogheda or Dundalk. Shane answered by praising

Sidney and Shane O’Neill.

Arnold's government, and proposed that his successor should be at Dundalk on February 5, which he thought would be conducive to business. Sidney thought the date too early, especially as Cusack was not at hand, and suggested that if O'Neill were sincere he might fix a better day, promising, in the meantime, to punish a satirical versifier who had offended him. Shane then declined a meeting until his latest suits were favourably determined, but promised to wait on the border for seven days, during which he hoped the Lord Deputy would come to Dundalk. To this it was answered that the treaty of Nov. 18, 1563, had not come to hand, that Cusack, who knew all about it, was sick in Munster, and that in the meantime Shane might as well come under safe-conduct. The slippery chief was kind enough to say that he took the Lord Deputy's delay in good part, and that Sidney could not desire his presence more than he desired Sidney's. He knew the latter's sweet nature and readiness for all good things, and reminded him of their former friendly relations. His people, he said, would not allow him to come to the Lord Deputy's presence, on account of the many hurts done by official people to the O'Neills during the last twenty years. The imprisonment of his father, the handcuffs which secured his own safety on the way to Court, the two attempts of Sussex to murder him, were duly recapitulated, as well as many outrages upon Irishmen of less importance.

Sidney could only say that Shane ought to know him better, and that he was quite willing to meet him at Dundalk. But he declined to enter any house or town, desiring the Lord Deputy to meet him at a bog-side where he had 1,000 men with him. Sidney could not bring half as many men, and he did not think such a meeting for the Queen's honour. Shane stickled for the old treaty with Cusack, who was absent, and Kildare, who was present, remembered nothing about it. It had never been on record in Ireland, and the copies produced by O'Neill and by Leicester agreed, 'as well as Luke the Evangelist and Huon of Bordeaux.' Lucifer was never more puffed up with pride and ambition than O'Neill, who was the only strong and rich man in Ireland, able to bring 4,000 foot and 1,000 horse into the field. If he did not come to Sidney, he would come to no Englishman, and since the first conquest there had not been any man in Ireland more likely to bring it under the dominion of a foreign prince. 'In the morning he is subtle, and then will he cause letters to be written either directly otherwise than he will do, or

Sidney pronounces
Shane hopeless.

else so doubtfully as he may make what construction he likes, and oftentimes his secretary penneth his letters in more dilled form than he giveth him instruction, but in the afternoon when the wine is in, then unfoldeth he himself, *in vino veritas*, then showeth he himself what he is, and what he is likely to attempt.'

Formerly he had condescended to request that his parliamentary robes might be sent into his own country. 'Now he cares not to be an Earl unless he can be something higher and better. "I am," he said, "in blood and power better than the best of them. I will give place to none but my cousin of Kildare, for that he is of my House. You have made a wise Earl of Macarthy More, I keep as good a man as he. For the Queen, I confess she is my sovereign lady, yet I never made peace with her but by her own seeking. And whom would you have me trust, Mr. Stukeley? I came unto the Earl of Sussex upon the safe-conduct of two Earls and protection under the Great Seal, and the first courtesy that he offered was to put me in a handlock and to send me into England. When I came there upon pardon and safe-conduct, and had done my business and would have departed according the same, the Queen herself told me that indeed safe-conduct I had to come safe and go safe, but she had not told me when, and so there held me till I had agreed to such inconvenience against my honour and profit as I would never perform while I live, and that made me make war. If it were to do again, I would do it, for my ancestors were kings of Ulster, Ulster was theirs, and shall be mine. And for O'Donnell, he shall never come into his country if I can keep him out of it, nor Bagenal into the Newry, nor the Earl of Kildare into Dundrum or Lecale. They are mine; with this sword I won them, with this sword I will keep them. This is my answer, commend me to my gossip the Deputy. God be with you, my masters." "Nay," said the envoys, "we brought you letters, and by letters we look for answer." "Well, letters you shall have," said he, and he caused his secretary to write. We send a true copy, so that you shall see how well speech and writing agree.'

[112]

Shane's pretensions to be greater than any earl.

Persuasion had failed, as Sidney doubtless foresaw, and he was in no condition to carry things with a high hand. He reiterated the demands he had already made in England, and declared he could do nothing till they were granted. A competent Chancellor, a President for Munster, money to pay off the

Sidney is obliged to temporise.

demoralised soldiers and get new ones who had not graduated in idleness and extortion; these were the most pressing wants. 4,000*l.* should be spent out of hand in fortifications, and means should be given to victual all garrisons at once, instead of waiting till the last moment and then paying double. The Lord Deputy had not even a good clerk whom he could trust to copy despatches, still less could he do good service with soldiers who lived by plunder and were everywhere allied with the Irish. With 500 well-paid and well-appointed men he would chase Shane before him within forty-eight hours, or be accounted a traitor. Otherwise he might come to the walls of Dublin and go away unfought. Ulster was ready for the foreigner to seize, and a whole province would be worse to England than the single town of Calais had been to France. He had rather die than have the name of losing Ireland, and yet he could do nothing without proper tools. Six thousand times a day did he wish himself in any part of Christendom, so that he might escape from the Irish purgatory, with its endless and thankless toil. ^[113]

The presence of Sussex at Court was not favourable to his successor's efforts in Ireland. Smarting under the sense of failure, he was ready to find fault, and he or his friends accused Sidney of using improper language. The party opposed to Leicester, including Ormonde, whose favour with the Queen was such as to cause some slight scandal, eagerly welcomed rumours unfavourable to the favourite's brother-in-law. Sidney denied in vigorous language that he had slandered Sussex in any way, though he knew him to be his enemy. 'That evil,' he said, 'come to me and mine, I pray God, that I wish to him.' At last Elizabeth confronted Sussex and Leicester at the Council Board, and the result was a complete vindication of Sidney. But the unconciliatory tone of Sussex made the scene painful, and such as Cecil would have given much to avoid. Though angry with Sidney for his coldness to Ormonde, for the favour shown to Stukeley, and above all, for his financial importunities, the Queen pacified him by a graceful letter, and his credit seems to have been fully re-established at Court. ^[114]

The Sussex and Leicester factions.

Like every English ruler before and since, Elizabeth found it very hard to get at the truth about Ireland. She now sent her Vice-Chamberlain, Sir F. Knollys, with large powers, and with directions to keep the chief part

Elizabeth sends Sir F. Knollys to

of the information he might acquire for her own ear. It was now evident that no good could be expected of Shane, and the question was how could he best be subdued. Cecil wrote privately to Sidney, advising him to speak favourably of Ormonde when conversing with Knollys. Whether he followed this prudent counsel or not, it is clear that the Lord Deputy succeeded in impressing his views on the special commissioner, who was much struck by his powers of work. That the Queen lost great sums by the system of long credits, and that discipline suffered by irregular payments, may seem elementary truths, but her Majesty was slow to receive them. She was startled by the proposal of a winter war, upon which Sidney and Knollys insisted, and of which St. Leger had demonstrated the value. Hitherto the usual plan had been to begin campaigning in spring, which is often a cold season in Ireland. The horses which had been kept in during the winter could not bear the exposure nor the green food. Little harm could be done to the young crops, and the Irish horses, which had been out all the winter, improved daily. There was plenty of milk and butter, and the cattle could find food everywhere. The true plan was to begin about harvest, to destroy as much ripe corn as possible, and to drive the Irish herds into flooded woods and bogs. Armed vessels should be provided to prevent the entry of Scots, 300 of whom Knollys believed to be more formidable than 600 Irish kerne. [\[115\]](#)

discover the truth.
He supports Sidney.

Though believing at heart that Shane would have to be subdued by force, Elizabeth hesitated to act on her conviction. Sidney implored Cecil to persuade her at least to spare her own purse, 'though there be little care of this country and less of me.... I will give you all my land in Rutlandshire to get me leave to go into Hungary, and think myself bound to you while I live. I trust there to do my country some honour, here I do neither good to Queen, country, nor to myself.' Cecil worked hard to persuade his mistress, and at last she yielded, slowly and ungraciously, grumbling at the expense, and magnifying the objections to the course which she knew to be inevitable. To avoid the difficulty of provisioning an army in winter, it was resolved to make a permanent settlement in the extreme North. Three hundred seasoned soldiers from Berwick, 100 men from London, and 600 more from the Western counties, were to be placed under the experienced guidance of Colonel Randolph, and furnished with proper supplies. O'Donnell should

The Queen
hesitates.

be replaced in his country, and a naval expedition should secure the coast against any invasion from Scotland. All this was in strict accordance with the advice of Sidney and Knollys. An agent was sent to Scotland with friendly messages to Mary, and complaints of aid given to Shane. He was directed to sound Argyle, and to impress him and his friends with the idea that the Papists were Shane's real supporters. This was true enough, for he had begged for French troops, styling himself defender of the faith in Ireland, and offering the Crown of Ireland to the most Christian King, when the English schismatics should be driven out. Nor had he omitted to send a representative to the Scots Court, impudently informing Sidney that he had sent him at the request of Argyle, and that he had gone thither only 'to show the monstrous glibbe that he wore upon his head.'^[116]

While a weapon was being slowly forged for his destruction, Shane assumed the offensive and threatened the Pale. He refused to treat unless his servant, as he called Maguire, should be given up to him. Sidney faced him for two days near Dundalk, and was then forced to retire for want of provisions, first advising the inhabitants to place their goods in safety—a precaution which many did not or could not take. No sooner was his back turned than Shane advanced and burned Haggardston and most of the villages in the north part of Louth. He then attacked Dundalk, whose walls were ruinous enough, but John Fitzwilliam, with a small number of soldiers, made so good a stand that the Irish were driven off with great loss, though they had actually penetrated into the streets. Twenty-six heads, representing but a small part of the slain, were left grinning on the gates. Shane then withdrew towards the border of Tyrconnel, and made great offers to the Scots; but Sidney had been beforehand with him, and no help came. He and all his adherents were proclaimed traitors at Drogheda, and a day was fixed for attacking him in force. But money difficulties caused a further delay, though Gresham went to Antwerp on purpose, and though Cecil pledged his own credit for what to us seems the small sum of 1,100*l*. Then the winds were adverse, and Shane had reaped most of his harvest before Randolph had left Bristol. A month later than had been originally intended all difficulties were surmounted, and Sidney moved forward as soon as he heard that the expedition had arrived in Lough Foyle.^[117]

Insolence of Shane.
Mission of
Randolph.

Shane O'Neill felt that he was near the end of his tether, and made a strong effort to create a diversion in Munster. He reminded the Desmonds that he had often defended their interests, which were identical with his own, and that there was now a grand opportunity of defeating the English policy, which was as hostile to the Norman as to the Celtic aristocracy. But Desmond turned a deaf ear and went in person to Sidney, even to that town of Drogheda which was traditionally hateful to his family, and offered to accompany him to Ulster with or without his followers. Sidney assigned him a post on the border, which he was to guard with the help of Lords Dunboyne, Power, and Delvin, and of Sir Warham St. Leger, who had charge of the affairs of Munster. Accompanied by Kildare, O'Donnell, and Maguire, the Deputy then began his northward march. After halting four days on the border of Louth to allow supplies to come up, Sidney marched towards Armagh. A lake, which is not easy to identify, was passed on the way, and in this lake there was one of the ancient dwellings called 'crannoges,' which were still used as hiding-places by the O'Neills. It was supposed that Shane deposited his money, plate, and prisoners in these primitive strongholds, and that may have made the Lord Deputy anxious to gain them. He describes the island as surrounded by a thick hedge, and 'bearded with stakes and other sharp wood.' A rude pontoon bridge was made with barrels, and a party advanced to the assault. But the soldiers crowded on to the planks till they were partly submerged, and thus destroyed the combustibles with which it was intended to burn the hedge and stockade. Two or three were drowned, and Sidney resolved to lose no more time. [\[118\]](#)

Desmond will not help Shane. Sidney goes to Ulster.

The army then advanced to Armagh, where Shane had burned the church and destroyed all the buildings that he could. In crossing the Blackwater, which was now very low, a further justification appeared for an autumn campaign. In some former expeditions undertaken in springtime all the provisions had been exhausted while waiting for the river to become fordable. Shane's chief residence at Benburb was found in ruins, and on the tenth day Clogher was reached. Some of the corn had been carried off, but the greater part was still accessible, and all within a circuit of twenty-four miles was destroyed. While lagging in the rear with some horse Kildare was

Sidney has it all his own way. Death of Shane Maguire.

here attacked by the O'Neills, and had a narrow escape. Near Omagh Shane Maguire died on the march, just as he was about to be restored to his own. At or near Castlederg Shane showed himself in the rear, but did not venture even to skirmish, though the ground was very unfavourable to English troops, and though he had near 5,000 men with him. At the ruined castle of Lifford, Randolph met Sidney and satisfied him that Derry, with its church and other stone houses, was the best place for a fortress. On the right bank of the Foyle opposite to the entrenchment the whole army halted. O'Dogherty and the Bishop of Derry, who was of his family, then came to Sidney; but none of the O'Donnells appeared, and the Lord Deputy found it necessary to enter Tyrconnel in person. The Foyle was accordingly passed, not without difficulty, and leaving six companies and six weeks' provisions with Randolph, he marched by Raphoe through Barnesmore gap into Tyrconnel, and arrived at Donegal without seeing an enemy. He was joined on the march by O'Boyle, by two chiefs of the MacSwineys, by O'Gallagher, and by the Bishop of Raphoe, one of those prelates who had attended the Council of Trent. Donegal was taken formal possession of, and then delivered to O'Donnell, as was also Ballyshannon. The Erne was then passed in boats brought from Donegal, and Shane's people abandoned Belleek Castle, which they vainly tried to burn, and which Sidney gave up to the O'Donnells to hold of the Queen. Passing between Lough Melvin and the sea, the army marched unopposed to Sligo. O'Connor surrendered the castle, which he desired to hold of the Queen independently of O'Donnell. Sidney directed him to pay one year's rent pending a regular trial of the title, and then proceeded to Boyle by the pass over the Curlew mountains, 'the foulest place that ever we passed in Ireland.' The value of the fertile plains of Boyle was apparent to Sidney, who regretted that they were spoiled by local wars and yielded nothing to her Majesty. From Boyle the army went by Roscommon to Athlone, where the Shannon was passed by swimming, some baggage horses being lost. 'Thanks be to God,' said Sidney, 'in all this painful and long journey there died not of sickness above three persons, and the rest in such health as the like hath not been seen in so long a journey in this land, and the horses also in better plight than with so great travail they could have been in the beginning of the year. And like as by this journey your Majesty hath recovered to your obedience a country of seventy miles in length and forty-eight miles in breadth, and the service of 1,000 men now restored to O'Donnell, and so united and confirmed in love

towards him, as they be ready to follow him whithersoever he shall lead them, so is your Majesty's name grown in no small veneration among the Irishry, who now see cause to appeal to your justice; and by this restitution of O'Donnell receive both hope and fear to be defended in their well-doing, and chastised for the contrary.'

[\[119\]](#)

After Sidney's departure Randolph found his position one of great difficulty. The people had no other idea of trade than to extort exorbitant prices. The supplies were inadequate, and the soldiers were quickly reduced from cheese and bacon to bread and pease only. Their clothes soon wore out, and messengers had to be sent into the Irish districts for frieze and to England for shirts and shoes. Intrenching tools failed, for twenty dozen spades and shovels had been used up, and O'Donnell could not rebuild Lifford without help. Powder ran low. There were no boats to carry horses. The men sickened. An unexpected event added still further to their perplexity. As old Calvagh O'Donnell was riding towards Derry on his way to attack Tyrone his horse stumbled and fell, and he was seized with a fit, which soon carried him off. He lived just long enough to call his chief clansmen round him, to speak of the Queen's kindness, and to adjure them to serve her and to fulfil every promise that he had made. His brother Hugh was quickly chosen to succeed him, but the confusion probably hindered supplies from reaching the garrison at Derry. Shane seized the opportunity to invade Tyrconnel, but O'Dogherty gave warning and the fords were closely watched. Randolph routed the assailants with great slaughter, and only one man fell on the English side; but that one was the commander, and his loss was not easily supplied.

Randolph at Derry.
Death of Calvagh
O'Donnell.

Determined not to let O'Neill rest, Sidney ordered a general hosting against the O'Reillys, O'Hanlons, and others of his partisans, which is only so far noteworthy in that Desmond and the White Knight co-operated with Sir Warham St. Leger, who had been acting as chief commissioner in Munster, and whom it was at this time intended to make Lord President. Butlers and Geraldines continued nevertheless to plunder one another, Sidney refusing to decide their cause without the help of English lawyers, and the Queen pressing him continually in Ormonde's interest. In the meantime he could see the state of Munster for himself. He

Sidney goes to
Munster. Great
disorder
everywhere.

found the Queen's County and Kilkenny in pretty good order, and very prosperous compared to what he had formerly seen there. Ormonde's brother Piers was arraigned for breaking into a gaol and releasing men charged with felony, and on confession was respited during the Queen's pleasure. Edward, another brother of the Earl, distinguished himself by apprehending certain outlaws who annoyed the Fitzpatricks, and who were sheltered in Tipperary. The Fitzpatricks were, however, in the habit of retaliating on Kilkenny. The O'Carrolls Sidney found quiescent, and their chief willing to pay rent to the Queen, and anxious for a peerage. Between the Fitzpatricks, the Desmonds, and the Butlers themselves, Tipperary was in evil case, suffering especially from 'the excessive train of horsemen and footmen led and kept there by the younger brethren of the Earl of Ormonde, who rather consumed than defended the goods of the poor country.'

Indeed, those who bore authority under the Earl showed neither justice, judgment, nor stoutness in the Deputy's opinion, and the townsmen of Clonmel, Cashel, and Fethard, sustained him in his dislike of the palatinate jurisdiction. Trade was so much interrupted by violence that the towns underwent the inconveniences of a perpetual siege. Lord Dunboyne with his brother and son were sent to Dublin Castle. 'If maintenance of proclaimed rebels,' said Patrick Sherlock, openly at Fethard in his lordship's presence and in that of the Deputy, 'murderers, and burners of corn and houses, are treason to the Queen's person, then I have to accuse him of treason.' Edward Butler was tried at Clonmel and acquitted, yet Sidney thought a good moral effect would result from the mere fact of bringing the Earl's brother into court.

The Palatinate of
Tipperary.

The county of Waterford was also disturbed by the Power kerne and others, who had been used to live by coyne and livery. That exaction having been repressed by St. Leger and his colleagues, they betook themselves to undisguised rapine. Lord Power was also sent to the Castle, as the best means of inducing his followers to amend their lives. Sir Maurice Fitzgerald's county contrasted favourably both with Lord Power's and with the Desmond territory about Youghal, but the chief was somewhat too ready to take the law into his own hands.

Waterford.

Youghal itself had suffered much from pirates. Here Desmond appeared, and Sidney went into the controversy about the possession of Kilsheelan and some other manors. He found that Ormonde was in the right, and from the time that decision was given Desmond gave him all the trouble in his power. ‘Your name,’ said the Deputy to Queen Elizabeth, ‘is no more revered, nor letters of commandment obeyed, within any place within his rule, than it would be in the kingdom of France.’ But the greater part of the noblemen and gentlemen of Cork came to Sidney craving justice and protection against the Desmond tyranny.

Cork.

The absence of a stable government and the trade with Spain had, in Sidney’s opinion, so weakened the Crown that Philip might, with 3,000 men and 20,000*l.*, become supreme in Munster and Connaught, which 20,000 men and 100,000*l.* would not suffice to recover. The whole county of Cork was waste, the villages burned, and everywhere were exposed ‘bones and skulls of the dead subjects, who, partly by murder, partly by famine, have died in the fields, as in troth hardly any Christian with dry eyes could behold.’ Women upon the point of becoming mothers were murdered by one of Desmond’s vassals, and the Earl lodged and feasted in the murderer’s house. ‘Surely,’ said Sidney, ‘there was never people that lived in more misery than they do, nor as it should seem of worse minds, for matrimony among them is no more regarded in effect than conjunction between unreasonable beasts. Perjury, robbery, and murder counted allowable. Finally, I cannot find that they make any conscience of sin, and I doubt whether they christen their children or no; for neither find I place where it should be done, nor any person able to instruct them in the rules of a Christian; or if they were taught I see no grace in them to follow it; and when they die I cannot see they make any account of the world to come.’^[121]

Horrible destitution of the people.

Desmond, who was given to bravado, attempted to overawe Sidney, who had but 200 men with him. He boasted that he would never dispense with the old state of his family, but would have five gallowglasses where he had formerly had one. He secretly directed his dependents to make a show of force, but Sidney told him that he would hold him responsible if anything happened, and finally sent him through Clare and Connaught a

Desmond’s boasts.
He is sent as prisoner to Dublin.

prisoner to Dublin. He did not, however, believe that rebellion was meant, but merely empty display. In the meantime the English Government received information which, had it been earlier available, would have prevented Desmond's last enlargement. [\[122\]](#)

At Limerick, Sidney was received by the Bishop, Hugh Lacy, in full pontificals, and with much ceremony of an entirely Roman character. The city he found much decayed, partly through the misdeeds of Desmond, but more through those of the Earl of Thomond, who was both incompetent and treacherous. Galway more 'resembled a town of war, fronting upon an enemy, than a civil town in a country under the sovereign. They watch their walls nightly, and guard their gates daily with armed men.' Clanricarde's sons John and Ulick, by two wives both living, were the chief disturbers of the West, and they too were sent prisoners to Dublin. The town of Athenry was deserted, four families only remaining, who greeted the Viceroy with cries of 'Succour, succour.' Clanricarde's own country was in pretty good condition, and Sidney found nothing to complain of in his conduct, but he was quite unable to keep his sons in check. [\[123\]](#)

Sidney continues his journey. Limerick.

Galway.

After spending nearly three months in Munster and Connaught, Sidney came to the conclusion that they did not contain the seeds of reformation within themselves. Ormonde indeed did not lack ability; but he was absent, and likely to be absent, and his work could not be done by deputy. He summed up the qualifications of the other great lords in a few pithy sentences. 'The Earl of Desmond, a man both void of judgment to govern and will to be ruled. The Earl of Clancare I suppose willing enough to be ruled, but wanteth force and credit to rule. The Earl of Thomond, the most imperfect of all the rest; hath neither wit of himself to govern, nor grace or capacity to learn of others. The Earl of Clanricarde, equal in all good parts with the best of his coat of this country breed, both of good judgment to rule and also of himself of great humbleness to obey your Majesty and your laws, is yet so ruled by a putative wife, as oft times when he best intendeth she forceth him to do worst.' It was of small avail that the Lord Roche's country in Cork was pretty well managed, or that O'Shaughnessy, the son of him whom Henry

Sidney's opinion of the Munster and Connaught gentry. He advises a President.

VIII. knighted, should be an exception among the gentlemen of Galway. A President and Council for each province had been long advocated by Sidney, who reiterated his opinion that nothing else would be of any avail. He condemned, with becoming indignation, what an important public man had some years before called ‘the old and necessary policy of keeping the Irish by all possible means at war between themselves.’ If this cowardly system of fostering dissensions, lest quiet should bring unknown danger, were still persisted in, then he begged the Queen to choose some other minister. Ireland could only be reformed by justice, and by making it possible to practise the arts of peace. [\[124\]](#)

After Randolph’s death the settlement at Derry went from bad to worse. The encampment had been made over the burying-ground, and the miasma did its work. The commissariat officer was afraid to send his vessel away for fear of weakening the garrison, every officer seeking a passage for his friends. Discipline could hardly be maintained, and there was great lack of necessities. Storage room there was none, and the enfeebled men were daily harassed by bringing supplies from the ships. News seldom penetrated to that remote spot, whither ‘no man travels by which men might have some understanding before now. God send me, if it be His will, once into England, and there to beg my bread if I be not able to labour rather than here to be a lord.... I am weary of my life, and all for want of the colonel.’ Edward Saintloo was sent to take Randolph’s place, and the mere fact of there being a man in authority worked wonders. ‘Before, we were like godless people without a head or a guide.’ Saintloo brought some stores, but in bad order and partly spoiled by one of the vessels taking ground in the bay. ‘That which was saved hath come in an ill pickle, but yet are we glad of it, for our meal was almost done and our mills not able to grind so fast as we did eat. Sir, the provision of meal is not like London, for it is coarse meal, and was never bolted, but even as it came out of the mills, so packed into great cakes.’ Nothing could be bought but at exorbitant rates, and the new colonel calculated that, out of their pay of only 14s. a month, the men had to pay 10s. 2d. for food, leaving only 3s. 10d. for clothing, wood, turf, bedding, straw, and other necessities. To obtain provisions, and perhaps to put heart into his troops, he made a raid upon the O’Cahans, who still adhered to Shane, and brought off vast numbers of cattle. But the sickness

Death of Randolph.
Fate of the Derry
settlement.

continued, and soon there were but 200 able men out of 600. It was decided to remove the garrison to Coleraine or Strangford, but before measures could be taken the settlement had ceased to exist. The sparks from the forge, driven by a high wind, set fire to the magazine, which had once been a church, or part of a church, and thirty men were killed by the explosion. The survivors took what boats they could find, and the majority made their way to Carrickfergus. Some were driven ashore, and were hospitably treated by Tirlagh Luineach O'Neill. The Queen, seeing that the accident was by God's ordinance, bore her loss well; but the devout natives maintained that St. Columba had appeared in the shape of a very large and particularly hairy wolf, that he had taken a good mouthful of sparks out of the blacksmith's shop, and that he had then disgorged them into the magazine. [\[125\]](#)

The evacuation of Derry left the road into Tyrconnel once more open, and Shane doubtless supposed that it was at his mercy. He advanced with a large force to the ford over the Swilly, now called Farsetmore, near Letterkenny. O'Donnell was in the neighbourhood, and hastily sent messengers to collect his friends. Sending the few horse at his disposal to skirmish with Shane's vanguard, he drew his men, who did not exceed 400, into a strong position, and there addressed them; telling his clansmen that death was far preferable to the insults which they had of late years suffered at O'Neill's hands. They at once marched to attack Shane's camp, and found his men, who probably confided in their number, in a state of unreadiness. A great slaughter followed, and the O'Neills fled to the ford which they had crossed in the morning. But it was now high water, and of those who escaped the sword the greater number were drowned. Shane escaped in the confusion, crossed the Swilly a little higher up, and made his way into Tyrone. His loss was variously estimated at 1,300, and at 3,000, and he never collected another army. He at one time thought of appearing before Sidney with a rope round his neck and begging for mercy. What he did was to place himself in the power of the MacDonnells, of whom a strong force had just landed at Cushendun, under the command of Alexander Oge, who had come over at Sidney's request, and who remained in communication with him. To him Shane now sent proposals for a permanent alliance against the English. [\[126\]](#)

The O'Donnells
totally defeat
Shane,

Alexander agreed to a meeting, and Shane, accompanied by the unfortunate countess, and by Sorley Boy, who was still his prisoner, directed his steps towards Red Bay. His escort was reduced to fifty horse. The Scots made a feast to welcome their visitor, and after dinner Shane's secretary was accused of circulating the report that James MacDonnell's widow was about to marry the man who had killed her husband. The secretary incautiously said that O'Neill was a meet partner, not only for their chief's wife, but for Mary of Scotland, who was a widow at this time. Shane, who had been indulging as usual in wine or whisky, came up at the moment and took part in the altercation. The Scots drew their dirks, and almost cut him to pieces. The body was thrown into an old chapel hard by, and Captain Piers of Carrickfergus, who had all along plotted for this conclusion, managed to get possession of the head, which he sent, preserved in salt, to Sidney. Piers received 1,000 marks, the reward which Sidney had placed on the head, and the ghastly trophy was stuck on a pole over the gate of Dublin Castle, where it was seen by the historian Campion four years later. Shane's entire body had been valued at 1,000*l.*, 500*l.* being the sum promised by proclamation for simply killing him. The trunk was buried in the Franciscan monastery at Glenarm, and it is said that monks from Armagh came afterwards to claim it. 'Have you,' said the prior, 'brought with you the remains of James MacDonnell, Lord of Antrim and Cantire, who was buried among strangers at Armagh?' A negative answer was given, and the prior said: 'While you continue to tread on the grave of James, Lord of Antrim and Cantire, know ye, that we here in Glenarm will trample on the dust of your great O'Neill.'^[127]

who is killed by the Scots.

'Shane the Proud,' as his countrymen called him, was perhaps the ablest of Elizabeth's Irish opponents. He intrigued at different times with Spain, with France, and with Scotland; but he received no foreign help. In practice he regarded the Pope as lightly as the Queen, but he saw clearly enough that it was his interest to pose as the Catholic champion. The Pope, however, had not yet excommunicated the Queen, nor was either France or Spain prepared to court the hostility of England. Scottish politicians thought it worth while to keep him in good humour, but mainly as a means of increasing their own value with Elizabeth. Alone he bore the brunt of the contest, and he must

Character of Shane O'Neill.

have cost the English Crown a sum altogether out of proportion to his own resources. Ware says that 3,500 soldiers were sacrificed in this service, and that it cost the Queen more than 147,000*l.* over and above all local imposts and all damage done to the country. Shane was cruel and tyrannical, and his moral character was as bad as possible, though not much worse than that of Clanricarde, or perhaps of some other chiefs in that rude age. He had an Oriental want of scruple about murdering inconvenient people, and he had no regard for truth. He is said to have been a glutton, and was certainly a drunkard. We are told that he used to bury himself in the ground to recover from his orgies, ‘by which means,’ says the chronicler, ‘though he became in some better plight for the time, yet his manners and conditions daily worse.’ The love of liquor probably caused his death. By far the most remarkable Irishman of his time, he cannot be regarded as in any sense a national hero. His ambition was limited to making himself supreme in Ulster. Had he been allowed to oppress his own province, and perhaps to levy some blackmail beyond its border, it is not likely that he would have troubled the Pale, or denied the titular sovereignty of England. Being such as he was, the vast majority of Irishmen probably rejoiced at his fall, and the Irish annalists do not pretend that he was much loss, except to his own tribe. [\[128\]](#)

The Irish Council seem to have expected little less than a millennium now that the arch-disturber was removed. The Ulster chiefs hurried to make their submissions, and Tirlogh Luineach, who had immediately assumed the name of O’Neill, thought it wise to apologise for so doing. Tirlogh was willing to pay for his own pardon as many kine as might be awarded by Sidney and Kildare, to keep the peace for the future, and to entertain no Scots without special licence. Sir Brian MacPhelim, chief of Clandeboy, and the most important O’Neill after Tirlogh, had served against Shane and received Elizabeth’s thanks, as did also O’Donnell. The Council informed the Queen that all were now at her foot, and cried ‘first for justice, and then for mercy.’ But the old Treasurer Winchester had seen too much in his time to take a very sanguine view. The expense had been great, and could not be continued indefinitely. ‘Irishmen,’ he reminded Sidney, ‘be full of policy, and wit, and mistrust, and will soon alter themselves from the best, as you yourself knoweth well.’ [\[129\]](#)

No millennium follows Shane’s death.

Elizabeth herself was not disposed to make light of Shane's overthrow and death. 'We do very well,' her Majesty wrote to Sidney, 'allow your painful service and good wisdom herein used, and are very glad, even for your own sake, that God has used you under us as the principal minister to procure so great and singular a benefit, as by the permission of God's favour is like hereby to ensue to that whole realm. And in this, our allowing and praising of you, we would have you well to note, that in reprehending you for other things not allowable to us, we were not moved thereto by any offence or misliking of yourself, but of the matters. For, indeed, we otherwise think so well of you for the faithfulness to us, and the painfulness in service, as yourself could prescribe. And thus much we have thought not impertinent to let you know how well we think of you for this service done in Ulster.' Sidney, it seems, had heard that the Queen intended to deprive him of the Presidency of Wales, and had written angrily to say that in that case he should resign the government of Ireland. Elizabeth had retorted very tartly that the two offices were always held at pleasure, and had never been in the same hands before, and that she should do as she pleased, 'and so also it is meet for you to think and conform yourself.' The same letter contained other sharp expressions, with an intimation that they would have been sharper yet if Sidney's 'travayles had not contrepassed.' Knowing the Deputy's fiery temper, Cecil thought it wise to apply a salve, and the same packet which brought the royal missive brought one from him. 'The Queen's Majesty,' he wrote, 'hath contrary to all our opinions and requests that be your friends, written more roundly to you than either I know you overmuch to deserve, or than I trust she conceiveth in her mind. I can advise you to use patience with the buckler of your sincerity, and I doubt not but your service, succeeding so fortunately as it doth otherwise, will bring you to your heart's desire. In your service all men of good judgment find great cause of allowance of you, and before Almighty God with my whole heart I wish myself with you to take part of good fortune. For I trust to see your recovery of the crown in Ireland in deed, that is only now had in title.' The fact is that it went to the Queen's frugal heart to see even her ablest servant holding two great places at once. Afterwards, when Sidney was at Court, she said that it was no wonder he made a gallant show, for that he had two of the best offices in her kingdom. [\[130\]](#)

Sidney and the Queen.

Elizabeth thought that Sidney leaned to Desmond's side in his controversy with Ormonde, and it is certain that he was less favourable to the latter than her Majesty wished. Ormonde distinctly belonged to the party opposed to Leicester, and Sidney was Leicester's brother-in-law. The Queen accordingly accused him of culpable slackness in arresting Desmond, and of proposing to confer the Presidency on Sir Warham St. Leger, who had an hereditary feud with the chief of the Butlers, and who scarcely concealed his partiality. Desmond, on the contrary, after he had been two months under restraint, complained bitterly that he had expected better usage from Sidney, that he was a prisoner for no reason, and that it would be grossly unjust to decide his cause in his absence. His enemy, he added, had already every advantage of favour and of education.

Sidney dislikes Ormonde. Attempts at maintaining justice in the South.

In the meantime efforts were made to extend the administration of justice in the country districts. At Maryborough a jury was found to condemn a malefactor, who was executed. At Carlow also the assizes passed over quietly. In Kilkenny was found plenty of all but money, and such 'strife for land' that one acre was better than ten had been. The irregularity of legal process may be gathered from the fact that Kilkenny Castle contained many rogues and masterless men who had remained apparently untried since the time of Edward VI., and whom the judge of assize did not think it necessary to deliver until the Lord Deputy's pleasure should be known. Men of family were treated differently; for one of the Fitzpatricks, who had been tried and acquitted, being re-committed on a new charge, was enlarged by the gaoler on his own responsibility.^[131]

Desmond begged Winchester to interfere on his behalf. The Lord Treasurer declined to espouse his cause openly, but privately informed Sidney that if he wished justice done he must come to Court himself, and bring Desmond with him. The Queen daily uttered sharp speeches against the Earl; and Sidney alone, while his great services were fresh, could hope to mollify her. Winchester advised a retinue of not more than six men, to save expense and to avoid any appearance of ostentation. For some time the Queen insisted that Desmond should be arraigned, and, if possible, condemned in Ireland before being sent over, but Sidney persuaded her to be satisfied with having him indicted only. Fitzwilliam, who was a strong

The Geraldines and Butlers continue their feud.

partisan of Ormonde, wrote at the same time to complain that Sir John of Desmond would not come near the Judges of Assize, and that the Geraldines continued to spoil the Butlers with impunity. The assizes in other places were rather more successful. At Maryborough the abolition of coyne and livery, imperfect as it was, was generally approved. The poor people began for the first time to feel that they had a worthy prince, and that they were subjects instead of slaves. It was quaintly said that the people in their delight 'fell to such plays and pastimes as the like was never seen in Ireland.' Lands long waste were again inhabited, rents had trebled, the markets were thronged with dealers and produce. 'Up to this time,' said George Wyse of Waterford, 'this poor country had in manner no feeling of good order, neither knew the poor fools God nor their prince, but as a "menye" of brute beasts lived under the miserable rule of their ungodly Irish lords. Now God be praised the world is otherwise framed.'^[132]

Shane being out of the way, it was possible for Sidney to make some reduction in the military force, but not to do so without money. The Queen owed 41,000*l.* in Ireland; 10,000*l.* was grudgingly sent. After an interval 20,000*l.* more was got together, Cecil pledging his own credit to Sir Thomas Gresham for 7,000*l.* No sooner was this loan effected than the Queen repented, but fortunately Winchester had despatched the money, and it could not be recalled. Meanwhile fresh expenses were incurred, and at the end of August, three months after Shane's death, 31,000*l.* were yet due to Sidney and those under him. The Vice-Treasurer's account had not been balanced for years, 300,000*l.* still remaining on his books; and Sidney appears to have borrowed between 2,000*l.* and 3,000*l.* to defray the most pressing calls. Frugality in a sovereign is a virtue, but there can be no doubt that Elizabeth carried it to excess.^[133]

The Queen much in debt.

FOOTNOTES:

^[111] Sidney to Cecil from Chester, Nov. 24, 1565; from Hylbry, Dec. 3; from Beaumaris, Dec. 17; from Holyhead, Jan. 9; from Dublin, March 3, 1566; to Sir Nicholas Throckmorton, Jan. 9; the Queen to Knollys, April 18, 1566. 'I was never so weary of any place,' Sidney wrote from Hylbry island. He landed near Dublin, Jan. 13, and was sworn in on the 20th.

[112] These are wanting, but the mention of them shows that Shane was faithfully reported, otherwise we might have suspected the magniloquent Stukeley. Sidney to Leicester, March 1, 1566; to Shane, Feb. 24:—‘De poeta seu rithmatore de cujus insolenti jurgio questus es, supplicium congruum sumemus.’ Sidney to Shane O’Neill, Jan. 21, Jan. 30 (sent by Stukeley), Feb. 9. Shane to Sidney, Jan. 26, Feb. 5, Feb. 18 (with enclosure). In the last letter Shane says, ‘Novi vestram suavissimam naturam (a Deo Optimo Maximo vobis datam) non inquinatam neque maculatam ed ad omnia bona promptam.’

[113] Sidney to Leicester, March 1; to Cecil, March 3 and April 17.

[114] Sidney to Cecil, April 17; Cecil to Sidney, June 16; Queen to Sidney, July 5.

[115] Memorial for Sir F. Knollys, April 18, 1566; Cecil to Sidney, May 18; Knollys to Cecil, May 19 and 29.

[116] Sidney to Cecil, June 9, 1566; Queen to Sidney, June 15 and July 8; Instructions for Randolph, July 8; Winchester to Sidney, July 31; Shane O’Neill to Charles IX. and to the Cardinal of Lorraine, April 25. See also in the *Foreign Calendar* Instructions for H. Killigrew, June 15; Elizabeth to Randolph, May 23, and Randolph to Cecil, same date. Cecil comforted Sidney with frequent letters, and the Lord Treasurer Winchester promised him hearty support.

[117] Randolph to Cecil, Sept. 3, 1566. Sidney to Cecil, Aug. 19, and Loftus to Sussex, Sept. 3 (in Wright’s *Queen Elizabeth*). Thomas Lancaster to Cecil, Aug. 16.

[118] Shane O’Neill to John of Desmond, Sept. 9. Sidney to the Privy Council, Sept. 9 and 14.

[119] Sidney, Kildare, Bagenal, and Agard to the Queen, Nov. 12.

[120] Randolph to Cecil, Oct. 27, 1566 (the day after O’Donnell’s death); Sidney to the Privy Council, Nov. 12; Captain Thomas Wilsford to Cecil, Nov. 15; Edward Horsey to Cecil, Nov. 21; George Vaughan to Winter, Dec. 18; Sidney to Cecil, Jan. 18, 1567; *Four Masters*, 1566.

[121] Desmond to Sidney, Jan. 4, 1567. Sidney to the Queen, April 20.

[122] Sidney to the Queen, April 20.

[123] *Ibid.*

[124] Sidney to the Queen, April 20, 1567; Sir John Mason to the Privy Council, June 29, 1550, printed by Fraser Tytler.

[125] G. Vaughan to Winter, Dec. 18, 1566, and Jan. 13, 1567; Saintloo to Sidney, Jan. 13 and Feb. 8; Wilsford to Cecil, Feb. 16; Winchester to Sidney, March 26; Privy Council to Sidney, May 12; O’Sullivan Beare, *Hist. Cath.* iii. 5.

[126] The MacDonnells landed May 18; Alexander Oge to Sidney, May 20; Lancaster to Cecil, May 31.

[127] O'Donovan's *Four Masters*; Hill's *MacDonnells of Antrim*, p. 145; Fitzwilliam to Cecil, June 10, 1567; Campion; Hooker; Lancaster to Cecil, May 31.

[128] Ware says he bases on Exchequer accounts his estimate of the cost of the wars with Shane O'Neill. 'It amounted unto 147,407*l.* over and above the cesses laid on the country, and the damage sustained by the subject; and there were no less than 3,500 of her Majesty's soldiers slain by Shane and his party during that time, besides what they slew of the Irish and Scots.' *The Four Masters* say: 'Grievous to the race of Owen, son of Nial, was the death of him who was slain, for Shane O'Neill had been their champion in provincial dignity and in time of danger and prowess.' Campion. Hooker's *Chronicle* in Holinshed.

[129] Lord Chancellor and Council to the Queen, June 28; Winchester to Sidney, July 1; Tirlough Luineach submitted on June 18; the Queen's Letters of Thanks, July 5.

[130] Naunton's *Fragmenta Regalia*; the Queen to Sidney, June 11 and July 6; Cecil to Sidney, June 11.

[131] Desmond to Cecil, June 24; similar letters were sent to the Queen and to the Lord Treasurer Winchester; Fitzsimons to the Lord Deputy, June 26.

[132] Winchester to Sidney, July 17 and Aug. 10; Cecil to Sidney, and the Queen to same, Aug. 20; Fitzwilliam to Cecil, Aug. 22; George Wyse to Cecil, June 20.

[133] Fitzwilliam to Cecil, Sept. 14; Cecil and Winchester to Sidney, July 15; Note of Moneys, Sept. 30.

CHAPTER XXV. 1567 AND 1568.

Sidney went to England in the autumn of 1567, and left the government in the hands of Lord Chancellor Weston and Sir W. Fitzwilliam. The latter bemoaned his hard fate, and declared that his last Lord Justiceship had cost him 2,000*l*. Weston, a painstaking and conscientious man, thought that no one but a soldier was fit to govern Ireland. What the sword had won the sword must maintain, and it was nearly as hard to keep men quiet as to make them so. At the approach of winter the Irish were always ready to rebel. Munster had been pretty quiet since the Lord Deputy's visit in the spring, and the terror of his name had for the time procured a hollow and precarious peace. Six hundred soldiers, with some cruisers, held down the North, but O'Donnell was not a steadfast subject, and it was felt that the garrison was absolutely necessary. Sir Brian MacPhelim was recommended to Elizabeth's favour 'as the man that heretofore hath longest and most constantly stayed on your Majesty's party like a true subject.' We shall see how his services were requited later on. In Leinster the abolition, or rather suspension, of coyne and livery had done wonders, though the Lords still oppressed their own tenants, and thought the veteran brigand Piers Grace was profiting by Shane's absence to collect a new band. Connaught was quiescent, but Clanricarde declared that he was afraid to venture into England lest mischief should arise in his absence. [\[134\]](#)

Sidney goes to England, 1567.

In spite of Desmond's protestations, a royal commission made an award while he was in restraint; his rival also being absent. The commissioners, among whom were the Master of the Rolls, the Solicitor-General, and the Prime Serjeant, declared that Desmond had damaged

Desmond and Ormonde. Award. Desmond and his brother sent to London.

Ormonde to the extent of 20,894*l.* 12*s.* 8*d.*, and that he ought to make good the same. Before this crushing award could take effect an order came from the Queen to send over Desmond and his brother John; but the latter had refused to enter any walled town, and, until he could be caught, the Lords Justices kept the Earl in Dublin. Sir John then changed his tone, and said he would go to England of his own accord; but weeks passed by and the result seemed no nearer. The Lords Justices considered that his disposition was unapt to bite at their bait. They had almost given up hope, when the strong desire to confer with his brother brought Sir John, who did not know what was in store for him, on a voluntary visit to Dublin. Fitzwilliam and Weston considered that he was 'led by God to accomplish her Majesty's command.' Finding himself in the power of the Government he made no resistance, though objecting, not without reason, that Munster would be in a bad way when he and his brother were both absent. There was a difficulty about travelling expenses; for neither had a groat, and Sir John offered to go back to his own country and raise some money. But the Lords Justices avoided the net thus spread in their sight, and sent over the brothers at the Queen's cost. The weather was very bad, and during a night and a day at sea the Earl suffered so much from sickness that Thomas Scott, who was in charge of the prisoners, thought it advisable to land five miles from Beaumaris, at a point to which the wind had driven the ship. So slender was the provision made, that Scott had to borrow money here for the journey southwards. A week later they were at Lichfield, where Sir John fell sick, and made it necessary to halt. Within three days from this they reached London penniless, and the Queen, while directing that money should be raised in Munster, indignantly remarked that it was Desmond's custom to have none, and to borrow from her.^[135]

When Sidney had been some months in England, Cecil drew up an elaborate scheme for the future government of Ireland, which may probably be taken as embodying the joint opinions of these two great men. It is interesting to test their value by the light of subsequent events, but it must not be forgotten that neither Sidney nor Cecil had often their own way for long. The Queen habitually deferred to her Ministers, but when unwilling to do this, she always had her own way, and

Cecil's projects for Ireland.

Ulster.

Munster.

Connaught.

circumstances, which even the strongest cannot always control, will modify the wisest policy. That Cecil understood the question well will hardly be disputed by those who study the document now under consideration. He proposed that a Parliament should be held without delay, which should declare the Crown entitled to Ulster, and provide for its division into shires, after a survey had been made. The great object was to prevent a new local tyranny from being established. Civilised men should be encouraged to settle in the North, especially those of Irish birth, 'for it is supposed that they may better maintain their habitation with less charge than such Englishmen as are mere strangers to the land.' No tenant was to be subject to rent except on condition of full protection. A residence for the Deputy should be provided at Armagh, and in his absence a soldier of rank, if possible the Vice-Treasurer, Marshal, or Master of the Ordnance, was to fill his place, and to govern with the help of a permanent council. It was hoped that the levies which O'Neill formerly commanded might be made available for her Majesty's service. To hold the country there were to be forts at Fathom, near Newry, at Castleblayney, at a bridge to be thrown over the Blackwater between Armagh and Lough Neagh, at a point on the shore of the great lake, and at Toome, near the efflux of the Ban. At Coleraine there was to be a fortified bridge. The coast of Antrim was to be guarded against the Scots by forts at Portrush and at some point between Fair Head and Larne. In the work of protecting Belfast, Lough Carrickfergus was to have the help of a strong post at Bangor. Belfast itself, and a fort at Massareene Abbey, on the eastern shore of Lough Neagh, were to complete the chain. Besides the bridges at Coleraine and Blackwater, it was proposed to throw one over the Erne at Ballyshannon and another over the Foyle at Lifford. Munster was to have a President and Council resident at Dungarvan, the parsonage of which, by a singular provision, was to be attached to the Presidency. A similar government for Connaught was to be placed at Athlone; Galway, Roscommon, and Balla being named as assize towns. Tyrconnel is treated as in some degree separate both from Connaught and from Ulster; O'Connor Sligo being freed from all subjection to O'Donnell, in consideration of his voluntary submission to the Queen, and on condition of his accepting of an estate of inheritance. To bind O'Connor faster, he was allowed to preserve the friary at Sligo, in which his ancestors were buried, substituting secular canons for Dominicans, a condition which was

Tyrconnel.

probably never fulfilled. O'Donnell thought all this very hard measure, observing that no O'Connor had ever served the Crown but by compulsion of his own ancestors. The lands adjoining castles in charge of constables were not to be farmed out, but kept always in hand for their support. Such was Cecil's scheme after the fullest conference with Sidney, and, if we except that matter of Dungarvan parsonage, we must acknowledge that it shows a pretty accurate appreciation of the Irish problem. [\[136\]](#)

The memory of Sidney's prowess and the dread of his return kept down for a time the turbulent elements of Ulster. But every day showed that though Shane was gone, the conditions that had made him formidable were little altered. There were ominous signs of an alliance between Tirlogh Luineach and O'Donnell, who divided the customs of Lough Foyle and the rent of Innishowen between them. Tirlogh still continued his relations with the Scots, and, after his predecessor's example, proposed various marriages for himself, in which he showed a fine contempt for national and other prejudices. James MacDonnell's widow or her daughter, one of the O'Neills, and Sir Nicholas Bagenal's sister-in-law, were among the ladies thus honoured. Bagenal declared that he would rather see his kinswoman burned, though she was promised twenty English men and six English gentlewomen to wait upon her. Tirlogh may not have known this, and perhaps he may have thought Bagenal's alliance as valuable as that of the Scots, or he may merely have been gratifying an innate love of telling lies. He refused a hat set in bugles which Argyle sent him, declaring in the presence of the Marshal's messenger that he had already received a hat from Lady Bagenal which he valued more than all the hats in Scotland. But he was on the best terms with Sorley Boy, who had sworn not to leave Ireland if he could help it. Tirlogh told the Government that he wanted nothing with Argyle but to make him attack the MacDonnells, but he kept 130 Campbells about him; whom he professed to entertain only because they were hostile to the clans who had claims to land in Ireland. He said he would have no mercenaries if only Sir Brian MacPhelim and Art MacBaron would obey him. This was to beg the whole question, but the marriage of his daughter seems to show that he really meant hostility to the MacDonnells. [\[137\]](#)

The O'Neills and
O'Donnells, and the
Scots.

The politics of the Western Highlands at this time are very obscure. It is hard to distinguish between what Argyle did for his own aggrandisement and what he did with really national objects. At Tutbury, a year later, Mary was almost directly charged with causing disaffection in Ireland through Argyle's agency, and she remained silent, which, however, does not prove much. It was obviously for the interest both of the Scottish Crown and of the House of Argyle that Queen Elizabeth should have her hands full in the North of Ireland. Perhaps, after all, Scotch intrigues did less mischief than official quarrels. Piers and Maltby at Carrickfergus pleaded that they had neither ships nor men to guard thirty miles of coast night and day. Tirlogh Luineach had sent to Sir Brian MacPhelim to say that the Queen had determined to root out the O'Neills, whose only chance was to join the Scots. Sir Brian told this to the English officers, protesting his loyalty, but showing no great eagerness to supply them with beef. The soldiers suffered from dysentery and ague, and sometimes from delirious fever, and Piers and Maltby could only temporise. Against the Scots they could do nothing—against the Irish they were not allowed to do anything for fear of quenching the smoking flax. The Lords Justices took no further notice of their complaints than to taunt them for lying within walls instead of in the open fields. Taking little heed of differences among servants Elizabeth, in her queenly way, marvelled that the Scots were suffered to land, and that having landed they were not straightway expelled. If Piers was too weak Fitzwilliam might do it himself. Before her orders arrived, the two captains at Carrickfergus had made a peace with Tirlogh for four months. Both the Lord Justice and his sovereign began to think this new O'Neill as bad as the old one, who, to do him justice, had never encouraged Scots. It was now proposed to send over the young Baron of Dungannon, whose English education might be supposed to have given him a love of order. Hugh O'Neill had indeed studied the strength and the weakness of England at head-quarters, and he was consequently destined to be more formidable than any of his predecessors had been. As to Fitzwilliam, he complained bitterly and with very good reason that the unpunished landing of the Scots was no fault of his. He had not been bred up to arms, and why should he be expected to do better than noblemen of great ability and military knowledge, who had failed still more conspicuously? During more than eight years' banishment he had served the Queen in hated Ireland without

Strength of the
Scots. Weakness of
the Government.

bribery or robbery. The burden of the Treasurer's office weighed him to the ground, and yet he was the poorer for it. He had done his best and could do no more. ^[138]

Under the year 1567 may perhaps be placed the massacre at Mullaghmast, near Athy, where Cosby and Hartpole, assisted by many English and Irish, of whom the majority were Catholics, slaughtered certain of the O'Mores who had been summoned on pretence of being required for service. The defence offered by an annotator of the annalist Dowling is that 'Hartpole excused it that Moris O'More had given villainous words to the breach of his protection.' The received story is that the O'Mores were first enticed into the fort, and there, as the 'Four Masters' put it, 'surrounded on every side by four lines of soldiers and cavalry, who proceeded to shoot and slaughter them without mercy, so that not a single individual escaped by flight or force.' Dowling, who is followed by the 'Four Masters' in giving the date 1577, has been thought the earliest writer to mention this massacre; but the Irish chronicle, now called the 'Annals of Lough Cé,' is more strictly contemporary, and places it under 1567. Dowling, as appears from internal evidence, wrote in or after the year 1600, when Sir George Carew was Lord President of Munster. He was only twenty-three in 1567, while Brian MacDermot, under whose auspices the 'Annals of Lough Cé' were indisputably compiled, was certainly taking an interest in the book as early as 1580. Yet Dowling was Chancellor of Leighlin, little more than twenty miles from Mullaghmast, while MacDermot and the poor scholars whom he employed lived in distant Connaught. Dowling's dates are often wrong, but perhaps his authority is the best for the circumstances, while the others may be right as to the year. The former says forty were killed, the latter seventy-four. Philip O'Sullivan, who published his 'Catholic History' in 1621, makes the number of victims 180, and Dr. Curry, apparently without contemporary authority, calmly raises it to some hundreds. Traditional accounts say the families of Cosby, Piggott, Bowers, Hartpole, Fitzgerald, and Dempsey, of whom the last five were Catholic, were engaged in the massacre; but that little blame attaches in popular estimation to any but the last, who alone were of Celtic race and whose insignificance in later times has been considered a judgment. For us it may suffice to say, with the

Massacre at
Mullaghmast.
Perhaps in 1567.

Lough Cé annalists, ‘that no uglier deed than that was ever committed in Erin.’^[139]

As soon as Desmond and his brother were gone fresh troubles sprung up in Munster. Lady Desmond reported that the county was so impoverished by rapine and by the irregular exactions of the Earl’s people, that it was impossible to raise even the smallest sum for her husband’s necessities. No one was safe, and she herself was continually on the move, trying to ‘appease the foolish fury of their lewd attempts.’ The Earl’s cousin, James Fitzmaurice, and Thomas Roe, his illegitimate brother, were competitors for the leadership. Fitzmaurice claimed to have been appointed by Desmond, though no writing could be produced, and both the Countess and the Commissioners thought him the fittest person. But the Lords Justices ordered the lady to govern with the Bishop of Limerick’s help.

Munster disturbed
in Desmond’s
absence.

Fitzmaurice and Thomas Roe were apprehended in their name, but released on the arrival of a commission to the former under the seals of the Earl and Sir John. The country people would not allow him to go before the Commissioners, saying that Desmond and his brother were hostages enough. Thomas Roe was released on Lords Roche and Power giving their word for him. Fitzmaurice kept very quiet for some time, waiting until he saw how his cousin’s affairs sped in London.^[140]

James Fitzmaurice.

In the meantime there was little peace in the North, though the truce with the Scots gave some breathing time. The well affected, wrote Maltby, gaped for Sidney’s return; the ill affected were ready to break out if once assured that he would return no more. While the coast lay open to the invader, the Queen’s troops languished in poverty and sickness, their horses died for want of provender, and Maltby complained that he had to feed the men at the cost of his own carcass. Lord Louth and his fellow-commissioners kept pouring water into the sieve, but they had neither power nor authority to cure abuses. They gave no satisfaction to the natives, and Tirlogh Luineach steadily declined to come near them.

Little can be done
in Sidney’s absence.

Captain Cheston, who held the post at Glenarm, said his men were faint from want of food. Four pairs of querns in the church were the only means of converting raw corn into meal. There were no women to work them, and the men said they had no skill in grinding. The necessary repairs to the church were done at the captain's own expense. It was dangerous to venture alone even a short way afield; but the monotony of garrison life was occasionally varied by a little cattle driving, which had no tendency to impress the advantages of civilisation on the Celtic barbarians. It had been decided that Tirlogh Luineach should marry James MacDonnell's widow, and that O'Donnell, who was a somewhat younger man, should have the daughter. Captain Thornton with his cruiser failed to intercept the ladies, but succeeded for a time in delaying the weddings. In Maltby's opinion it needed only to fortify the coast, and the conquest of the wicked Irish nation would be but a summer's work. The long period during which Tirlogh Luineach was obliged to pay his Scots impoverished him greatly, and his plundering expeditions among the neighbours were not very successful, but it was Sir Brian MacPhelim and not the English captains who really kept him in check. [\[141\]](#)

Starving soldiers.

Fitzwilliam had blamed Piers and Maltby for not lying in the fields during the winter, but in spite of the Queen's order he delayed his own journey to Ulster till the end of March. Tirlogh Luineach, who could not repress his pride of race, took the highest possible ground, styling himself prince, and declaring that he had only chastised those who were his own subjects. He expected soon to be at the head of 3,000 or 4,000 men, and the English companies were very weak. Fitzwilliam found he could trust no nominal muster, and resolved to count heads himself. A general hosting would be necessary, but for this it would be wiser to wait till Sidney came. So miserable were the arrangements that Fitzwilliam had to leave Carrickfergus for want of victuals. To hasten his departure he was told that his life was in danger, and the monstrous suggestion was made that Maltby, than whom the Queen had no better officer, was in the plot. And thus the early summer passed away, the Lord Justice suffering from dysentery, the soldiers half starving, the captains afraid to trust each other, and the Irish killing and plundering as if there had been no Queen in England. The chiefs who had hitherto remained

Miserable state of the North.

faithful still protested their loyalty, but fled before Fitzwilliam, in the belief that he had come to spoil them. The local Commissioners had denied that he was coming. Finding themselves deceived, they had been forced to make a precipitous retreat in order to place their cattle in safety. The approach of the Governor was a signal for loyal subjects to conceal their property.^[142]

The general course of government during Sidney's absence was not much more successful than that of the outlying provinces. The chief weight of it, especially when Fitzwilliam was in the North, fell upon the Lord Chancellor, an excellent man, and universally respected. His fee of 100*l.* was, as Cecil confessed, notoriously insufficient, and he was expected to eke it out by the revenues of the Deanery of St. Patrick's. His conscience rebelled against this, for no one knew better how little religion and education could afford to lose any part of their endowment. 'Attend at least,' he besought Cecil, 'to the perfectly obedient districts, the less they feel their degradation the more it moveth me to bewail and to name some remedy.' The Archbishop of Dublin had made some stir, but as yet any fruits of the reformation were confined to his cathedrals. Financial matters were in no better case. Vice-Treasurer Fitzwilliam's accounts had not been audited for more than nine years, and the unchecked balance amounted to near 400,000*l.* The soldiers' pay was in arrears, and means were wanting to pay even the most pressing creditors. The ignorance of the common and statute law was as great as that of the Gospel. The old complaints of family alliances among the lawyers were repeated. When we consider that there were no published Acts of Parliament, it is easy to understand how great may have been the power of this privileged class. It was said, and probably with truth, that the Irish nobility often had the judges practically in their pay; and there was little justice to be had by the Crown on the one hand, or by the poor subjects on the other.^[143]

Schemes of reform.
Weston and Sutton.

It does not appear whether Desmond was committed to the Tower on his arrival in London; but he found himself in close confinement there within six weeks, and complained that he was not treated as became his rank. The Queen may have felt doubts about his promise of repayment being fulfilled, but there were better reasons than that for treating him somewhat sternly. Two sons of old O'Connor Faly, who had

Desmond in
London.
Examination of
Irish witnesses.

given so much trouble in past reigns, had been some time prisoners in London. Both were proclaimed traitors, and both admitted that the Earl had harboured them and others in the same legal position. The sworn examination of Cahir throws so much light on the way of life in Ireland that it may well be given entire:—

‘He saith that understanding his brother Cormac to be with the Earl of Desmond, he came into the said Earl’s country to Adare. There he met a boy of his said brother’s who told him he was departed that morning and followed Lysaght MacMorogh O’Connor and his company, with a guide of the Earl’s appointment. Said Cahir forthwith followed, and about four or five miles from Adare met Lysaght and the Earl’s man, and the next morning met his brother Cormac. They all continued with the Earl’s man for a fortnight, resorting to every place within a certain precinct of the country for that time to eat and drink. The names of the places where they were so entertained he remembereth as ensueth. First, from the place where they met they went to a town wherein there is a castle called Ballyvolane, where dwelleth one of the said Desmond’s household, and there they continued two nights. Thence they went to MacAulliffe’s castle, where they remained two days, and from thence, by appointment of the said Earl’s man, they came to Drishane castle, and there continued one night. Thence they went to Pobble O’Keefe, and there continued one night, and thence to MacDonogh’s country, where they stayed two days. Thence they went to the old prior O’Callaghan’s, where they rested one night. And for that the time was expected which was assigned and appointed by the Earl to his man and the said Lysaght to resort to those places as aforesaid, and that the said man, called Teig MacDonnell, durst not resort with them to any place before he had further instructions as commanded from the said Earl, and for that the said Lysaght was the said Earl’s near kinsman, they thought good to send him, with another of their company called Shane O’Moony, to the said Earl’s being at Connigse, Shane MacCragh’s house, to obtain of the said Earl further instructions and licence to spend on the country by way of coyne or other succour. So after the said Lysaght departed, the said Cormac and Cahir, with the residue of their said company, went to a castle called Carrignavar, where they remained a night. Next morning they went to a place where they and the said Lysaght O’Connor did appoint to meet at his return from the said Earl, at which place they met the said Shane O’Moony.

But the said Lysaght stayed with the said Earl, and the said Shane then told them that the Earl's pleasure was that Cormac and Cahir should go with the foresaid Teige MacDonnell, the said Earl's man, to Donogh MacCarthy, and there to remain until after his return from Waterford; and said further that the said Earl of Desmond willed him to tell the said Cormac and Cahir that, if at Waterford he did agree with the Governor he would be a mean for them; and then willed the residue of the said company to resort unto him to attend with the said Lysaght MacMorogh, or the said Desmond. And so they continued with the said Earl until he went into Sir Maurice Fitzgerald's country, where then, at the conflict between the Earls of Ormonde and Desmond, the said Lysaght MacMorogh O'Connor was slain. Art O'Connor, brother to Gerot MacShane, was killed also. Connor MacCormac O'Connor was hurt and escaped, and divers others slain. During which time the said Cormac and Cahir continued at Donogh MacCarthy's aforesaid, as they were willed to do until such time as they heard of the overthrow given to the said Earl of Desmond, and then they departed the said Donogh MacCarthy's house and also gave over the said Earl's man. Thence they went to MacCarthy More's country, where Cahir departed from his brother Cormac and returned to O'Sullivan's country, the said Cahir having occasion there to speak with some of his kindred. And from thence the said Cahir followed his brother Cormac to O'Connor Kerry's country, where it was told Cahir by O'Connor Kerry that his said brother Cormac was departed towards John of Desmond. Two nights after Cahir, in company with Teige MacMorogh, the chiefest of the proclaimed traitors of the O'Briens, went from the said O'Connor's house to John of Desmond to meet his said brother Cormac, which was then, as he learned, gone to Thomond. Afterwards he returned to the Earl of Desmond's country, and at Askeaton the said Cahir sent one Teige Roe O'Meagher, then attendant about the said John, to the said John to show him the said Cahir's brother was gone to Thomond, and that the said Cahir was willing and desirous to tarry in Sir John's company until his brother returned from Thomond, which would not be for a sevensnight. The said Sir John sent word by Teige O'Meagher that Cahir was welcome, and willed him to continue in his company and keep his name secret and private. The said Cahir willed the messenger to tell Sir John that he named himself by a contrary name, that is to say, MacQuillin's son of the Route, who was banished by the Scots. And so in the said Sir John's company he continued

for a week or thereabouts, and for that the said Cormac came not, the foresaid Cahir followed him into Thomond.’^[144]

Desmond did not deny that he had given meat and drink to some proclaimed traitors, but pleaded that Irish hospitality could scarcely do less, and that he had never helped them to do any harm. He maintained stiffly that he had authority to rule all Munster Geraldines, and to decide their causes without any regard to sheriffs. Sir Maurice Fitzgerald, evidence of whose tenure from the Crown was recorded in the Exchequer, protested energetically against this theory. A long list of outrages in Munster was charged against the Earl, and mention was made of a little friar who had been a messenger between him and the O’Neills, and who had been found begging in their camp after Shane’s death. Finding that the case was likely to go against them, and feeling that they were in the lion’s mouth, the Earl and his brother thought it wise to make a general surrender of all their lands into her Majesty’s hands; and Desmond even brought himself to beg that she would place a President and Council in Munster. So far as law went, Elizabeth now had Munster at her mercy, but she kept fast hold on her prisoners until time should declare how far the law coincided with the facts.^[145]

Desmond’s own case.

The leader of the Northern Geraldines, who had, perhaps, no fancy either for the Tower or for a renewed exile, had his accusers at this time, and later events tend to prove that they were not without justification. In 1534 it had been David Sutton, a Kildare gentleman of ancient race, who had led the attack on the ninth Earl of Kildare, and laid bare the many abuses of his rule. ‘The office of belling the cat,’ says a modern writer, ‘descended hereditarily to Oliver Sutton,’ who attacked his grandson and namesake. In 1565 he presented to the Queen articles containing matters of the gravest importance against Kildare. He had previously complained to Arnold, but that despotic proconsul was submissive to the Earl, and imprisoned the unfortunate reformer for sixteen weeks. In fear of his life, Sutton was obliged to quit his lands and to hide from the local tyrant’s rage in Dublin or England. Arnold was confessedly a reformer himself, and, except from partiality to Kildare, it is hard to see why he treated Sutton so harshly, while listening with excessive credulity to all Bermingham’s representations. Coyne and livery in their most oppressive forms and every kindred exaction were charged

Kildare. Oliver Sutton.

against the Earl. The bastard Geraldines and Keatings were supported by him, even when openly resisting the Queen's troops. They boasted that the Earl, and not the English power, really defended the country, and that there would be no quiet until he became chief Governor. Pride of blood made them wish to enslave all others, and 'the daily exclamations of the poor were right sorrowful to hear.' The Queen, having heard Sutton herself and read his reports, sent him back to Ireland, of which Sidney had assumed the government, observing that they touched Kildare too directly, and that she was loth to believe evil of her cousin until it could be proved. Yet she was evidently strongly impressed, and gave orders for Sutton's personal protection. The inquiry dragged on for more than two years, Sutton reiterating his charges and Kildare thwarting him in various ways. The Earl's service, he said, had all been at the Queen's expense, for he received the pay of 300 men, which he made the country support. Jobbing was universal, and no one was more concerned in maintaining the system than Kildare. Yet Sutton's heart began to sink: he complained that he was too poor to strive with the powerful Earl, and that all his exertions had but served to excite his vengeance. He probably failed to prove his whole case, but Sidney was directed to make particular inquiry, and not to discourage Sutton. Yet he too was evidently prejudiced in the Earl's favour, and recommended him for a garter. In this he relied on the authority of Henry VII., 'who made his grandfather knight and wist full well what he did'—an ominous precedent and an argument unworthy of Sidney. Cecil evidently believed in Sutton, and begged Sidney to befriend him, even if in some degree deserving of blame. That he was not altogether ruined is shown by his appearance in 1571 as plaintiff in a successful Chancery suit; but he failed in making any serious impression on Kildare's position. ^[146]

It was at this critical period that the English Government thought fit to allow an enterprise, the success of which was enough to make the great mass of Irish and Anglo-Irish landlords shake in their shoes. The adventurer was Sir Peter Carew, of Mohuns Ottery in Devon, who, at the age of fifty-four, set himself a task more arduous than any which had yet occupied his stormy and eventful life.

Sir Peter Carew.

In his case it was more than commonly true that the boy was the father of the man. When only twelve the citizen of Exeter, with whom he lodged, pursued him during

His early life.

one of his many absences from school, and found him on the city walls. 'Running to take him, the boy climbed upon the top of one of the highest garrets of a turret of the said wall, and would not for any request come down, saying, moreover, to his host that if he did press too fast upon him he would surely cast himself down headlong over the wall, "and then," saith he, "I shall break my neck, and thou shalt be hanged because thou makest me to leap down."' His father was sent for, and ordered the boy to be led home in a leash. Afterwards he coupled him for some time to a hound. Further endeavours failed to make 'young Peter to smell to a book, or to like of any schooling,' and he was allowed to accompany a friend who had a post about the embassy at Paris, and who neglected him shamefully. He afterwards lived as a horse-boy in a French nobleman's train, without any inquiry being made by his affectionate parents. While yet a boy he fought at the siege of Pavia, changed sides opportunely, and served Philibert of Orange till that prince's death. The Princess, after a time, gave him a letter of recommendation to Henry VIII. 'The young gentleman,' says his biographer, '... rode to Mohuns Ottery, where his father dwelled, and understanding his father and mother to be within, went into the house without further delay, and finding them sitting together in a parlour, forthwith in most humble manner kneeled before them and asked their blessing, and therewith presented the Princess of Orange's letters.... They were much astounded, ... but Sir William having read the Princess's letters, and being persuaded that he was his son Peter, were not a little joyful, but received him with all gladness, and also welcomed the gentlemen, whom he and his wife entertained in the best manner they could.'

After this Carew was employed on every kind of service, in Scotland, Turkey, Italy, Flanders, France; his admirable mastery of the French language and his skill on horseback with the sword and with the lance making him everywhere remarkable. Henry VIII. helped him to a rich wife, but died before the marriage, which was celebrated on Edward VI.'s coronation day, when the bridegroom, as one of the six challengers, 'like Ulysses in honour of his Penelope, wore her sleeve upon his head-piece, and acquitted himself very honourably.' Like Ulysses, too, when he had gained his Penelope, Carew 'could not rest from travel.' He helped to put down the anti-Protestant rising in the West, and on the King's death hastened to proclaim his Catholic

His adventures.

sister. But life, either at Mohuns Ottery or at his wife's place in Lincolnshire, was too safe and too dull for the old campaigner. He became involved in Wyatt's conspiracy, and had to fly to Antwerp, where he was seized by Philip's myrmidons, and had the adventure in Sir John Cheke's company which has already been mentioned.

At Elizabeth's accession Carew was received into favour, but that peculiar Court did not suit his humour, and he offended Gloriana by joining the ranks of those who urged her to marry. Her resentment was not very long or deep, and she 'gave him very good things, which were as liberally, if not wastefully, consumed.' In 1560 he was sent on a confidential mission to Scotland, where the dissensions of Norfolk and Grey, and her Majesty's own double dealing, threatened disaster to the English arms. Fearing to trust anyone, he was obliged to write his own letters with a hand more used to the sword than the pen. On his return Elizabeth acknowledged his good service, and 'being somewhat pleasant with him, thanked him for his letters of his own penning, commending him to be a very good secretary, for indeed he wrote them with no more pain than she had labour to read them, for as he spent a night in writing, so she spent a whole night in reading.'

Carew in favour
with Elizabeth.

[147]

A country life can seldom satisfy a man of action, even though he be reckoned 'the wisest justice on the banks of Trent,' and Carew found it very dull in Devonshire. To beguile the time, and having some vague inkling of castles in Ireland, he ransacked the archives at Mohuns Ottery, and found many parchments which he was unable to read. His curiosity increasing daily, he sought the aid of John Hooker, Chamberlain of Exeter, who loved records as much as Mr. Welbore Ellis loved Blue-books. This eminent antiquary had for his nephew the famous Richard Hooker, and to his learned uncle the great author of the 'Ecclesiastical Polity' owed his University education and the patronage of Bishop Jewell. To Hooker's eye the value of Carew's parchments was at once apparent, and he succeeded in making a fair transcript, though the oldest document had been trodden under foot and nearly obliterated. Sir Peter, being satisfied of his descent from men who had held great possessions in Ireland, went to the Queen and asked leave to recover his own. This was but too readily granted, and orders were sent from her Majesty in Council requiring the help of all royal officers in

Carew's claims to
property in Ireland.

Ireland. Hooker was straightway despatched thither, and his arrival caused a commotion which might have disheartened anyone less determined than his employer. He obtained leave to search the Dublin archives, and proved to his own satisfaction that Sir Peter was entitled to the Barony of Idrone in Leinster, to certain great seignories in Munster, and to Duleek and other manors in Meath, ‘and that nothing could be found to prejudice or impeach his title, but only prescription, which in that land holdeth not.’^[148]

Sir Peter claimed a vast inheritance in Munster as heir to the conqueror Robert FitzStephen, whose only daughter was supposed to have married a Carew. Unfortunately for this theory Giraldus twice states in the plainest language that FitzStephen had no legitimate offspring, and it is hard to see how his testimony can possibly be shaken on such a point. Carew may perhaps have married his natural daughter, but that would give him no title at all under the grant of Henry II.; and his claims over the vast region between Lismore and St. Brandon’s Head in Kerry may therefore be dismissed. That the Carews did, however, by some means become possessed of much land in Munster is none the less clear. There was a Marquis Carew who, at some period before the accession of Henry IV., had a revenue of 2,200*l.* in the county of Cork, besides the possession and profits of Dursey and other havens there. The Carews seem to have left Ireland altogether in the time of Richard II., so that in any case there was a prescription of 170 years against Sir Peter. The English heralds manufactured a pedigree for him ‘in colours very orderly,’ bringing down his title from FitzStephen’s mythical daughter: and had not political considerations stood in the way, it is probable that his title would have been admitted by the Crown.^[149]

A prescription of
170 years against
Carew.

Hooker took a house in Dublin for his principal, and warned him that most things would have to be brought from England, and that it was difficult to raise even 20*l.* in the Irish capital. The raw material of good housekeeping—fish, flesh, and fowl—was to be had; but sugar and spices, a steward, a cook, a physician, and a surgeon, would all have to be imported. These preparations being at last completed, Carew set sail from Ilfracombe, and landed at Waterford, whither Hooker lost no time in repairing. Thither also came two other men of Devon, Thomas Stukeley, at this time

Carew comes to
Ireland and claims
Idrone.

Constable of Leighlin, the stormy petrel of Elizabeth's time, and Henry Davells, afterwards the victim of a frightful tragedy. Both professed themselves anxious to help their countryman in his attempt to recover the Barony of Idrone in Carlow, which had formerly belonged to his family, and which Hooker had already inspected. Davells and Stukeley accompanied Carew to Leighlin, where the latter entertained him, and where he received several chieftains of the Kavanaghs, which clan had been in possession of Idrone since Richard II.'s day at least. Sir Peter informed them that he was their lord, and was come to claim his own, 'which speeches were not so hard unto them but they more hardly digested them.'^[150]

Having so far advanced his claim to Idrone, Carew repaired to Dublin, where he kept open house pending Sidney's arrival. His claim was naturally the general subject of conversation, and an old lady professed to see in his coming the fulfilment of a prophecy that the dead should rise again. He decided to make his first serious attack in Meath upon the manor of Maston, held by Sir Christopher Cheevers, a gentleman of old family, and connected with the principal people of the Pale and the principal lawyers in Dublin. But one Irish barrister could be got to take his brief, and it seems that he afterwards threw it up, for an Exeter man, William Peryam, of the Middle Temple, afterwards Chief Baron, was brought over specially for the occasion. A Bill was filed before the Lord Deputy and Council, but the common lawyers retained by Cheevers advised that the suit could not be maintained there. Peryam rested his case on naked prerogative, and the two Chief Justices gave a private opinion in his favour, on the ground that Carew could have no fair trial at law. Sir Christopher had no chance of a fair trial before the Council, and was therefore fain to compromise the case. The weight of documentary evidence, a prescription of at least 170 years being allowed no weight at all, seems to have been on Sir Peter's side, and Cheevers offered him eighteen years' purchase for the lands in dispute. Carew voluntarily offered them for fifteen, and he did not insist even on this. Cheevers seems to have worked on his generosity by talking of his wife and children, and in the end had 'the whole land released unto him almost for nothing, saving a drinking nut of silver worth about 20*l.*, and three or four horses worth about 30*l.*' Carew's adventurous nature may have been satisfied with the honours of war, or he may have thought it good

The Council allow
Carew's claim in
the Cheevers case.

policy to make friends in Dublin before embarking on the greater undertakings which he had in view.^[151]

The ruling in the Cheevers case governed the others, and, Sidney having returned to his government, the Council assumed the power of dealing with Idrone.

Carew is adjudged entitled to Idrone.

Three of the Kavanaghs appeared, but they had, of course, no documentary evidence to advance against Sir Peter, who was adjudged the heir of Dygon, Baron of Idrone in the early part of the fourteenth century. Prescription being again altogether ignored, it was assumed as incontestable that Eva's marriage with Strongbow had carried the fee of Leinster with it. The Kavanaghs, descendants of the royal tribe, and by Irish law rightful owners of the land, were held common rebels and trespassers, and were strictly enjoined to allow Carew quiet possession. That the Crown had over and over again negotiated with the Kavanaghs, and had twice created baronies in their blood, was passed over as of no consequence. Most of the Kavanaghs bowed to fate, and accepted Carew as their landlord. The earth tillers had to pay him rent, but were not otherwise dissatisfied with him, for he maintained order in the district, and by the establishment of courts baron provided for the due course of local justice. But his name stank in the nostrils of those who had been accustomed to fish in troubled waters, the kernes and idlemen of Wexford and Carlow; and they watched for an opportunity to rid themselves of this old man of the sea. They were not long in finding a leader.^[152]

About the time that Desmond was making his submission in London, James Fitzmaurice broke out in Kerry, having strengthened his usual band by enlisting malcontents from Limerick, Tipperary, and Cork. He began by taking 200 cows from Lord Fitzmaurice, wasting his country, and sitting down before his castle of Lixnaw, though straightly charged by the Lord Justice not to enter Clanmaurice. The cattle, he said, were but security for rent, the other damages were in return for those which the Lord of Lixnaw had previously committed in Desmond. Causes of quarrel were sure to be plentiful enough, and Lord Fitzmaurice had brought his wild Irish friends from beyond the Shannon, so that perhaps there was not much to choose between them. A battle followed, in which James Fitzmaurice was defeated. At least 300 lives were lost, and the sons of O'Callaghan, the

James Fitzmaurice supreme in the Desmond country.

White Knight, and others of his followers were taken. Finding himself too weak to do much without help, the Desmond leader sought allies both in and out of Ireland, living by plunder in the meantime, and totally disregarding all letters from the Government.^[153]

On the very day that Sidney landed the Lords Justices wrote most gloomily of the political prospect. Tirlogh Luineach was in open rebellion; he had spoiled part of Louth, and it was thought fortunate that he had escaped, for he was in such force that had he turned upon Lord Louth and his party he would probably have beaten them. On all sides troubles were brewing; the Exchequer was empty, the army weak, and the dark nights which the Irish loved were coming on fast. But the greatest danger of all came from a quarter whence governors were accustomed to look for support only. The House of Ormonde itself seemed to have changed its nature; the rod upon which every Viceroy had leaned threatened to pierce the hand at last. Edward Butler, the Earl's younger brother, was a turbulent and hot-headed youth. In the chief's absence another brother, Sir Edmund, had the care of his country, but he was unable, and perhaps unwilling, to keep Edward properly in check. MacBrien Arra, the chief of a clan which in the later Middle Ages had wrested part of Tipperary from the Butlers, appears to have been at this time peaceable and loyal, looking only to the Government for protection against his greater neighbours. Edward Butler probably thought him fair game, and invaded Arra with 1,000 men, horse, foot, and camp followers—desperadoes apparently of the worst character. According to ancient Irish custom all movable property was stored in two churches, and thither the frightened women fled in the vain hope of sanctuary. The country was harried far and wide. The churches were broken open, and for forty-eight hours the invaders plundered and ravished, sparing neither age nor condition. The lately gathered corn was destroyed, and famine stared the whole population in the face. 'As for me, my good lords, I do not a little marvel of such deeds and facts,' said MacBrien, 'true subjects robbed and spoiled daily, and poor tenants driven to beg their bread, banished from their dwellings, and notable malefactors succoured and maintained, contrary to the Queen's Majesty's good laws; assuring your honours, since Shane O'Neill died, there is not the like maintainer of rebels as Mr. Edward is; and although Sir Edmund doth say that he cannot rule Mr. Edward of his

The Butlers oppose Carew. MacBrien Arra.

riotous doings, it is but a saying, and not true.' He desired redress, or leave to revenge himself, and he went to Dublin to urge his suit. The result was not altogether encouraging; for in his absence Edward Butler visited his country a second time, killed his uncle, drove off his cattle, and burned a house full of women and children. Wearied with continual outrages, his wife wrote to beg that he would take a farm in the Pale, where there might be some chance of a quiet life. 'When men go to England,' she said, 'or to Dublin, where the law is ministered, those who remain behind spoil them the more.'^[154]

After his first attack on MacBrien, Edward Butler wandered away into the King's County. There was a standing dispute between the O'Carrolls and the Butlers, the latter alleging that Ely was part of Tipperary, the former that it belonged to the more lately formed shire and was consequently outside Ormonde's palatinate jurisdiction. Thady O'Carroll, one of the chief's three sons, had married a Galway lady, and on his way towards the Shannon to visit his father-in-law was unlucky enough to come across Edward Butler's band. O'Carroll had but a few men with him, and it is therefore not at all likely that he was the assailant in the skirmish which followed, and in which he was taken prisoner. As to the previous quarrels, which Butler alleged as a reason for keeping armed men, the Lords Justices seem to have thought there was much to be said on both sides, but they charged Butler to appear before them at once, and warned him of the danger of taking the law into his own hands. Sir William O'Carroll was also summoned, but neither were in any hurry to obey, and the matter was quite unsettled when Sidney landed at Carrickfergus.^[155]

Butlers and
O'Carrolls.

FOOTNOTES:

^[134] Weston to the Queen, Oct. 8; Lords Justices to the Queen, Oct. 30; same to Cecil, Oct. 30 and 31; Weston to Cecil, Oct. 8; Earl of Clanricarde to the Queen, Oct. 22.

^[135] Lords Justices to the Queen, Dec. 12; Thos. Scott to Cecil, Dec. 14 and 21; Queen to Lords Justices, Dec. 24; Lords Justices to Cecil, Nov. 23; Fitzwilliam to Cecil, Nov. 27. The award of Draycott, M. R., Nugent, S. G., and Serjeant Finglas, is printed from a MS. at Kilkenny, in the *Irish Archaeological Journal*, 1st series, iii. 341.

[136] Memorial by Cecil, Dec. 22, 1567; Indenture between the Queen and O'Connor Sligo, Jan. 20, 1568; the Queen to the Lords Justices, Jan. 25; Hugh O'Donnell to the Lords Justices, March 26.

[137] Tirlogh Luineach to the Lords Justices, Nov. 24, 1567; to Piers, Jan. 20, and to Bagenal, Jan. 17, 1568; Bagenal to the Lords Justices, Feb. 5 and Dec. 2, 1567. Tirlogh calls the Campbells Clan Veginbhne and Clan Meginbhne, names which puzzle me. Argyle he calls 'Dominus Machali comes de Argyle.' Terence Danyell to the Lords Justices, Dec. 10, 1567

[138] Gregory's *Western Highlands*, new ed. pp. 203, *sqq.* Sir Nicholas White's conversation with Mary in his letter to Cecil, Feb. 29, 1569 (in Wright's *Queen Elizabeth*); Piers and Maltby to Sidney, Oct. 6, 1567, and to the Lords Justices, Nov. 18 and Dec. 6; the Queen to the Lords Justices, Dec. 10 and 24; Fitzwilliam to the Queen, Jan. 22, 1568; and to Cecil, Dec. 20, 1567. Peace was granted to Sorley Boy on Dec. 20.

[139] Many of the authorities are collected by O'Donovan in his note to the *Four Masters*, 1577. It is not clear that the quotation from Captain Lee's *Brief Declaration*, which was printed by Curry from a MS. in Trinity College, Dublin, refers to this transaction at all. O'Donovan did not know of the entry in the *Lough Cé Annals*; he points out that Curry only seems to have relied on Moryson's authority. In his curious memoir on Ireland it is evident that O'Connell copied Curry without even consulting Moryson: he held a great 'repeal' meeting at Mullaghmast. I have found no reference to the massacre in any State paper. The following is Dowling's entry:—'Moris ... cum 40 hominibus de sua familia, post confederationem suam cum Rory O'More et super quadam protectione, interfectus fuit apud Molaghmastyn in comitatu Kildarie, ad eundem locum ad id propositum per Magistrum Cosby et Robertum Hartpole, sub umbra servitii accersitus collusorie.'

[140] Lady Desmond to the Commissioners in Munster, Jan. 13, 1568; to the Lords Justices, March 19. Bishop of Meath and others to the Lords Justices, Feb. 1; Lords Justices to the Queen, March 23.

[141] Maltby to Cecil, Feb. 12 and March 19; to Sidney, Feb. 13; to the Lords Justices, March 6 and 18. Cheston to Piers and Maltby, April 3. Randal Oge to Fitzwilliam, April 7; Hill's *MacDonnells*, pp. 148-151.

[142] Tirlogh Luineach O'Neill to Lord Justice Fitzwilliam, April 16, and the answer of the same date. Fitzwilliam to Cecil, April 21, May 8, and May 26; to Weston, April 23. Bagenal to Sidney, May 3; Sir Brian MacPhelim O'Neill and others to the Queen, June 4; they call Elizabeth 'auxilium et juvamen,' and acknowledge themselves 'rudes et silvestres et naturali superstitioni dediti.' O'Neill styled himself 'Princeps.'

[143] Memorandum by Oliver Sutton, March 26; Loftus to Cecil, Jan. 25; Fitzwilliam to same, March 25; Weston to same, April 3.

[144] Examination of Cahir O'Connor, Jan. 8, 1568. A note in Cecil's hand says: 'All the foresaid O'Connors that were slain aforementioned were of the company of this examine and proclaimed rebels.' See Desmond to Cecil, Feb.

8 and 12, 1568; and the Queen to the Lord Deputy, April 3, 1567. Cormac O'Connor was also examined; his evidence agreeing pretty well with Cahir's.

[145] Submissions of the two Desmonds, Feb. 16 and 17; Interrogatories for Desmond, Feb. 20; Information, &c., Feb. (No. 60); Sir M. Fitzgerald to Cecil, March 15.

[146] Notes by Sutton, Feb. 23, 1568; Cecil to Sidney, Nov. 19, 1568; Graves's *Presentments*, pp. 159 and 176; Morrin's *Patent Rolls*, ii. p. 256.

[147] Hooker's *Life of Sir Peter Carew* is printed as an appendix to the preface of vol. i. of the Carew MSS. It is a delightful book.

[148] *Life of Sir Peter Carew*; Walton's *Life of Hooker*; Ware's *Writers of Ireland*.

[149] Petition of the inhabitants of Cork in Graves's *Presentments*; Hooker's *Life of Sir P. Carew*; Campion; Thomas Wadding to Sir George Carew, March 12, 1603, in *Carew*. In Maclean's edition of Hooker's *Life* is a list of the Munster lands claimed by Carew. It comprises the greater part of Cork and Kerry, and a part of Waterford. It was computed that the actual holders of these lands in the sixteenth century could bring 3,000 men into the field. The Carews claim descent from Nesta's son William, who was brother to Maurice Fitzgerald, half-brother to FitzStephen, and uncle to Giraldus Cambrensis. Wadding was a lawyer, who had thoroughly studied the whole matter.

[150] *Life*, as above; Hooker to Carew, May 26, 1568.

[151] Hooker's *Life of Sir P. Carew*; Carew to Cecil, Dec. 26, 1568.

[152] Morrin's *Patent Rolls*, Dec. 7, 1568. See the Carew pedigree printed by Maclean.

[153] James Fitzmaurice to the Lords Justices, July 27; Lord Fitzmaurice to same, Aug. 1; Sir Maurice Fitzgerald to same, July 29; Fitzwilliam to Cecil, Sept. 5.

[154] MacBrien Arra to the Lords Justices, Sept. 9, 1568. He calls Butler's camp followers 'slaves.' More Ny Carroll to her husband MacBrien Arra, Nov. 12.

[155] Lords Justices to the Queen, Oct. 8, with the enclosures.

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CHAPTER XXVI. FROM 1568 TO 1570.

Sidney lost no time in trying to realise his idea of bridling the North with forts and bridges. He surveyed Clandeboyne and Ards, and declared them the shire of Carrickfergus—an arrangement afterwards departed from. He met Tirlogh Luineach at the Bann, and thought him inclined to obey. The various castles already garrisoned he found in good order, the people readily selling the soldiers a fat cow for 6s. 8d. and twenty-four eggs for 1d. In Carrickfergus a good market was kept twice a week, to which commodities were brought from the Pale, from Scotland and Man, and even from France. Three 40-ton cargoes of claret were sold at nine cowskins a hogshead. ‘The Archbishop of Armagh and the Bishop of Meath, with divers noblemen and gentlemen as well of England as the English Pale, lawyers, merchants, and others came from Dublin to Carrickfergus, only for visitation sake, the Bishops riding in their rochets, and the rest unarmed.’ A treaty was made with Sir Brian MacPhelim to build a proper carriage bridge over the Laggan at Belfast, to cut passes through the woods, to supply fuel for making bricks, and to protect men building or repairing ships in the Lough. On his road to Dublin most of the chiefs and gentlemen came to pay their respects to the Lord Deputy.^[156]

Sidney’s plans for
Ulster.

Sidney believed that all Ulster difficulties originated in Scotland. Argyle did not pretend to be guided by any rule but the good of his own country, and he had 5,000 men always ready to invade Ireland if he did not approve of Elizabeth’s policy. He loved Sidney, he said, better than any other Viceroy, and for that reason would rather see him anywhere than in Ulster. Sir Francis Knollys was Scotland’s bitterest enemy, but he would willingly put him in Sidney’s

The Scots.

place, where he could do far less harm than at Court. Lord Herries was not even careful to use civil language. James MacDonnell's widow professed herself friendly, but said the clan would never forego its Irish claims until it was quite extinct. Donnell Gorm, born in Ireland and friendly to England, claimed the lordship of the Isles, and was in alliance with the Campbells—a reluctant tie which might easily be cut. His ancestors had a pension of 200*l.* from England, and its renewal would be money well spent. Rathlin Island, which was full of cattle—the very stable and baiting-place of the Scots—should be fortified and held, and this might be done for 300*l.* a year. A regular military occupation of the whole province would be intolerably costly, but half a dozen strong places on the coast might be provided for 2,000*l.* yearly. A town at Armagh and a bridge at Blackwater were quite necessary. In the meantime Dundalk Bridge might be repaired, and Bagenal's unfurnished castles at Newry, Carlingford, and Greencastle might be made tenable for 2,000*l.* If the Scots were once disposed of, it would be easy to govern Ireland; the O'Neills would then be shut up in their own province, and would have to work or to starve. [\[157\]](#)

When James Fitzmaurice found that Sidney had not brought either the Earl or Sir John of Desmond with him, he called a meeting of Geraldines, and informed them that their chief and his brother were condemned to death, or at least to perpetual imprisonment. He reminded them that when the good Earl Thomas had been murdered by the tyrant Earl of Worcester his followers had chosen a captain for themselves, and he advised a like course. He was immediately chosen by acclamation, and unhesitatingly accepted the position in spite of Sidney's threats. He was soon afterwards proclaimed a traitor. The wise Earl of Clancare, as Shane O'Neill had in derision called him, placed himself about the same time at the head of a Celtic confederacy, plundered Lord Roche's country, drove off the cattle, burned the sheep and the corn, and killed men, women, and children. Neither wheat nor oats were to be had for love or money west of Youghal: the combined result of drought from heaven and heat from the Earl of Clancare. Spanish ships supplied the MacCarthies with arms. Edward Butler told Sidney's messenger, who found him at Thurles with 1,000 men, that no man of Irish birth could be safe since Sir John of Desmond had been sent to the Tower for little or nothing. He knew that he himself had deeply offended his

James Fitzmaurice.
The Butlers.

brother the Earl, and was therefore afraid of Sir Edmund, who had also 1,000 men with him. 'Your secret conference, brother,' he said in the messenger's presence, 'hath brought me to this mischief.' To Dublin he refused to go without pardon or protection, and Shane O'Neill hardly claimed more, even in his proudest days.

The presence of Ormonde alone could settle his country, and he, in Sidney's opinion, 'politically kept himself in England, as well for duty's sake to the Queen as ancient and innate malice to the Earl of Desmond and all Desmondians.' Sir Edmund could not brook the notion of dismissing his armed followers, and, as he himself expressed it, 'riding up and down the country like a priest.' No brother or lieutenant was of any use, and if Ormonde would not come Sidney would have to go himself; and he begged for a strongly-worded letter to show to the people. The report was that he was not allowed to interfere with the Butler districts, and indeed he was loth to do so, knowing that the Earl bore him little goodwill, and that he had the Queen's ear. 'Though never so upright,' he said, 'I shall not escape slander.'^[158]

Ormonde's presence declared indispensable.

Both Butlers continued their lawless practices; indeed, Lady Dunboyne, who was a chief sufferer, declared that Edward was 'but a patch to Sir Edmund in extortion and spoil.' He threatened her with yet worse things for having brought Sidney's letters to him; and in the meantime seized her cattle, nominally for the purpose of maintaining himself against the White Knight, with whom he had picked a quarrel to give an excuse for keeping his ragged battalion together. Ormonde still lingering in England, the Lord Deputy was obliged to go to Kilkenny himself, where he hanged several of Edward Butler's men, not by martial law, as Sir Peter Carew proudly pointed out, but 'by the verdict of twelve men orderly.' A similar example was made at Waterford, and Sidney returned to Dublin to make preparations for holding a Parliament, in which he secured a majority by interfering in elections.^[159]

Lawless conduct of Ormonde's brethren.

No list has been preserved of the members who sat in either House of Elizabeth's second Irish Parliament. Many Englishmen had, by Government influence, been

Parliament of 1569. Opposition to

returned for remote places. Sidney, who had a taste for heraldic pomp, was in some anxiety as to what dress he ought to wear. He was told to do as St. Leger had done. If he could not find whether St. Leger had used a garter or a Parliament robe, he might do as he pleased. Princely robes of crimson velvet lined with ermine were provided in due course, and the Lord Deputy took his seat under the cloth of estate. Lord Chancellor Weston made an eloquent speech on the advantages of law and order. The House then separated, and James Stanihurst, Recorder of Dublin, was again chosen Speaker of the House of Commons by a large majority over Sir Christopher Barnewall, who was also a lawyer and the candidate favoured by the gentlemen of the Pale. After the usual protestations of unfitness, Stanihurst was accepted by Sidney, and made a speech in which he claimed personal inviolability for the members, freedom of speech, and power for the House to punish breaches of its own orders. The Lord Deputy, having granted these suits, addressed the whole Parliament at great length. None knew better, he said, than those in Ireland the advantages of law and order; let them act according to that knowledge, and be careful lest in defending their own privileges they should tread upon her Majesty's prerogative. On the following day business began, and it soon appeared that the House of Commons was divided into two parties bitterly hostile to each other. The Court, or English party, consisted chiefly of officials and of the Lord Deputy's nominees, men who might be trusted not to exhibit too much independence. On the other side were the gentry of the Pale, the burgesses returned by the old corporate towns, and the common lawyers generally, who had been roughly handled by Sidney in Sir Peter Carew's case, and who asserted that some of the English members were returned for towns not incorporated, that sheriffs and mayors had returned themselves, and that others were ignorant of their constituencies and non-resident. The Judges held that the first and second objections were good, but that there was nothing in the third. The Attorney-General having reported this decision, which still left the Government a majority, the Irish party professed not to believe him, and demanded that the Judges themselves should come down. The Speaker called for the orders of the day, but the malcontents refused to listen to the first readings of any bills. Next day the Judges came and confirmed their former decision, but the Irish party, headed by Sir Edmund Butler, still obstructed the business, and opposed the introduction of a Bill for suspending Poyning's Law and allowing Bills to

Government.

proceed without being first certified under the Great Seal of England. This Bill was obviously for the enlargement of their own jurisdiction, and passed in the end, as did another which provided that the Great Seal of Ireland should not be affixed to any further Suspension Bill until it had been passed by the majority of both Irish Houses. After some days spent in these bickerings, Hooker, who sat for Athenry—an ancient borough certainly, but at this time containing only four freeholders—made a long prerogative speech. He had formerly represented Exeter and had a taste for antiquities, and he proved to his own entire satisfaction that Moses and Pythagoras, Camillus and Mithridates, had created precedents on his side of the question. ‘The minority,’ he says, ‘did not hear the same so attentively as they did digest it most unquietly.’ The debate was adjourned, and Hooker had to be escorted by his friends to Sir Peter Carew’s house. The next day Sir Christopher Barnewall and other lawyers inveighed against Hooker, but the Speaker silenced them, and desired them to put their complaints into writing. Hooker, who says that the proceedings were more like bear-baiting than the deliberations of a Senate, then presented a treatise on the Order of Parliament, which closely followed English precedents, and asserted the power of the Speaker to hold members to the question, and to reform, correct, and punish disorder with the advice of the House. The contest was not renewed, and after the first fortnight matters settled down considerably.

[160]

Sir Edmund Butler was openly censured by Sidney in the Council Chamber, and withdrew in high dudgeon to his own country. The House of Lords showed a mutinous spirit as well as the Commons. The Gentleman

Legislation.
Attainder of Shane
O’Neill.

Usher seems to have occupied a position within the bar, and this being objected to, Sidney withdrew the cloth of State, but it does not appear that the punishment weighed very heavily on the delinquents. Several Acts of great political importance were passed. A subsidy of 13s. 4d. on every plough land was granted for ten years in consideration of the abolition of coyne and livery. This was for the public benefit, but was very displeasing to many noblemen. The five principal men of each shire were made responsible for the rest, Shane O’Neill was attainted, the name of O’Neill extinguished, and the Queen entitled to Tyrone. Irish captainries were abolished unless established by patent. For the infringement of this law

death without benefit of clergy was provided by the draftsman in England, but the House of Lords substituted a fine of 100 l. for each offence by a peer, and 100 marks for men of lesser degree. Even after this amendment there was much opposition, which, as the Chancellor observed, argued that ‘the matter disliked them more than the pain.’ An Act was also passed to enable the chief Governor, on certain conditions, to make the remaining Irish countries into shire ground. ^[161]

A Bill for imposing a heavy import duty on wines borne in foreign bottoms was thrown out by the Commons, the members for the port towns declaring that it would beggar them utterly. The Bill was afterwards passed in a modified form for ten years, Sidney having refused the enormous bribe of 2,000l. in gold offered him to procure its withdrawal.

Wine duties.

A Bill for the erection and maintenance of schools with English masters by a charge on ecclesiastical property was thrown out by the Bishops, who thought that they and not the Lord Deputy should have the patronage in their own hands, and with better reason demurred to the exemption of impropriated lands, which were often the richest part of what had belonged to the Church. A Bill for repairing churches was thrown out by the Commons, the Catholics not caring to provide for the Establishment, and no one wishing to bear taxation. ‘Churches and schools,’ said Weston, ‘still find no favour among us, yet, in my opinion, the reformation of Ireland must come from churches and schools.’ ^[162]

Schools.

The Queen’s consent for Ormonde’s departure had been some time obtained before he actually started. He had to raise money to pay his debts, but it is plain that Cecil thought he delayed unnecessarily. He shone at Court, and was perhaps in no haste to leave while the Queen’s manner encouraged him to stay. In the meantime the state of the South became daily worse, Sidney complaining bitterly that Sir Warham St. Leger would have prevented all these troubles had not Ormonde’s influence prevented him from being armed with the necessary powers. The Queen selected Sir John Pollard for the office of President of Munster, and Mr. Peryam, Carew’s counsel, for his Chief Justice. The establishment was

The Queen decides to erect a Presidency in Munster.

fixed at 13s. 4d. a day for the President, with one Justice at 100l. a year and another at 40l., and a clerk at 20l. The whole expense with petty officers and soldiers was estimated at 1,400l. Bacon and Winchester then suggested that there need be no surgeon, and that fewer soldiers would do; which cut down the estimate by one half. The Queen was delighted, but Cecil, who had persuaded Pollard to accept the appointment, was disgusted at the proposed breach of faith. In the end he had his way, and Elizabeth sanctioned the higher scale. Neither Pollard nor Peryam liked the work, and the latter, who had had enough of Ireland, bitterly complained that he would lose his practice at the bar, and that his family would starve. His own stomach too was delicate, and 'not to be forced to any ordinary diet.' The Queen was inexorable, but promised him leave to retire after two years' service. He accompanied Pollard to Ilfracombe, where the Lord President had a bad attack of gout. Peryam was glad of an excuse to stay on the right side of the Channel. In the end both escaped the dreaded duty, and another Devonshire gentleman, Edmund Tremayne, went over to explain matters to Sidney. Tremayne, to use his own language, had forsaken a quiet life, and cared little for peace so he might fight in the good quarrel. His voyage was dangerous enough to satisfy the most adventurous man in Devon. The ship was first driven into Milford Haven, and afterwards blown on to the Wexford coast; and Tremayne and his party were attacked by the armed natives, who were prepared to resist Sir Edmund Butler, now in open rebellion. Finding that the castaways were Englishmen they received them joyfully, and forwarded them to Ferns, where Bishop Devereux gave them a most hospitable reception. Tremayne reached Waterford safely, where he found it generally reported that Ormonde was dead. ^[163]

Fifteen months elapsed between the date of Pollard's abortive commission and the appointment of Sir John Perrott; and for a long time the southern rebels met with no effectual resistance. A cloud might at any time gather abroad; for the papal Archbishop of Cashel and the papal Archbishop of Ross were already in Spain with full powers to treat on behalf of the confederated Catholics of Ireland, consisting of three archbishops, eight bishops, and most of the lords and chieftains outside the Pale. The sheriff of Cork at this time was the renowned Richard Grenville, who had made a practical beginning of colonisation by seizing lands to the west of Cork

The rebellion of James Fitzmaurice continues, 1569.

Harbour. His martial prowess was no doubt feared, but no sooner was his back turned than the country was in a flame. On the very day after he sailed for England, Clancare and Fitzmaurice appeared at Tracton with the seneschal of Imokilly, the White Knight, and other chiefs. The garrison appears to have been small, for the assailants were able to undermine the walls with pickaxes, and to kill all the inmates except three or four English soldiers, who were hanged next day. James Fitzmaurice declared that help was coming from Spain, swore on a book that Sir Edmund Butler was heartily on his side, and boasted that he could take the artillery at Kinsale when he pleased. The citizens of Cork were robbed whenever they ventured out, and all the lords of the county were either overawed or in sympathy with Fitzmaurice, who vowed to give no peace to Cork until all the English, including Lady St. Leger and Lady Grenville, were given up, as well as some Irish prisoners. The city was in want both of provisions and powder, and the town of Youghal hourly expected an attack. English farmers in the immediate neighbourhood had been already put to the sword. [\[164\]](#)

The unnatural alliance between Butlers and Geraldines which made the insurrection formidable was in part at least caused by Sidney's harsh treatment of Sir Edmund Butler. Not only did he use strong language himself, but he allowed Sir Barnaby Fitzpatrick to do the like. Sir Edmund withdrew from Dublin vowing vengeance against Fitzpatrick and against Sir Henry Sidney personally; though he was at all times careful to respect him in his official capacity. Sir Edmund was driven to desperation by the success of Sir Peter Carew and by the countenance which he received from the Lord Deputy; for his own castle of Clogrennan and the lands attached formed part of Idrone, and having been originally conquered from the Kavanaghs were included in the decision of the Privy Council, which ousted their title to the whole barony. Seeing that Sir Edmund would rebel, Sidney sent to him Lord Baltinglass and Richard Shee, the latter a devoted adherent of the House of Ormonde, with instructions to talk him over if possible. They went from place to place looking for him while he plundered the country, and when they at last came up with him his conduct was not particularly edifying. He bade them give over their flattery, bragging, and dissimulation, and declared that neither he nor his brethren would come near the Lord Deputy without pardon or protection for all concerned, that the Deputy's

Sidney and the
Butlers. Sir P.
Carew.

object was to chop off their heads, and that all the mischief had been caused by the machinations of Carew and of Sir Barnaby Fitzpatrick. The Queen herself, said Sir Edmund, was the only judge by whom he would submit to be tried; to her he was more loyal than they who accused him, and if he were proclaimed rebel he would make the heads of those who caused it fly from their bodies. If he and his men had pardon and protection he would be ready to attend the Lord Deputy in all wars; but if any of the Queen's men helped Sir Barnaby or his other enemies, so her Highness or her Governor were not personally in the field, then he would do them all the mischief he could. Similar offers were made through a private messenger, and Sidney's answer was to send Carew and Humphrey Gilbert, who now makes his first appearance in Irish history, with orders to apprehend Sir Edmund. A country neighbour afterwards tried to bring him into a more prudent frame of mind, but again the answer was, 'I do not make war against the Queen, but against those that banish Ireland, and mean conquest.... If my lord my brother come to apprehend me, I will not in this quarrel be ruled by him nor come in his hands.' If anything would have persuaded him it was Mr. Sweetman's taunt that he was more a Desmond than a Butler; but he was past caring for this, and boasted that if Sidney invaded the South, Tirlogh Luineach would invade the Pale. He was already proclaimed rebel, and as if to prove the justice of that measure he exhibited letters from O'Neill and Fitzmaurice. [\[165\]](#)

The Queen chided Sidney for coupling Sir Edmund's name with Fitzmaurice's and MacCarthy's, for which, however, there was abundant justification, and she let Ormonde go as the only chance of restoring peace. Before he could leave London, his brothers Edmund, Piers, and Edward had joined Fitzmaurice, with whom MacCarthy had made plans for concerted action. The Butlers had done their own part by devastating the eastern part of the Queen's County, and killing the warders of Balliknockane. Fitzmaurice followed up the blow by attacking Kilmallock and extorting a ransom of 160*l.*, the townsmen fearing that they would after all have to receive a Geraldine garrison. He met the Earl of Thomond and John Burke close to Limerick, and the citizens, who feared to lose all their cattle, were in some doubt as to the proper course. The men of Waterford, as became the city's ancient reputation, did not wait for orders, but worked hard at their

The Geraldines are unchecked.

fortifications, sent provisions to Cork and Youghal, and gave shelter to the miserable inhabitants of the country. They reported that the Geraldine rebels burned and slew where they listed, stripping honest men and women naked and using more cruel tortures 'than either Phalaris or any of the old tyrants could invent.' Even before the open rebellion great disorders had been caused by the general poverty. On Good Friday the city, according to ancient custom, opened its gates to 1,100 poor men, who, when they had eaten, fell to plundering and housebreaking; and it took three weeks to get rid of them by beating out the sturdy beggars, and coaxing out those of a weaker sort. Corn was daily growing dearer, and 'the caterpillars' boasted that they would reap the next harvest. The kine, 'which by milk used to keep the poor wretches alive,' were killed or driven away. Edward Butler had devastated Waterford County, but the citizens feared nothing. To attack them without the aid of a foreign prince would be to 'spurn against a wall,' and Spain was of no such force in Ireland as their own sovereign liege. ^[166]

Waterford was a stronghold for its own people, and a city of refuge for many others, but the rebels had complete possession of the open country. English settlers were plundered and killed, or led about with halters round their necks. Sir Edmund Butler and his brother Piers devoted themselves to the district between Waterford and the Pale, of which the northern boundary was threatened by Tirlogh Luineach. Edward Butler was busy south-west of Waterford, and Fitzmaurice preached a crusade in the Desmond country, calling upon the citizens of Cork and the clergy of the diocese to send away all Protestants by the next wind. 'The Queen,' he said, 'is not satisfied with our worldly goods, bellies, and lives, but must also counsel us to forsake the Catholic faith by God unto His Church given, and by the See of Rome hitherto prescribed to all Christian men.... If you follow not this Catholic and wholesome exhortation, I will not nor may not be your friend.' ^[167]

Waterford and
Cork.

Unable for the moment to visit the South, Sidney sent Carew and Gilbert to Kilkenny, in a sally from which town they inflicted a severe defeat on Sir Edmund Butler. In a second encounter Carew was less successful, but was able, within a few days, to lay siege to Clogrennan, which the garrison had orders to defend against all but the Lord Deputy himself. Hooker represents the capture of this castle as a great feat of arms, but Ormonde says that it

Carew and the
Butlers.

contained only eight armed men. Being hard pressed, the commandant asked if Sidney was present, and being told that he was, went out on safe-conduct. Finding himself deceived, he returned into the house, but a soldier named Baker followed, shot or stabbed him in the back, and threw a log of wood between the doors, so that they could not be shut. Carew's men then poured in, and killed not only the garrison but the women and children, including 'an honest gentleman's son, not three years old.' This rascally breach of faith is represented by Hooker as fair stratagem of war.^[168]

It is needless to recapitulate all the outrages committed on either side, or to inquire whether certain attempts on Carew's life were instigated by Sir Edmund Butler or not; but Enniscorthy was remarkable for the rapes and murders committed on the merchants and their families frequenting the great annual fair on August 15. Agriculture was quite neglected, and few houses were inhabited except those belonging to Ormonde. Carew laid all the blame on Irish ferocity, but Ormonde declared that the mischief was caused by rash attacks on landed property, which were shaking the loyalty of the highest and noblest. Sir Edmund had been a good subject, and was rewarded by losing his estate. He tried to defend his property, and was proclaimed a traitor. 'A wiser man than he,' said his brother, 'might be brought beside himself thus.' The following is too interesting to omit:—

Atrocities on both sides.

'Old Grace, my man,' the Earl wrote, 'landed three weeks ago in Waterford sore handled with gout; my brother hearing of his being there came to the waterside to talk with him. Grace was carried between men to his boat, and in the boat talked with my brother, who asked very earnestly of the Queen's Majesty. The other told him she was in health and very well. "No, no," says he, "I know well enough she is poisoned, and my brother put into the Tower and there put to death." My man told him he might know my handwriting: he answered my letter bore an old date. He asked again twice if the Queen were alive. The other swore she was alive and in as good health as ever she was. "Well," said my brother, "if my lord is alive and that I may see him, I will believe his word, and then will I go into England and let her Highness know how I am dealt withal by my Lord Deputy and Sir Peter Carew."'

Sinister rumours.

Fitzmaurice, Clancare, and the Butlers between them had near 4,500 men, with whom they laid siege to Kilkenny. The townsmen had been reinforced by Captain Collyer's company, but they gave hostages to prevent the suburbs from being burned. Without artillery the rebels could hardly take a well-defended walled town, and they could not keep the field long enough to starve out such a good soldier as Collyer. Piers Butler burned all the houses at Leighlin, and killed even children, but he did not attack the castle, which contained twelve able men. The roads were so closely beset that communication with Dublin was almost impossible. But Sir Edmund's heart was not entirely in the business. He told Fitzwilliam that he would oppose neither the Queen nor her Deputy if they appeared in person, that he would not meddle in matters of religion, and that he would have nothing to do with the introduction of Spaniards. ^[169]

'It was never seen,' wrote Ormonde proudly, 'that any traitor remained one night in camp in my country while I served in Ireland. I lament to hear of this wicked time. I would God I had 1,000 men at my landing in Waterford, to try my fortune among these caterpillars.' At last he sailed, and was driven to Roslare in Wexford, where he landed. He wrote to ask Sidney, who was by this time at Cork, for an escort. His horses, he said, had all been taken, and he did not yet know whom to trust; but Sidney doubted this too powerful subject, and told him that he could easily go to Castlemartyr, Kilmallock, or Limerick without help. A fortnight was wasted at Waterford, no one joining the Earl but a few chance Wexford men, and he then made his way to Kilkenny, where his three brothers came to him. Sir Edmund at once asked after the Queen, and on being told that she was well, doffed his morion and thanked God. The other two followed suit. Sir Edmund recapitulated with much energy his charges against Carew and Sidney, took God to witness, and prayed he might be damned body and soul if ever he meant to rebel. He was ready to serve in France or anywhere in Ireland, so that he was not bound to come to my Lord Deputy's presence, or to serve in his company. Ormonde tried to persuade him to go to Sidney, but he wept like a child, saying he would rather go to England unprotected than to Dublin on the best safe-conduct. He was ready to be tried by the Queen, but not by his declared enemy. At length the three Butlers surrendered to the Earl on safe-conduct,

Return of Ormonde.

the further consideration of their case being reserved until the Lord Deputy's pleasure should be known.^[170]

Sidney left Dublin late in July with 600 men, Sir Barnaby Fitzpatrick, 'the most sufficient man in counsel and action for the war that ever I found of that country birth,' being left to guard the southern frontier of the Pale, while Fitzwilliam and Kildare held the O'Neills in check as best they might. After visiting and rebuking Kilkenny, the Lord Deputy entered Tipperary, the rebels burning their houses in front of him. His first intention was to go straight to Cork, where the citizens entertained the notion of giving Lady St. Leger up to Fitzmaurice, but hearing that a relieving force of 400 men had arrived by sea from England, he encamped near Clonmel, where he found the people good and loyal. Written challenges were thrown into the camp, promising that the rebels would fight him, and he sent for reinforcements to Waterford. The citizens answered that they had no spare men, and that besides they were exempted by their charter; but they had afterwards to pay a fine for their stiff-necked conduct. Proclamation of pardon had no effect, and the palatinate jurisdiction of the House of Ormonde was advanced by the principal gentlemen of Tipperary as a reason for not exerting themselves to restore order. 'We are,' they said, 'of this county more ancient inhabitants and freeholders than any Butler is, and were the first conquerors of this soil from the Irishry.... England gave us away to a Butler.... We and our ancestors acknowledged him as our lord and captain, and indeed we know no other sovereign but him, whose lieutenant, Sir Edmund Butler, his brother and heir-apparent, is him we follow, and him we will follow and do as he commandeth us.' Messengers to the chief rebels failed. They reported, not quite truly, perhaps, Sir Edmund Butler's opinion that Leicester, Ormonde's mortal foe, was about to marry the Queen and be King, and that Sidney was to be King of Ireland under him, 'as might appear,' the Lord Deputy said, 'by bearing the ragged staff continually in my pensile before me, as indeed I did.' 'That blessed babe, Edward Butler,' who had been Sidney's page, professed great affection for his old master, and hoped that he would not go on to meet certain disaster. He had done all, he said, by Ormonde's orders. Sir Theobald Butler of Cahir, who was always trying to assert his independence of Ormonde, was the only one of

Sidney goes to the South. Position of Ormonde in Tipperary.

the family who voluntarily came to Sidney, by whom he was recommended for a peerage. [\[171\]](#)

Negotiations having failed, Sidney's drum beat to quarters, but the men showed a great disinclination to advance. He was a fluent and persuasive speaker, and he addressed the troops, serving out wine plentifully at the same time. By the time the speech and the wine were finished, the soldiers began to cry 'Forward,' and to declare that they would follow to the land's end or die on the road. They demanded to be led out at once. "Nay, fast, sirs," quoth I, "it is Sunday, and it is afternoon; we will go hear evening prayer, sup and rest; and you shall be called, I warrant you, betimes in the morning, and so, in the name of God, we will advance forwards." That evening and all the night there was nothing but singing, casting of bullets, drying of powder, filing of pike-heads, sharpening of swords, and everyone thinking himself good enough for five rebels.'

Sidney persuades his men to advance.

Sidney marched next morning by Cahir into the White Knight's country, and laid siege to a castle, which was perhaps Mitchelstown. The garrison said they held the place for God and James Fitzmaurice and the White Knight, and that they would yield to only one of them in person, or to St. Peter or St. Paul. Sidney had no artillery heavy enough to breach the main walls, but shattered the upper works, and ultimately won the courtyard and barbican by assault. The garrison retired into the vaulted chamber of the keep; but this also was assaulted, and they were pursued to the top story, and then thrown over the battlements. Lord Roche's son was left in possession. Sidney pushed on to Cork, where Lady St. Leger was fully relieved, and the wavering citizens confirmed in their allegiance. Carrigaline was taken and garrisoned, and Castlemartyr, which the seneschal of Imokilly held against the Crown, was summoned. The seneschal himself answered that he would defend it to the last. A day or two having been spent in preparing gabions, a small breach was effected, and the garrison escaped by night into a neighbouring bog. The castle was entrusted to Captain Jasper Horsey, and Sidney then visited the Mallow district. After some pulling down of castles and wasting of country, the chiefs submitted without protection, and took the oath of allegiance. Buttevant, which Lord Barrymore had mortgaged to Desmond, was taken,

Sidney meets with little resistance. Fitzmaurice burns Kilmallock.

and the Queen, as Sidney grimly said, was made mortgagee. Passing on to Limerick, Sidney found that Fitzmaurice had been before him at Kilmallock, which he had carried by escalade with the help of sympathisers inside. Some houses were sacked, others burned, others ransomed, and others spared altogether. Here Sidney heard from Ormonde, who could not join for want of convoy. Lord Power and the Earl's friend Lord Decies were sent to Kilkenny, and they brought him safe to the Lord Deputy at Limerick. [\[172\]](#)

Thomas Roe Fitzgerald, Desmond's half-brother by Catherine Roche, was induced by Sidney to serve the Queen—a stroke of policy which greatly weakened Fitzmaurice, since many Geraldines thought his title better than that of the acknowledged Earl, and of course far better than his cousin's. 'During my abode in Limerick,' says Sidney, 'there came to me divers principal personages of the county of Kerry and of Connello, as the Lord Fitzmaurice, William Burke, captain or owner of Clanwilliam, whose eldest son after (being my man) with his own hand killed James Fitzmaurice, and James him at one only encounter, Lacy, Purcell, and Suppell, with many more whose names I have forgotten, being all descended of English race; all swore allegiance to her Majesty and faithful service in that action against James. There came to me also Rory MacSheehy, captain-general of the Earl of Desmond's gallowglasses, surnamed Clansheehy; he likewise submitted, swore allegiance, and delivered pledges as before. This man was counted one of much might among them; he procured to come to me a great many more of the Irishry.'[\[173\]](#)

Sidney Limerick.

No doubt by his brother's advice, Sir Edmund Butler wrote to Cecil, throwing himself on the Queen's mercy; and it seems that he set out to join the Lord Deputy, but thought better of it on the road. Piers lay in pleurisy at Kilkenny, but Edward accompanied the Earl to Limerick, and made his unconditional submission.

Submission of the Butlers.

Sir Edmund escapes from Dublin Castle.

Sidney seems still to have called him traitor, but he declared himself willing to serve the Queen anywhere. Afterwards Ormonde gave his parole for him, and he executed a bond binding himself to appear at Dublin when sent for, and if possible to bring Piers and Edmund with him. 'I granted his requests,' said Sidney, 'but since that time I could never set eye on my old

servant Edward.’ Some weeks later Ormonde brought Sir Edmund and Piers to the Lord Deputy at Dublin, Edward being this time the defaulter. When the brothers were brought before the Council Sir Edmund accused Sidney of having threatened him, but this the Lord Deputy denied, and we have the testimony of an eye-witness to his gravity and dignity. But it seems that faith was not strictly kept, for Sir Edmund had come in upon safe-conduct granted by Ormonde to ‘come safe, remain, and go safe,’ that Ormonde had full power to grant such safe-conduct, but that nevertheless Sir Edmund was imprisoned in the castle. After a short and very indulgent confinement, he managed to obtain a rope and slipped down the wall, but hurt himself, and fell into the ditch. He lay all night in the water—it was November—and those who found him in the morning were friends. The young O’Byrnes, the afterwards renowned Feagh MacHugh being one of them, led him through the Wicklow Mountains, and he made his way once more to the neighbourhood of Leighlin. He soon afterwards visited Holy Cross, and offered a thank-offering for his escape. Sidney was highly indignant, but if he really broke Ormonde’s safe-conduct he had nothing better to expect. He insinuated doubts as to the sincerity of the Earl’s professions, but he had not gone the right way to confirm his loyalty. Ormonde, on the other hand, reported that Sidney was too jealous of him to avail himself of his services against the Munster rebels. ^[174]

The rank of colonel was given to Humphrey Gilbert, and he was told to pacify Munster. He showed all those qualities which have given him an enduring place in English story. Kilmallock was again threatened, and Gilbert occupied it with little more than two companies. Fitzmaurice and Clancare brought 1,500 foot and 60 horse, intending to starve out the garrison; but Gilbert sallied forth with about 100 men, and put the Irish to flight, exhibiting the Quixotic courage for which he is famous. He had a horse shot under him. His buckler was transfixd by a spear. He advanced to the attack across a river, and had twenty mounted men upon him at once, of which he slew one, unhorsed two, and wounded six. No wonder that he had a fever after this. Gilbert’s energy seems to have paralysed the enemy, for he marched almost unopposed through the wilds of Kerry and Connello, and took thirty or forty castles without artillery. The policy pursued was like that of Samuel to the subjects of Agag. At Garrystown Gilbert ordered Captain Warde to

Humphrey Gilbert
in Munster.

put all to the sword on pain of death. No capitulation was admitted, but all strongholds were stormed at any cost, and men, women, and children killed. 'They are now,' wrote Warde, after three weeks of this horrid work, 'so well acquainted with his conditions that I think they will defend no castle.' And the worthy captain adds that all were astonished at Gilbert's sufficiency, and that in his opinion he was fit for any place, civil or military.^[175]

James Fitzmaurice himself found the battle so hot about him that he withdrew, closely pursued, into the glen of Aherlow in Tipperary, and Sidney complained that Ormonde was slack in his service, and that they were afraid of the Queen's displeasure if they entered his country to do the work which he neglected. Sidney called Fitzmaurice an Irish beggar, Gilbert called him a silly woodkerne, and both wondered that an Earl of Ormonde should find any difficulty in dealing with him. The Butlers were an ungrateful crew, and Gilbert would teach them, if he might, that they had more need of the Queen's mercy than she had of their service. The Queen's partiality made it necessary to keep some terms with Ormonde, but Gilbert did not hesitate 'to infringe the pretended liberties of any city or town corporate not knowing their charters to further the Queen's Majesty's service, answering them that the prince had a regular and absolute power, and that which might not be done by the one, I would do it by the other in case of necessity.' Gilbert was satisfied that Ireland, being a conquered nation, would never obey for love, but for fear only; and he acted fully up to this opinion. Under his drastic treatment all the Geraldines except James Fitzmaurice submitted. Captain Apsley was sent into Kerry, and such was the terror inspired by his colonel, that the whole district was reduced with little difficulty. Clancare and MacDonough MacCarthy acknowledged their treasons on their knees. Gilbert would promise no pardons, and every rebel taken in arms was executed at once. After his service in Munster, Gilbert repaired to the Lord Deputy, who knighted him, having nothing but honour to give. In his despatches he praised him to the skies, and seems not to have had the slightest misgiving about the wisdom or morality of his conduct. The ways were safe. City gates lay open. The English name was never so much feared in Ireland. It needed now only a good sour lawyer to manage the escheats of forfeited lands. 'If her Majesty will provide, that which is spent is not lost. Persuade her to address into Munster further a council with a President. The

Fitzmaurice is hard pressed.

iron is now hot to receive what print shall be stricken in it, but if it be suffered to grow cold, I fear where before it was iron it will then be found steel. These people are headstrong, and if they feel the curb loosed but one link, they will, with bit in the teeth, in one month run further out of the career of good order than they will be brought back in three months.' Without money, thwarted at home, and in bad health, the Lord Deputy begged earnestly for his recall. All classes were against him, and he felt as if he could not live another six months in Ireland. ^[176]

While Geraldines and Butlers, for once united by the fear of losing their lands, kept the South of Ireland in a turmoil, Ulster, for Ulster, was rather unusually quiet.

Ulster is quiet.

The O'Neills feared to provoke Sidney while he had the power to punish, and minor chiefs professed themselves ready to obey his call. James MacDonnell's widow took advantage of the lull to come to Rathlin and give her hand to Tirlogh Luineach, who had now from 3,000 to 5,000 men under his orders, his wife having brought at least 1,200 Scots with her. Newry was threatened, but the arrival of Ormonde left Kildare free, and the forces of the Pale were drawn northwards. Sidney followed as soon as he could, and found that the Scots had weakened rather than strengthened Tirlogh Luineach, who had 'eaten himself out' by supporting them. The fact that he had been accidentally shot by a jester while sitting at supper with his new wife, may have had a good deal to do with Tirlogh Luineach's inactivity. In any case, he gave Fitzmaurice no help; and, the Butlers having submitted, the confederacy from which so much had been expected and feared fell to pieces of itself. ^[177]

FOOTNOTES:

^[156] Articles with Sir Brian MacPhelim O'Neill, Oct. 8, 1568; Sidney to Cecil, Nov. 12; Sidney's Summary Relation, 1583, in *Carew*.

^[157] Sidney to Cecil, Nov. 12, 1568; same to same, Nov. 8 (in the *Sidney Papers*); Argyle to Queen Elizabeth, Aug. 24 (in the *Sidney Papers*).

^[158] Lord Roche to the Lords Justices, Sept. 14; Wingfield to Cecil, Nov. 12; Sidney to Cecil, Nov. 8 and 12; Hamlet's warning to Ophelia is applicable to all Irish Governors.

^[159] Lady Dunboyne to Luke Dillon, A.G., Nov. 22; Carew to Cecil, Dec. 26.

[160] Hooker, in *Holinshed*; for the state of Athenry, see Sidney to the Queen, April 20, 1567.

[161] Hooker, in *Holinshed*; Weston to Cecil, Feb. 17 and March 18, 1569. The Parliament 11 Eliz. sat almost continuously from Jan. 17 to March 11, 1569, but three sessions are counted within this period. On March 11, a prorogation took place till Oct. 10.

[162] Hooker, in *Holinshed*; two letters of Weston to Cecil already quoted; Sir N. White to Cecil, March 10; and Sidney's Summary Relation in *Carew*, 1583.

[163] Cecil to Sidney, Nov. 5, 1568; Queen to Sidney, Feb. 10, 1569; Peryam's Petition, Feb. 19; Tremayne to Pollard and to Cecil, July 7.

[164] Letters to the Lord Deputy, June 17 to 20, from Lady St. Leger, J. Horsey, the Mayors of Cork, Waterford, and Youghal, and Andrew Skiddy. St. Leger to Sidney, February 14; see *Froude*, vol. x. p. 495, from Simancas.

[165] Depositions of Lord Baltinglass and Richard Shee, June 19; Information of William Sweetman, July 27.

[166] N. White to Cecil, April 18; Mayor and Corporation of Waterford to Cecil, July 8; Corporation of Kilmallock and Limerick to Sidney, July 2 and 10; the Queen to Sidney, July 9.

[167] James Fitzmaurice to the Corporation of Cork, July 12. He calls the Protestants 'Hugnettes.'

[168] *Life of Carew*; Ormonde to Cecil, July 24; Sir Edmund Butler to Ormonde, Aug. 23.

[169] Ormonde to Cecil, July 24; Corporation of Kilkenny to Sidney, July 2 and 29; Roger Hooker (Richard Hooker's father) to Weston, Aug. 10.

[170] Ormonde to Cecil, July 24 and Sept. 7; Words uttered, &c. Sept. 1; N. White to Cecil, Sept. 3.

[171] George Wyse to Cecil, Oct. 29; Lord Deputy and Council to Cecil, Oct. 26; Sidney's Brief Relation in *Carew*, 1583.

[172] Fitzmaurice took Kilmallock early in Sept. 1569; Lord Deputy and Council to the Privy Council, Oct. 20; Sidney's Summary Relation, in *Carew*, 1583.

[173] Brief Relation, in *Carew*, 1583; Sidney to Cecil, Oct. 17, 1569, in *Sidney Papers*.

[174] Fitzwilliam to Cecil, Sept. 12; Geo. Wyse to same, Oct. 29; Sidney to same, Nov. 29; also Sidney's Summary Relation, as above.

[175] Warde to Cecil, Sept. 26 and Oct. 18; Gilbert to same, Oct. 18.

[176] Gilbert to Sidney, Nov. 13 and Dec. 6; Sidney to Cecil, Nov. 25 and Jan. 4, 1570.

[\[177\]](#) MacMahon to the Commissioners for the North, Aug. 23; Fitzwilliam to Cecil, Sept. 12.

CHAPTER XXVII.

1570 AND 1571.

Pollard's illness had delayed the formation of a presidential Government in Munster, but Sir Edward Fitton was appointed to Connaught, with Ralph Rokeby for a Chief Justice. When the decadence of the southern rebellion enabled him to begin work, he did not show much talent for government, being an ill-tempered, quarrelsome man, not at all fitted for the delicate duty of turning Irish into English order. The townsmen of Galway he found loyal and peaceable enough, but the people of the province were cold in religion, and inclined to superstition. By way of encouragement he burned the 'idols' in the churches. The friars were nominally expelled, really driven into hiding. More praiseworthy were his efforts to make the clergy either put away or marry their female companions—efforts extended to the laity, who, from the Earl of Clanricarde downwards, seem to have held canonical marriage in contempt. Malefactors were executed, a kind of census taken, and a provost-marshal appointed to hang out of hand all who could find no one to answer for them. 'Such as do come unto us, we cause to cut their glybbes, which we do think the first token of obedience.' Clanricarde and O'Connor Sligo professed some agreement with Fitton's course, but O'Rourke held aloof, while Thomond gave every possible opposition, even to the extent of detaining Captain Apsley and his men on their return from Kerry, and of threatening to capture the President himself. Proclamation had been made for holding assizes at Ennis, where the sheriff, Teig O'Brien, made store of provisions for the President. Thomond, who was at Clare close by, refused to attend, and when the assizes were over friendly partisans conducted Fitton through the Burren Mountains, the Earl hanging on his skirts and skirmishing as far as Gort. He was said to be acting under orders from the Duke of Norfolk, and no doubt his conduct had reference to

Fitton, President of
Connaught.

the rising in the North, and to the general attack on those whom Fitzmaurice called Huguenots. Fitton was shut up in Galway, and John Burke, Clanricarde's rebellious son, rode up to the gate, but refused to enter. Gilbert having departed, Fitzmaurice gathered a new force, entered and spoiled Kilmallock; and there seemed every prospect of a conflagration throughout the West. Sidney resolved to take Ormonde at his word, and to employ him in putting down this fresh disturbance. ^[178]

'My Lord Deputy and I,' Ormonde wrote to Cecil, 'brake our minds at Leighlin last together before some of our trusty friends, and after promising never to call quarrels past to rehearsal, we vowed the renewal of our old friendship. So, for my part, I will bring no matter past to rehearsal.' Thereupon he begged the intercession of Cecil and other statesmen for his misguided brothers. Edward was still at large.

Ormonde is reconciled to Sidney,

'I think,' said Sidney, 'God have ordained him a sacrifice for the rest. What honour were it to that house if the Earl would bring in that brother's head with his own hands? That were indeed a purging sacrifice.' It was a sacrifice which Ormonde did not feel called upon to offer; but he was willing enough to serve the Queen, and received a commission to reduce his cousin, the Earl of Thomond.

He received an ample commission, having power to proclaim rebels, to parley, protect, or prosecute as he might think expedient. After a month's preparation he was in a condition to take the field. He had no help from the Government but 300 kerne and a battering-ram, which he did not use. The Mayor of Limerick made difficulties about boats to convey the guns across the Shannon, and Ormonde marched into Thomond without them. The terror of his name and the knowledge that artillery was behind did all that was necessary, but he complained that nothing was done unless he did it himself, and that Sir Thomas Roe Fitzgerald was particularly useless. Thomond at once offered to give up all prisoners, English and Irish, to surrender all castles, provided he might be allowed to go to England and plead his own cause with the Queen, and to serve at once against James Fitzmaurice. He stipulated for life and liberty for himself, that Ormonde should have the custody of his country, that his enemy, Teig MacMorrigh of

and receives a commission.

Inchiquin, should be no longer sheriff, that the Lord Deputy and Lord President should not prejudice his case with her Majesty, and that he should be allowed five days' law before being proclaimed traitor, in the event of Sidney refusing to ratify the articles. Ormonde took possession of all the castles at once, garrisoned them, and secured the prisoners, cutting passes through the wood to Bunratty in case further fighting should be necessary. The rest he left to the Lord Deputy. Sidney would have preferred that Thomond should come before him, but agreed to let him go to the Queen, on condition that he should give the names of all his accomplices at once and start for England before May 27. [\[179\]](#)

The rebel Earl, who was probably conscious of intrigues of which Ormonde knew nothing, neglected, without actually refusing, to go to the Lord Deputy, allowed the day of grace to pass, and went quietly on board a French ship which lay in the Shannon. Thomond was pacified entirely at Ormonde's charge, and the work was done but just in time, for many of his men had been engaged in the late rebellion, and were fighting with halters round their necks. The moment their protections expired they left their chief, who had no power to extend them, but they seem to have returned on the Lord Deputy giving them six weeks longer. The principal men of the O'Briens submitted, and the O'Loughlins and O'Mahons followed suit. There were a few executions, but Ormonde preferred clemency to the policy of Gilbert or even of Sidney. 'The Queen,' he said, 'hath many good subjects here if they were but cherished and not over-pressed.' His reception in France not answering his expectation, Thomond thought it prudent to report himself to the English ambassador, representing himself as a loyal subject driven mad by Fitton's harshness. He professed great anxiety to see the Queen, but feared the Lord Deputy. He had come by France, as the direct road to London was closed. Norris advised lenity in dealing with one who was evidently rather a tool than a ringleader—a barbarian whose cunning was neutralised by his vaingloriousness, and whose simple talk could deceive no diplomatist. 'Promise what you list,' said the ambassador, whose great object was to coax the refugee out of France into England, 'and having him there perform what you list.'

Thomond goes to France. Intrigues there.

The Queen lent no countenance to this Machiavellian advice, and told Norris that the Irish lord was of small

Diplomacy.

value but by her favour, and not the best of his name in the estimation of his own countrymen. By her advice he gave a written personal undertaking that Thomond should not be imprisoned on his promising, also in writing, to make no further attempt against the Queen. He had from his arrival intrigued with the French Court, and had nearly succeeded in captivating Henry III.; but Marshal Vielleville reminded his sovereign that he had debts, and persuaded him not to meddle with castles in Ireland. Catherine de' Medici tried to prevent Thomond from going to England, and gave him 200 pistoles. Fearful lest he should go to Spain, Norris added 100, and after spending a month in Paris, the Earl was induced to go to his natural sovereign and make humble submission. He was pardoned in due course and sent back to Ireland, where he bound himself in the sum of 10,000*l.* to be of good behaviour for the future. [\[180\]](#)

While Ormonde showed his zeal in the West, the Lord Deputy remained in Dublin preparing to meet Parliament. He begged to be recalled, or at least to have the comfort of his wife's society, for that he was living very uncomfortably, and at intolerable expense to himself, though saving much to the Queen. To his repeated cries her Majesty answered that he should be relieved as soon as possible, but that it was very difficult to find a fit successor for him, or a fit governor for Munster. She approved of his fortifying policy in Ulster. Irishmen were to be encouraged to take estates of the Crown, and Englishmen to settle in Ireland, and 'we would have good regard that the inhabitants there do not engross many farms into few hands, whereby hospitality must decay.' Edmund and Piers Butler were to be committed; Edward caught, indicted, and arraigned; and all three were to be made to surrender their estates, and have judgment passed on them, to be executed or not according to their behaviour. Their inferior agents in rebellion were to 'taste the reward of justice.' Edward Butler could not be caught, though he had at least one narrow escape from his brother's men, but the other two had remained in Dublin since their submission, and now humbly awaited her Majesty's pleasure. [\[181\]](#)

Sidney's policy.
Edward Butler
cannot be caught.

Sidney found his Parliament in more submissive mood than at its first meeting, the Irish party having been cowed by his vigour, and by the sight of unsuccessful rebellion. The influence of a Speaker must needs be

Final submission of
the Butlers, 1570.
Parliament.

considerable, and Stanihurst was devoted to the Government, which received valuable support from his grave and conciliatory demeanour. The Lord Deputy opened the session with a pithy speech, in which he earnestly prayed the members to show their activity by amending Bills brought before them, but not by rejecting necessary measures. An Act was then passed reciting the Queen's efforts to establish order and justice, notwithstanding which 'the wicked, better acquainted with darkness than light, have chosen to wallow in their own filth and puddle of tyranny, oppression, rape, ravine, and spoil.'

Clancare, Fitzmaurice, Ormonde's three brothers, and several other Butlers of less note, were then attainted by name as 'vile and ingrate traitors;' and treasons committed within a limited time were prospectively included in the attainder. The Queen stayed the execution of this Act, but Ormonde objected to it on general grounds, and especially to its prospective effect. 'Alas,' he said, 'what availeth life, and to live with infamy (as I perceive my brethren must do coming to arraignment)! But the Queen's staying of their judgment and execution is an exceeding mercy, far above their deserts of late days ... and for the stain of my house I confesseth it nippeth me to the heart. But what remedy the best is they may, with the Queen's goodness, live to requite this evil with good service hereafter.... My brother Edmond was not his own man since he was bewitched. Myself have not escaped free by means of a drink given me by some unhappy hand. I recovered hardly by drinking salt and oil, bleeding very much, and being purged. I bled forty ounces at twenty-one times.... This act is very general, and so perilous that the judgment is given before the offence committed. Many innocents may be indicted upon malice, and peradventure have no notice of the proclamation to come to justify themselves according to the law.'

Attainders.

Sir Edmund, who was certainly of an excitable nature, felt the disgrace so keenly that he was actually out of his mind for a time. Later on, when it was proposed to print the Act in London, Ormonde complained bitterly that the praise of suppressing the rebellion was given in general terms to Sidney, and begged that 'the odious discourse' might be kept back. Some Butlers were, indeed, by God's visitation induced to act beyond their reason, and the family honours had been spotted for the first time; but the head of the House had

The Butlers
pardoned.

brought them back, and the tree now bore its accustomed good fruit. Edward Butler at last submitted to the Earl, but seems never to have put himself into Sidney's power. In 1573 the three brothers were pardoned, but it seems that by some omission they were never restored in blood. The legal stain remained, but the moral stain was removed by much after good service.^[182]

An Act was passed in this session for the erection of a free school in every diocese at the cost of the diocese, with an English master appointed by the Lord Deputy, except in Armagh, Dublin, Meath, and Kildare, where the Bishops were made patrons. The foundation was Scriptural and Protestant, for the Elizabethans could not understand the possible permanence of any but the State religion. Henry VIII.'s system of parochial schools having never come into being, this must be considered as the first attempt at national education. Salaries were to be fixed by the Lord Deputy, but paid by the clergy, one-third by the ordinary, and two-thirds by the general body. The results of the diocesan schools, as they came to be called, fell far short of what some expected, and it is probable that in many dioceses they were never founded at all. But Sidney's measure was well meant, and was not entirely inoperative like the mediæval attempts at Irish universities. A Bill to compel the residence of spiritual persons was thrown out by the Commons, as well as one to abolish the extortionate demand of meat and drink; the majority of members probably having a personal interest in supporting the old abuse in either case. A Bill for limiting interests which had been acquired by lessees in entailed property was also thrown out, the real object of it being to restore to Ormonde those lands of his family which had been improvidently alienated. Sidney did not oppose the measure, but foresaw that it would fail. He was ready to do what he could to meet Ormonde's views, but only so far as was consistent with ordinary process of law. 'If the gentlemen that have lands of his in the English Pale, in fee farm and otherwise, do not consent in all points to his lordship's liking, having law on their side, I cannot use compulsory means to wrest justice, nor, I hope, it is not required in my place.' Wise words, but it would have been better for Sidney's reputation had he been equally careful in guarding prescriptive rights against Sir Peter Carew.^[183]

First attempt at national education.

Opposition to Government Bills.

The Butlers having returned to their right mind, and Fitzmaurice being reduced to wandering with a few followers, Sidney busied himself chiefly with the affairs of the North. His marvellous power of despatching causes, his extraordinary knowledge of Irish septs and alliances, and his untiring industry, were the theme of general admiration; and the lightning rapidity of his movements struck terror into Irish hearts. Before he could bring the Northern chiefs to any settlement offering a chance of permanence, he had to hold two more sessions of Parliament, and to make arrangements for the Presidency of Munster, as he had already done for Connaught. The legislation attempted was chiefly commercial. Thus a Bill, which was at first thrown out in the Lower House by an effort of untutored common sense, was pressed successfully forward by the Government, who thought it important that the ancient staple commodities wool and wool-fells, raw or manufactured, wax, and butter, should not be exported except by the merchants of the staple towns. Such exportation had been already restrained by duties with a view of encouraging Irish manufactures, but the law had not answered expectation, having had the natural result of throwing the trade into French, Scotch, Spanish, and other foreign hands. Instead of repealing the Act which had done so much harm, the true protectionist policy of further restraint was adopted. Manufactured articles, to which linen yarn was added, might be exported by the merchants of the staple at Dublin, Drogheda, Cork, and Waterford, and by the merchants of other borough towns, on paying the custom; and all power of dispensing with the law was taken away from the Irish Government. The raw material had continued to be exported to some extent, but the intention to benefit Irish manufactures by forcibly retaining it was again recorded, and infringement of the monopoly was made felony; the Government being in this case also declared incapable of dispensing with the Act. It was soon discovered that trade could not be forced in this way, and the Queen was besieged by applications for patents, the projectors pretending to cure the evils of one monopoly by creating another. Lancashire and Cheshire had benefited much by Irish yarn, 4,000 hands being employed in weaving it at Manchester alone. The embargo, it was urged, had nearly ruined Manchester, and had not benefited Ireland, where the weavers were few, and the people naturally given to idleness; spinning, of course, requiring no industry. It was admitted that the lack of lawful outlet for the cloth had something to say to the want

Commercial
legislation.
Monopolies.

of weavers, but as the suitors for patents were Englishmen, that side of the question was not pressed.^[184]

Elizabeth, no doubt for some valuable consideration, granted a patent to one Thomas Moore to export 3,000 packs of linen yarn from Ireland in five years. The Corporations of Dublin and Drogheda objected on the grounds that Ireland did not produce 600 packs a year, that Moore was to pay them no custom, that many men in Ireland had sunk their substance in setting up looms on the faith of a very recent statute, and that if the Queen persevered they would all be ruined. She then reduced the amount to 200 packs a year; but Irish vested interests were unappeased, and seven of the most eminent Queen's counsel in Dublin were very clearly of opinion that letters patent were waste paper as against an Act of Parliament. In the end Tremayne effected a compromise, of which the terms are not stated, between the patentee and the municipalities of Dublin and Drogheda, and the latter prayed Burghley to intercede with her Majesty against the passing of any such patents in future.

Monopolies.
Prototype of
Wood's halfpence.

The intercession was not successful, for in 1578 Lord Chancellor Gerrard obtained a similar monopoly, which he assigned to one Middlemore. Both patentee and assignee had disputes with Dublin and Drogheda, their evident object being to be bought off as dearly as possible. 'I caused to plant,' said Sidney, 'above forty families of the reformed churches of the Low Countries, flying thence for religion's sake, in one ruinous town called Swords. It would have done any man good to see how diligently they wrought, how they re-edified the spoiled old castle and repaired almost all the same, and how goodly and cleanly they and their wives and children lived. They made diaper and ticks for beds and other good stuff for man's use, and excellent good leather of deer skins, goat- and sheep-fells, as is made in Southwark.' And he spoke with becoming indignation of the infringement of a law which he had caused to be made for the benefit of Ireland, and which he had restrained himself and his predecessors from contravening. In the forgotten story of these monopolies we have a foreshadowing of Wood's halfpence, and it is possible that the Drapier was not ignorant of the precedent.^[185]

Dutch weavers in
Ireland.

Sir John Perrott, of an ancient Pembrokeshire family, but supposed by some to be a son of Henry VIII., was the person selected for the task of reducing Munster. He had been made a Knight of the Bath along with Ormonde at Edward VI.'s coronation, had served at St. Quentin, and in 1560 had again been the Earl's companion in the tilt at Greenwich, where, in presence of the French ambassador, he maintained Elizabeth's quarrel against all comers. In running a course with Mr. Cornwallis both riders lost their tempers and fell to tilting in the Queen's presence with sharp lances and without armour—a pastime which she soon put a stop to. The story is characteristic of the gallant but imprudent man who played so great a part in Irish history. His taste and magnificence, perhaps his extravagance, may be guessed from his additions to Carew Castle—a manor which had been granted to him by Mary in spite of his Protestantism and of his refusal to persecute other Protestants. Ormonde now declared that his old comrade should be Lord President even against his will, and to judge by the delay he was neither anxious for the honour nor in a hurry to begin the work. [\[186\]](#)

Sir John Perrott,
President of
Munster, 1571.

The salary of the Lord President was fixed at 133*l.* 6*s.* 8*d.*, as in the case of Connaught, and he was allowed thirty horse and twenty foot in the Queen's pay. The first Chief Justice, with a salary of 100*l.*, was James Dowdall, afterwards Chief Justice of the Queen's Bench. Nicholas Walshe, afterwards Chief Justice of the Common Pleas, was second justice, with a salary of 100 marks. Thomas Burgate was the first Clerk of the Council, which originally consisted of the Archbishops and Bishops of Munster and of the Earls of Ormonde, Thomond, and Clancare, power being reserved to the Lord Deputy to appoint additional councillors at his pleasure. The Council had all the judicial authority of a Court of Assize. The Lord President was not to be out of his province for more than six days without the Deputy's license; but special leave was given to Sir John Perrott to visit his estate in Pembrokeshire and to return within one month. The liberties of Tipperary were not to be needlessly infringed, but those of Kerry were declared to be null and void. The Lord President and Council were to assist all officers, civil and ecclesiastical, to maintain their proper authority, and the following curious provision was made in furtherance of religion as by law established:

Perrott's
instructions.

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‘The said Lord President shall have and retain one chaplain or minister that shall and can preach and read the Homilies; who shall be allowed his diets in the household of the said Lord President, and shall receive the entertainment of one of the house assigned to the President; to whom the Lord President shall cause due reverence to be given, in respect of the office that he shall have for the service of God.’

The Lord Deputy and Council were generally charged to look after all the rights of the Crown in Munster, but were not to infringe the liberty of the subject by quartering unnecessary men on the country, the Lord Deputy and Council being the judges of what were cases of necessity.^[187]

How much Sidney hated the Irish service may be learned from his letters, almost every one of which contains a prayer for recall. Yet Fitzwilliam, the second string to the English bow in Ireland, hinted that he was unwilling to retire. Fitzwilliam always declared himself loth to accept the high but thankless office, but both these able men may have been more attached to power than they would confess to themselves or to their friends. The establishment of presidencies had been Sidney’s great panacea, and he waited only till Munster as well as Connaught was provided for. In the meantime he made arrangements for Northern affairs, which under the presidency system were to be peculiarly the care of the Lord Deputy. Tirlogh Luineach entered into a treaty of peace with all the Queen’s subjects to be inviolably observed until the Queen’s further pleasure should be known. Tirlogh Luineach claimed Maguire and MacMahon as his ‘urraghs’; but this the Lord Deputy refused, agreeing, however, to give them the temporary benefit of the peace. Tirlogh Luineach’s wife was a party to this treaty, who informed Morton that she was the real author of it, and begged him to support her husband’s messenger at the English Court. The Scots were thus held in check for the time, and Sidney further secured the Pale by an agreement with the O’Farrells, whereby they covenanted to surrender all their lands and receive them back from the Queen, to pay a quit rent, to attend hostings, and to have their whole district treated as shire ground, paying the subsidy of 13s. 4d. for each plough land. O’Farrell Bane, the principal chief, is described as of that ‘place called Pallas in the county of Longford,’ where Oliver Goldsmith was born.

Sidney goes to England. Sir W. Fitzwilliam is Lord Justice.

Arrangements for the surrender of their lands and for taking them back by grant were also made with MacBrien Arra in Tipperary, and with the Kavanaghs; and Sidney, having installed Perrott in his Presidency, and thus provided both a scourge for the rebels and a counterpoise for Ormonde, sailed for England, and left the government in the hands of Sir William Fitzwilliam.^[188]

While Ormonde was reducing the rebellious O'Briens, Lord President Fitton was practically shut up in Galway, and Sidney sent a force under Basnet and Collyer to relieve him. With their help and with that of Clanricarde he was able to besiege Shrute Castle, the key of Lower Connaught; but Shane MacOliver Burke, claiming to be MacWilliam Iochtar, collected the youth of Mayo and Connemara, and attacked Fitton's camp with great determination. He had also some Scots mercenaries. 'They resolved that if the son or kinsman of one of them should be slain, they would not stop with him, but pass over him at once.' The President's Irish and Scotch auxiliaries were driven in, and the Burkes chased them for two miles, when the English cavalry, who had remained in reserve, turned the tide by charging them in the rear. Both sides claimed a victory, but the success was Fitton's. The Burkes retired, and the castle which they had come to relieve was at once taken.

Fitton cannot govern Connaught.

Though badly supported by his followers, Clanricarde did excellent service on this occasion, but Sidney was unable to feed or arm a large force, and the victory could not be practically followed up. Fitton could do nothing without English soldiers, and they could not be maintained without cessing the country. The people hardly knew how to choose between imposts in the Queen's name and the exactions of their own chiefs. A poor woman complained to Shane MacOliver of the intolerable burden of his Scots mercenaries, whereupon 'he fell into a study, and after some pause said openly, "I am in a miserable case. If we stand out altogether and maintain Scots for our defence, I see the destruction of the country; again, if I shall take upon me the name of MacWilliam, I shall be driven for maintenance thereof to spoil it myself, and if we shall submit ourselves to the English nation, they will be as burdensome as either MacWilliam or Scots. God give me grace to do the likest."' ^[189]

A chieftain's dilemma.

Fitton says Shane MacOliver's speech grieved him to the heart, for he could not deny its truth, and yet he thought the presence of the soldiers was of some use in keeping the peace. The country was as safe to travel, he said, as the English Pale, but 'I and my men also live most part without any money, and they almost without clothes for lack of money.' Peace was maintained on very precarious terms. O'Connor Don lay in Athlone Castle as security for all his clan, but some of his friends brought one of the light Shannon boats or 'cots' under the walls, into which he stepped and bid farewell to his host. Fitton sallied forth next day, took and garrisoned his chief castle of Ballintober, and declared that that stronghold, along with Shrute and Longford, would have to be always held. O'Connor Don and MacDermot and all the gentlemen of Mayo were indicted, with the view of entitling the Queen to the northern half of Connaught; and Clanricarde's sons were indicted also. But the O'Connors, having got their chief out of prison, cared nothing for the lawyers, and ranged the country at will. Their men, who between Scots and natives were not less than 1,000, never showed themselves except when numerically superior. Mr. Moore, lieutenant to Captain Maltby, was wounded in a skirmish, and sixty-four of his troopers deserted; very naturally, considering the way in which they were treated. They seem to have made their way to Dublin, where Fitzwilliam punished a few, and persuaded the rest to return. In surrendering the sword, Sidney had not the satisfaction of seeing his favourite project of presidencies entirely successful. [\[190\]](#)

It is doubtful whether English law or Irish custom is best.

Among countless reports on the state of Ireland, one by Edmund Tremayne, who had been acting as Sidney's secretary, deserves particular notice. In general, he says, the people had no conscience, but committed crimes freely; and they had so little morality that they even changed wives among themselves. Bridges were falling down, churches were roofless, and no new charities had replaced the old monastic ones. Good schools there were none, for no teacher could be sure of being paid. In the law everything was jobbed by certain families, and even the judicial bench was filled with unlearned men. Bills were therefore badly drafted, justice was thwarted, and there was general hostility to reform. Bad in Dublin, matters were worse in the country, where courts of quarter sessions, courts leet, and courts baron

Tremayne's report on Ireland.

existed only in theory. Every lord hated the restraints of law, and made himself an Irish chief. English officials were no better, and there was little apparent difference between a seneschal and a native captain, disorders being as great among English soldiers as among Irish kernes and gallowglasses. All Englishmen made parties among the Irish, and everything tended to go daily from bad to worse. ‘An excellent, unspotted character,’ said Archbishop Loftus, ‘is a rare thing in this realm.’^[191]

While Perrott was preparing to enter upon his long and arduous career of Irish service Ormonde made a winter journey into Kerry, where there were rumours of a French descent. About the time of the Lord President’s landing Fitzmaurice, who had been lurking about Tipperary with less than 120 ‘naked villains afoot,’ suddenly appeared at the head of a considerable but almost unarmed force, surprised and burned Kilmallock. Again there was suspicion of collusion, for he only killed two of the townsmen, and against those two he had a personal grudge. But the native annalists say the plunder was great, and they speak in a way which shows how insecure was Irish life. Plate, they state, was taken, ‘and jewels which the father would not have acknowledged to his heir or the mother to her daughter on the day before.’ The same writer says that Kilmallock became an abode of wolves, and Perrott advised that the Queen should give 200*l.* to induce the miserable people to return.

Ormonde in Kerry.
Kilmallock an
abode of wolves.

Ormonde might have saved the town but for Sir Thomas Roe Fitzgerald, who sent him word to guard Dungarvan and Youghal. Considering what afterwards happened to Youghal, the advice of Sir Thomas may have been honest enough, and Fitzmaurice was not likely to make him his confidant; but Ormonde could think of nothing but treason in any member of the rival House. Later on, when Fitzmaurice had killed four of Sir Thomas’s men, the Earl was more inclined to blame his ally for folly than for infidelity; in any case, he pronounced him useless. He inspected the walls of Youghal and found them weak defences, the circuit being too great to be held by less than 300 men, and the townsmen too poor to support such a garrison. He left them the few men they asked for, and made arrangements for mounting what guns they had, but complained that they were too careless of their own security. Kilmallock deserved to be punished for its negligence or worse; but Edward

The Butlers again
do good service.

Butler recovered great part of the cattle, and, eager to earn his pardon, pursued Fitzmaurice, and ‘killed one of his dear foster brethren.’ Ormonde himself travelled on foot all over the Aherlow forest, but none of the rebels would even skirmish, and it was evident that Munster could only be reduced by the steady pressure of a regular force. Believing that Sidney would lay the blame for the loss of Kilmallock on him, Ormonde drew the attention of the Home Government to the fact that he had relieved Youghal, and was holding castles in Thomond and elsewhere for the Queen at his own expense, that he had neither English soldiers nor provisions allowed him, and that his own country was defenceless while he was occupied in the public service.^[192]

Having taken the oath before Sidney in Dublin, Perrott went to Cork, where he found himself at the head of about 700 men, 200 of which were Irish. From Cork he went to Kilmallock, where he lodged in a half-burned house, and issued a proclamation to the townsmen to return and repair their walls and buildings, which in course of time they did. He then pursued the rebels, whom he came up with at Knocklong. The Irish fled into the bogs, whither Perrott’s soldiers followed them barefooted, carrying light cavalry lances instead of pikes. They returned with a trophy of fifty heads, with which the Lord President decorated the market-cross at Kilmallock for the edification of those citizens of Limerick who had complained of losing their goods. Lord Roche’s cattle were restored to him, and Perrott, having made Kilmallock defensible, marched towards Limerick. A castle belonging to the Burkes of Clanwilliam blocked his way, but part of the wall fell after three hours’ mining, and the chief’s wife then surrendered. Thomond, O’Shaughnessy, and Sir Thomas of Desmond came to him at Limerick, and he then went to Cashel. His march was again impeded by a castle, which he took ‘by shooting of fire up into the top, which was covered with thatch.’ The blaze and the noise of the falling roof frightened his picketed horses—he had about 200 mounted men—who broke loose and ran off into the woods, where they were caught by the rebels, and in some cases not recovered. At Cashel he hanged seven Gray merchants for supplying the enemy with provisions, the chief magistrate of the town hardly escaping the same fate. From Cashel he went by Fethard and Clonmel to Ormonde’s house at Carrick, and thence by Lismore to Cork, taking the strong castle of

Perrott’s first campaigns. Great hardships.

Mocollop on the way. At Cork the President was attended by Clancare and Thomond, who had now made up their minds as to which was the strongest side, by Lords Barry, Roche, and Courcy, and by MacCarthy Reagh and Sir Cormac MacTeige. The White Knight's country was again invaded, his castles taken, and himself driven into the woods. The Glen of Aherlow was then entered without much result, and after a few days' rest at Cork Perrott marched against the MacSwineys. The style of warfare may be gathered from his biographer's words. 'He slew many of the rebels, and hanged as many as he might take, whom the Marshal executed always as he went along; so that they took a great prey, spoiled all the enemy's country, and with continual travel wore out all their provisions, having no corn in the country left to make their bread, which the President himself wanted for divers days, their chief sustenance being the milk of those kine that they had taken.'

The hardships of such warfare must have been very great, Ormonde recommending Captain Warde and his men to special consideration for doing such winter service as was never done by soldiers; service from which they returned bare-footed and bare-bodied. Their sad plight grieved him to the heart, but he could do nothing for them. The Lord President did not spare himself. On one occasion his foot hurt him as he was struggling through a bog in pursuit of the rebels. 'My Lord,' said an officer, 'you have lost your shoe.' 'It matters not,' said Perrott, 'as long as the legs last we shall find shoes'; and he called for another pair, and trudged on again. Another day some gallowglasses roasted a hog whole with the hair on, 'and in great kindness did reach a piece of it to one of the Lord President's servants, being a gentleman of good sort, and a justice of the peace in his county.' Perrott made a jocular remark about the quality of the meat. 'An' it please you, sir,' said the other, 'it is good meat here among these men, but if it were at home I would scarce give it to my dogs.'^[193]

Perrott's personal
behaviour.

Want of provisions was the great difficulty: all peaceable men having been robbed of their cows and horses. The MacSheehy and MacSwiney kerne swarmed everywhere, and just as Fitzmaurice appeared to be at his last gasp, he managed suddenly to collect a strong force of these idlemen, obliging the Geraldines to provide for their maintenance. Many of the native lords

Fitzmaurice still
holds out.

sympathised with him, being afraid of losing their captainries, and they gave him information. Perrott was never strong enough to divide his own force, and his light-heeled adversary roamed at will from Aherlow to Castlemaine, and from Glenflesk to Baltimore. No one was safe for a moment. Thus Miler Magrath, the Queen's Archbishop of Cashel, having ventured to arrest two friars for preaching against the Queen's policy, Fitzmaurice ordered their release. The poor friars, he said, preached the Word of God to people blinded with ignorance for years for want of good pastors, and the light of salvation, by reason of long obscurity, was much needed in Ireland. If they were not released all houses and buildings belonging to the Archbishop should be burned to ashes. The letter which contained this wise and sober advice, as the Geraldine leader called it, finished with an invocation of the Blessed Virgin, and there could be no doubt about the danger of the Church as established by law. Edward Butler rescued the friars to show his power, and perhaps to establish communications with the Archbishop, and then offered to pursue Fitzmaurice with all his might upon condition of pardon. Magrath and the Dublin officials advised that, though Butler deserved ten deaths, it would nevertheless be better to accept his offer. ^[194]

To the possession of Castlemaine Perrott attached great importance, and extensive preparations were made for besieging it. The cannon were delayed by storms on their passage from Limerick. The castle, which stood on arches in the water, proved stronger than was supposed, and all the powder was expended without making a breach; there were at the time only three cwt. in Dublin. In want of almost every requisite for successful war, Perrott withdrew his famished army after a siege of five weeks. On returning to Cork he found that Fitzmaurice had not been idle in his absence. Captain John Morgan, who was to have co-operated with the President by sea, seeing the rebels driving cattle along the shores of Cork harbour, landed and rescued them, and followed the foragers till they reached their supports. Seeing the English sailors, whose behaviour, as Ormonde said, was more like that of ignorant beasts than of trained soldiers, at a safe distance from their boats, Fitzmaurice attacked them vigorously, drove them into a ruined church, and overwhelmed them with showers of stones. Thirty-three were thus ignobly slain; only two prisoners

Perrott fails to take Castlemaine. An English captain surprised.

were taken, and these were sent back. In consequence of this disaster, the ships which should have supplied the besiegers of Castlemaine lay idly at anchor.^[195]

FOOTNOTES:

[178] Rokeby to Cecil, Jan. 4, 1570; Fitton to Lord Deputy, Feb. 22; N. White to Cecil, Feb. 9; Clancare to Gilbert, Feb. 22. The assizes at Ennis were about Feb. 1. Norfolk had been in the Tower since October. The Bull of Pius V. excommunicating Elizabeth was dated Feb. 25, though not posted in London till May. An Irishman, one Cornelius, is said to have helped Felton.

[179] Sidney to the Privy Council, May 4, 1570, with the enclosures; to Carew, May 28; articles with the Earl of Thomond, April 23, 1570, in *Carew*.

[180] Ormonde to Sidney, June 4; Thomond to the Queen, July 23; Sir H. Norris to Cecil, July 22 and 23; to the Queen, Aug. 9 and 11; the Queen to Norris, July 30; submission of Thomond, December 21, 1570; Morrin's *Patent Rolls*, September 25, 14 Eliz.; Informations, &c., Nov. 7. Chief Justice Rokeby went over from Connaught to detail Thomond's misdeeds, which indeed could not be denied; but he seems to have been thought too foolish to do much harm. Sidney calls him 'ox' and 'lubber.' Brief Relation in *Carew*, 1583.

[181] Ormonde to Sidney, April 27; Sidney to Carew, May 28; to the Privy Council, May 4; the Queen to Sidney, May 17.

[182] The session began May 26. Ormonde to Heneage, July 4, 1570; to Cecil, July 24, 1569, and Dec. 7, 1570; to Burghley, June 28, 1572; Sidney to Privy Council, June 24, 1570; Weston to Cecil, June 28. There is a valuable memoir of Sir Edmund Butler by the Rev. James Hughes in the *Irish Archæol. Journal*, 4th Series, vol. i. Morrin's *Patent Rolls*, ii. 640.

[183] Sidney to Cecil, Oct. 17, in the *Sidney Papers*. *Irish Statute Book*, Note of Bills, May 1570.

[184] Memorandum of Causes, &c., 1572 (No. 49).

[185] Opinion of her Majesty's learned counsel against the legality of the monopolies, April 11, 1573, signed by R. Dillon, L. Dillon, J. Dowdall, N. Nugent, J. Plunkett, R. Talbot, and C. Fitzsimon; of whom the first four had been Attorney- or Solicitor-General. Sidney's Summary Relation in *Carew*, 1583. The Queen to Sidney, May 29, 1578, in *Carew*; Mayors of Dublin and Drogheda to the Queen and to Burghley, June 30, 1572; to the Privy Council, Aug.; to Lord Deputy Fitzwilliam, Jan. 6, 1573; to the same, March 25; several letters from Gilbert Gerrard, and Middlemore in 1578; Lord Deputy Fitzwilliam to Burghley, July 18, 1573.

[186] Naunton's *Fragmenta Regalia*; Perrott's *Life*; Ormonde to Cecil March 5, 1570.

[187] Formular of Instructions, &c., in *Sidney Papers*, Dec. 14, 1570; Morrin's *Patent Rolls*, i. 546.

[188] Treaty with Tirlagh Luineach O'Neill, March 3, 1571; with O'Farrell, Feb. 11; Agnes Campbell (O'Neill) to the Earl of Morton, March 17; O'Donovan's notes to the *Four Masters*, 1570 and 1571; Fitzwilliam to Cecil, Feb. 5 and 11, 1571. Perrott landed at Waterford, Feb. 27.

[189] Sidney to the Privy Council, June 24, 1570; Fitton to Cecil, August 27. *Four Masters*, 1570.

[190] Fitton to Cecil, Feb. 8 and Feb. 19, 1571; to the Lord Deputy, March 9 and 11; Fitzwilliam to the Queen, April 7.

[191] *Causes why Ireland is not Reformed*, by E. Tremayne, June 1571; Loftus to Burghley, July 8.

[192] Ormonde to Burghley, with enclosures, June 18, 1571; to the Lord Deputy, March 3 and 18; Fitzwilliam to Burghley, March 15; Ormonde to Cecil, Dec. 7, 1570 and Feb. 27, 1571; to Fitzwilliam, May 1. *Four Masters*, 1571.

[193] *Perrott's Life*. N. White to Burghley, April 9 and May 15. These operations were in April and May, 1571.

[194] Fitzwilliam and Weston to the Queen, with enclosures, July 31.

[195] Ormonde to Burghley, June 27, 1571; Brief of Expenses, Sept. 7; Fitzwilliam to Burghley, July 31. The siege of Castlemaine lasted from June 21 to July 27. To judge from slight remains, this renowned stronghold must have been small: probably, as in many other cases, the garrison ordinarily lived in thatched houses on the mainland.

CHAPTER XXVIII. FOREIGN INTRIGUES.

No doubt Fitzmaurice was encouraged in his seemingly desperate task by the hope of succour from France or Spain. The fear of losing their lands bound the Irish chiefs and nobles together, but that would not weigh one grain with any foreign potentate. The chiefs were doubtless with few exceptions Catholics, but that alone would not have tempted them to incur the penalties of treason any more than it tempted Protestants like Cecil or Perrott to conspire against Queen Mary. Sir Edmund Butler fought against Sir Peter Carew, but not against the Queen. The Desmonds and their allies fought against the St. Legers and Grenvilles and against their hereditary foes of the House of Ormonde. The O'Neills feared schemes of colonisation: if the Queen would let them alone they asked for no other sovereign. Purely Irish interests were sure to be sacrificed by France, Spain, and Rome; but Catholicism was an inheritance in which they all shared.

Fitzmaurice wishes to make it a religious war.

Fitzmaurice therefore lost no opportunity of giving the struggle a religious character, and there were plenty of abuses in Ireland calculated to scandalise the devout as well as to give a handle to those who were actuated only by worldly motives. Irish priests at Louvain, often men of honesty and virtue, took care to tell English travellers that the Lord Deputy had one archbishopric and two bishoprics in farm, Cashel for 40*l.*, the others for less; that the revenues of one see supported the grand falconer, and those of another the clerk of the kitchen—‘sufficient parsons no doubt to have such cure of Irish souls as the English doctrine will permit them to have at this day.’ The deanery of St. Patrick’s was appropriated to the support of the Great Seal, much to the disgust of the Chancellor Weston, a pious and conscientious man, who saw

Catholics at Louvain.

the abuse clearly enough. The parsonage of Dungarvan was assigned for the maintenance of the Lord President. Laymen were appointed to ecclesiastical dignities. English Jesuits who found their way to Ireland could report these things on the Continent, adding that Sidney's gentleness did their cause more harm than any severity could have done. ^[196]

Fitzmaurice was a sincere enthusiast, and no doubt he thought that the Queen's misdeeds and excommunication would bring about a crusade; but the days of Boniface were past, and little help was vouchsafed, though rumours filled the air. A messenger from Spain touched at Cork Beg at the mouth of Cork Harbour, where he left news for the seneschal, and then went on to join Fitzmaurice in the Aherlow woods. He reported that a great fleet was coming to Dingle. Some ships from Brest and Morlaix did visit that secluded haven, but only to carry off Fitzmaurice's son, who set quietly to work to seek recruits in Brittany. About thirty years before Peter Strozzi had proposed to make a Calais on some Irish island; this plan was now revived, but probably Delacroix reported against it.

Foreign rumours.

There was much trade between Spain and the west of Munster, the foreigners carrying away fish, beef, hides, and tallow in exchange for wine and sometimes for arms. Don Juan de Mendoza came in a ship belonging to John Hawkins, and by his charming manner at first disarmed Sidney's suspicion; but a penniless Italian adventurer—a Lucchese named Josefo—informed him that the Biscayan hidalgo had been sent by Alva to excite an insurrection in Ireland. Josefo managed to get hold of the Spaniard's letters, but the packet was so sealed as to defy tampering. The Italian, who was known for his attachment to the Queen of Scots, and who was perhaps a double traitor, offered to go to Alva for the purpose of getting information. Sidney, at Mendoza's request, licensed Josefo to go to France. His route necessarily lay through England, and the Lord Deputy sent Cecil word that he might waylay him there and detain him or not as he thought fit. Fitzwilliam, more cautious than Sidney, objected to any foreigner becoming acquainted with Ireland as Mendoza had done; and in this he was probably right. The Spaniard protested his innocence, and affected to be aggrieved by a detention of eighteen months, while speaking in high terms of Sidney's and of Gilbert's courtesy. Yet Fitzwilliam's caution was evidently more to

A suspicious Spaniard.

Burghley's taste, for three German counts who had a mind to visit Ireland a year or two later received introductions accompanied by secret instructions to show them nothing which could decently be concealed. ^[197]

Foreign powers, however, were not likely to want information, for Fitzmaurice sent Maurice Reagh Fitzgibbon, the papal Archbishop of Cashel, to Philip. Fitzgibbon went from Spain to Bordeaux, where the Bishop presented him with a good horse to ride during his stay. He told certain Youghal merchants that he was come to seek help from the French King, and was allowed openly to rig ships and to press men. The Guises sent emissaries to keep Ireland disturbed, and the appearance of a fleet under the Duke of Medina Celi was the appointed signal for a general rising. A combined invasion by French and Spaniards was looked for daily, and one of Burghley's spies, a Catholic by birth and in constant communication with the Bishop of Ross, obtained accurate information as to the hopes of the papal party in Ireland.

Archbishop
Fitzgibbon on the
Continent, 1571.

The gentry of the Pale and of the greater part of Leinster were Catholics at heart, looking for an opportunity to throw off the mask. In Ulster all were ardent Catholics, banded together under the influence of the Jesuit David Wolfe, whose orders, issued from his prison in Dublin Castle, were generally obeyed. All Connaught was anti-English. In the Desmond half of Munster all were Catholics and confederates, who expected a large army from Spain and France, in which latter country Thomond had sowed good seed. Ormonde, indeed, was unnaturally loyal, but that was the only dark spot. The Ulster, Connaught, and Munster bishops were Catholics; those of Leinster only Protestant. The Northern clergy looked to Raymond O'Gallagher, Bishop of Derry, who had lately returned from Rome with a large budget of orders; the Southern waited on the word of Maurice Reagh Fitzgibbon, who was already in Spanish pay, and who was the head and front of the whole conspiracy. ^[198]

Irish Catholics.

The case of the Catholic confederates can best be told in Fitzgibbon's own words. In recommending his suit to Philip and to the Pope, he recited the fidelity of Ireland to the Holy See during the 1,127 years which had

Fitzgibbon's
account of Catholic
Ireland.

elapsed since the time of St. Patrick and Pope Celestine, and then continued:—

‘Notwithstanding that for fifty years they have been very often sorely provoked, molested, and afflicted by divers schisms, errors, and heresies of the unstable and restless sect and nation of the kingdom of England, yet has God’s clemency preserved all your people firm and steadfast in their accustomed Catholic faith, obedience, and devotion, and has inspired them not to acquiesce in the errors propounded to them.

‘Your Holiness and your Catholic Majesty must know that all the nobility and the entire people of that kingdom wish to walk as usual in the footsteps of their forefathers, and to remain firm, steadfast, and constant in the same faith and unity of the Catholic Church, and to persevere to the death in perpetual obedience and devotion to the supreme Pontiffs and to the Apostolic See. They hate and abhor sects and heresies so much, that they prefer to leave their homes and go abroad rather than to live under heretics, or to acquiesce in the errors and restlessness of the English, who, in the last schism under Henry VIII. and Edward VI., plundered and devastated the churches and monasteries of Ireland, proscribed and afflicted Catholic bishops and religious persons, and threw the whole population into the greatest confusion. This Queen Elizabeth has revived the tragedy, and has imprisoned the chief bishops and other religious persons of the kingdom for their perseverance in the faith and their Catholic obedience, and throughout the whole island has executed the policy of her father and brother with the greatest determination and vigour, sending new preachers and heretical bishops with great store of heretical books to be circulated among the people. Wherefore the people of that kingdom with all humility pray God without ceasing that He will pity their calamities and end their afflictions, and that He will condescend so to inspire the minds of his Holiness and of the most clement Catholic King, that they may be pleased to make it their immediate care that that people, devoted as it is to God, to his Holiness, and to his Catholic Majesty, shall not be contaminated and destroyed by the accursed and contagious heresy which flourishes in England.

‘Your Holiness and your Catholic Majesty must know that it has long been, and now is, the highest desire of the nobility and all the people of that kingdom to come absolutely under the patronage and protection of his

Holiness, and of the most clement and Catholic King of Spain, to whom all men of position and property in that island look directly for the means of avoiding the affliction and danger of the heresy and schism in the ever-changing kingdom of England. They have, therefore, deliberately resolved, with God's help and the favour of the most clement Catholic King, to accept the person of any active Catholic Prince of his Catholic Majesty's blood, whether of the Spanish or Burgundian branch, specially appointed by him for the purpose, and to receive him and crown him as their true, legitimate, and natural King, and thus to re-establish in perpetuity the royal throne of that island,^[199] and to venerate the presence of one King, one faith, and one kingdom, the donation of that island having been first obtained from and confirmed by the Apostolic See. Thus they hope to remain henceforth for ever in their accustomed obedience and devotion to the supreme Pontiff, and in union with the Holy Catholic Mother Church of Christ, and in their pristine friendship and alliance with the Royal House of Spain, from which nation the whole nobility of that kingdom derived its origin.

'Not without cause do all the states of that island most strongly desire this, since that kingdom in extent, in its temperate climate, in its fertility, and in its wealth, might well vie with the kingdom of England, if only it were ruled justly and piously by a religious resident Catholic Prince or royal head. They all in general detest the tyrannous and inconstant yoke of the English State, and still more its heresies, with which they desire to have nothing in common, except neighbourliness and Christian love.

'Underwritten are the names of those prelates, chiefs, barons, and nobles who are thus well-disposed towards the Holy Apostolic See, and that most potent prince the Lord Philip, King of all the Spains.' Then follows a list of all the nobles, prelates, chiefs, and towns in Ireland who were prepared to promote Spanish interests in their country, 'together with those of many English residents in the island.' The Archbishop urged Philip to seize at once all Irish forts and harbours, a proceeding which the English were in no condition to prevent. 'Success,' he said, 'altogether depends on celerity, for your Majesty will be able to do with 10,000 men and a little expense what you will not afterwards be able to accomplish with 100,000 men and all available power.' We know from other sources how weak the English Government was at this time, and how difficult it would have been to

dislodge even 5,000 Spaniards; but to ask Philip to do anything quickly was as vain as speaking to the winds or writing upon the running water. ^[200]

Yet Fitzgibbon certainly did not underrate the importance to Spain of an Irish alliance. Few will think that the resources of Ireland were at any time equal to those of England. Of the twelve prelates whom he enumerates not more than three or four were in a condition to give an invader material help. Among the six Earls whom he mentions Desmond was a prisoner in England, Ormonde a loyal subject of Queen Elizabeth, and Clanricarde at least not actively disloyal. There was no Earl of Tyrone. Thomond and Clancare were ready enough both to rebel and to submit when pressed. The Irish chiefs were all Catholics no doubt, but nothing like continuous combined action could be expected from clans who had from time immemorial been fighting against each other. From the chartered towns a Catholic prince might expect much sympathy, but very little open aid; England had always been strong enough to punish them. Forty years before, Charles V., after a careful investigation, had made up his mind that the Desmonds could not be maintained against the Tudors, and the more he learned about the matter the less likely was Philip to disagree with his father's opinions.

Fitzgibbon too sanguine. Philip II. hesitates.

Some account must now be given of one of the most extraordinary adventurers which even the England of the sixteenth century produced. Thomas Stukeley, a gentleman belonging to an old English family in North Devon, having run through his younger brother's portion by riotous living while in the Duke of Suffolk's retinue, sought after his patron's death to enrich himself at the expense of others. Claiming a legacy from another West-countryman, Serjeant Prideaux, he broke into the testator's house and searched his coffers in spite of an injunction to the contrary. He tried piracy for a while, and was imprisoned in the Tower at the suit of an Irish gentleman whom he had robbed. His friends managed to procure his enlargement, and he soon persuaded the only daughter and heiress of Alderman Curtis to marry him. When his father-in-law died he spent his money in every kind of dissipation. If a balladmonger of the day may be believed, he squandered 100*l.* a day, selling at last the blocks of tin with which the Alderman,

Thomas Stukeley.

probably a Cornishman or Devonian, had paved the yard of his London house. When all was gone he deserted his wife.

‘Make much of me, dear husband,’ she did say.
‘I’ll make much more of thee,’ said he,
‘Than any one shall, verily:’
And so he sold her clothes, and went his way.

His magnificent patronage had been extended to travellers, one of whom dedicated to him a description of the countries bordering on the Baltic, and, like other Devon men, he looked to the sea as to his native element. The Queen licensed him to found a colony in Florida, and he promised in his usual vein of braggadocio to write to her ‘in the style of princes, to our dearest sister.’

The Queen directed Sussex to give his flotilla shelter in the Irish ports, and from that time he is connected more or less closely with the history of Ireland. He had made friends with Shane O’Neill during his residence in London. Stukeley never went to Florida, but with a ship of 400 tons, containing 100 tall soldiers besides mariners, he appeared upon the coast of Munster in his true character of pirate. ‘I fear,’ said Sir Thomas Wrothe, ‘he will make the sea his Florida. He hath been reached at to be caught, but it will not be yet.’ Caught he was at last, and in great danger of hanging, for Elizabeth was very angry at his piracies; but Shane O’Neill wrote on behalf of his old acquaintance, professing to believe it quite impossible that he could have done anything against Queen or laws. Even Arnold was captivated, or perhaps was determined to see things in the same light as Shane. At all events, Stukeley found some favour, for he was allowed to enter into recognisances as to the charges of piracy, and to go back to Ireland with recommendations from Cecil, Leicester, and Pembroke. Sidney not only showed him favour, but at Shane’s own request employed the desperate adventurer as a go-between, and the success of the negotiations was such as might have been expected from the diplomatist’s character. Stukeley next persuaded Sir N. Bagenal to sell him his office of Marshal and his lands in Ireland for 3,000*l*. Irish. Sidney was inclined to sanction the

Stukeley’s adventures. He goes to Spain.

bargain, but the notion of Stukeley being employed in such an office was much disliked in England. Cecil did not approve of it, and the Lord Deputy had gently to remind him that he had himself written in Stukeley's favour. Elizabeth, who seems to have correctly judged the adventurer's character, railed at him in good set terms, would not hear of his appointment, and ordered him to be sent home to answer the charges made against him in the Admiralty Court. Those who love to depreciate Elizabeth should remember how well she saw through the specious villain who deceived Burghley, Sidney, and Philip. It is likely enough that Stukeley would never have paid Bagenal. Had he found the 3,000*l.* it would probably have been either the profits of piracy or a bribe from Shane O'Neill. He neither returned to England nor gave up his evil courses, being soon afterwards in trouble for buying stolen goods from pirates. Sidney remained his friend, and placed him in temporary possession of the seneschalship of Wexford, vacant first by the absence and then by the death of Sir Nicholas Heron; but the Queen was obdurate, and the coveted office was given to Nicholas White, against whom Stukeley immediately began to intrigue, representing the successful candidate as a creature of Ormonde and an enemy to the Lord Deputy. He was rash enough to say that he did not care a straw for the Queen or her office, and finding his powers for mischief too limited in Ireland, and himself in danger of arrest, he went to Spain and offered his services to Philip. Mendoza assured Cecil that he knew nothing about this journey, but of course his statement was not believed. [\[201\]](#)

Knowing Stukeley's antecedents, it is extraordinary that Sidney should have taken no pains to stop him, and should have believed that he and his motley following were going to London to see the Queen. Stukeley had already been some time in communication with Spain, and it is impossible to believe that Sidney was privy to his designs; but it is hard to understand the treatment he received.

Stukeley and
Fitzgibbon in Spain.

He was allowed to purchase the 'Trinity,' of Bridgewater, and to spend five weeks at Waterford waiting for a wind and lading a cargo of malt, wheat, beans, and fourteen horses. The crew consisted of twenty-eight men, English and Irish except one Italian named Alessandro Fideli: only Fideli and the pilot knew the ship's destination. A run of five days brought them to

English and Irish
parties there.

Vivero, in Galicia, whence Stukeley sent Fideli and Raymond Digby to the King at Seville. Archbishop Fitzgibbon afterwards informed Philip that many of Stukeley's company were in despair when they found themselves in Spain, not daring to go back to England or Ireland, and destitute of resources. 'He threatens them in case they attempt to return to their country or go elsewhere to put them in prison or something worse—that is, to throw them into the sea, for they are in his ship, as he treated others on a former occasion. Your Majesty can be well informed of all this by the same Irishmen who are here or in Galicia on this condition, that the same Thomas Stukeley be never told who gave the information; for on other terms they will never tell the truth, fearing this man, who has always been most singularly revengeful in his wickedness.' Stukeley's messengers returned with 200 ducats, and Philip afterwards sent a pursuivant with 1,000 more to bring their leader to Madrid, where he or his son received a further sum of 3,000 ducats. Stukeley was lodged at the King's cost, a Catalonian knight of Calatrava, Don Francis de Merles, being assigned to him as companion. An emissary of Cecil's was from the first at work to sow dissension between Stukeley and Archbishop Fitzgibbon, who was already disliked by the Duke of Feria. De Silva, the late ambassador in England, was consulted as to the nature of the Irish and Scotch, and he reported that both nations were beggarly, proud, and traitorous. Whatever value Philip may have attached to this opinion, he lavished favours on Stukeley, knighted him, and gave him sums amounting to 21,000 ducats within a few months; 500 reals a day were allowed him for table money, and the King sent his son to Alcala to be educated in the Prince of Orange's company. Stukeley now called himself Duke of Ireland, and made more show than any two dukes at the Spanish Court. The Duke of Feria gave him horses and armour, he lived splendidly in his village near Madrid, and he was allowed to hope for a force of 10,000 men and the twenty-six ships which had brought Philip's queen to Spain. Some said that an expedition under the Duke of Medina Celi was intended for Ireland, and that the whole island would rise as soon as his flag appeared on the coast.^[202]

In France, too, the stir among the exiles was great. Emissaries from Alva spread a report at Paris that the Duke was going to do something in Scotland or Ireland about March 1571. Malicorne, who had represented France at the marriage

Rumours of
invasion.

of the King of Spain, returned with news that Julian Romero, an old soldier who had been wounded at St. Quentin, had actually been despatched to Ireland with 3,000 men. Francis Walsingham, who was beginning his great career as ambassador at Paris, had a conversation with Charles IX., who told him that he hated the Guise faction and that he supposed Queen Elizabeth did so too. Walsingham could only repeat what he heard, but he must have been reassured by the magnificent contempt with which his mistress treated all these rumours. She informed him that certain savage Irish rebels of no value had gone to Spain nominally for conscience sake, whereas they were of no religion, but wholly given to bestiality. Stukeley had joined them, and tried to make himself important by superfluously spending of other men's goods, he being in fact not worth a 'marmaduc.' She marvelled that king or minister should be taken in by such a fellow, and could not believe in Julian Romero and his invasion. It had never been her practice to employ Protestant refugees, of which there were plenty in England, in intrigues against their lawful sovereign, the King of Spain. Walsingham was instructed to complain about the French captain who brought away Fitzmaurice's son, and he was not to be put off with evasive answers either from the French king or from the Spanish ambassador at Paris. The Spanish ambassador, with a proud and disdainful countenance, denied all knowledge of Stukeley or Romero. 'They were no Spaniards who had that enterprise in hand.' The French King promised to punish Mons. De la Roche and the other officers who had meddled in Irish plots; but Walsingham believed neither of them, and advised the Queen to revenge herself by giving trouble in Flanders. The Netherlands indeed tied Philip's hands; for France was not yet a Spanish province with Guise for viceroy, and it was impossible to break conclusively with England until French influence in Flanders should be no longer feared. ^[203]

When Stukeley arrived in Spain Archbishop Fitzgibbon recommended him to Philip without knowing much about him. He said he was daring and clever, that he had a knowledge of Irish harbours and was accompanied by Irish mariners, and that he bitterly hated his own country, to which he could never hope to return. But Fitzgibbon, like Rinuccini in later times, found that there was an irreconcilable difference between English and Irish refugees. The former were quite ready to get rid of Elizabeth, and not to be too particular about

Philip II.'s ideas.

the means; but then Mary Stuart must be their queen. Their Catholic England once established, they had no more idea than Mary Tudor had of suffering an independent Ireland, or an Ireland under foreign sovereignty. Philip knew enough about his late wife's dominions to see that the lesser island would be a most burdensome possession, and that no possible England would ever allow him to hold it quietly. He lavished favours on Stukeley, who was no doubt amusing and might annoy his dear sister-in-law; but he professed ignorance as to the projector's plans, and perhaps never had any serious notion of employing him against Ireland. The island was poor and the people barbarous, and no revenue could be expected. He had trouble enough already with the Flemings, who had long been pouring across the Channel rather than submit to Alva's tyranny, enriching England and draining his own exchequer. To invade Ireland would be to add an English fleet to his other troubles, and very possibly to cause a French occupation of Flanders. He is said to have contemplated seizing the Scilly Islands, which might have been valuable as a protection to Spanish trade; but this idea, if ever entertained, was abandoned for similar reasons. The Irish had offered their country to Philip to escape from England, in the belief, perhaps, that it might be left to themselves. Fitzgibbon saw clearly that this could never be. Had England remained Catholic he would have preferred her rule; now that Catholicism was proscribed he was perforce for the Spaniard.

Fitzgibbon told Philip Stukeley's very unedifying history. At first he had recommended him as likely to be useful, but was now convinced that he was an impostor. 'I cannot,' he said, 'believe that the Irish princes would wish that a private English gentleman should have command in the slightest degree in their kingdom, while they with such obstinacy resist the Queen of England, who has so often offered them peace on good conditions. Therefore, I consider his coming as an act of deception, or an act devoid of common sense, for, as far as I can understand, he has received no commission from the princes of Ireland for your Majesty or any one else.' The adventurer retorted with charges against the prelate's private character, which, whether true or false, had certainly some weight with Philip. Stukeley may have cherished some mad idea of ruling Ireland as a Spanish viceroy. In any case, it is likely that he ill-treated the Irishmen who

Fitzgibbon thwarts Stukeley. The Pope discourages Fitzgibbon.

followed him, for they deserted to the Archbishop of Cashel, who refused to give them up. The Court were divided into two parties—Ruy Gomez, favouring the Archbishop, and the Duke of Feria, with his English wife, siding with Stukeley. There was a further difficulty with the Pope, who considered Ireland his own property, and thought Philip but a lukewarm son of the Church. It was not so very long since Tivoli and Ostia had been occupied by Spanish troops, and the city saved by a sort of accident. Did not the Catholic King, the great-nephew of Catherine of Arragon, the grandson of the great Isabella, keep the peace with his sister-in-law, and bear patiently the many insults of that excommunicated heretic, Anne Boleyn's bastard daughter? The cardinal secretary informed the zealous Irish priest that the Pope was much surprised at his presumption in moving in such matters without special license. He might easily have remembered that Ireland was a fief of the Church, and inalienable without the will of the lord. His Holiness would do nothing unless Philip would sue to him for a grant, and the cardinal secretary would merely venture to guess that such a suit would not be denied. He might, with at least equal probability, have guessed that it never would be made. [\[204\]](#)

Fitzgibbon was horrified at meeting opposition from Rome. He was a fugitive, and his flock was at the mercy of wolves. His pall had been carried off by the English heretics, and he besought the Pope to send him another. If Ireland thought his Holiness alone could have delivered her 'from the jaws of the English,' she would have asked no other master. But other help was clearly necessary; France had none to give, and no State was more orthodox than Spain, which could alone relieve Irish Catholics. Only prompt help could avail, for the power of England increased daily, not only in Ireland, but in France, Flanders, Scotland, and Germany; Catholic interests, indeed, were threatened all over Europe. [\[205\]](#)

Fitzgibbon's
excuses to the Pope.

While Pius V. hesitated and procrastinated, Stukeley swaggered about in Spain, and affected to take the interests of English Catholicism under his protection. A certain Oliver King, a soldier of fortune, was at Madrid, and was accused by Stukeley of heresy; but his daily attendance at Mass, where he 'knocked his breast' devoutly, obtained for King the advocacy of Don Francesco de Merles, and his persecutor was unable to bring him before the Inquisition.

Stukeley in Spain.
Rumours.

He was, however, stripped and banished, and was fain to pass the Pyrenees in the snow, eluding the bravoos whom Stukeley had sent after him. When in safety he wrote to Cecil, giving an account of Stukeley's proceedings, and praying God that he might not see England as he had seen France, the land waste, and the women at the mercy of foreign hirelings. Traitors, he said, abounded, who gaped for Queen Elizabeth's death, and Stukeley boasted that he would give Ireland to Philip. Some 4,000 desperadoes had been got together; rascally ill-armed Bezonians, but officered by old beaten men of war, such as Julian Romero. An expedition was expected to sail almost immediately from Vigo, and King, who had a knowledge of military matters and mining, eagerly offered his services, provided the Queen would pardon him. Another Englishman, who had been in regular correspondence with Norris and Walsingham, was imprisoned for forty-seven days on suspicion, and nearly died of ill-treatment. On being released he was ordered to quit the kingdom. He agreed with King that a descent on Ireland would take place in March or April 1571, and added that Alva had a plan to occupy Caistor and Yarmouth. [\[206\]](#)

Finding that no expedition left Vigo, and that the King trusted Stukeley more than him, Fitzgibbon determined to see what he could do in France. At Bordeaux he was received with honour by the bishop, who gave him a horse to ride during his stay. On arriving at Paris he was at once waited on by Captain Thomas, a native of the Pale in the French service, who offered him such courtesies as were in the English Ambassador's power. He asked and received an introduction to the Cardinal of Lorraine, to whom he manifested his own importance and the weakness of Ireland. Thomas, who had access to the Cardinal, let him know that Ireland was strong enough to resist a multitude—a statement which would have been hardly borne out by Sidney or Fitzwilliam. With better reason the captain reminded his Eminence that Fitzgibbon was a Geraldine, and that the heads of that House were in prison. The Cardinal's demeanour then became cool, and the poor Archbishop began to think that after all Queen Elizabeth might be his best card. A second Irish soldier was appointed to watch him, and to report anything of importance that he might let fall. The Queen would not promise to restore him to his see, but was willing to pardon him, and to give him as good a living in Ireland. If Walsingham thought him insincere, he was to pump every possible secret out of him, and then try to get him given up by the French King as a rebel. The Archbishop's terms were a pardon under the Great Seal, restoration to his see, and license to go back to Ireland with eight companions; in consideration of which he was ready to be a loyal subject, and to let her Majesty have all 'news.' Being pressed to substitute 'secrets' for 'news,' he said he was very unwilling to do anything which might deprive him of a future asylum in Spain or elsewhere. Should the Queen think fit to restore him to his country and place—he said nothing about the lost pall—he would show to Walsingham in writing 'both the names of the conspiracy, and also the remedy.' But Elizabeth would not hear of his returning to Ireland except by way of England, and he was far too wary for that.

Fitzgibbon goes to France, and negotiates with England.

He sought an interview with Anjou, but here Captain Thomas was before him, and told the French prince that Ireland was poor, and only an expense to the Queen, and that the Archbishop was of small credit, having been banished for brawling. Monsieur then sent the exiled prelate two hundred crowns, and said he was

Later movements of Fitzgibbon.

afraid he should not have time to see him. Fitzgibbon seemed for a moment inclined to go to England, and sue for pardon; but ‘sinister practices’ prevented this, if it had ever been seriously intended. The Archbishop went off to Nantes and afterwards found his way to Scotland, where he suffered imprisonment. Returning again to the Continent, he continued to intrigue against Elizabeth, and died at Oporto in 1578 without having effected anything of importance. Captain Thomas continued to draw his sixteen crowns per month from the French Government, and received thanks from Queen Elizabeth, but she does not seem to have conferred those substantial rewards at which Walsingham hinted. She had conveniently discovered in the course of the intrigue that the Archbishop was not of much importance, and that he was no relation to the Earl of Devon.^[207]

FOOTNOTES:

[196] Sir Francis Englefield to Dorothy Devereux, *Domestic Calendar*, April 19, 1570; same to the Duchess of Feria, *ib.*, April 20. Roger Hooker, a layman, was Dean of Leighlin in 1580, and probably for some time before: this was a strange experience for the father of Richard Hooker.

[197] John Corbine to Cecil, March 2, 1569; Sidney to Cecil, April 18, 1570; Fitzwilliam to Burghley, April 7 and May 7, 1571.

[198] John Corbine to Cecil, March 21, 1569; Sidney to Cecil, April 18, 1570; Mendoza to Cecil, Nov. 9; Norris to the Queen, *Foreign Calendar*, Jan. 3, 1571; Viscount Decies to Fitzwilliam, March 28. Note by William Herlle, April. For an account of the spy Herlle, see Froude, chap. xxi.

[199] ‘Istius insulæ rursum erigere et stabilire regale solium.’

[200] Statement presented to the King of Spain by the Archbishop of Cashel, on the part of the Irish Catholics, *Spicilegium Ossoriense*, i. 59.

[201] For Stukeley’s early life, see Wright’s *Elizabeth*, i. 40 and 150. Wrothe to Cecil, Nov. 14, 1564; Shane O’Neill to the Queen, June 18 and July 28, 1565; the Queen to Sussex, June 30, 1563, in *Haynes*; Arnold to the Privy Council, June 23, 1565; Sidney to Cecil, March 7, 1565; Stukeley to same, same date; Cecil to Sidney, March 27, 1566; Queen to same, March 31 and July 6; Sidney to Cecil, April 17; Cecil to Sidney, Oct. 24, 1568; N. White to Sidney, March 10, 1569; Deposition of Richard Stafford, June 10, 1569, as to a conversation with Stukeley one year before; Mendoza to Cecil, Nov. 9, 1570. Stukeley sailed from Waterford, April 17, 1570.

[202] Robert Hogan or Huggins to Sir H. Norris, August 12, 1570, in the *Foreign Calendar*; Sir H. Norris to the Queen, Jan. 3, 1571, in the same;

Memorandum by Archbishop Fitzgibbon, Dec. 16, 1570, in *Spicilegium Ossoriense*, vol. i.

[203] Sir H. Norris to Cecil, Oct. 29, 1570; Walsingham to same, Jan. 27, Feb. 25, and March 5, 1571; Cardinal Chatillon to same, Feb. 2; Buckhurst to same, Feb. 24; the Queen to Walsingham, Feb. 11. All the above are in the *Foreign Calendar*. Archbishop Fitzgibbon to Philip II., July 26, 1570, in *Spicilegium Ossoriense*, vol. i.

[204] According to Froude, vol. x. p. 525, Philip called the Irish 'salbaxes,' or savages. Henry Cobham to Burghley, April 27, 1571, in *Foreign Calendar*. Cardinal Alciati to the Archbishop of Cashel, June 13, 1570, in *Spicilegium Ossoriense*, i. 64.

[205] Archbishop of Cashel to Cardinal Alciati, Aug. 1570, in *Spicilegium Ossoriense*, i. 64.

[206] Oliver King to Cecil, Feb. 18, 1571; and Robert Huggins to Walsingham, Jan. 25; both in the *Foreign Calendar*.

[207] Walsingham to Burghley, April 4; Queen to Walsingham, April 8; Walsingham to Burghley, April 11, 19, and 22; Queen to Walsingham, May 5; Walsingham to Burghley, May 14.—*Foreign Calendar*, 1571. Brady's *Episcop. Succession*, Art. 'MacGibbon;' Digges's *Complete Ambassador*. Walsingham says 'Captain Thomas' was a son of Judge Bathe, and that his brother was receiver of customs at Drogheda.

CHAPTER XXIX.

1571 and 1572.

Sidney was looked upon as the proper Viceroy for stormy times, and to him money and troops were given grudgingly and of necessity, for he would not go to Ireland without them. Fitzwilliam was but a stop-gap, thrown into the place to serve a turn, as he bitterly expressed it. 'For God's sake,' he cried, 'let me be rid of Ireland or I perish.' Arthur Lord Grey was chosen for the perilous post, but the appointment did not then take place, because the Queen differed from him as to a sum of 2,000*l*. It would all, said Fitzwilliam, have been spent in her service, and she would lose ten times the sum by denying it. Of money, indeed, there was a most grievous want. The magazines were empty. The captains were almost openly mutinous. The men were in rags and ready to desert, being forced in the meantime to sell their arms for sheer want. The victuallers were unpaid and had struck work. The Lord Chancellor's salary was at least two years in arrears. Grey was taken seriously ill at the thought of being forced to go to Ireland on the Queen's terms, and Sidney positively refused to return. Fitzwilliam had therefore to remain, and to make the best of it. He received the title of Lord Deputy, but neither more men nor more money than when he held the less exalted post of Lord Justice. [\[208\]](#)

Fitzwilliam cannot govern without money, 1571.

After his failure at Castlemaine, Perrott said that the work of 'trotting the mountains' was not suited to English soldiers. He had been promised two hundred kerne at sixpence a day, but had received neither the men nor the pay. He could not do without them, even if he had to keep them at his own cost. The only real way of restoring order was to be in two places at once, as Governor and as general; that being impossible, he must have

Perrott is ill-supported. Ormonde.

such a force as would bear dividing. ‘To follow the kerne from wood to wood your Lordship knows the soldiers are far unable. Therefore, if I should do any good here, I must have kerne against kerne, and gallowglass against gallowglass, and trained men to do what they may for the stand.’ Limerick, the garden of Munster, was too much impoverished to support an army, and the men were in dysentery from always eating beef without bread or vegetables, not forty horsemen being fit for service. The Privy Council, who had promised two hundred kerne, now murmured at being asked for a bare hundred, and the fiery President declared that he would never trust them, nor do anything in their faith again. From Ormonde alone, whom he ‘ever loved and honoured,’ did he get any real help, and he was not always satisfied that even Ormonde did his best to prosecute the rebels, for he urged him to divide his men into four divisions, and then to leave Fitzmaurice no resting-place. But even while chiding the Earl for inaction, Perrott admitted that want of provisions was a fair excuse. [\[209\]](#)

In his extremity Perrott was driven to ask that Sir John of Desmond might be sent over. In the absence of the Earl Sir John would then be leader of the Geraldines, and would draw all away from James Fitzmaurice. The people of the ‘poor, ruinous town of Kinsale,’ as they called themselves, begged for both brothers to help the President in saving them from the fate of Kilmallock. They of Youghal, who had yet to learn of what Desmond was capable, urged the same request. They complained of being shut up within their walls, in hourly fear of assault, and crushed by the cost of a garrison in which they had no confidence. They were worn with watching; no one could spend a night at home. Rich and poor were in the same plight, and the young would soon be as weak as the old already were. Their chance of food depended on the precarious herring fishery.

It is proposed to restore the Desmonds. General misery in Munster.

Desmond and his brother, they said, ‘in their time did right well govern these parts,’ and their return would send James Fitzmaurice beyond the seas. For Sidney they longed no less than for Desmond. Perrott was entirely against the restoration of the Earl, thinking that his further detention in London would secure the good behaviour of his brother. He advised that the Earl and Countess, who were prisoners at large, should be shut up in the Tower for a year, so as to take away all hope of their return. This, he thought, would encourage the Geraldine chiefs to make separate terms. Sir

John might then be safely sent over, security having been first taken for his good behaviour. 'I hear,' said Perrott, 'he is a decent gentleman.' Fitzwilliam, who saw Munster pretty much through Ormonde's eyes, was equally against both. 'God keep both Sir John of Desmond and base money out of Ireland, yet are they both at the seaside to come over, if brutes be true.'

[\[210\]](#)

Most people who study the acts of Sir John Perrott will probably be of opinion that he was a wise and honest man, if not always prudent for himself. But he now indulged in such an act of folly as can hardly be matched, even in the annals of Irish misgovernment. He could not catch James Fitzmaurice, and therefore he challenged him, resolving, if possible, to end the war at one blow. Had the weapons been those of the tilt-yard, the Queen's old champion might have been pretty sure of victory, but Fitzmaurice, who at first encouraged the President's idea, insisted upon sword and target and Irish trousers for both sides. Perrott agreed, and provided a pair of scarlet trousers for himself. Then Fitzmaurice objected to single combat, and proposed that there should be fifty a side. It was finally agreed that each party should consist of twelve horse and twelve foot, 'with indifferent armour and weapon.' Edward Butler was one of those picked on the President's side. Perrott wrote to Ormonde to borrow his horse, and begged him to attend with all his force, evidently thinking that there was a danger of foul play. 'I trust very shortly,' he told the Earl, 'to make end of this war, and to overthrow the rest of these Geraldines, which do so much annoy her Majesty's subjects. My lord, I have promised that there shall be no hurt done unto him by any of your lordship's men, until such time as the day be past, and I have promised him peace, that no man shall hurt him, nor none of his, till this matter be tried. And so he likewise hath promised to do the like unto all her Majesty's subjects.'

Perrott proposes to decide the war by a duel.

[\[211\]](#)

It is not surprising that Ormonde was 'almost at his wit's end' on receiving this extraordinary letter from his old brother-in-arms. 'The manner of the President's dealing herein is strange to me. I will stay his lordship (if I can by any means) from this attempt, and will with all my heart join with him myself and my company, to fight against the traitor and his whole company, rather than he should so barely hazard himself with so

Ormonde at his wit's end. Fitzmaurice refuses to fight.

few.... God send us a good hour against these villains.’^[212] He may have intended treachery and been foiled by Ormonde’s action, or he may have suspected treachery; but the message he sent by his Irish poet gave a very good reason for not coming. ‘If I should kill Sir John Perrott, the Queen of England can send another President into this province; but if he do kill me, there is none other to succeed me, or to command as I do, therefore I will not willingly fight with him, and so tell him from me.’ In the most disturbed times in modern Ireland officials, even policemen, have often been protected by the same consideration. Perrott, however, was very angry, and resolved to ‘hunt the fox out of his hole,’ regretting, as well he might, that he had wasted so much time and played into the hands of his crafty foe.^[213]

The failure of colonisation projects in Munster did not prevent the Queen from listening to those who imagined that they could found private principalities in Ireland. The district of Ards, in what is now the County of Down, being almost surrounded by the sea, was by its position well suited for such an experiment. On the north-west a land frontier of barely ten miles might seem to require no great number of defenders. Various offers were made, those of Secretary Smith being accepted by Elizabeth. Tremayne, who foresaw the commotion that would be caused by any scheme of colonisation, was in favour of a more extended experiment; but strongly advised that the Queen should appear as the patroness of a country already her own, and not as a conqueror. The people should be told that their rights would not be infringed, and this should be published everywhere in the Irish language. Had Sir Thomas Smith taken this advice he would still have had many difficulties to encounter; but he did not take it, and the Ulster Irish had their first notice from a pamphlet written in English and published in London. Sir Thomas thought that ‘the little book was evil done,’ but was induced to agree to its being put forth by his son, who was to have the actual direction of the business, and whom he was even content to lose in the glorious work of reconquering the Queen’s land without burden to her or to the English State. The writer of the pamphlet, whether young Smith or another, set forth at length the historical reasons why the English power had waned in Ireland, and proposed to restore it by colonisation. A permanent garrison was to be established, and ‘every soldier to be made master of his own land, to him and his heirs for ever.’ It was

Colonisation of
Ulster. Sir Thomas
Smith, 1572.

supposed that 600 or 700 men would be enough, and that the penniless younger sons, who could no longer fall back on the decent idleness of the abbeys, would seize upon this golden opportunity. The examples chosen to prove how easily a small English force might overcome a larger body of Irish were singularly inapplicable to a plan of colonisation. It was true that Gilbert with 100 men had driven the Munster rebels before him, that Collyer with one company had discomfited 1,000 Redshanks, that Randolph with 300 had beaten 3,000 O'Neills before Derry. But it was equally true that the rebels were as strong as ever when Gilbert's back was turned, that Scots continued to pour in, and that the settlement at Derry was abandoned. It was argued that 300 horse and 400 foot would be enough to settle the Ards, and their pay would amount to 10,000*l.* a year. For the first three years they were to pay no rent for their holdings, after which it was estimated that they would be self-supporting. How Sir Thomas Smith could imagine that private adventurers would lend 10,000*l.* a year without interest for three years, upon the security of Irish land still unconquered, may well puzzle us; but sanguine hope was a characteristic of the sixteenth century.

'Many shall say,' the candid pamphleteer admits, 'that they shall go into a place where they shall want meat, housing, and all things necessary, for that no prince yet hath been able to victual their army ... that the soldier is always constrained to march through the bogs and rivers, and in the night to lodge upon the grass without meat and fire. This is indeed a great misery ... but consider the difference that is between the Deputy's journey who seeketh to apprehend the rebels' bodies ... and his enterprise, who desireth the land only.'^[214]

Whatever English adventurers may have thought of Thomas Smith and his pamphlet, there was nothing in the movement which could possibly be pleasing to the Irish. The Norman family of Savage had from early times enjoyed dominion in the Ards, and their title to considerable estates in the southern half had been acknowledged in 1559. It was evidently not intended to interfere with them, and though pretty thoroughly Hibernicised, they seem on the whole to have favoured Smith's enterprise. Had the plan been strictly confined to the peninsula, and adequately supported until the cultivation of wastes became profitable, a small English Pale might have been created in Ulster. But Sir Brian MacPhelim O'Neill, chief of a clan which had long lorded it over the

The O'Neills are alarmed.

southern part of Antrim and the northern part of Down, took fright at once. Even in the Ards he claimed superiority, and he rightly guessed that Smith's operations would extend further. Old Captain Piers at Carrickfergus promptly reminded the Lord Deputy that it was the nature of Irishmen to let land lie idle rather than to see others work, and that the Clandeboye O'Neills had been too long loose to brook the curb easily. Piers circulated a letter purporting to be a copy of one sent by the Lord Deputy, and denying the whole story; 'but the truth,' he added, 'will soon be known, in spite of my feigning.' He advised Fitzwilliam to gain time by pretending that the intruders were brought in entirely against the Scots, and to take timely pledges from Sir Brian MacPhelim. He would do his best; but when all shifts were exhausted the Irish would revolt, and the result was only too certain. ^[215]

Fitzwilliam himself reported that the immediate effect of the pamphlet had been to strengthen the Scots, whose alliance all the Northern tribes now sought, and that a common danger had made O'Donnell and O'Neill friends. The expense of restoring peace was likely to be greater than any private interest could warrant. Sir Brian MacPhelim pleaded his own cause with considerable force. He had served Sussex, Croft, and Sidney faithfully, and had lately borne the whole cost of victualling Carrickfergus; and the Queen, ignorant as he believed of his daily usefulness, was now about to give away his inheritance to Saxons. In her service he had spent more cows and horses than were in any one English county, and so it should always be while he was left in command. Clandeboye had been in the hands of his family for fourteen generations, and he now begged for a royal grant in consideration of faithful service from his childhood. Whatever may have been the Queen's actual intention towards Sir Brian MacPhelim and the other Irish, it is clear that no good was intended them. Smith covenanted to suppress all rebels not only in Ards but in Clandeboye, to divide the lands among the adventurers, and not to sell to any Irishman or Scot. English settlers were forbidden, except by royal license, to intermarry with Irish or Scots, and they were all bound to attend the Deputy anywhere in Ulster for forty days.

Sir Brian
MacPhelim
O'Neill.

Fitzwilliam vainly tried to explain away Smith's project: for all answer the unlucky pamphlet was laid before him. Smith himself would fain have

counteracted by a letter the mischief done by his 'books spread in print.' He said he was not coming to rob Sir Phelim, but to help that loyal chief, and he was willing to have any points in which their interests might differ decided by a lawful judge rather than by an appeal to arms. As a beginning of friendship he begged Sir Brian to be the protector of his people. The language was not ill chosen, and had it been followed by wise action, the scheme might yet have succeeded. The Queen also wrote to Sir Brian, promising, in language which 'gladdened' him, that his lands should not be taken away. Had Sir Brian and his friends been frankly invited, as Tremayne advised, to co-operate with the Queen in a well-designed scheme for planting some thinly peopled districts within the Earldom of Ulster, they might perhaps have been friendly, though even that is very doubtful: managed as it was, the project was foredoomed to failure. [\[216\]](#)

Vain attempts to reassure Sir Brian.

Fitzwilliam did not cease to beg for his recall or for men and money to do something worthy of the place which he was forced to fill. In his office of Vice-Treasurer he had incurred debt to the Crown, and if only allowed to go back to England he would sell Milton to pay them. In the meantime Ireland lay at the mercy of a foreign enemy. Let but 6,000 Spaniards land, and the loss would be as irrevocable as that of Calais, nor would the Narrow Seas be any longer safe. Fitzwilliam supposed that Sidney was his enemy at Court; but the friendly tone of Leicester's letters makes this unlikely, and it is probable that the real difficulty was with the Queen. Still the late and present Deputies differed widely about the respective merits of Butlers and Geraldines. Ormonde had often begged Elizabeth not to hear his accusers in his absence; and Sidney may have reported against him, for he was now sent for. This was too much for Fitzwilliam's endurance. The South, he said, always was tickly, Ormonde only could manage it, and in short he could not be spared. [\[217\]](#)

Fitzwilliam has no money.

Ulster was greatly excited by colonisation rumours, and multitudinous hordes of Scots, introduced by Tirlogh Luineach and his wife, or seeking settlement for themselves, kept the scanty English garrisons in constant alarm. Sorley Boy MacDonnell with 700 men beset Carrickfergus. Captain Cheston, a brave and discreet soldier, sallied forth at the head of his company and discomfited his assailants, but received an

The Queen reduces the army.

A loyal Irishman.

arrow in his thigh; such surgery as was available failing to extract it, he lingered fourteen days, and then died. This was the moment chosen by Elizabeth to reduce the army in Ireland. 9,400*l.* was sent over with strict injunctions to discharge 166 men from the foot companies and 70 from the garrisons of Leighlin, Dungarvan, Maryborough, Bunratty, and Ballintober, and to hold 500 more in readiness to go as soon as the money arrived. The news spread fast over Ireland, causing ‘general jollity’ and a universal belief that the days of Saxon rule were over, that an Irish nobleman would be Viceroy, and that all late English settlers would soon be hurrying to the seaside. ‘When all be discharged,’ said the unfortunate Deputy, ‘God send me some rid out of Ireland, for I look to see fire round about in every quarter; but I must confess this medicine is well taken away, for the disease did but putrefy under it without any heal.’ Among the men discharged were several who had been at Derry, and who had received pensions since the abandonment of the post. One of these, Edmond Byrne, deserves a passing notice. He had been in the service of Don Carlos, and on hearing a Spanish gentleman speak evil of Queen Elizabeth, had attacked him at the palace gates, though attended by two armed followers. Having killed his man and beaten off the two underlings, Byrne first took sanctuary, and then fled to Portugal. There the same conduct provoked the same retort, and Byrne wounded the slanderer of his sovereign. This loyal Irishman afterwards received a pension of four shillings a day.^[218]

The best excuse for Elizabeth’s ill-judged parsimony was the great difficulty which she found in getting money at this time. The breach with Alva had destroyed the credit system of the Netherlands, and English finance had not yet become sufficient to itself. Moreover, the Queen took care that Spain should be fully occupied, and the capture of Brill, which coincided with the discharge of the troops in Ireland, made a Spanish descent on that country exceedingly improbable. Alva had never been able to replace the Genoese treasure detained in England, and it was pretty clear that there would be none to spare for less important services. But by the relaxation of English efforts in Ireland, nearly all that had been done there was neutralised, and it is impossible not to feel some pity for Fitzwilliam.^[219]

Poverty of the Crown.

The Presidency of Connaught did not flourish greatly under Fitton’s charge; perhaps no one could have done anything there without a considerable

army. He could indict O'Connor Don and MacDermot for high treason, he could lay whole baronies waste, and he could generally take castles. But he could not establish either peace or respect for the common law, and he dared not, while he remained in the province, leave the Brehon law in undisputed possession of the field. The civil and the canon law, as well as the law of England, all declared that a man should be held liable only for his own acts. But Irish custom extended the liability to descendants and to collaterals, and Fitton seems to have thought it possible to play fast and loose with the two systems, and to use their own customs against the Irish, though contrary, as he believed, to all law, human and divine.

Fitton in
Connaught.

The Earl of Clanricarde's two sons were in open rebellion, and he was bound to answer for them both by Irish law, of which he had accepted the liabilities, and by agreement under his own hand. The Earl was loyal enough, as his whole career showed, but he was unable to control his clan, and was perhaps not sorry to get out of a temporary difficulty by surrendering himself. There were frequent and very circumstantial reports of an intended Spanish descent, and he may well have dreaded the necessity either of joining or of opposing an invader who was under papal patronage. Fitton seems to have had no other case against the old lord than that he levied exactions like his ancestors, a charge which came with remarkably bad grace from the President. Fitzwilliam said openly that he could only be chastised by bringing in the Mayo Burkes, who had always been rebels, and he very justifiably shrank from such a miserable expedient. A more respectable plan was to send Thomond home and encourage him to earn a complete restoration by his service against the Clanricarde rebels. [\[220\]](#)

Clanricarde's sons.

On first arriving in Dublin, Clanricarde had been shut up in the castle. After a month he was released on his own recognisances, and three months later he was again committed on Fitton preferring against him a formal charge of being the counsellor, comforter, and procurer of his son's doings. A few months before Fitzwilliam had pronounced Fitton a wise and sober man, very conscientious, severely just, and not subject to gusts of passion. He now complained that the President had refused to reveal the charge against Clanricarde at the Council Board. This the Lord Deputy considered a stain

Fitton and
Clanricarde.

on his own loyalty, and he demanded an opportunity of clearing himself. The Earl's offence, if offence there was, fell far short of treason, and he could be very badly spared from his own country. The Queen rebuked Fitton severely for his secret ways, and for arresting the old Earl, who made his submission to the Lord President of Connaught, only asking that he might in future have the assistance of a councillor to keep order. This was granted, and he was soon sent back to Connaught with a general commission to grant pardons at discretion; a wonderful end to a trial for high treason. The Council patched up a truce between Fitton and Fitzwilliam, but the flame soon burst forth again. Clanricarde's detention in Dublin lasted about six months, and he never quite forgave Fitton. 'After being set at liberty,' he said, 'I did within one twelvemonth hang my own son, my brother's son, my cousin-german's son, and one of the captains of my gallowglasses, besides fifty of my own followers that bare armour and weapons; which the Archbishop of Tuam, the Bishop of Clonfert, and the whole corporation of Galway may witness.'^[221]

When Fitton wrote to say that he expected soon to have no place in his power except Galway, Fitzwilliam sneeringly answered that he would be a very old man before the rebels came to seek him at Athlone. For a few weeks longer the President kept the field. Clare Galway was yielded at his approach, and a few kerne were shot here and there, but the young Burkes eluded him as completely as David eluded Saul. On one occasion they were close, and Ulick, taking an axe in his hand, declared that he would lead on; but the captain of gallowglasses, wiser in his generation, advised a fitter opportunity. Lady Mary Burke escaped out of Galway, and went to join her brothers. Then provisions ran short, the Mayo Burkes, whom Fitzwilliam had thought it possible to retain as allies, joined their namesake, and Fitton retired to Athlone, leaving the whole province free from any pretence of settled government.^[222]

Fitton driven into a corner.

Fitton was only three months older when he saw his dismal prophecy fulfilled. Having demolished most of the castles in Clanricarde, lest they should offer a refuge to the English, the young Burkes, with a force estimated at from 500 to 2,000, and largely composed of Scots mercenaries, plundered the district between the Suck and Shannon, then crossed the great river, and burned all

Even Athlone is not safe.

along the left bank as far as Athlone. James Fitzmaurice was with them, chiefly in the vain hope of relieving Castlemaine, before which Perrott had again sat down. Turning to the east, the wild bands harried Roscommon and Westmeath, burned Mullingar, Meelick, and other places, and then doubled back to Athlone, to which they set fire. In spite of the guns in the castle and the musketeers on the steeple of the church, they approached boldly from the north side, broke into the cloister with the help of masons, and, being aided by a high wind, burned most of the malt and biscuit stored above. Of the 350 soldiers promised by Fitzwilliam not one had arrived, and the President could only look on while the town burned. Meeting with no resistance, the rebels again crossed the Shannon and went to Galway. That town was too strong for them to attempt, but they killed an English captain in a skirmish, and on two separate occasions passed the walls without serious opposition and penetrated into Connemara, where they chastised the O'Flaherties for their adherence to English rule. Fitton could do nothing but beg the Lord Deputy not to pardon the treason after the old fashion of Ireland. 'It is comforted,' he said, 'and fostered from under your own elbows, I mean Dublin itself.'^[223]

Fitton lingered at Athlone for a few weeks and then retired, first to Dublin and then to England. Fitzwilliam announced that Connaught would soon be quiet, for there would be no one left to resist the rebels. The unlucky President was not to be blamed, for he 'could not work miracles as Moses did.' After one more attempt to give trouble, which was frustrated by Perrott's energy, Clanricarde's sons—the MacIarlas, as they were called—saw that there was no fear of punishment, and that they might as well sue for mercy. They told the Deputy that they were in a wretched and damnable state; and this was true, for they were very vicious young men. They knew not where to turn, and they offered to give themselves up and be good subjects for ever if only they might be assured of the pardon which they feared to ask. Their father was powerless to control them, and he supported their petition on the ground that despair might 'make them follow young counsels.' He himself was ready for any service, or even to go to prison, and would welcome any president that had no property in Connaught, 'excepting always Sir Edward Fitton, who sought my blood.' A good salary, he added fairly enough, would be the best defence against corruption.

Fitton is forced to leave Connaught to itself.

Believing that Fitton would traduce him, he sent an agent to England to enter a cross case. The late president's prayer was so far heard that the young Burkes received no immediate pardon. In the meantime Athlone was held by a scanty garrison. In one of the long nights just after the new year Art Maguire, who had the watch, arranged with some of the O'Kellys to betray the castle. A ladder was planted and thirty-four men scaled the walls unobserved, when a chance noise startled the guard. The assailants called out in English to make way for the Earl of Clanricarde's sons; but they were worsted in the scuffle and jumped off the battlements, several legs being broken. 'If the devils had not made great shifts they had broken most of their necks.' Fitzwilliam attributed the result entirely to God's providence. The Irish had been two hours inside the castle and were probably waiting for reinforcements, very likely for the graceless young men in whose names they professed to act. ^[224]

Ormonde was summoned to England at the beginning of 1572, and there were not wanting detractors to say that he was unwilling to go, and that he was playing a game of his own. Some thought him too merciful, and one of his followers asked Burghley to give him a private hint inculcating severity. But neither Perrott nor Fitzwilliam could do without him, and he was certainly not idle. The pursuit of Fitzmaurice was but a wild-goose chase, and every now and then some new Geraldine partisan arose and gave local trouble. Edward Butler, with five hundred men, went to Aherlow, killed a few kerne, and drove off some cattle which had been stolen from Kerry; but he never saw Fitzmaurice, though he reported that he was weak and might be easily attacked. The difficulty was to find him. Meanwhile Rory MacShane, with a small band, swept away what he could find in the meadows about Clonmel. The townsmen were disinclined to follow, but their sovereign threatened to denounce them as traitors, and they accompanied him into the hills near the town. The foolhardy sovereign, who had refused Ormonde's offer of a garrison, allowed himself to be drawn into rough ground, and lost his life. Then came Edward Butler, who killed twenty-one of Rory's men. The solitary prisoner was promptly hanged, drawn, and quartered. Besides these services performed through his brother, Ormonde was able at this time to make head against Rory Oge O'More, while Kildare, with six hundred

Ormonde goes to England.

Fitzmaurice still at large, 1572.

kerne of his own and a hundred of the Queen's, pressed that chief from the North.

At another time Fitzmaurice threatened Youghal, but the Viscount of Decies sent timely aid. If to keep the Queen's peace was the object of government, it had very indifferent success. Yet Perrott did not despair. Wales and Northumbria had been settled by Presidents, and why not Munster? 'Came it to perfection elsewhere in one year? No, not in seven.' The Irish were subtle, fond of license, and ready for anything as long as it was not for their good. But he claimed to have laid a sound foundation. Munster was no longer governed by letters from Dublin which no one obeyed. Before he came no man could go a mile outside Cork, Limerick, Youghal, Kinsale, Kilmallock, Dingle, or Cashel. No one helped but Ormonde, yet the country had become fairly safe, and English fishermen fished in peace. The rebels had dwindled from 1,000 to 'fifty poor kerne, and ten or twelve bad horsemen.' The decentralising system might be carried much further, and Perrott recommended a President for Ulster. The Lord Deputy might then spend some part of his time at Athlone. The advice was probably good, but the poverty of the Crown hindered all comprehensive reforms. [\[225\]](#)

The Lord President reports progress.

Early in June Perrott again besieged Castlemaine. Most of the MacCarthies, O'Sullivans, and other West Munster clans furnished contingents, as well as the Barrys and Roches, and some of the walled towns.

Castlemaine taken. Perrott cannot catch Fitzmaurice.

James Fitzmaurice having failed to bring the Scots from Connaught to its relief, the castle surrendered after a three months' blockade, 'through the want of provisions,' say the annalists, 'not at all for want of defence.' This being the only place which resisted the English arms, and the most convenient spot for foreigners to land, the success was a considerable one in spite of the time it had taken. When it was just too late Fitzmaurice, with Ulick Burke and Shane MacOliver, passed the Shannon near Portumna, with the help of the O'Maddens, and marched down the left bank towards Limerick, the fears or sympathies of the citizens again swelling their numbers to 1,000. The sheriff attempting to withstand them was slain with thirty of his men, and Perrott, who besides his own servants had only 160 English soldiers, at once proceeded in search of them. He was accompanied by several native lords and chiefs, but seems to have set but little store by

their services. Fitzmaurice lurked in the wooded and boggy plain between Limerick and Pallas, and MacBrien Coonagh sent word to Perrott that the Scots would certainly fight in the neighbourhood of Ballinagarde. The floods were out, and the President found his enemy, apparently about 600 strong, advantageously posted on ground inaccessible to cavalry, and unapproachable even by foot soldiers marching more than two abreast. Perrott threw forward a few musketeers to skirmish, and then quitting the saddle led the way on foot to encourage the Irish lords, the attack being covered by a body of musketeers. The Scots threw their spears at the skirmishers and seemed disposed to charge, but a second and better-directed volley broke them, and they fled in disorder towards the Glen of Aherlow, leaving a few dead on the field. Perrott followed through a frightful country, but could not get a second chance. Clancare and Cormac MacTeige, MacCarthies who in their soul hated the Desmonds, did good service, but the other allies were lukewarm. Perrott blamed Lord Roche for keeping aloof with the cavalry, but if the President's own description of the ground be true, his lordship had little choice. Ormonde was in England, and his presence alone would have done as much as all his forces without him; but Sir Edmund Butler co-operated zealously enough with the President, and the penitent Edward exhorted him to fresh exertions. 'Remember,' he said, 'my dear brother, that though you did never so much service, it is but your duty, and far less than her Majesty deserved at our hands.' On one occasion the Butlers brought in fifty heads, and Perrott allowed that they served most willingly in the field, though he does not seem to have had a high opinion of their actual achievements. ^[226]

There were rumours of a second invasion of Scots from Connaught, but they did not come, and Perrott was left free to follow those already in his province. The indefatigable man made such preparations as he could for a grand attack on Aherlow with the help of the two Butlers, and he set out from Kilmallock in advance of his army. When he had gone a few miles the captains overtook him in hot haste to say that their men had mutinied and had returned to Kilmallock. The Irish auxiliaries were not bound to serve without English soldiers, and they immediately deserted the President, glad enough, no doubt, of the excuse. A few of the gentlemen remained, and Perrott retraced his steps to find his soldiers still under arms, clamouring for

Perrott cannot pay his soldiers. A mutiny.

the Queen's pay, and complaining of the endless and thankless toil to which they were condemned. He reminded them that he had already offered some money on account, that more was on the way, that they had but slender excuse for their insubordination, and that he had a mind to hang the ringleaders. The men answered firmly but respectfully that if he hanged one they would all swing together for company, and in the end he was forced to temporise. Crippled as a general, the President went off to hold assizes at Cork, where he found the people willing to prosecute and the juries ready to convict, so that the pleasures of hanging were not altogether denied him. The garrison of Kilmallock, in a fit of repentance, or persuaded by their officers, made a raid into Aherlow and killed some thirty of Fitzmaurice's men sleeping in their cabins. 'I am ashamed to write of so few,' said the Lord President, 'but considering their cowardliness and the continual watch which they use to keep, it is accounted as much here to have the lives of so few, as 1,000 in some other country. If I might have but one trusty gentleman of the Irishry I would not doubt I should in short time bring the country to good quiet.' That one trusty gentleman was not to be had, but Ormonde's brothers did what they could to prove that they were not, and, in spite of recent transgressions, never had been Irishry. Without any help from Perrott they attacked Fitzmaurice in his camp near Tipperary, and killed 100 of his men. That was the last important success of the campaign, which had proved beyond doubt that the rebels had no chance in the field against English soldiers or even against the Butler gallowglasses; but it had also proved that they could not be followed with advantage, and that the problem of Irish government was as far from solution as ever. ^[227]

On one occasion (we are not told the date or place) the hunter nearly became a prey to his quarry. A pretended deserter brought news that Fitzmaurice was hard by with only thirty persons, and offered to be the President's guide, tendering his own life as security. With characteristic rashness Perrott followed the man with about thirty soldiers, and at the break of day came upon Fitzmaurice accompanied by 400 or 500 foot and 80 horse. Trewbrigg, the President's secretary, who rode in advance, charged the Irish and Scots with three or four men, and lost his own life and a purse containing 100*l.*, which served as a military chest. Nothing daunted, Perrott followed with the rest of his men. He jumped a bank and unhorsed one of the rebels. Another came

Stratagems of
Fitzmaurice.

behind him with his spear, held by the middle as in an Indian boar-hunt, and he was barely rescued by George Greame, afterwards famous in the Irish wars. Outnumbered by ten or twelve to one, the English soldiers were nearly overwhelmed, when Captain Bowles, not much more prudent than his chief, galloped up with three or four fresh men. Supposing these to be the advanced guard of a larger body, Fitzmaurice drew off. Even this lesson did not teach Perrott prudence. Fitzmaurice, being closely pursued, faced about near a bridge leading to a wood, and sent a man with a white cloth on the top of his spear. The Lord President allowed himself to be drawn into a parley, and while he wrangled about terms Fitzmaurice got his men over the water and escaped. ^[228]

The incessant rumours of Spanish invasion led to nothing, but these foreign intrigues are worth following for the light which they throw upon Elizabeth's policy. Stukeley, finding that the Archbishop of Cashel's party would not accept him as the champion of Irish Catholicism, went to Rome, where he walked barelegged and barefooted about the churches and streets. Fitzwilliam derisively reported that the man who had given up the kingdom of Florida and the dukedom of Ireland only for holiness' sake was about to have a red hat, and that the superstitious people of Waterford really believed in his sanctity. Constant communication was kept up between Ireland, Spain, and the Low Countries, and there was scarcely a southern chief or lord who was not supposed to be in correspondence with Stukeley or with some other of the exiles. Many probably sympathised with the idea of a Spanish invasion, though not to such an extent as the sanguine Fitzgibbon had represented, and others may have thought it prudent to make friends with the mammon of unrighteousness. The adventurer, after his return from Rome, was attracted by the somewhat kindred spirit of Don John of Austria, and served under him either at Lepanto or in some smaller encounter with the Turks, after which he retired to Madrid, and 'for his many deeds' became more of a favourite than ever. A pension of 1,000 ducats per week was thought a suitable entertainment for the Duke of Ireland, and one Cahir O'Rourke obtained the command of forty men. The Bishop of Cadiz received orders from Philip to punish those who refused passages to the Irish refugees, friars, and others, and one Cormac, calling himself provincial of the Irish Dominicans, busied himself in seeing that the order was carried out. The

The Irish in Spain.
Stukeley.

French captains under one pretence or other refused to carry these emissaries; but the Portuguese were more subservient, and many Irishmen sailed from Lisbon as well as from the Spanish ports. Meanwhile loyal Englishmen were subjected to every inconvenience. Five ships were stopped at San Lucar and three at Seville, and many of Elizabeth's subjects were closely imprisoned. The Inquisition worked harder than ever. Rumours of a fleet to be commanded by Stukeley were again rife, and some talked of as many as fifty ships. Philip II.'s slow mind was quite unequal to the task of coping with such statesmen as Cecil and Walsingham, and they were able to watch every move. English merchants and sea-captains, even Compostella pilgrims, took a pride in thwarting the despot, who seldom travelled further than Aranjuez, and imagined that he could rule all mankind by making silly marginal notes on despatches. Waterford having been recommended in 1569 as the best point for attacking Ireland, Philip, who apparently heard of the place for the first time, could only wonder in manuscript 'whether the Duke of Feria knew anything of that port.' Considering that Philip had been King of England, this is a fine illustration of the aphorism as to the small amount of wisdom with which the world is governed. ^[229]

The day of St. Bartholomew could not but have its effect in Ireland. In Connaught and other Irish districts 'the godly,' as the few Protestants esteemed themselves, thought it prudent to hide. The rest of the people triumphed 'as though the kingdom of Antichrist were once again erected.' There was talk of the Spanish Inquisition, but little or no actual violence is recorded to have been done. Suspicion filled the air, and the sudden appearance of innumerable friars seemed to bode some great foreign movement. They came out of Ulster and traversed Connaught in companies of twenty at a time. Cormac, the so-called Provincial of the Dominicans, brought a budget of indulgences to Sligo, and published them openly. Friars preached at Galway before the ex-mayor and other leading townsmen, and held councils at Adare, Galway, and Donegal. They came and went between Ireland and France, and Fitzwilliam's informant held that the preaching of Ulster friars 'must naturally tend to rebellion.' Their evident desire, he thought, was to subvert the English Government, and 'set up their own wickedness.' In Galway the mendicants bore themselves like princes, so

Effects of St.
Bartholomew in
Ireland.

that the Pope might be thought King of England and Ireland. Clanricarde himself dared not say a word, and Limerick threatened to be soon as bad as Galway.^[230]

Those parts of Ireland which were supposed to be tolerably well settled were pervaded by a sense of insecurity, and gave Fitzwilliam no help. King's County, under the wise government of Henry Cowley, noted by an eminent lawyer as being the only Englishman who ruled by law, was long an exception; but the Queen owed the constable near 2,000*l.*, and such disinterestedness could not be expected from every officer. Cowley had but twenty-three men, and, though others praised him, he was himself dissatisfied with the state of his district. Cosby was less successful in the Queen's County, where Rory Oge O'More still kept an armed remnant of his tribe together. Kildare and Ormonde combined their forces but could not catch him, and he refused to cross the Barrow except in the company of the former Earl, who accordingly brought him to his castle of Kilkea. Rory said he would make no war against the Queen, but must be assured of life and living before he would submit; nor would he disperse his men, who were his only protection against many enemies. After consulting with Cosby, the two Earls gave him protection for a fortnight, on his undertaking not to damage the corn. When Ormonde went to England Rory broke out again, and found his neighbours willing enough to help him. Bands of fifty or a hundred invaded the Pale nightly with music and torches, as Fitzwilliam bitterly observed, 'lest they should be heard or seen,' yet he would not blame Cosby, for he had neither men nor money.^[231]

Rise of Rory Oge O'More.

In Wexford a gentleman named Browne was murdered by the O'Byrnes, among whom Feagh MacHugh was rising into distinction as a guerilla chief. Agard, the seneschal of Wicklow, took immediate vengeance on some of the mountaineers, and was then inclined to hold out hopes of mercy as the best chance of catching the most guilty parties, such as Matthew Furlong and others, who had employed the O'Byrnes. But Nicholas White, the seneschal of Wexford, went 'thundering' about saying that the Queen would never pardon anyone who had a hand in Browne's murder. Fitzwilliam wished devoutly that White had stayed in England. The revenge already taken might have been severe enough even for White's taste. Led by a

The O'Byrnes.

mountaineer whom he had captured, and whose life was the price of his service as guide, Agard entered the south-west corner of Wicklow, where he burned sixteen villages, then passed through the valley of Imail, where he killed a foster-brother of James Eustace, afterwards the famous rebel Lord Baltinglass. A sister of Simon MacDavid's was captured, 'whom, if she do not stand me in stead, I mean to execute.' Had plunder been the main object a very large number of cattle might easily have been driven off, but the guide, who may have had a quarrel of his own to avenge, offered to take the soldiers where they might 'have some killing.' Captain Hungerford and Lieutenant Parker preferred killing to kine, and went in at the head of Glendalough. 'They slew many churls, women, and children,' brought away much kine, and lost 500 more 'while they were killing.' Feagh MacHugh just escaped, but two of his sisters and two foster-brothers were slain. Much blood was destined to be shed before the blood of Robert Browne should be finally expiated. Sometimes the English officers seem to have set a very indifferent example. Robert Hartpole, sheriff of Carlow and constable of the Castle, and his sub-sheriff were accused upon oath of having seized a vast number of cattle on all sorts of pretences, of forcing labourers to work, and in general of every sort of violence and corruption. These misdeeds were said to have been committed by virtue of letters from the Earl of Ormonde. In the following year, Hartpole was one of those licensed by the Lord Deputy to cress Ormonde's lands for protection against the O'Mores and O'Connors. No particular notice seems to have been taken of the charges against him, for he remained in Carlow to found a family, and to be remembered as a chief actor in one of the most horrible tragedies recorded even in Irish history.^[232]

Fitzwilliam had reduced the army much against his will, and the disturbances which he had foreseen followed as a matter of course. He asked for reinforcements, unless the Queen wished deliberately to leave the whole country to the native Irish. Her answer was that she marvelled at the stir in Ireland, and that she would not send the 800 soldiers he asked for; and she reminded him that Mr. Smith had been ready to bring over that number if Fitzwilliam had not opposed the enterprise. Smith was, however, now really coming, and might give some help. The poor Deputy could only answer that the 800 men were much wanting, that double that number of Scots had landed in Connaught, and

Bad effects of
reducing the army.

that Ormonde, on whom alone he could depend, had been sent for to England. But to Burghley he passionately poured out his griefs. ‘I pass over,’ he said, ‘usual matters, such as killing, burning, spoiling;’ though they pricked his conscience daily, and though he feared that God would demand the innocent blood at his hand. The English name was hateful, and he would rather die when Ireland was lost than live in England to bemoan it. He could but shake the scabbard, for he had no sword to draw, and yet military government was the only government possible for a ‘people so long nursed in sensual immunity.’ The great men ‘all, tooth and nail, whatsoever semblance they bear, do spur, kick, and practise against regular justice.’ The fear of Ormonde kept some quiet, but in his absence their enforced frowns at the rebels were changed to winking. For himself, he could bear all if the Queen would only give him credit for doing his best, instead of blaming him more and more for not doing what he had long since declared impossible. ‘A hard word of a prince,’ he said, ‘is a dart to a true subject—much more, a nipping, a checking, and a taunting.’^[233]

FOOTNOTES:

^[208] Fitzwilliam to Burghley, Aug. 19, Sept. 8, Nov. 25, 1571; to the Queen, Sept. 6. His patent as Lord Deputy bears date Dec. 11.

^[209] Perrott to Fitzwilliam, Aug. 14, 20, and 22; to Ormonde at p. 64 of his *Life*, no date, but about this time.

^[210] Corporation of Kinsale to the Privy Council, Aug. 10; Corporation of Youghal to the Queen, Sept. 6; Fitzwilliam to Burghley, Nov. 25; Perrott to Fitzwilliam, Dec. 4. This last letter has a note by Fitzwilliam, in which he says Sir John of Desmond would be as well in England as in Munster, ‘in spite of his wit and soberness.’

^[211] *Perrott’s Life*, pp. 61-63. Perrott to Ormonde, Nov. 18, 1571.

^[212] Knocklong was the appointed place, and Perrott kept his tryst; but, ‘God be praised,’ said Fitzwilliam, ‘the rebel chief did not appear.’

^[213] *Perrott’s Life*. Ormonde to Fitzwilliam, Nov. 20; Fitzwilliam to the Privy Council, Feb. 27, 1572.

^[214] Sir T. Smith to Burghley, April 10, 1572. The pamphlet is printed in the appendix to Hill’s *MacDonnells of Antrim*.

^[215] Piers to Fitzwilliam, Jan. 3, 1572, with notes by the Lord Deputy; same to same, Feb. 8; Morrin’s *Patent Rolls*, i. 427.

[216] Fitzwilliam to Burghley, March 14; to the Queen, June 27; to the Privy Council, June 28; Sir Brian MacPhelim O'Neill to Fitzwilliam, March 6; to the Queen and Privy Council, March 27; Thomas Smith, Junior, to Sir Brian MacPhelim, May 20. There is a tolerable account of this business in chap. xiv. of Strype's *Life of Smith*.

[217] Fitzwilliam to Burghley, March 24, April 15, May 5; to Leicester, March 16; Leicester to Fitzwilliam, March 8.

[218] Notes of such as are appointed to be discharged, May 8; Fitzwilliam to Burghley, April 15 and May 21; to the Queen and Privy Council, Feb. 27; Morrin's *Patent Rolls*, ii. 64. The fight in which Captain Cheston was wounded took place before Feb. 14.

[219] Burgon's *Life of Sir Thomas Gresham*, chaps. vi. and vii.

[220] Fitton to Burghley, Jan. 31, with enclosures, March 31; Fitzwilliam to Burghley, April 21; Lord Deputy and Council to the Privy Council, May 15.

[221] Earl of Clanricarde's Declaration, March 8, 1578; Fitton to Burghley, January 31, 1572; with enclosures, March 31; Lord Deputy and Council to the Privy Council, May 15; to the Privy Council and Fitzwilliam to Burghley, April 21, May 24; to the Queen, &c., July 25; to Burghley, Aug. 4. Order by Lord Deputy and Council, July 22.

[222] Fitton to Leicester, May 18, in *Carew*; to Fitzwilliam, June 16.

[223] *Four Masters*, 1572. Fitton to Fitzwilliam, July 16; John Crofton to Fitzwilliam, same date; Bishop of Meath to Fitzwilliam, July 17; Fitzwilliam to the Queen, July 24.

[224] Fitzwilliam to Burghley, Sept. 25, 1572; to the Queen, Feb. 18, 1573; Clanricarde to Fitzwilliam, Nov. 2, 1572; to Burghley, Dec. 15. Earl of Clanricarde's sons to Fitzwilliam, Nov. 9; Edward Brereton to Fitton, Feb. 9, 1573.

[225] Perrott to Fitzwilliam, May 11, 1572; Ormonde to Fitzwilliam, Feb. 5, 1572, enclosing one from Edward Butler; Mayor of Youghal to Lord —, March 21; John Danyell to Fitzwilliam, Feb. 26.

[226] Perrott to the Privy Council, Sept. 1; to Fitzwilliam, Sept. 12 and 16; to Burghley, Nov. 2; Fitzwilliam to Privy Council, Sept. 25; to Ormonde, Oct. 21; Edward Butler to Sir Edmund Butler, Oct. 19; Sir Edmund Butler to Richard Shee, Oct. 20; Bishop of Limerick to Perrott, Aug. 31; Mayor and Recorder of Limerick to Perrott, Sept. 1.

[227] Sir E. Butler to R. Shee, Nov.; Lord Deputy and Council to the Queen, Dec. 1.

[228] *Perrott's Life*, pp. 67, *sqq.*

[229] Fitzwilliam to Burghley, May 24, 1571; to the Privy Council, April 15, 1572; Dominic Brown to Fitton, April 9, 1571. Examination of Walter French, March 30; and report of John Crofton, April 13, 1571. Memorandum concerning Ireland, 1571 (No. 44). Memorandum concerning Stukeley, March 5, 1572.

Stukeley went to Rome early in the spring of 1571, and returned to Spain in November. See also Froude, x. 479, *note*.

[230] Edward White (Clanricarde's clerk) to Fitzwilliam, Nov. 1572. On Nov. 29, Fitzwilliam answered that he was glad the Earl had such a jewel as White about him.

[231] N. White to Burghley, July 17, 1573; Fitzwilliam to Burghley, Oct. 6, 1572; to the Queen, Dec. 7, 1572, and Feb. 18, 1573; Henry Cowley to Burghley, March 12, 1572; Kildare and Ormonde to Burghley, Aug. 14, 1572.

[232] Fitzwilliam to Burghley, Aug. 26, 1572; Notes of Journey, May 1572; Examinations, &c., Aug. 21, 1572; License to Hartpole and others, Sept. 24, 1573. Hartpole was concerned in the Mullaghmast massacre.

[233] Fitzwilliam to the Queen, July 24, Aug. 3, Sept. 25, 1572; to the Privy Council, Aug. 4; to Burghley, Sept. 25 and Oct. 21; the Queen to the Lord Deputy, Aug. 5.

CHAPTER XXX.

1572 and 1573.

The absence of Sir Thomas Smith in France and the lukewarm attitude of the Lord Deputy delayed the Northern enterprise for some time, and when young Smith at last landed, the 800 of which the Queen spoke had dwindled to 100. He sailed from Liverpool on Friday, the sailors' unlucky day, and reached Lough Strangford on the morrow. He sent to Sir Brian MacPhelim to say that he had no designs except on the spiritual lands—no designs 'as yet' he explained in writing to Burghley—but the chief would not see him, and roundly refused to part with one foot of ground. The adventurer hastened to the Lord Deputy, not to offer aid but to beg for it; but Fitzwilliam, who had not been consulted, gave him little comfort, telling the Queen that a singular ignorance had been shown of the jealous Irish nature, and that the chance of success had been immeasurably lessened by sounding the trumpet so loudly beforehand. Others besides Smith talked loosely of all they were going to do in Ulster; one Chatterton boasting that he had a grant of O'Hanlon's country. Fitzwilliam bade him hold his foolish tongue; but he only talked the louder, and sent his brother to Newry to spread the mischief further, and to have eight or nine bullocks ostentatiously salted. 'To have rumours spread,' said the Deputy bitterly, 'and a few beeves salted to mad men with, and to have no men come to tame madmen with, I must think, or at least doubt, to be some practice to disturb quiet government.' Tirlagh Luineach O'Neill wrote in a covertly threatening tone to Fitzwilliam, professing not to believe that Smith had really her Majesty's authority to take his namesake's country, and advising him to let Sir Brian and Sorley Boy alone. Sir Brian emphasised this advice by invading the Ards, killing Henry Savage, burning the villages, and driving off all the cattle except what could be hurriedly conveyed across the

The Ulster
colonisation
project.

Lough into Lecale. Fitzwilliam could only tell Sir Thomas Smith that he was sorry for his son's evil prospects, but that soldiers were very scarce, and that, though his goodwill was great, in material resources he 'had not enough to set out the main chance.'^[234]

Sir Thomas Smith perhaps hardly expected to get nothing but criticisms from the Lord Deputy. The reports complained of had been spread against his will, and he had no intention towards the Irish but to make them labour virtuously, 'and to leave robbing and stealing and killing one another.' He suggested that, as his son could evidently effect nothing for the present, Fitzwilliam should employ him in the Queen's pay to defend the northern frontier of the Pale. As Fitzwilliam could not pay even the few men he had, this was hardly a practical suggestion. The O'Neills played fast and loose with the unfortunate young man. Sometimes a minor chief would make friendly advances, and then, having seen the nakedness of the land, would run off again, while Tirlogh Luineach and Sir Brian MacPhelim evidently understood each other. It was only just possible to defend Carrickfergus with the help of Captain Maltby, whose company had narrowly escaped discharge, and who generally lay in Lecale. From behind the walls of the fortress Smith railed continually at the Lord Deputy, whose gloomy vaticinations had all been fulfilled. In writing to the Queen and to Smith's father, Fitzwilliam merely lamented that his power to help him was not equal to his will, but he told Burghley that he thought it very hard that his credit at Court should be undermined by the interest of a vain young man. Maintenance and not stomach was what the adventurer required, and he wished Burghley could see the letters he wrote to the Council. His impudent humour needed rather to be purged than fed. Maltby, a man of ability and discretion, fell to some extent under the influence of his sanguine comrade, and the two persuaded Fitzwilliam to give them command of the garrison at Newry, by way of operating against Sir Brian MacPhelim. They prophesied great things, but did nothing; and Fitzwilliam, who had yielded to their importunity for fear of Court slanders, cynically observed that he never supposed they would do anything. Sir Brian, on the contrary, burned Carrickfergus, and 100 men had to be sent in haste from Newry to protect the pier, the store-house, and what little remained of the town. The

Collapse of Smith's enterprise.

enterprise of the Smiths, from which so much had been expected and which had been so much advertised, had utterly collapsed in less than a year. ^[235]

After his last overthrow by Sir Edmund Butler, Fitzmaurice no longer attempted to make head, but sued for pardon and leave to serve her Majesty in some other country, offering at the same time to disclose the chief instigators of his revolt. He had still eighty kerne with him, and found no difficulty in feeding his men either in Aherlow or in the wild district between Macroom and Glengariffe. Perrott, who wished to hunt out rather than pardon him, watched the ports so carefully as to frustrate many attempts at evasion. At least one important emissary fell into the Lord President's hands in the person of Edmond O'Donnell, a Jesuit, who brought letters from Gregory XIII. to Fitzmaurice, and who was afterwards hanged, drawn, and quartered at Cork. The pursuit of the arch-rebel himself failed for want of provisions. The President was very much against the established system of governing 'by intreaty,' and his object was to make people fear him, 'so that they be not kept in servile fear.' The Queen sent letters of thanks to Lords Clancare, Barrymore, Fermoy, and Lixnaw, to Sir Thomas of Desmond, and to Sir Donough and Sir Cormac MacTeige MacCarthy; and in the end, fearing lest he should escape to Spain, Perrott thought it desirable to accept the submission of Fitzmaurice. He appeared accordingly at Kilmallock, the town which had suffered so much and so lately at his hands, accompanied by the seneschal of Imokilly and other chief rebels. The suppliants knelt on both knees, or, according to one account, even lay prostrate, and the President held the point of his naked sword at Fitzmaurice's breast. 'Holding their hands joined and cast upwards, and with countenances bewraying their great sorrow and fervent repentance for their former life,' they confessed their sins in Irish. Fitzmaurice repeated the confession in English, owning himself the rankest traitor alive, and vowing to use his sword for ever after only in her Majesty's service. As if to throw a shade of ridicule upon the whole thing, Fitzmaurice absurdly declared that he was allured by Clancare and Sir Edmund Butler. But Perrott was forced to be content, and had similar ceremonies performed in other towns, the inferior traitors wearing halters round their necks. Fitzmaurice gave up one of his sons as a hostage, but it was arranged that he himself should be set at liberty in case the Queen

Fitzmaurice submits. Perrott thinks he will be a second St. Paul.

refused to accept his submission. She was glad to find an excuse for saving money in Munster, or anywhere else; and Perrott, with the strange inconsistency he sometimes showed, soon persuaded himself that Fitzmaurice had really seen the error of his ways, and would prove ‘a second St. Paul.’^[236]

The Presidency had proved expensive, but Perrott could report that no armed bands were abroad, and that every corner of the province was safe for unarmed travellers. Gilbert had done nearly as much before, but it was clear that no permanent good could be done without sustained expenditure. The experiment of ruling the Southern Geraldines without the Earl of Desmond was accordingly abandoned for the time; and, in spite of the warnings of Perrott and Fitzwilliam, Elizabeth may really have thought that years of exile had tamed the Earl’s unruly spirit. He had indeed endured many humiliations. Arriving in London with his brother Sir John, about Christmas 1567, he was allowed to frequent the Court, in great want of money, but under no personal restraint. The brothers made humble submissions, surrendering their lands to the Queen and begging for the establishment of a President and Council in Munster; and the Earl gave a bond in 20,000*l.* to observe the articles to which he was bound. But his rash talk, and perhaps the letters which he was known to write, gave offence, and both he and Sir John were sent close prisoners to the Tower, where they were fain to beg 100*l.* for necessaries, including clothes and shoes. They suffered from cold, and Sir John, who became seriously ill, had not wherewithal to pay the doctor and apothecary: anything that they did cost was paid for by the Queen, nothing whatever being remitted from the Irish estates.^[237]

Desmond and his brother in the Tower, and harshly treated, 1568.

Lady Desmond wrote to say Fitzmaurice had so wasted the country that she could not get as much as would pay her travelling charges. ‘I pray God,’ she concluded, ‘send us joyful meeting or me short departure out of this world. If you make any provision for me, I beseech you let the same be in readiness in Bristol against my coming, and upon information thereof I will in all haste repair towards you. Your loving, miserable wife,

The Desmonds in London till 1573.

‘ELEANOR DESMOND.’

Soon after this she joined her husband, and remained with him during the rest of his two years' confinement in the Tower. After that they were all handed over to the keeping of Sir Warham St. Leger, who hated Ormonde, and might therefore be supposed a kind gaoler to his enemy. Sir Warham complained bitterly of the expense and trouble to which he was put; for, besides the Earl and Countess and Sir John, there were thirteen or fourteen servants, and they had not the price of a pair of shoes between them. Shut up in St. Leger's small house in Southwark, they all suffered in health and ran up a long bill for medicine.

It was about this time that Lady Desmond gave birth to the unfortunate child whose dismal fate it was to know himself the last and weakest of his race, and to die young without ever having known youth. Sir Warham grew heartily tired of his guests, his kindness to whom brought suspicion on himself. He even asked to be imprisoned to save him from further danger. The restraints of the Desmonds were gradually relaxed, though St. Leger remained their custodian, and by the beginning of 1572 there was already much talk of sending them back to Ireland, Perrott being willing enough to receive Sir John, but preferring that the Earl and Countess should have a year of the Tower, since they had been using their liberty to write letters encouraging Fitzmaurice to persevere in his rebellion. [\[238\]](#)

Birth of Desmond's son.

That Desmond should try to escape from England was but natural, and his choosing the time of the Paris massacre for an attempt probably shows that some deeper plotters than he were trying to make him a pawn in their game. There were many Irishmen about London, some of whom were known and others suspected as the bringers of treasonable letters, and Burghley had his counterplot ready. The famous sea-captain Martin Frobisher, as loyal a subject as any Queen Elizabeth had, was probably directed to put himself in the Earl's way. Ormonde, who came to London about this time, dined with Desmond and said he would try to get him despatched for Ireland; and it may be conjectured, though not very charitably, that this was meant to lull him into a false security. Desmond was afraid to see Frobisher, who, however, contrived to let him know that he was willing to be bought, and that a ship of 100 tons and the island of Valentia might be a suitable price. Desmond was a bad horseman, unable

Desmond tries to escape. Martin Frobisher.

indeed to mount without help, probably through the wound received at Affane, and was, moreover, afraid to ride into Kent lest he should meet Sir Warham's men. He preferred an oyster boat which would pass the Queen's ships at Gravesend without being searched, and Frobisher promised to help him to such a craft. So well was the farce acted that one of Burghley's spies took credit for discovering the plot months after Frobisher had disclosed all; the captain's wife having been employed to lay a false scent and to implicate not only her husband but St. Leger, Jerome Brett, and others who were supposed to be seeking revenge for their failure in obtaining a grant of the Desmond territories in Munster. 20*l.* in money or land was to be Frobisher's own reward for taking the whole party over to Stukeley and for invading Ireland from Spain. Mrs. Frobisher, if she had any sense of humour, must have been amused at the great secrecy enjoined upon her by the spy whom she was hoodwinking. It is not unlikely that Burghley or some underling of his was trying to get evidence of treasonable designs, but if so the plan was changed, and, instead of sending Desmond to the Tower or to Tower Hill, it was resolved to let him go back to Ireland. He begged that Ormonde might be sent with him, ostensibly because his arrival in Munster would be certain to drive the rebels out of his own country into Tipperary; really, perhaps, because he was afraid to leave the field clear for his rival at Court. [\[239\]](#)

After much writing and talking the terms of Desmond's return were at last settled. He accepted the Anglican religious establishment in the fullest manner, renouncing foreign jurisdictions and promising to assist all bishops, ministers, and preachers. He undertook to keep the Queen's peace generally, and in particular not to molest Lords Fitzmaurice of Kerry, Barrymore, Courcy, and Decies, or any of the MacCarthies, O'Sullivans, and O'Callaghans; and all dues properly chargeable to them were to be levied only by legal process. The Earl bound himself to put down Fitzmaurice's rebellion as soon as possible, to apprehend those who had fled to foreign countries, and to leave such castles in the Queen's hands as she might think necessary for the public interest. In general he was to hold the same position as Kildare or Ormonde, and he agreed not to exercise the palatinate jurisdiction which he claimed in Kerry until that claim should have been legally determined in his

Desmond restored.

favour. He further promised to pay the debts he had incurred in England as soon as money could possibly be scraped together. [\[240\]](#)

The Queen granted the brothers an interview before their departure, professed herself satisfied with the Earl's plain speech and good intentions, 'and to Sir John she gave a privy nip, that as he hath a good wit, so he should hereafter use it well. He, like one not unwise nor unexpert, craved pardon, if anything heretofore were amiss, all should be amended.' Burghley lectured Sir John again, at greater length no doubt, and after a further delay of some weeks, caused probably by the Queen's dislike to do anything in Burghley's absence, the restored exiles were forwarded to Ireland in charge of Fitton, who had been appointed Vice-Treasurer, and the settlement of whose quarrel with Clanricarde was referred to the friendly offices of the Lord Deputy and Council. Fitzwilliam had directions to do nothing without consulting Perrott, and Perrott had been much averse to Desmond's return. Rejoicing in his freedom, Desmond slipped through Wales, and Fitton heard nothing of him till he reached Beaumaris. Perhaps the released prisoner expected what actually happened, and had some half-formed plan of sailing before the Vice-Treasurer and reaching Munster without running the gauntlet of the Dublin politicians. Sir Thomas Smith had indeed given the sound advice that, 'seeing her Majesty doth mind to tie the Earl to her service with a benefit, it should be *ample, liberaliter et prolixè* done, not *maligne et parce*, which doth so disgrace it, that for love many a time it leaveth a grudge beyond in the heart of him which should receive it that mars the whole benefit.' But other counsels prevailed, and Desmond was detained for many months in Dublin—a proceeding by no means calculated to cause a lively sense of benefits conferred. [\[241\]](#)

Elizabeth gives advice to Desmond and his brother.

Having desperately resolved to pacify Munster by sending Desmond home, the Queen made haste to create disturbance in Ulster by licensing private conquest on a large scale. Smith had evidently failed, but she persuaded herself that another might succeed if only he were adequately supported. It was an age when nothing seemed impossible to the brave, and all men's minds ran upon vague schemes of conquest, beyond unfathomed seas and over unmeasured lands.

Walter, Earl of Essex.

A Raleigh and a Stukeley differed widely in moral and intellectual stature, but they were not without such a generic likeness as a horse bears to a donkey, or a lion to a cat. A vulgar projector like Chatterton and a rash speculator like young Smith could do much harm and could hardly do any good; but one of the most romantic and chivalrous of English nobles was now about to risk his all upon the fatal shore where Randolph had lost his life and Sussex had endangered his reputation. Walter Devereux, Viscount Hereford, having married Lettice, daughter of Sir F. Knollys, was first employed to prevent Mary Stuart's escape from Tutbury, but found a better opportunity of distinction in Northumberland's insurrection. He raised a troop of horse, and acted as marshal of the royal army. Few or none of the old nobility had shown so much zeal, and the Queen rewarded him with a garter and with the earldom of Essex, a title which had been borne by his ancestors. He now offered to show his gratitude by conquering a province for her Majesty at his own risk.

His antecedents.

As a preliminary step he required a grant from the Crown in fee of the whole of what is now the county of Antrim, bounded by the sea from Belfast to Coleraine, and on the land side by the Bann and Lough Neagh, and including the island of Rathlin.

He proposes to colonise part of Ulster.

The race of Hugh Boy O'Neill and the Scots claimants were not forgotten, but Essex asked for authority by martial law over the whole of them, as well as over his own followers. All fisheries, including those of the Bann and Lough Neagh, and all tithes and other spiritualities were to be comprised in the grant, and a commercial monopoly, free of customs for seven years, was to be secured to the settlers. Essex demanded the right to make galley-slaves of all Irish and Scots convicted—by martial law as it seems—of treason or felony, to make war and peace, and to enact local laws. He was to have all wardships and marriages, and the Dublin government was to have no power of imposing any cess or tax.

His demands.

After some haggling Essex received a grant of all Antrim except the lands belonging to the chartered townsmen of Carrickfergus, the town and castle, and

Grant to Essex.

1,000 acres for their support. He was freed from all cesses for seven years, and none of his tenants were to be obliged to serve in war beyond the limits of his grant. The grantee had unlimited power of alienation to men of English birth, and authority for twelve years to make new subdivisions or to rename old ones. He had all manorial rights except pleas of the Crown, and the freedom of all markets in Ireland for himself and his tenants. Free trade was granted with all lands in amity with the Queen for seven years. The patentee had power to give leave of absence to English tenants for twelve years on the appointment of a substitute, and to admit 100 foreigners as denizens. The Queen agreed to furnish 200 horse and 400 foot, the Earl providing a like number; and each party was bound to keep those numbers up. Costs of fortification were to be divided in the same way. Among the few things not granted were gold and silver mines, and the right to coin money. The consideration offered for this enormous grant consisted of the services to be rendered and of property amounting to 800 marks, left him by the Earl of March's will—a will of which the validity was disputed. Unpromising as this scheme must have appeared to many of those who knew Ireland best, it was advocated by Burghley, Sussex, and Leicester; and when failure threatened, Elizabeth accused them of having persuaded her against her better judgment. Sir Thomas Smith, in spite of his experience, was also in favour of the project.^[242]

In spite of Fitzwilliam's efforts to keep it quiet, the intended expedition was talked of in Ireland almost as soon as in London. The Lord Deputy earnestly begged that action might follow quickly, since the interval would certainly be filled with lies and cavillings. One cause of delay was that Essex had no ready money. The Queen was, however, willing to lend 10,000*l.* as first mortgagee of his property in Bucks and Essex, worth 500*l.* a year. Nor was the bargain a bad one. In less than one year 1,000*l.* was to be repaid, and in default, land worth 50*l.* a year was to be forfeited. There was the same penalty for not paying a second 1,000*l.* within two years; and if the whole 10,000*l.* were not repaid within three years, then the entire property pledged was to fall to the Queen. A further cause of delay was Burghley's desire for fuller information. Since the days of Henry VII. it had been the custom to send special commissioners in cases where the ordinary official reports were likely to be

Great alarm in Ulster. Fitzwilliam disapproves the project.

prejudiced or tainted, and Burghley now despatched Edmund Tremayne with instructions to investigate necessary matters and to return quickly, leaving to Fitzwilliam all that could not be done in a hurry. Tremayne, who knew Ireland well, was strongly impressed with the advantages of speed and secrecy, but he saw that much delay was unavoidable, and advised that the Earl should put forth rumours of the plan being indefinitely postponed. He was particularly anxious that the whole force should come together, lest the Irish might be tempted to cut off isolated bands. A servant of Essex who had brought letters to Maltby, Piers, and Smith, was sent back so as to give colour to the report of a postponement. But Lord Rich with 100 men, Sir Peter Carew and Sir Arthur Champernowne with forty each, and other gentlemen with smaller companies, could hardly make their arrangements secretly; nor could much promptitude be expected from such a heterogeneous body. For the Earl himself there had to be provided six pieces of artillery, much powder and match, trenching tools, 150 calivers, sixty muskets, 200 bows, and two surgeons at 16s. per month. 'I understand,' wrote Sir John Perrott, who had a Pembrokehire quarrel with the noble adventurer, 'that the Earl of Essex, with a great rout, intendeth the conquest of the North. For her Majesty's service I wish him success, but for himself I care not what cometh thereof, for he and his friends have sought as much to discredit me in my absence as in them lay.' Neither Perrott nor Fitzwilliam were in love with the chivalric interloper, but they do not appear to have thwarted him; indeed, the Queen specially thanked the former for his friendly tone. Her instinct probably told her that men who had borne the burden and heat of the day with but little reward would hardly be prejudiced in favour of this courtly amateur.^[243]

Confident in Burghley's support, Essex made light of opposition. The Lord Deputy he had 'ever loved and liked well of,' though the conversation of his friends at Court did not foreshadow his support. But the Queen was all smiles and promises, and advised the Earl 'to have consideration of the Irish there, which she thought had become her disobedient subjects rather because they have not been defended from the force of the Scots, than for any other cause,' and not to seek too hastily the conversion of a people who had been trained in another religion. He answered that he 'would not willingly imbrue his hands with more blood than the necessity of the cause requireth,'

Essex is sanguine.

and that, when once the Irish had been brought to due obedience, ‘they would be easily brought to be of good religion.’ He was not destined to find either task particularly easy.^[244]

Some of the land between Belfast Lough and Lough Neagh may have been destined as a reserve for the O’Neills. An extant paper shows how it was proposed to quarter the gentlemen adventurers, and what was kept for the Queen and the Earl:—

Proposed division
of Antrim.

Glenarm, Will. Morgan of Pencoed; Red Bay, Lord Rich; Bunneygal(?), H. Knollys; Market-town (Ballycastle), several; Kenbane Castle, not appointed; Dunseverick, Mr. Champernowne; Dunluce, Mr. Kelway; Portrush, Mr. Fitton; Coleraine, the Queen; James MacHenry’s cranogue at Innisloughan, reserved to keep the ford of the Bann; Ballymoney, Mr. Bourchier; Brian Carragh’s cranogue on the Bann, reserved for the ford; Castle Toome, Geo. Carleton; Massereene, not assigned; Belfast, the Queen; the bottom beneath the cave having two little piles, Messrs. Barkley and Brunker; Carrickfergus, the Queen; Magee’s Island and the mouth across, the Queen; Olderfleet (Larne), the Queen.

As a matter of fact, Essex never had a house of his own in Ulster.

Having taken leave of Elizabeth on July 19, 1573, Essex sailed from Liverpool on August 16, accompanied by Lords Rich and Darcy, and with enough men and stores to fill several vessels. They were blown down Channel, some as far as Cork, but the Earl managed to land on one of the Copeland Islands, whence he made his way to Carrickfergus: here he was joined by Lord Rich, who, having got ashore at Kilcleif, near the mouth of Lough Strangford, travelled under Maltby’s escort by way of Belfast. Others were forced to the Isle of Man. A large part of the soldiers still lingered in England waiting for wine and other supplies; and Essex found himself powerless to effect anything considerable. But he put on a bold face, told Tirlogh Luineach that he was come to free the Irish from the tyranny of the Scots aliens, and that he might find grace by helping the work, but that otherwise he would waste him with fire and sword. The Earl advanced to the Bann without meeting an enemy, but the inherent disadvantage of

Essex sails, 1573.
Gentlemen
adventurers.

making war by private contract soon became apparent. The Scots withdrew behind the river, and reminded Essex of the fact that he had no military authority outside the bounds of his grant. [\[245\]](#)

The adventurous Earl's first impression was, however, favourable; for Sir Brian MacPhelim wrote to say that, though he had never seen him, he knew of the forces which accompanied him, and of those which were still to come. Sir Brian asked what terms he might expect if he returned to his allegiance; and Essex answered that he would make none, but that simple and immediate submission might give a first claim on her Majesty's clemency. Sir Brian then sought an interview with Captain Piers, and, accompanied by that officer, came into Carrickfergus, 'and in the most public part of the house did on his knees make his submission, alleging little for himself, but some unkindness towards Mr. Smith,' and desiring oblivion and mercy in consideration of services to come. 'When I had somewhat aggravated, to make her Majesty's mercy the greater, I took him by hand, as a sign of his restitution to her Highness's service; with promise to commend any desert of his hereafter.' Sir Brian's cattle were in the Route, the district between the Bush and the Bann, and as sole security for their owner's performance Essex had them driven into the fields about Carrickfergus, where he supposed them to be in perfect safety. The chief talked pleasantly of his hostility to the Scots, and proposed to submit a plan for entrapping those who had sought to rebel in his company. The Irish generally professed great joy at the strict orders issued by the Earl against injuring them or taking their goods without full payment, and at being allowed not only to reap their own corn, but also what belonged to the Scots. On the whole, the natives appeared admirably disposed, and great praise was due to Captain Piers and Captain Maltby for their ability and diligence. [\[246\]](#)

At first things look promising.

So things went on, and for more than a fortnight all was merry as a marriage bell, while Sir Brian had ample opportunities of measuring the invader's real weakness. Then someone hinted to Essex that cows were moveable property, and that he had better be on his guard. Piers was accordingly sent with 100 mounted men to drive the stock close together in the immediate neighbourhood of the castle, and he returned saying that all was fast, that at least 10,000 head were in sight, and that he had left trusty scouts who

But the O'Neills soon show their real sentiment.

would find out what was going on, and give twelve hours' notice of any intended mischief. The Earl said that he had his suspicions; but either this was an afterthought or Piers was the reverse of vigilant, for it was three o'clock next day before he found out that Sir Brian had withdrawn his horned hostages twelve or fourteen hours before, having bribed the scouts to say nothing about it. Five hundred Scots had landed at Lough Foyle, and Sir Brian hastened to join his forces to those of Tirlogh Luineach. Irish and Scots combined might hope to escape the common enemy. The Earl mounted at once, and spurred after Sir Brian for fourteen miles, when he was overtaken by night. The cattle reached the shelter of thick woods, and Essex returned to learn that many of the townsmen were in the plot. He imprisoned several, and regretted deeply that he had no power to execute them. In his rage and disappointment he professed to be glad that Sir Brian had thrown off the mask, 'for now I have no occasion to trust the Irish, whereby I might have been more abused, than by open force I shall.... My first actions showed nothing but lenity, plainness, and an equal care of both nations; my next shall show more severity of justice abroad, and less trust at home.' It needed but small experience of Irish life to turn a Quixote into something not very unlike a Pizarro; and Sir Peter Carew did not conceal his joy that the true nature of the natives was now manifest, and that the danger of their being overmuch trusted was at an end. [\[247\]](#)

The force collected at Carrickfergus consisted of 600 foot, 200 horse, 100 labourers, and 200 kerne. The adventurers were nominally 400 strong, but most of them were still in England; 200 soldiers raised in Somersetshire arrived armed with white sticks, though it was said that Captain Barkley had 400*l.* for an outfit. The Northern horse, under Captain Selby, complained that they were brought to a desert and that they could not live on their pay, and the foot grumbled at having to give fourpence sterling for rations. Provisions began to run short, and it became necessary to fight even for the free passage of cows out of Lecale. The escort sent to convoy them were attacked by Scots in the pass between Carrickfergus and Belfast, and after four hours' skirmishing found the Laggan flooded and had to return. Had it not been for the intercession of Sussex, who remembered what he himself had endured in Ulster, it is probable that Essex would have had nothing but water and beef, and not too much of the latter; while the corn which he had

Young Smith is killed.

at great expense provided was diverted by the Bristol traders to some more profitable use. Still, he was master in the field, though he sought in vain for anything like a general engagement. Once Sir Brian ventured into the neighbourhood with his herds, which had eaten up the grass in Northern Antrim, and Essex set upon them near Massereene with 300 or 400 horse. The Baron of Dungannon did good service, William Norris behaved with the utmost gallantry, and his brother John showed the qualities which afterwards made him famous. The result was a prey of 400 cows and the slaughter of some forty kerne and cowherds. 'But if I had been well guided,' said Essex, 'or if my footmen had been come unto me, who were then three miles from me, I had taken 10,000 of his kine, and caught Brian and his company at a great disadvantage.' Much virtue in If. He returned from this not very glorious foray to find that his precursor and ally, the unlucky Smith, had been slain that day 'by the revolting of certain Irishmen of his own household, to whom he overmuch trusted, whereof one being retained by a rebel did kill him with a shot.' The remnant of his men were unable to hold out at Comber, and sent to the Earl for help, but 200 of his kerne took the opportunity to mutiny, and he could do nothing. A few days later Essex reached Lough Strangford, only to find Comber in ashes. The friendly Savages had led Smith's men into the peninsula of Ards. Sir Brian was fully avenged of the authors of those printed books which had filled him with such alarm. Smith's patent remained in force during Elizabeth's life, and gave some trouble, but nothing serious was ever attempted under it.^[248]

Fitton and Desmond arrived in Dublin on Lady Day, and the Earl was first detained until the arrival of the Lord President. Perrott had always been against his leaving England, and, being therefore in no hurry to reach Dublin, he proceeded leisurely to beat out the embers of rebellion before he should be practically superseded. The late insurgents professed much fear lest the Earl should dislike their yielding after standing out so long. The Lord President could, however, say that ways were safe, that towns were no longer straitly shut up, that Kilmallock was rebuilt, and that he had protected no rebel who had not first submitted. He had taken no provision at the Queen's price, but had bought all in a high market, greatly to his own loss; for no horseman could really support himself and two horses, and keep

Return of Desmond.
He is detained in
Dublin, 1573.

his arms and armour in order for 6-3/4d. a day. There were complaints that he had interfered too much in Tipperary, although James Tobin, Ormonde's sheriff, had contumeliously refused to execute his warrants for treason, a matter entirely outside the palatinate jurisdiction. Tipperary was in consequence the most disordered part of Munster. Forty-five malefactors were executed at Limerick, and Perrott proposed to do the like at Cashel and Clonmel; at the latter place confining himself to offences committed outside Ormonde's jurisdiction. Nor was much lost by such forbearance, for, whatever may have been that Earl's faults, he had not been remiss in the way of executions. Independently of what the Butlers had done, the Lord President could report that he had killed or hanged 800 persons with the loss of only eighteen Englishmen. The wonder is that between sword and halter there was any able-bodied man left in Munster. ^[249]

When Perrott had done his hanging he went to Dublin and reported that Desmond was devoid of reason, and that nothing could be done with him. The Earl, however, declared that the unreasonableness was in the Government, who demanded of him more than he had promised, and when he made fresh promises refused to accept them. His right to a palatinate jurisdiction in Kerry was held void by the lawyers; he was ready to exercise it only according to her Majesty's pleasure, and without engrafting any Irish customs upon it, and he made no objection to the establishment of courts leet and courts baron. As to coyne and livery, he would forego them for six months, pending the decision of his cause. He was more willing than able to abolish them permanently, but was quite ready to agree to such a reasonable composition as impartial commissioners might agree upon. On the other hand, he demanded immediate restoration to his country, and all castles which he claimed either as owner or mortgagee, except Castlemartyr and Castlemaine, which were reserved to the Queen. This was all very well; but Desmond gave out generally that there would be no more Presidents after Christmas, and this was hardly the way to conciliate Perrott, who had a veto upon all Munster matters. Sir John Fitzgerald was more pliable or more politic than the Earl, and he risked little by loyal professions, for nothing that he did or said really committed the Geraldine connection. On promising to put down the Brehon law, to suffer no composition for felony, and to abstain from gathering rhymers and dicers about him, he was

Perrott in Munster.

allowed to return into Munster, leaving his brother to endure ‘an easy restraint for a little time.’

There was probably some vain hope that Sir John would remit enough money to pay the debts incurred in England—a subject about which there was much correspondence, and which seems to have been thought nearly as important as the state of Munster. Perrott went to Cork, where the sessions were well attended and where he executed sixty more persons. This, though quite a matter of course, was recorded with satisfaction; but the Lord President took far greater pride in having forced the men to give up their glibbes and in having bullied or coaxed the gentlewomen into foregoing the great rolls which they wore on their heads. ‘By wading into this further danger,’ he said, ‘I am assured to have no wife in these parts, and for England when I re-embark I look there to have none. For all my gains here is for every white hair that I brought over with me sixty, and a thin purse, how great soever the report went of things that came to my hand by the Marseillyan ship.’^[250]

His reforms.

This vessel, the ‘Peter and Paul,’ belonging to Marseilles, but laden at Lisbon with a rich cargo of pepper, ginger, cinnamon, nutmeg, soap, salad oil, sugar, ‘grains,’ and cotton-wool, arrived at Youghal in November 1572. She had forty persons on board, chiefly Portuguese, but among them were an Englishman, a Neapolitan, and two French passengers. Fitzwilliam, upon some report of a general restraint of trade with Spain, which might include Portugal, sent a commission to Perrott to detain the ship and to sell the cargo. At Youghal it might have been impossible to protect her from Piper and Garratt, two of the many pirates who at this time infested British waters, and she was brought round to Cork, where the men were billeted on the aldermen and allowed the run of the city. Perrott petitioned for a grant of the cargo, but the owners, who were wholly or partly French, complained to the Queen. Proceedings followed in the Admiralty, and the goods were not sold; but the ship was found to be rotten, and had to be unladen. This was carefully done: every article was scrupulously accounted for, and the foreigners certified that nothing had been extorted from them by way of ransom. It is the fate of every active provincial governor to have many detractors among the stay-at-homes, and Perrott’s enemies raised a cry at

Case of a Marseilles ship.

Court accusing him of making away with the cargo. His defence was complete and perfectly satisfactory to the Government, but he continued to be troubled about it for some time, and the voluminous correspondence extant shows how great was the commotion excited.^[251]

As if Munster had not troubles enough, an attempt was made at this time to revive Sir Peter Carew's shadowy claim to a principality there, and some of the projectors renewed their offers to colonise parts of the province.

Carew is forbidden to press his claims in Munster.

Fitzwilliam referred to Perrott, who reported strongly against Carew. The mere disclosure of his title, he said, would rouse a nest of hornets; and he protested against a private adventurer being allowed to break the peace which he had established with great labour and tribulation. Sidney had three soldiers to Fitzwilliam's one, yet it had taxed his resources severely to still Carew's first commotion. It would be cheaper for the Queen to buy him out than to let him meddle again. The people saw clearly that what affected one would affect all, and Sir Peter was obliged to promise not to stir further in the matter.^[252]

The more Perrott saw of Desmond the less he liked him. He had grumbled at his return; had he known him better he would have cried aloud. He now besought the Queen to have him taken back to England, for he would never

Perrott opposes Desmond's restoration.

learn manners in Dublin, and could do nothing but harm in Munster. To Burghley Perrott wrote still more unrestrainedly that the Earl was fitter to keep Bedlam than to rule a newly reformed country. In Munster, wrote the President proudly, the plough already laughed the unbridled rogue to scorn, and daily improvement was visible. The poor prayed for the Queen. The clansmen had almost given up swearing by their lords' hands. The 8,000 or 9,000 men capable of bearing arms honoured Elizabeth's name, and their hands began to wax hard in labour as their feet once did in running to mischief. The revenue might soon be expected to increase. 'If the kings of England,' he said in language which must have appealed very strongly to Elizabeth, 'have any one thing heavier upon their souls than others, it is that they have not made a thorough conquest of this realm.'^[253]

The Queen gracefully thanked Perrott for his services, begged him not to leave his post on account of his health, and proposed to send over an

English doctor who knew his constitution. But she did not recall Desmond, who complained loudly of his long detention and declared his good intentions, while admitting that he had made many rash speeches. It does not seem to have occurred to him that a man who could not rule his tongue was hardly fit to rule a province. In the meantime his officers left the land waste, and seized Glin Castle in defiance of the President, whose health obliged him to go suddenly to England without taking the vengeance he had threatened. The highest praise which can be given him for his government of Munster is to quote the words which the 'Four Masters' used in derision:—'The departure of the President was lamented by the poor, the widows, the feeble, and the unwarlike of the country.' No sooner was his back turned than the Geraldines began to stir ominously. James Fitzmaurice reopened his intrigues with Spain. Finding that his wife had been writing amorous letters to Edward Butler, he divorced her summarily and married O'Connor Kerry's widow, whose castle of Carrigafoyle, 'the strongest and beautifullest' in West Munster, thus fell into his hands, and offered a ready harbour for 'Jack Spaniard.' He conferred with Clanricarde's sons—a sage Parliament in God's name—and to this Sir John was supposed to be privy. Fitzwilliam saw that mischief was in the wind, and meditated a journey to Munster, when Desmond, whose tone had been gradually growing less submissive, cut the knot by escaping from Dublin. [\[254\]](#)

Threatening attitude of the Desmonds.

Being sent back to England was probably what Desmond really feared, for he afterwards said he had received letters from England hinting at such a thing. He complained of no harsh treatment in Dublin, where he was placed under the Mayor's charge, but not closely confined. Either wishing for or dreading an escape, his gaoler told the Government that the Earl was welcome to his house and table, but that he would no longer answer for his safe keeping. Some say that he was allowed out on parole, which he kept for a fortnight and then broke. Telling the Mayor that he was going out hunting, and that he would return at night, he went to Grangegorman, and thence escaped by dint of riding into Munster. He was escorted through Kildare by Rory Oge O'More and Piers Grace, both noted brigands or guerillas, and received in the Queen's County by 400 O'Mores, and in Limerick by James Fitzmaurice. At Lough Gur the Earl

Desmond escapes from Dublin, and resumes the Irish dress.

and Countess lost no time about showing themselves in Irish dress, and we cannot doubt that glibbes and rolls at once became fashionable again. All the Geraldines hastened to arms, 'knowing no God, no Prince, but the Earl, no law but his behests.' Desmond promptly gave out that he would allow no sheriffs, thus practically deciding the palatinate question in his own favour; and to all appearances he was soon as powerful as any of his ancestors had been. Fitzwilliam wrote to warn the fugitive that he was in great danger of losing all, but to Burghley he confessed his fear of a great conspiracy. The lawyers were afraid to go circuit in Munster, and not a single councillor could be got to go to Cork, where Perrott had lately done such execution. In a few days Castlemaine and Castlemartyr, which had taken so much pains to reduce, were again in Geraldine hands, and there was soon nothing to show for Perrott's Presidency but the gibbeted corpses of some malefactors, and the tears of 'the poor, the widows, the feeble, and the unwarlike.'^[255]

The general course of government was neither smooth nor glorious from the time when Elizabeth determined to restore Desmond to Ireland, until he practically carried out her first intention by escaping from Dublin. Leix and Offaly were almost as bad as they had ever been. In the former, Cosby was forced by his weakness to wink at disorder. In the latter, Henry Cowley, who was honourably distinguished as the only English officer who really tried to rule legally, had to go to Dublin to beg in vain for one hundred men. Without them he hardly knew how to get back to Philipstown, outside which he could at the best scarcely stir. The general opinion was that the Queen meant to leave all to Irish government. The miserable town of Athenry had been plundered and left utterly desolate by Clanricarde's sons, and an alderman danced attendance on Fitzwilliam and Fitton, begging for help which they could not give. Ormonde's country in his absence was scarcely better than the rebel districts, and the Graces, who would have obeyed the Earl but no one else, carried off Sir Barnaby Fitzpatrick's wife and daughter. Sir Barnaby pursued and recovered the young lady, but her mother, who was in delicate health, spent some miserable weeks in captivity in Tipperary and Kilkenny. King Edward's old companion poured forth his grief to Sidney, and signed himself 'your poor tormented friend.' Tremayne, who had orders to make special inquiries about this outrage, reported that Fitzwilliam had followed it up well. But Fitzwilliam could really do very

The central district disturbed.

little, for old Cormac O'Connor was again at the head of a Scotch and Irish band who hovered between Leinster and Connaught. The force of the country would not serve against the old chief, nor do any damage to the native gentlemen; so that the whole brunt fell on the scanty garrison and yet more scanty settlers. Athlone Castle was actually entered by the rebels, and Connaught was left to its own devices. Tremayne reported that Clanricarde was quite unable to restrain his graceless sons. Fitton thought his late subjects might, perhaps, by good management be persuaded to stay quiet as long as they liked, 'which kind of quiet is no new thing in the politics of Ireland.' Like everyone else, he attributed all to the Queen's ill-judged parsimony, 'sparing too sparingly I fear will cost more spending.'^[256]

For most practical purposes the two chief personages in the Irish Government at this time were the Lord Deputy and Vice-Treasurer Fitton—the bearer of the sword and the bearer of the purse. The way in which they worked together was not edifying, nor calculated to impress the natives with a sense of dignity and power. Having inquired into the quarrel between Fitton and Clanricarde, the Lord Deputy and Council decided that the former had made good his case, and they patched up a precarious friendship between them. But in the daily intercourse between hostile officials it was less easy to maintain a friendly appearance. Fitzwilliam was a man of hasty temper, Fitton was said to be vain-glorious and was certainly quarrelsome and litigious. An opportunity for explosion was afforded by an affray between the Vice-Treasurer's servant Roden, a gentleman's son—with the expectation of one hundred marks a year, he notes, as if that had anything to do with it—and one Burnell, a follower of the Clerk of the Council, and a friend of Captain Harrington, the Lord Deputy's nephew. Roden broke Burnell's head with his dagger, and Harrington threatened vengeance. According to Fitton's account, Harrington's servant, James Meade, met Roden in the street some days afterwards, and shouting 'Dead, villain!' immediately ran him through the body. The coroner's jury found that the deed was done in self-defence, but Meade was indicted for murder in the Queen's Bench, and the Grand Jury found a bill for manslaughter, whereupon the Lord Deputy granted a general pardon, and thus defeated both law and justice entirely. Fitton asked to see the record of pardon, which he retained as evidence, and, refusing to restore it, was imprisoned in

Fitzwilliam and
Fitton fall out.

A murder.

the common gaol during the Lord Deputy's pleasure. Next day Fitzwilliam thought better of it, and summoned the Vice-Treasurer to the Council Board, but he refused to take his seat, declaring that he had done nothing wrong, and that one who had been judged a contemner of authority was unworthy to act as a councillor. He pressed hard for a full inquiry, and the noise soon reached the Queen's ears, who exonerated Fitton, told him to take his seat again fearlessly, and to repute it praise and honour that he had suffered for doing her Majesty good service. Fitzwilliam she rebuked sharply for giving a pardon which she herself would have feared to grant, lest the blood of slain men should cry vengeance upon the realm. It was generally said in England, she informed the Irish Council, that they were the Deputy's tools and Fitton only a true councillor. The Vice-Treasurer was not likely to hide the letter addressed to himself, and the other soon got wind in spite of every effort. To the Queen Fitzwilliam could say little but that he was undeservedly disgraced, and longed to be recalled, but he rated Fitton before one hundred persons, impeaching his truth and honesty, and saying that if he kept away from the Council Board he was but one councillor the less. Having his cue from the Queen, Fitton dutifully attended next day, and must be allowed on the whole to have got much the best of it. Fitzwilliam had not the temper to conceal his feelings, though he dared not dispute her Majesty's decision, for he told Burghley that the other was a deep dissembler and his professed enemy. Malicious, false, and cowardly, he had given him two deadly bites, and was to be distrusted for ever. 'God send me into the earth or to be tied into a dungeon rather than to be coupled with such a venomous person.'

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At this critical time death deprived the Irish Government of Lord Chancellor Weston's services. He had held the Great Seal for six years, respected by all the official world as a father to the commonwealth; and the very Irishry lamented his loss. Weston was sincerely religious, not without a tinge of Puritanism, and was filled with anxiety at the condition of the Irish Church. Non-resident clergymen and desecrated churches were the rule, and he felt that he was giving a bad example by holding the temporalities of two deaneries, Wells in England and St. Patrick's in Ireland. It was thus that scanty salaries were eked out both before and after the Reformation. His conscientious scruples aggravated his naturally weak health, mainly caused, as he believed, by the

Death of Lord
Chancellor Weston.

damp climate, more probably by the want of vegetables and by unskilful physicians. He left a widow who appears to have been worthy of him, and an equally virtuous daughter, who was married first to Brady, Bishop of Meath, and afterwards to Secretary Fenton. Catherine Fenton, the only daughter of this second marriage, whilst in her nurse's arms, consented in childish play to be the wife of Richard Boyle, afterwards Earl of Cork. Many years later Boyle, a widower of four years' standing, actually married the 'little lady' with whom he had played in his bachelor days. That she inherited the virtues of her mother, grandmother, and grandfather, may be inferred from the beautiful passage in which one of the most powerful and successful men of his time has recorded his debt to his second wife. 'I never,' he says, 'demanded any marriage portion, neither had promise of any, it not being in my consideration; yet her father after my marriage gave me 1,000*l.* in gold with her; but the gift of his daughter unto me I must ever thankfully acknowledge as the crown of all my blessings; for she was a most religious, virtuous, loving, and obedient wife unto me all the days of her life, and the happy mother of all my hopeful children, who, with their posterity, I beseech God to bless.' Among the children were the famous Orrery, and the yet more famous Robert Boyle. [\[258\]](#)

The relations of England both with France and Spain were at this time extremely strained, and Antonio de Gueras, the Spanish Commissioner in London, thought the expedition of Essex might be turned to good purpose. The English refugees in Spain and the Low Countries kept pressing Philip to invade Ireland, and Rowland Turner, calling himself Lord Audley, an English priest from Louvain, was sent to Ulster with letters from De Gueras to Sir Brian MacPhelim. Essex, the Spaniard wrote, was about to land with 3,000 men and to exterminate the O'Neills. In order to frustrate his plan, Sir Brian was advised to put himself under the direction of Turner, a prudent, worthy, and faithful Catholic gentleman, with 500 splendidly armed men awaiting his orders in England. Turner, who had lately been in Spain, Scotland, and the Isle of Man, was well known to the English Government; and his foolish boasts about hanging all Protestants were not likely to enhance his reputation for ability or discretion. Sir Brian, though very willing to keep off Essex, had no idea of directly opposing Queen Elizabeth, nor of engaging in œcumenical plots for the extirpation of heresy. Like Archbishop

Catholic intrigues.
Rowland Turner.

Fitzgibbon, he feared that the English Catholics would make a tool of him, and throw him away when a turn had been served. He received Turner very coldly, who bitterly complained that he was not believed, though an exile for God's sake and for that of the Irish. Captain Piers hinted to Sir Brian that Turner's noble blood was fabulous, and the exile, while insisting upon his own stainless pedigree, retorted that Piers himself was the son of a scoundrel, and unworthy of being believed on his oath. His language, indeed, though he wrote in Latin, was almost worthy of Marryat's boatswain. The Irish were wretched, beggarly paupers, the slaves of the English, who took their cattle and fished their waters without payment, and held all their country either by force or fraud. By listening to Turner the natives might change all this, and make the English their slaves for ever. But they would not listen; and Turner shook the dust from his feet, though Essex thought he could trace the effects of his machinations. He was afterwards employed by Alva, and received money from Philip, but he does not appear to have risked a second rebuff in Ireland. [\[259\]](#)

After Smith's death Essex could do little but bemoan his hard fate and confess that the people, 'to increase their own plague, had refused her Majesty's mercies.' The causes of failure he thus sums up: 'Two great disadvantages I find in this little time of my continuance here. The first by the adventurers, of whom the most part, not having forgotten the delicacies of England, and wanting resolute minds to endure the travail of a year or two in this waste country, have forsaken me, feigning excuses to repair home, where I hear they give forth speeches in dislike of the enterprise to the discouragement of others. The second, that the common hired soldiers, both horsemen and footmen, mislike of their pay, and allege that they were not pressed by commission but by persuasion, and therefore ought not to be detained in this service longer than they like to stay. This is not hidden from the Irish, who also are fully persuaded that this war is altogether mine, alleging that if it were your Majesty's, it should be executed by the Lord Deputy, being your chief general here; and therefore thinking that I must be in a short time wearied with the charge, have confederated to stand in arms, which they would never do with your Majesty unless it were in respect of me, whereby I must acknowledge the weakness of myself, and so consequently of any subject that shall attempt any great service, and therein part with his prince either

Essex can do little or nothing.

honour or profit. Therefore my humble petition is, that, albeit the moiety of the charge be mine, according to my covenant with your Majesty, that yet some means may be devised that all the officers, soldiers, and dealers in this war may seem to be your Majesty's; the war yours, and the reformation your Majesty's, and I only the instrument and executor of this service; whereby all men shall either put on better contentations and new courages, or else I with better warrant may punish the mutiny and the base ignobility of the soldiers' minds.'

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The Devon and Somerset men, under Captain Burrowes, showed a particularly craven spirit, and began to desert at the prospect of active service. Essex hanged a few without much effect, for they preferred both starving and hanging to fighting. This is not surprising when we consider how they were recruited. The Privy Council directed the Western gentlemen to call for volunteers, and in default of a response to press those whom the country could best spare. Of course they sent all the greatest blackguards.

Falstaffian recruits.

Captain Thomas Wilsford, who saw clearly how matters stood, reported that the Irish were actuated 'by despair to farm any part of their lands. They affirm they are no rebels, for that they say it is not the Queen's wars, and that they do but defend their own lands and goods.' The English, moreover, were unwarlike, 'through the fat, delicate soil and long peace at home,' and unable to cope with the Irish, who, while retaining their native hardiness, had become skilled in the use of weapons. The task was too great for any but the Queen, though Essex was one to go through with his undertaking even at the cost of his earldom. He 'shot not at the gain and revenue of the matter, but rather for the honour and credit of the cause.' It is not in this poetic fashion that flourishing colonies have been founded, nor was the Earl himself sanguine, for he sent a trusty messenger to England with a detailed account of his troubles; and indeed nothing could be worse than the aspect of affairs, especially after the escape of Desmond had made it hopeless to expect help from the Pale.

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The Irish profess to regard Essex as a mere private person.

Essex could do nothing against the enemy, but some whom he considered lukewarm friends were more within his power. Piers, being accused of giving

Appeal to Fitzwilliam against

information to Sir Brian, was closely imprisoned and treated with excessive harshness, though there does not appear to have been any evidence against him. Nor was Fitzwilliam spared, for the Irish very reasonably held that if the war was the Queen's the army should be led by the Queen's Deputy, and it is probable that that experienced officer was of the same opinion himself. Essex professed readiness to serve under him as a private adventurer, but in the meantime accused him of encouraging libels against Burghley and himself. 'He could be contented to hear me ill spoken of openly in his chamber by his own servants, and he to show countenance, as though he took pleasure in his man's words ... he can be contented to sit in his chair and smile; and because I see further that all the Irish messengers of Ulster are daily with his lordship and I no way made privy to their petitions, or causes of their coming thither, I conclude that underhand many things may pass to my disadvantage, for already, whatsoever I require at any Irishman's hands, he appealeth to the Lord Deputy.'^[262] Captain Wilsford thought that Ulster was about the quietest part of Ireland, and it is likely that Fitzwilliam, besides a not unnatural jealousy, thought it extremely unreasonable that with the scanty forces at his disposal he should be in any way called upon to advance the Northern enterprise.

him.

The carrying off of the Fitzpatrick ladies had created much stir at the English Court, on account of the high position of the victims. That, however, was in a remote part of the country, and the captives were detained as hostages only. The story of an abduction of the day throws more light upon the state of society than any number of political disquisitions. Janet Marward, heiress and titular baroness of Skryne in Meath, a manor worth some 200*l.* a year, was a royal ward, and the Queen gave her wardship to Fitzwilliam, who sold it to her stepfather, Nicholas Nugent, second Baron of the Exchequer. Her mother, besides being married to a judge, was the daughter of a judge, John Plunket, Chief Justice of the Queen's Bench. Nugent sold the unfortunate girl to his nephew, the Baron of Delvin's brother. 'Afterwards, by procurement of the mother, the maid, being but eleven years old, was made to dislike of Nugent and to like of the young Lord of Dunsany, being of the Plunkets, whereupon there fell great discord between the Houses of Delvin and Dunsany, and the maid being by her mother and father-in-law brought

The Marward abduction case.

into this city as the safest place to keep her, on Friday last at night about twelve o'clock the Baron of Delvin's brother, accompanied with a number of armed men, the watch being either negligent or corrupted, entered one of the postern gates of the city with twenty swords and entered by sleight into the house where the maid lay, and forcibly carried her away, to the great terror of the mother and of all the rest.' William Nugent married the heiress without her own consent or that of her friends. But we may hope that in time she got to 'like of' her lawless husband tolerably well, for when he was in prison for conspiracy nine years after it is recorded that she sent him some shirts. With such things going on under the very shadow of Dublin Castle, it is no wonder that Fitzwilliam should clamour for recall or that he should regret the hard fate of his three marriageable daughters, who were losing their time in Ireland. Had they been heiresses and royal wards their lot might have been still harder. [\[263\]](#)

FOOTNOTES:

[234] Thomas Smith, Junior, to Burghley, Sept. 10; Fitzwilliam to Mr. Secretary Smith, Oct. 21; to Burghley, Oct. 26; to the Queen, Sept. 25; Edward Maunsel to Fitzwilliam, June 11; Tirlagh Luineach O'Neill to Fitzwilliam, Oct. 10; Maltby to Fitzwilliam, Oct. 14. Young Smith landed Aug. 30, 1572.

[235] Sir Thomas Smith to Fitzwilliam, Nov. 8, 1572; Thomas Smith, Junior, to Burghley, Nov. 21; Fitzwilliam to Burghley, Feb. 18, March 9, and May 20, 1573.

[236] Perrott to Sir Thomas Smith, Jan. 28, 1572; to the Privy Council (with Fitzmaurice's submission enclosed), March 3; to Burghley, April 12. *Perrott's Life*, p. 73.

[237] Desmond to Cecil and to the Duke of Norfolk, Aug. 26, 1568; to the Privy Council, Nov. 1; to the Queen, July 17, 1569; Sir John of Desmond to Cecil, May 30, 1569; Note of 1,573*l.* 2*s.* 4*d.* issued out of the Exchequer for the diets of the Earl of Desmond and Sir John, May 4, 1569.

[238] Sir John of Desmond to the Queen, May 30, 1569; Desmond to Cecil and Norfolk, Aug. 26, 1568; to the Privy Council, Nov. 1; to the Queen, July 17, 1569; Lady Desmond to her husband, Nov. 23, 1569; Perrott to Fitzwilliam, Dec. 4, 1571; St. Leger to the Privy Council, Oct. 17, 1570; to Burghley, June 6 and July 12, 1571.

[239] Declaration of Martin Frobisher, Dec. 4, 1572. Sir T. Smith to Burghley, Jan. 10, 1573; W. Herle to Burghley, March 16, 1572. The two last are in Wright, i. 454 and 475.

[240] Answer of the Earl of Desmond, Jan. 6, 1572-3, in *Carew*. Signed by Desmond, Jan 21, in presence of several members of the Privy Council. Sir John of Desmond signs as a witness.

[241] 'Her Majesty is so loth to sign anything that I know not what to do.'—Sir T. Smith to Burghley, Jan. 10, 1572-3; Wright, i. 456; Fitton to Burghley, April 10, 1573.

[242] Burghley, Sussex, and Leicester to Essex, March 30, 1574; Sir Thomas Smith to Burghley, June 2, 1573. 'Her Majesty remaineth in one opinion for my Lord of Essex. I trust it will continue, and his Lordship had needs make much haste. The time draweth away, and winds be changeable, and minds.'—Wright, i. 480. Essex's offers and an abstract of the grant to him are in *Carew*; and also his covenant with the Queen, May to July, 1573. See also Devereux, *Earls of Essex*, chap. i., and Shirley's *Monaghan*.

[243] Brief of Provisions, &c., July 19. Instructions for Mr. Tremayne, Clerk of the Council, June 9, 1573. Tremayne to Burghley, June 28 and 30, and July 4; Fitzwilliam to the Queen, June 12; to Burghley, June 30; Perrott to Warwick, July 14, in *Life*, p. 75; the Queen to Perrott, Aug. 10. Lanfey in Pembrokeshire

was a residence of Essex, and he did not get on well with his neighbour at Carew Castle.

[244] See two letters, June 20 and July 20, 1573, printed in *Lodge's Portraits* (Walter, Earl of Essex), from Essex to Burghley. In the R.O., calendared under Dec. 1574 (No. 81), is the paper above quoted, which shows how complete a division of Antrim among the colonists was really intended.

[245] Essex to Tirlogh Luineach O'Neill, Sept. 6; to Leicester, Sept. 15; to the Privy Council, Sept. 16; Sir P. Carew to the Privy Council, Sept. 16.

[246] Essex to the Privy Council, Sept. 10.

[247] Essex to the Privy Council, Sept. 29; Sir N. Bagenal to Lord Deputy and Council, Sept. 27; Sir P. Carew to Burghley, Sept. 29.

[248] Waterhouse to Burghley, Sept. 29; Sussex to Burghley, Oct. 15; Essex to the Privy Council, Oct. 20 and 28; to Burghley, June 4, 1574.

[249] Perrott to the Privy Council, April 9; to Burghley, April 12 and May 11; Fitton to Burghley, April 10.

[250] Russell's *Geraldine History*; Perrott to Burghley, May 11 and 18, and June 18; to the Privy Council, May 21; to Leicester, May 18, in *Carew*; Lord Deputy and Council to the Queen, May 25; Desmond's answers, May 18.

[251] Testimonial under town seal of Cork, April 18. Perrott to Burghley, April 19, with enclosures; to the Privy Council, May 11 and July 2; Petitions of John Besse and John Moreau, May 11 and June 15; Fitzwilliam to the Privy Council, June 13, with enclosures. *Perrott's Life*, p. 76.

[252] See State papers of April, 1573. Lord Deputy and Council to the Queen, June 10, with enclosures; Essex to the Privy Council, Nov. 2.

[253] Perrott to Burghley, July 13; to the Queen, same date; N. Walshe to Burghley, Sept. 26.

[254] Fitzwilliam to Burghley, Oct. 13; to the Privy Council, Nov. 5; the Queen to Perrott, Aug. 10; Desmond to the Queen, July 17 and Oct. 28; to the Privy Council, July 18 and Oct. 28; to Burghley, Oct. 28; Perrott to Fitzwilliam, July 18; N. Walshe to Burghley, Sept. 26; Bishop of Cork (Matthew Seaine) to Fitzwilliam, before Oct. 13.

[255] For Desmond's escape, after Oct. 28, and before Nov. 20, see Ware's *Annals*, Harris's *Dublin*, and Smith's *Kerry*, all varying slightly from each other. The account of the *Four Masters*, who say nothing of his having given parole, cannot be reconciled with the dates. Lord Deputy and Council to Desmond, Nov. 20; Fitzwilliam to the Privy Council, Nov. 20; to Burghley, Nov. 22 and 23; J. Walshe to Burghley, Nov. 30 and Dec. 2.

[256] N. White to Burghley, July 17; H. Colley to N. White, Oct. 10; to Fitzwilliam, same date; Sir B. Fitzpatrick to Sidney, May 6; Tremayne to Burghley, July 4; R. Mostyn to Fitzwilliam, Oct. 9; Fitton to Burghley, June 12 and July 2; to Sir T. Smith, April 10, June 29, and Aug. 12.

[257] Fitzwilliam to Burghley, June 30, Sept. 10, and Oct. 13; to the Queen and to the Privy Council, Sept. 10; Fitton to Sir T. Smith, June 3; to Burghley, Sept. 6 and 17; Lord Deputy and Council to the Queen, June 12, with enclosures; the Queen to the Lord Deputy and Council, and to Fitton, June 29.

[258] Perrott to the Privy Council, May 21, 1573; Weston, C., to Burghley, Sept. 14, 1569, June 17 and Oct. 20, 1572; to Fitton, Feb. 8, 1573; Lord Deputy and Council to the Queen, June 10, 1573; Wallop to Walsingham, May 7, 1584, and June 15, 1585; Earl of Cork's *True Remembrances*. Sidney, Perrott, and Weston, all suffered from stone.

[259] News out of Spain in *Foreign Calendar*, Jan. 5, 1572. A. de Gueras to the Rebels in Ulster, May 1573; Rowland Turner to Sir Brian MacPhelim, May 1573; Essex to the Privy Council, Oct. 4; and see *Domestic Calendar*, additional, Dec. 1573 and Aug. 1574.

[260] Essex to the Queen, Nov. 2, 1573.

[261] Instructions for E. Waterhouse, Nov. 2; Thomas Wilsford to Burghley, Dec. 1.

[262] Essex to Burghley, Nov. 2 and Dec. 9.

[263] N. White, M.R., to Burghley, Dec. 12, 1573; Fitzwilliam to Burghley, Oct. 13, 1573; petition to Burghley, Sept. 1582; Ormonde to Burghley, May 30, 1583.

CHAPTER XXXI.

1573 AND 1574.

The escape of Desmond had made a great difference in the state of Ireland, for no chief either in north or south could afford to neglect such a factor in insular politics. Clanricarde, being invited by him to a conference, informed the Government that he would, if possible, persuade him to conformity. Desmond also sought Sir Edmund Butler, who was now sincerely loyal, and made to him a general denial of rebellious intentions. Butler advised him to go to the Lord Deputy and make his peace, but this he would not do. 'Sir Edmund Butler,' he said, 'if you had known what extremity I had suffered in England, you would never give me the like counsel.' And to clench the argument he exhibited the patched and pieced hose and shoes which he had been forced to wear continually in England. Sir Edmund answered that he had suffered much more, but was now at liberty by her Majesty's grace. Desmond would not willingly confess himself disloyal, yet it is plain that he liked Queen Elizabeth best at a distance. [\[264\]](#)

Desmond will not go to the Lord Deputy.

With humble men, or with those whom he believed friendly, the Earl was less guarded, and made no secret of his intention to annoy the Butlers and their friends, and he said he would rather have an old mantle in Munster than a torn silk gown in England. He went about with a rabble of 800 or 900, so that peaceable folk wished they had accompanied Perrott to England or drowned themselves at his departure. The Barrys and Roches had to support his lawless train, though the influence of the Countess and others for a time prevented open plunder; but Desmond refused to reduce his followers while Bouchier remained in garrison at Kilmallock. The townsmen were not to

He goes about with a great following.

be trusted, and ladders were being prepared in the woods. Even Cork refused to support nine soldiers, though a regular warrant was produced, and James Fitzmaurice's attitude was very threatening; for he made little secret of hiring Scots, and a Scots visitor ostentatiously donned Irish attire. But there was no lack of loyal professions. 'Before God, Mr. Walshe,' he said, 'I do not intend it, nor will do harm to any man unless I am compelled.' Another less noted partisan appeared before Castlemaine on Christmas Eve with thirty sword and target men. The porter, either corrupted or a sympathiser, had furnished the assailants with impressions of the keys in dough, and new keys had been made. The Geraldines entered quietly, and found the garrison playing cards. They turned them out, taking back such as were willing to change masters. Desmond, three days later, reported that the castle had been taken without his orders and against his will, that he had put in warders of his own, and arrested the adventurers who had seized the place. About the same time the seneschal of Imokilly took possession of Castlemartyr. Rumours of rebellion and foreign invasion filled the air, and merchants who had seen golden visions of Irish prosperity informed Burghley that the escape of Desmond had spoiled all. [\[265\]](#)

The importance of Desmond's escape was not lost on the English Government, and it was resolved to send a semi-official messenger to remonstrate with him in a friendly way. The person chosen was Kildare's brother Edward, Lieutenant of the Gentleman Pensioners, and no doubt it was supposed that his name and blood would recommend him to Desmond. There had probably been a close acquaintance between them in England. Fitzgerald had a regular commission from the Queen, but she desired him to write always to his wife or sister, so as to keep up the appearance of a private tour. The experienced courtier may have thought the matter too weighty for women, for he wrote all privately to Burghley. As a precaution 300 men were ordered to Ireland, and others were held in readiness. Rather more than 6,000*l.* was sent in money, with strict injunctions that it should be spent on the exigencies of the moment, and not on satisfying creditors. This new way of paying old debts was not found practicable. The money was quickly spent, and in less than two months the Irish Government was asking for more. [\[266\]](#)

Mission of Edward
Fitzgerald, 1574.

If Elizabeth really imagined that her Lieutenant of Pensioners, who had been little if at all in Ireland since his childhood, could travel as a private

gentleman without attracting notice, the notion was quickly dispelled. The Irish Government treated him in all respects as a Royal Commissioner, and furnished him with careful instructions. The Munster rivers were flooded, and there was a difficulty about corresponding with Desmond. He professed himself ready to meet his kinsman near Clonmel on the last day of January, but declined to go to Dublin, and stiffly maintained that he was ready to prove all that he had ever asserted against the Lord Deputy or Sir John Perrott. There was no want of information as to Desmond's evil intentions. Patrick Sherlock, sheriff of Waterford, a stout old campaigner who had served the Emperor and the King of France, warned the English Government that all malcontents, north and south, were banded together, and that they would soon have 3,000 men in the field. The Earl of Ormonde and 1,000 English soldiers was Sherlock's prescription. Justice Walshe was much of the same opinion, and so was Maurice O'Brien, Bishop-Elect of Killaloe, a Cambridge man, who had become more English than the English, and who declared that it would be better to be a prisoner in England than a free man in Ireland. Mulroney O'Carroll informed the seneschal of Queen's County that a messenger of Desmond's had been at his house, and after drinking much whiskey had told him of letters sent by the Earl to O'Neill, Clanricarde, the O'Mores, O'Connors, and O'Byrnes. Shane Burke, with 600 Scots, was to harry the King's and Queen's Counties. O'Carroll, who addressed Cosby as his father, admitted that the truth was obscure, and that servants often exceeded it in speaking of their masters; but he confirmed the man's story to some extent, and stated that a flood in the Shannon had alone prevented Desmond from meeting Clanricarde. Anxiety for this meeting was believed to be the cause of Desmond's delay in meeting Fitzgerald. All accounts agreed that there was to be a general attack on the English settlers, that Desmond would have no president or other English official resident if he could help it, and that he aspired to be rather a tributary sovereign than a subject.^[267]

He seeks vainly for a meeting with Desmond.

So far as any secrecy went, Edward Fitzgerald might as well have had his commission read with tuck of drum in every town and village. His unostentatious mode of travelling merely gave an excuse for not treating him with much respect. At Clonmel the municipality refused him livery for his

The meeting takes place, but is not of much use.

horses; he was obliged to forage for himself, and he had to wait long before Desmond would take the trouble to meet him. Seven articles founded upon the instructions of the Irish Government were propounded to the Earl. His answers were not considered altogether dutiful, and by the advice of some English gentlemen in his company Fitzgerald gave him an opportunity of amending them. Thus, he at first refused to be judged in any way by the Lord Deputy or Lord President, they having a private grudge against him. On second thoughts he said nothing about Perrott and Fitzwilliam, but merely pleaded his poverty, his previous long detention, and his doubts as to 'indifference of hearing' there, as reasons for not visiting Dublin. But if 'such of the Council as were indifferent' would come to the borders of his country, he was ready to agree to anything reasonable. Of general professions of loyalty the Earl was lavish enough, but when it came to material guarantees there was less compliance. He was ready to give up castles to his cousin, Mr. Edward Fitzgerald, who had no warrant to take them and no means of holding them, but not to Captain Bouchier, who had both. And he expressly saved all the liberties to which he laid claim. James Fitzmaurice, Sir John of Desmond, and Andrew Skiddy, Judge of the Palatinate of Kerry, were among those who signed the Earl's amended answer. ^[268]

Fitzgerald reported 'that such of the Earl's blood and kindred as stand in danger of the law do persuade him that his state, by reason of his departure from Dublin, is most dangerous, and therefore they do advise the Earl, for their safeguards, to receive a general pardon for him and them, which if they may not procure, it seemeth they are bent to work what in them lieth to cause the Earl to stand upon terms.' Desmond seemed to fear an invasion of his country, and his kinsman did what he could, which was very little, to persuade him that no such invasion was meant. The instinct of the Geraldines was truer than the courtier's smooth phrases, for on the very day fixed for the meeting Elizabeth wrote to Fitzwilliam, blaming him sharply for lying still in Dublin and giving the Earl so much scope. She was about to send over Sir John Perrott with 300 men, and suggested that in the meantime the independent lords and gentlemen of Munster might be encouraged to make war against Desmond, and authorised to take coyne and livery for the purpose. Perrott had already

Fitzgerald's report.
The Queen
grudgingly accepts
Desmond's excuses.

shown what his views were, and it was no doubt well known in Munster that Fitzwilliam had urgently besought his return. But either the Lord President excused himself on the ground of ill-health, or the Queen's humour changed, for she accepted Desmond's answer, though not very graciously, and encouraged him to hope for pardon and favour.^[269]

About the time that Essex was sending over Waterhouse, the attention of Elizabeth and her Ministers seems suddenly to have been directed to Ulster. The Queen woke up to the fact that there was little hope of revenue, and not much of military success. The discomfited adventurers had spread hostile reports, and intending colonists were reduced to the state of mind which the perusal of a famous novel may be supposed to have had upon many who had thought of seeking their fortunes upon the banks of the Mississippi. Essex was desired to send some one who could resolve the Queen's doubts, both as to the actual state of Ulster and as to its prospects for the future. Two trusty messengers were accordingly sent, Essex not concealing his opinion that force alone could reduce the North. Sir Brian MacPhelim might express contrition for his former conduct, but the natives generally were 'false of their word,' and in the absence of a strong force nothing less than a general revolt was to be looked for.^[270]

The Queen is anxious about Ulster.

Owing, perhaps, to the exertions of Waterhouse, or possibly to some qualm of conscience in her Majesty as to the ruin which was overtaking her faithful servant's private estate, positive orders were sent to the Irish Government to treat him with more consideration, and to give him a commission as Governor of Ulster with authority quite equal to that of a President in other provinces. Fitzwilliam was also told to give out that the expedition was not intended against the natives, but against the usurping Scots. In practice, of course, no such distinction was or could be observed. Fitzwilliam hastened to assure Walsingham, who had just become Secretary of State, that the rumour of his opposition to Essex was mere slander, and that he would embrace his enterprise heartily.^[271]

Fitzwilliam has orders to help Essex.

The English Ministry saw clearly enough that nothing could be made of the Ulster expedition without great expense. This the Queen was most unwilling to incur,

The Queen will not make Essex Lord

and some proposed to make Essex Lord Deputy as the easiest way out of the difficulty. He was, they said, 'painful in watch, in travail, in wet and dry, in hunger and cold, and frank of his own purse in her Majesty's service.' The Queen's honour would be saved by withdrawing in this way from a hopeless enterprise, and the Earl's feelings would be spared by promoting instead of recalling him. But Elizabeth refused positively to make anyone Deputy who had a landed estate in Ireland, and the reason was good whether suggested by Leicester or not. Sir F. Knollys feared that if the Queen would neither make the Earl Deputy, nor take the enterprise into her own hands, the unlucky adventurer would be undone, to her Majesty's great danger and dishonour. Lady Essex's father might have been well pleased to have her living in Dublin, but if Leicester, as is exceedingly probable, was already her lover, opposition would not be wanting. 'Yet all men,' says Knollys significantly, 'outwardly do seem to favour my Lord Essex and his enterprise.'^[272]

Deputy.

Essex became Governor of Ulster, and in less than a month longed to be rid of an office which he could not fill with credit. He was very willing to be Lord Deputy, for that might give him the means of reducing Ulster, but he feared that no Deputy would ever brook a separate governor for the Northern province.

Essex is made Governor of Ulster,

Having planned an expedition against Tirlogh Luineach, he applied to Fitzwilliam for help, and the Deputy, willing to show his goodwill, called upon the gentlemen of the Pale. But, with the single exception of Lord Slane, they refused to go. Even the Louth people, who were on the borders of Ulster, would do nothing but complain that they were overtaxed; 'and they think,' said Essex sarcastically, 'to have greater thanks for denial to go with me, than for their forwardness in this service; they do so often and so openly exclaim and complain unto me, and I not able to redress it, as I am truly weary of myself.' The treatment which the regular troops received was not such as to make the service popular. Fitzwilliam, or some of those about him, tried to husband the scanty resources of the Irish Government by giving the victualler a hint that he need not exert himself too much in Ulster. The garrisons of Dundalk and Newry were consequently neglected, and universal desertion was only prevented by the timely arrival of fifty barrels of herrings which one of the Earl's servants had bought at Carlingford. 'For

but can do nothing.

twenty days,' wrote the sorely tried Governor, 'they had neither bread, drink, fish, nor flesh, but were forced to beg, and lay their arms, pieces, and garments in gage for to buy them food.' The 300 men last sent over had been willingly diverted to Ulster by the Lord Deputy, who wanted the means to feed them, and there was 'no provision made for these men, neither yet for 80 horsemen and 260 footmen, and the victualler hath unto them delivered but only 30*l.* to make provision for these 600 and odd men; ... and the soldiers because they, in their extremity, received those herrings from me, do think that the charge of their victualling is mine, and do lay the blame of their wants upon me, and do all fall to mutiny, and say that unless I will see that they shall be better victualled, they will do neither any service, nor yet abide there.'

[273]

'For my part,' said Essex, with a noble obstinacy, 'I will not leave the enterprise as long as I have any foot of land in England unsold. But my land is so entangled to the Queen's Majesty, for that money which I had of her towards this journey, as I cannot sell any land that I have for the one-half of that which before I might have done.' He was in the position of a borrower driving a risky trade, or of a would-be insurer who leads an unhealthy life. No one was willing to lend or to buy where the Queen was first mortgagee. He proposed two courses to her Majesty. If she would bear the charge of 100 horse and 600 foot, while he furnished 100 horse, and made a last effort with the adventurers, then he engaged to make the North profitable to the Crown, either by rents from the natives or by English settlers. 'Let me bear both the blame and the shame if I do not before Christmas Day make that part as quiet as any part in Ireland shall be.' For himself he asked only a grant at a nominal rent of Island Magee, the long narrow peninsula which protects Lough Larne from the fury of the Northern Sea, on condition of contributing 500*l.* towards any town which the Queen might think proper to build there. 'I find it more easier to bear the charges of 200 men than to bear the name of a general without wages.' The other alternative was for the Queen to take 250*l.* a year in land in discharge of the 10,000*l.* which he owed her, and to free the third part of his estate from the claim of the Crown. He would then do his best to carry out the original scheme alone, 'but yet this way will neither please the adventurers, nor encourage them to go forwards.'

[274]

Essex will not
despair.

The Queen had resolved to recall Essex as soon as he had 'lapped up' all matters with Tirlogh Luineach and Sir Brian upon the most decent terms possible, and to limit her efforts in Ulster to keeping a small garrison at Carrickfergus, and to wheedling a small tribute out of the chiefs. But after reading the letter last quoted she changed her mind. Her heart was touched, and she resolved to give another chance to a subject whose loyalty no neglect could impair, and whose constancy no failure could overcome. In one of those letters which go far to explain her wonderful power, she thanked him heartily for his services, unsuccessful as they had hitherto been, 'acknowledging the same to have been grounded not upon gain, but upon honour, an argument of true nobility, and we cannot, whatsoever issue the same hath had, but make account of you as of that noble man who, in respect of other service, hath rather chosen to suffer any intolerable toil in Ireland than yield to enjoy the delicacy of England. Which rare affection, if we should not cherish, we should show ourselves unworthy of so rare a servant.' He had complained that his letters were not answered; she reminded him that they contained matters not fit for every secretary, 'to which our eyes and the fire only have been made privy.' She accepted his surrender of Clandeboyne, and agreed for a time to maintain the required force, and she promised to grant him Island Magee. The Lord Deputy should resume the government, receiving at the same time strict and secret instructions to co-operate with him in his attempt to expel the Scots and to reduce Sir Brian MacPhelim.

The Queen resolves to recall Essex.

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But royal words, however sweet, could not conquer Ulster. Heroic as was his character in many ways, Essex had not the gifts which have been given to a few great generals. He could not infuse courage or endurance into wretched starvelings, nor had he administrative genius to conquer the shortcomings of his commissariat. Newry and Dundalk must have been evacuated but for a timely supply of herrings. The peculation was such that stores calculated to last six months did not last four, and that the full supplies for near 600 men were expended on much less than half the number. The powder was one-quarter coal dust, and was not worth firing. The Carrickfergus garrison was reduced nearly two-thirds by desertion and disease, and was so completely isolated that a traveller going to Dublin might consider 100

Essex powerless.

horse but a scanty escort. The filth of the town was such as to make fever almost universal. The services of religion were neglected, for the ‘belly-fed ministers’ who were induced to visit Ulster liked the danger and hard fare no better than the gentlemen adventurers whose service had consisted in eating without paying. The reinforcements sent were of such quality as to be worse than useless: 100 were raw recruits from Oxfordshire and Berkshire; 200 were from Cheshire and Lancashire, and so bad—the Lancashire men especially—as to be scarce fit for field labour. As labourers Essex had to keep them, ‘for soldiers,’ he said, ‘they will never be.’ One hundred veterans promised from Berwick had been countermanded on a rumour of Desmond’s submission. Captain Morris, who had the leading of the ragged regiment, was destined to lay his bones in Ireland. The fact was that Carrickfergus had such a bad name in England that everyone who possibly could avoided service there. Waterhouse, who was at Chester in constant communication with Ireland, begged that the men might be sent to Carlingford; but routine seems to have been too strong for him, and they were despatched to the old pest-house. The wretched lads died like flies at the rate of fifteen or twenty a day—300 were sick at once, and none could hope to escape. Scarcely a man was fit even for sentry duty. Essex lay among his men, and there was not a night but one, two, or three died within ten feet of him. The remonstrances of his officers against this heroic foolhardiness prevailed at last, and he was induced to withdraw the remains of the garrison. Out of some 600 only 200, more dead than alive, reached the Pale, where he had to support them at his own expense. [\[276\]](#)

The Queen’s gracious letter caused hope to spring once more in the Earl’s breast, and with such men as he could muster he resolved to chastise Sir Brian MacPhelim.

He still has hope.

That chief was proclaimed traitor, and 200*l.* was put upon his head. At first he despised such threats, and some skirmishing took place. Having the worst in these encounters, and perhaps hearing exaggerated accounts of the reinforcement, Sir Brian thought it prudent to submit. Some thought that this was done only to gain time until the provisions were exhausted; but it is probable that Sir Brian looked upon war against the Queen’s Governor as different from war against the Earl of Essex in his capacity of private adventurer. So far as humility of language went, nothing could be said against him. He acknowledged that after many years’ loyal service he had

wandered into the wilderness like a blind beast without knowledge of good. By the good grace of Almighty God he had been called home, and his chief desire now was to see her Majesty's face. Clandeboy was the Queen's, and he was ready to pay a rent of 1,500 kine for the first year and to increase it afterwards. At his earnest request Essex interceded for his pardon, and was sanguine enough to express an opinion that it would be well deserved. [\[277\]](#)

It seems that Burghley wished to make Essex Deputy, but the Earl, though he was accused of intriguing for it, had no wish to incur hatred and envy 'in that unfortunate office.' 'Who shall serve the Queen and his country faithfully,' he said with an evident side glance at Fitzwilliam, 'shall have his fair reward for his travail; but if he will respect his gain more than his prince, country, or honesty, then may he make his gain unmerciful.' He was quite ready to serve under Sidney or any other settled Governor, 'and such a one as is fit for Ireland, not Ireland for him.... All the ill-disposed now rob and steal, hoping that the new Governor will pardon all done before his time.... This people wax proud; yea, the best might be amended; all need correction.' The actual Deputy declared that he 'fretted away his life in misery.' Not only was he persistently and, according to himself, quite unjustly accused of trying to thwart the Ulster enterprise, but he found his credit everywhere depreciated. Edward Fitzgerald, who may be supposed to have been tolerably impartial, declared that he pitied his sad state. The evil feared him but a little. The Pale bore him no goodwill. The soldiers disliked him, while the captains complained; and the councillors cynically abstained from giving advice whenever he seemed inclined to do anything unpopular or capable of misrepresentation. He accused his old antagonist Vice-Treasurer Fitton of annoying him in every possible way, withholding his pay, disputing his requisitions, and refusing to follow him into the field.

But all men see that he must fail.

The Lord Deputy's troubles.

'I would,' said Fitzwilliam with evident sincerity, 'abide the pricking out of my eye or the stitching up of my lip,' rather than let private feeling hinder public service; but he confessed that he could not help disliking a man who counterworked God's will by prejudicing the English Government against his official superior, with no higher object than to gratify his own malicious vanity. Fitton was evidently a provoking person, but he solemnly declared he never gave Fitzwilliam a crabbed word, whereas the Lord Deputy's

household was a hotbed of slander against him. Such, according to his own account, was the Vice-Treasurer's conscious innocence that he magnanimously signed State papers which contained covert attacks upon his official conduct. The poor Deputy could only testify against Fitton's vain-glorious humour, and beg to be recalled from his 'tabering.'^[278]

Had Fitzwilliam felt sure of his sovereign's favour he might have laughed at his enemies, and even at his daughter's unwedded condition. But the Queen blamed him roundly for staying lazily in Dublin, while Desmond lorded it in Munster and Essex struggled on unsupported in Ulster, and while Connaught scarcely preserved the semblance of the royal dominion. Fitzwilliam pleaded with perfect truth that to take the field without proper forces would be to risk her Majesty's honour. His credit was at the lowest ebb. The commissariat was in a state of chaos, and though he had often and urgently asked for a victualler none was sent—'a most necessary minister, the toilsome care of whose charge doth trouble me more than half the Government besides.' To save appearances he gave out that he expected his recall daily. 'Between these changes,' said Essex, in words that apply now as well as then, 'is ever all the mischief in Ireland; and therefore it were good to make it surely known that he shall still remain, or else to send such a Governor as you do determine on presently, for the expectation of a change maketh this man not to be obeyed nor cared for.'^[279]

Fitzwilliam is blamed for doing nothing, but is not furnished with means.

The mission of Edward Fitzgerald in Munster having had no very favourable result, the Queen rebuked Fitzwilliam sharply for giving him orders, contrary to her instructions, 'to deal and negotiate with the Earl of Desmond as sent from us, whereas contrariwise our meaning was that he privately, as a kinsman, should have repaired unto him by your license, not by our direction; ... for as the matter is now handled, we think ourselves touched in honour, for that the Earl may have cause to think that we should now seek upon him—a thing very unfitting for the place and quality we hold.' The harassed Deputy, who had himself the worst opinions of Desmond's intentions, lamented his hard fate, and sent Sir James Dowdall, Second Justice of the Queen's Bench, to remind the Earl that there was a government in Ireland. He had no force to coerce, though the Queen taunted

Fears for the peace of Munster.

him with his indolence, and there were constant rumours of invasion, requiring in his opinion the presence of men of war on the coasts of Cork and Kerry. Dowdall's letters remained long unanswered, and he lay idly at Clonmel listening to reports which he knew were too vague to be worth forwarding. Justice Walshe, in whose single person the government or non-government of Munster for the moment centred, furnished Burghley with a long list of Desmond's misdeeds. He had spoiled the Sheriff of Limerick and threatened to cut his tongue out for complaining. All sorts flocked to him, finding it easier and cheaper to rob than to work and be robbed. Desmond gave out that there should be no law but Brehon law between Geraldines. James Fitzmaurice was moving very suspiciously, and had been accepted as chief by the Ryans of Owey, a wild country bordering on the Shannon. The MacSheeheys, or Desmond gallowglasses, had taken the Mayor of Limerick and kept him in pawn for one of their number who was the Queen's hostage. But the most daring act of all was the apprehension of Captain Bouchier, who was attacked on the high-road near Kilmallock, and driven into a castle belonging to the Sheriff of Limerick. James Fitzmaurice hurried to the spot with a strong force, took him out, and gave him in custody to a personal enemy, Edmund Fitzdavy, who treated him so cruelly that he was ready to put an end to himself. [\[280\]](#)

An English resident at Waterford, who had held some sort of commission, lamented over Perrott's departure, and the consequent revolt of Munster to her 'monstrous Irish fashion.' He thought it would have been better for Desmond to suffer the decent restraints of enforced residence in Dublin, than such liberty as he enjoyed in the South. Irish colts could only be bridled with a sharp English bit; Bellingham and Sidney, Gilbert and Perrott, being the fittest riders hitherto. He said very truly that long impunity had introduced universal laxity, and had made conspiracy the most attractive of occupations. [\[281\]](#) One pardoned malefactor bred a hundred more. Every debtor ran off to the woods, and in his character of rebel soon received a pardon. Law-abiding had become a matter of indenture. The writer, who was learned, had a theory, probably derived from Greek history, that islanders were naturally turbulent, and cited Cicero and Aristotle as authorities for the argument that severity was the best cure for laxity, and that valiance was necessary for the government of barbarous nations. Another Englishman of a less classical or

Opinions of English residents.

more Puritanical turn thought the Irish could be starved out by taking or destroying the herds upon whose milk they fed. He added that there could not be a greater sacrifice to God. [\[282\]](#)

Desmond had guns taken at Castlemaine, and it was feared that neither Cork, Galway, nor Kinsale were safe. The chiefs were supposed to have decided that if a President came each would overthrow his own castle and take to the field. Five hundred ladders and a quantity of sapping tools had been collected within easy reach of Kilmallock. Stukeley and Archbishop Fitzgibbon were in Brittany consulting with the leaguers. Catholic intriguers were as busy as ever in Spain, and a servant in Desmond's livery had been seen at the Spanish Court. Among some thirty English and Irish Catholics of note who were in Spain about this time were Stukeley and Fitzgibbon, Rowland Turner, William Walshe, Papal Bishop of Meath, and Dr. Nicholas Sanders, who was destined to play a greater part than any of them in Irish history. Philip lavished great sums upon them, and was besides said to spend 23,000 ducats a year in Flanders in the same way. [\[283\]](#)

Kilmallock threatened. Spanish intrigues.

Stung by the Queen's taunts, Fitzwilliam determined to undertake military operations in Munster with such forces as he could command—that is, with about 800 men badly fed and paid. As a last chance of peace he resolved to consult Essex, who at once came to Dublin, whence he despatched the following letter to Desmond:—

Fitzwilliam is almost desperate.

'My Lord,—I understand my cousin, George Bouchier, in his going to Kilmallock, where his band lay, is by some of your men taken and hurt stealthily, and most straitly kept in prison. Sorry I am, my lord, that the gentleman should be so handled as I hear he is. But truly I am more sorry that you should give her Majesty cause to conceive so ill with you as this dealing of yours I fear will give her occasion. Let me reason, and as I think you have store of ill-counsellors, who hiss you on to that which is evil, whom daily you hear and I fear do too much credit unto, so hear, withal, the advice of those which wish the well-wishing of you, and the continuance of your house in honour, of which company, I assure you, I am one. What do you desire, or what is

Essex and Desmond.

the mark you shoot at? Is it to the enjoyment of your inheritance and country that you seek? If it is that this may satisfy you, there is no seeking to put you from it; and if any contempt or fault of you hath in your own opinion brought it in question, her Majesty, as hath been written to you from thence, is content to pardon you. What should move you, then, to seek war, when in peace and with honour you may enjoy all that is your right? If you have in your head to catch at a further matter, think it is the very highway to make you with dishonour to lose that which with honour in true serving of their Prince your ancestors have gotten and long enjoyed. My lord, consider well of this, and look into the case deeply and give care unto the sound and faithful counsel of your friends, and stop the ears from hearkening unto them which seek by their wicked counsel to destroy yourself and to overthrow your house. Let not the enemies have the occasion to triumph at your decay, refuse not her Majesty's favour when she is content to grant it to you, lest you seek it when it will be denied. Surely in my opinion her Majesty had rather to erect many such houses as yours is, than to be the overthrow of yours, although it be through your own default and folly. And to procure this her Majesty hath offered as much of her clemency to you, as with honour she might do to her subjects. I have shortly showed you my opinion of your case, and given my best advice, I pray you follow it. I will conclude with my earnest request to your lordship for the delivery of my cousin George Bouchier. So wishing that you follow good counsellors and not flatter yourself with the opinion of your force, which to contend with her Majesty is nothing, I end and commit your lordship to God.'

Five days later he wrote again in the same strain, and soon afterwards told Burghley that it was very hard that the Deputy should have precise orders to make war without being furnished with means. This does not look like intriguing for the viceroyalty, of which Fitzwilliam evidently suspected him. In consequence of what he heard from Desmond, Essex declared himself willing to try his hand at 'deciphering' him, and, at the request of the whole Council, started with that object; Fitzwilliam privately sneering at his tardy offers of service. Desmond appointed Kilmacthomas in the County of Waterford as the place of meeting, and professed perfect confidence in the Earl and readiness to be guided by him. [\[284\]](#)

On his arrival at Waterford on the eve of the appointed day, Essex received a message from Desmond to say that he was at Kilmacthomas. That place being considered rather remote, Desmond, accompanied by Fitzmaurice and about sixty horse, advanced to a bridge three miles from the city, where he was met by Kildare, who brought him to a heath just outside the walls. After some parley Essex handed him a protection under the Great Seal for himself and all his followers for twenty days. Having delivered the paper to one of his men, he then rode into the town, where the Countess soon afterwards joined him. At a private conference, at which only the three Earls and Lady Desmond were present, he said 'that he would do anything that could be required of any nobleman in England or Ireland.' Essex was satisfied with this, and within three days Desmond went to Dublin with only four or five attendants, having first given orders for Captain Bouchier's release.^[285]

Meeting of Essex
and Desmond.

Oddly enough, if she wished him to succeed, the Queen had not done Essex the honour of having him made a member of the Irish Council, and he had no part in the abortive negotiations which followed. Being called upon to perform the articles concluded in England, Desmond said that he would take no advantage of these having been extorted from him under restraint, and that he was willing to be bound, but only as part of a general settlement. Otherwise he would be the one unarmed man in Leinster, Munster, and Connaught; and with all his loyalty he had no mind to be the common sport and prey of the three provinces. Being asked to restore the castles which were in the Queen's hands before his escape, and to give up any others when required, he refused to hold his all at her Majesty's pleasure, and could not believe that she herself desired it. Pardon he was ready to receive thankfully, but would not 'repair into England to be a spectacle of poverty to all the world,' and he asked the Council to pity his long misery there. He was ready to perform presently all his promises, but would not give pledges beyond what he had before agreed to. His only son was in England, so was Sir James, one of his two legitimate brothers. 'If neither my son, being mine only son, nor my brother, whom I love, nor the possession of mine inheritance, as before is granted, can suffice, then to the justice of God and the Queen I appeal upon you all.'^[286]

Desmond is
obstinate.

Desmond's answers were not considered satisfactory, and he refused to remain on protection either with Kildare or Essex till the Queen's pleasure should be known. A proclamation was prepared declaring him a traitor, and offering 500*l.* for his head, and 1,000*l.* and a pension to any who would bring him in alive.

Meeting of Essex,
Desmond,
Ormonde, and
Kildare.

'In my judgment,' said Essex, 'the war is unseasonably begun, because the rest of the realm standeth in so ill terms, and the manner of Desmond's answer might with honour have suffered a toleration till Ulster had been fully established.... The mischief is without remedy, for I am bound with the Earl of Kildare, by our words and honours, to safe conduct Desmond to the confines of Munster, which will take ten days at least, in which mean the bruit of the war will be public in all places.... I can hope for none other than a general stir in all parts at once.'

They set out accordingly and met Ormonde at Kilkenny, whence the four Earls travelled southward together for some miles; Ormonde riding by the side of his ancient enemy, and telling him that he was rushing to destruction. No apparent impression was made; Desmond making no secret of his plan, which was to defend a few castles and raze the others, and to keep the bulk of his force in the field till the arrival of foreign aid. Lords Gormanston and Delvin refused to sign the proclamation of treason, which no doubt would not be popular in Ireland. They relied entirely on the technical ground that they were not members of the Council; but the plea was not accepted in England, and they were obliged to make some sort of excuse. [\[287\]](#)

Ormonde's advice.

Just at the time when Essex was undertaking to 'decipher' Desmond, the Queen wrote one of those stinging despatches which terrified men more than her father's axe or her sister's faggots. She accused the Lord Deputy and Council of want of judgment, and of truckling to a rebel while such a faithful subject as Captain Bouchier was severely imprisoned, and other faithful subjects were sorely oppressed. They should have proclaimed Desmond traitor and proceeded against him without delay; her honour was touched, and there were as many troops as 'have sufficed for others that have supplied your place to have prosecuted like rebels of greater strength

Sir William Drury
sent to help
Fitzwilliam.

and force than we perceive he is of.’ Since Perrott’s departure Fitzwilliam had frequently complained of the want of a high military officer in whom he could confide. Such ‘an express gentleman,’ as the Queen designated him, was now sent in the person of Sir William Drury.

Fitzwilliam was to consult him in all martial affairs, and to place him in such authority as befitted so gallant a soldier and so experienced a servant. Five days later the Privy Council warned Fitzwilliam that if he once entered Munster he would be bound in honour to exact an unconditional submission from Desmond, but that he would do well to wink at the misdeeds of smaller offenders, provided they yielded themselves by a fixed day. There were troops enough ready in the West of England to come to the rescue should an invasion of Ireland really take place. [\[288\]](#)

With Ormonde’s warning voice still in his ears, the infatuated Geraldine chief called together certain of his followers and asked their advice. The result was a document, afterwards famous as Desmond’s ‘Combination,’ in which some twenty gentlemen declared that he had done all that could be fairly required of him, and advised him not to yield to the last articles, nor to give hostages, even if the Lord Deputy should assert his authority by force of arms. ‘We, the persons underwritten,’ the paper concludes, ‘do advise and counsel the said Earl to defend himself from the violence of the said Lord Deputy.... We renounce God if we do spare life, lands, and goods ... to maintain and defend this our advice against the Lord Deputy or any other that will covet the said Earl’s inheritance.’ Desmond’s brother John was one of the signatories, but James Fitzmaurice’s name is absent. It was in contemplation at this time to buy them both off with some portion of the Earl’s lands. [\[289\]](#)

The Desmond
‘Combination.’

Letter after letter came from the Queen upbraiding her representative’s inaction, and Fitzwilliam at last fixed a day for beginning a campaign, though he had no money and was in want of everything. Then there was another postponement, and Ormonde undertook to negotiate in the meantime, Desmond fencing a good deal and avoiding a direct answer. Matters were brought to a crisis by attacking Derrinlaur, a castle on the Suir, which belonged to Sir Thomas Butler of Cahir, and which had been treacherously

Campaign in
Munster. Derrinlaur
Castle.

taken some months before by Rory MacCragh, one of Desmond's most notorious partisans. It interrupted the traffic between Clonmel and Waterford. Fitzwilliam and Ormonde took three or four days to run a mine under the walls, and were almost ready to spring it when the garrison, after the manner of Irish garrisons, tried to escape. They were intercepted, and all killed. This tragedy had an immediate effect on Desmond, who saw that he could not hope to hold any fortress against the Government, and he came to Clonmel and made a humble submission, which was repeated at Cork after service in the cathedral, in the presence of the Munster nobility. Castlemaine was surrendered to Captain Apsley, as well as the castles in Kenry, which had been the chief matter in dispute, and it was agreed that there should be oblivion as to other causes of difference. That Desmond only yielded to superior force, and did not abandon his designs, may be inferred from what he did as soon as the Deputy's back was turned. He made over all his lands in Ireland to Lord Dunboyne, Lord Power, and John FitzEdmond FitzGerald of Cloyne, in trust for himself and his wife during their joint lives, with provision for his daughters, and final remainder to his son. The object no doubt was to preserve the property in case of unsuccessful rebellion, but against a victorious sovereign such paper defences were ever in vain. Two days later both Lord and Lady Desmond wrote to the Queen in very humble strain, the former praying for one drop of grace to assuage the flame of his tormented mind. ^[290]

Finding Desmond unlikely to give immediate trouble, the Queen thought she saw her way to helping Essex without increasing her expenses. 26,000*l.* a year and 2,000 men was what he asked for, and to show that the project was not hopeless he determined to attempt some immediate service. Drawing the bulk of his forces out of Clondeboyne to Newry and Dundalk, he began operations by attacking an island near Banbridge, whence three of Tirlogh Brasselagh O'Neill's sons plundered Magennis and the Baron of Dungannon. Phelim O'Neill and his cousin were taken, and all the band killed except five or six who escaped by swimming. Essex then went to Dublin, consulted the Council, and summoned Tirlogh Luineach to meet him near Benburb, on the Blackwater. But in spite of every promise of safe-conduct, Tirlogh refused to come to any point where the river was fordable, and Tyrone was accordingly invaded. There had been a bountiful harvest,

Essex and Tirlogh
Luineach O'Neill.

and the corn-stacks were burned from Benburb to Clogher. Here Essex halted and sent a party into Fermanagh, who drove off 400 cows and thus secured Maguire's neutrality. Tirlogh Luineach, with 200 horse and 600 Scots, attempted a night attack on the camp, but this failed, and the Earl continued his march to Lifford, burning and spoiling, but seeing no enemy. At Strabane O'Donnell made his appearance with 200 horse and 500 gallowglasses, and Con O'Donnell, who held Lifford Castle in spite of him, also crossed into Tyrone. Provision ships lay at a point half way between Lifford and Derry, and while the victualling proceeded Essex explained the political situation to O'Donnell, O'Dogherty, and other chief men of Tyrconnel. O'Donnell, who saw an opportunity of regaining Lifford Castle, and those who depended on him declared themselves ready to do all that the Governor wished; but Con, who had married Tirlogh Luineach's daughter, said bluntly and very truly 'that it was a dangerous matter to enter into war, and that for his own part he would know how he should be maintained before he should work himself trouble for any respect.' He added 'that he had rather live as a felon or a rebel than adventure his undoing for the Queen.' Lifford Castle was accordingly taken and handed over to O'Donnell, materials for coining being found in it. Con was arrested, escaped, was re-captured, and sent a prisoner to Dublin. The Irish annalists say that this arrest was treacherous, but it does not appear that he had any safe-conduct.^[291]

Before leaving Lifford Essex commissioned O'Donnell to seize upon all O'Neill's cattle which had crossed the Foyle to be under Con's protection, but under no circumstances to allow his nephew's own herds to be touched. The O'Donnells disregarded the latter injunction, but 'laid hold on them, and, as their manner is, every man carried his booty home;' 1,400 head only out of a much larger number being brought into the English camp. In consideration of what his followers had gained, Essex bound the chief to have an extra force of 600 men, and swore him to fight with Tirlogh Luineach as long as her Majesty did. On his road home he carefully burned all O'Neill's corn, and boasted that the value was not less than 5,000*l.*—a mode of making war which was certainly not calculated to advance the civilisation of Ulster. Tirlogh's strength was practically unbroken, and it is evident that few thought Essex capable of

The Earl can do nothing of moment against the O'Neills.

doing anything great. He had, he complained, in all his journeys to the North had no help from the Pale but fifteen pack-horses on one occasion and seven on another. Provisions were never given 'but at such extreme pennyworths as hath not been heard of in this country.' To his sanguine mind it still seemed easy, if the Lord Deputy would only co-operate cordially, 'to establish the country as it may be ever preserved from rebellion hereafter.' Fitzwilliam, who had no illusions left, thought differently, and there can be little doubt that he was right. The Earl himself had privately told Burghley that the Queen was nothing benefited by former pacifications of the North, and that only a permanent garrison could make permanent work. There was little hope of revenue. Every captain in Ulster was, he thought, ready to take an estate of inheritance and give up Irish customs. Many said they had offered as much and had been refused; 'and yet they allege, that they have ever paid more than would maintain a good garrison, which hath been put in some of their purses which governed here.' The Crown was in fact too poor to pay its servants, and so they paid themselves. Under such circumstances it is not surprising that expeditions into Ulster were like the fortresses which children build upon the beach: the unresisting sand is easily moulded, the architect's pride is great, but the next flood washes all the work away.^[292]

The Queen, who seems to have had a certain admiration for Essex, was pleased with his last service, and inclined to favour his plans for the permanent plantation of the North. But her council, as she was careful to point out, required more information. Did he propose that the colonists in Clandeboyne and between the Blackwater and the Pale should be English or Irish, or a mixture of both? Were his towns to be walled with stone or earth, or with a mixture of both? Had Maguire, Magennis, and MacMahon agreed to contribute towards the maintenance of 100 horse and 200 foot? What arrangements could be made for provisions, for maintaining garrisons, for labour and material? To resolve these doubts, which came rather late in the day, Essex was summoned to appear at Court as soon as he could leave his post. The choice being left to him, he decided not to go, and expressed an opinion that the conditional order came 'either of her Majesty's misliking of the cause, or of me as unable to execute the thing, and so make stay of me there, either

Essex is summoned to Court.

by disallowing the work as not feasible, or else to essay as the honour of it should be reaped by another.’^[293]

FOOTNOTES:

[264] Lord Deputy and Council to the Privy Council, Dec. 23, 1573; Sir Edmund Butler to Lord Deputy, Dec. 12, 1573; P. Sherlock to Burghley, Jan. 3, 1574.

[265] Bouchier to Fitzwilliam, Dec. 17, 1573; Declaration of P. Sherlock, Dec. 18; Desmond to Justice Walshe, Dec. 28, 1573; Edward Castletyn to Burghley, Jan. 16, 1574. (The latter was written at intervals from Dec. 2.)

[266] Fitzgerald was despatched in Dec. 1573, and arrived in Ireland before Dec. 23; see Fitzwilliam’s letter of that date; Burghley’s notes in *Murdin*, p. 775. Edward Fitzgerald to Burghley, Feb. 13, 1574; Desmond to Lord Deputy and Council, and to E. Fitzgerald, Jan. 9. In the latter letter Desmond signs himself, ‘Your assured friend and loving cousin.’ The Privy Council to Desmond, Jan. 17, and the Queen to Fitzwilliam, Jan. 18, both in *Carew*. Instructions for the Lord Deputy of Ireland, March 30, in *Carew*.

[267] P. Sherlock to Fitzwilliam, Dec. 22 and 23, 1573; to Burghley, Jan. 3, 1574; Mulrony O’Carroll to F. Cosby, Jan. 8 and 21; Carew to Tremayne, Feb. 6.

[268] Edward Fitzgerald to Fitzwilliam, Jan. 18. The negotiations may be easily studied in five papers in *Carew*; printed under 1573, but belonging to 1573-4.

[269] The Queen to Fitzwilliam, Jan. 31; *Perrott’s Life*, p. 103; Privy Council to Fitzwilliam, March 29.

[270] Essex to the Privy Council, sent by Wilsford and Carleton, Jan. 16, 1574. Consultations of Ireland, Nov. 17, 1573, in *Murdin*, p. 268. ‘Doubts moved by the Queen,’ 1573; S.P., *Ireland*, vol. xliii. (No. 36).

[271] The Queen to Fitzwilliam, January 18; Fitzwilliam to Walsingham, Feb. 6; Lord Deputy and Council to the Queen, Feb. 10.

[272] ‘Reasons that may move the Queen,’ &c., Feb. 19; Knollys to Burghley, in *Devereux*, p. 51.

[273] Earl of Essex to Burghley, Sussex, and Leicester, March 8, 1574; three weeks later Essex met Tirlogh Luineach, and made a sort of truce.

[274] Essex to Burghley, Sussex, and Leicester, March 8. The Earl’s expenses were over 10*l.* a day. He had to keep 160 men and eighty horse, and to draw all victuals and forage from England.

[275] The Queen to Essex, March 30; Burghley, Sussex, and Leicester to Essex, March 30; and see *Murdin*, p. 775.

[276] Letters from Essex of May 13 to the Queen, to the Privy Council, to Burghley, and to Walsingham; to the Lord Deputy and Council, March 6;

Waterhouse to Burghley, March 20; B. Gooche to Burghley, Feb. 2 and 18, and April 2; J. Wingfield to Burghley, April 2; Fitzwilliam to Burghley, April 20.

[277] Sir Brian MacPhelim to the Queen, May 8; Essex to the Queen, May 13; to the Privy Council, same date; Edward Barkley to Burghley, May 14; B. Gooche to Burghley, May 15.

[278] Essex to Burghley, Aug. 28, 1574, in Lodge's *Portraits* (Walter, Earl of Essex); to Walsingham, March 25; Fitton to Burghley, Feb. 18; Fitzwilliam to Burghley, Feb. 22 and 28, and March 2; to the Privy Council Feb. 5; E. Fitzgerald to Burghley, Feb. 13.

[279] Essex to the Lords, March 8; the Queen to Fitzwilliam, Jan. 18 and 21, and March 30; Privy Council to Fitzwilliam, March 30; Fitzwilliam to Privy Council, March 24.

[280] The Queen to Fitzwilliam, March 30; Fitzwilliam to the Privy Council, April 25; Dowdall to Fitzwilliam, May 2; N. Walshe to Burghley, June 10; Thomas Sackford to Burghley, June; John Symcott to Burghley, June 4; Lord Deputy and Council to Desmond, May 18.

[281] 'What Bracton the lawyer termeth to be *illecebra peccandi*, is *spes reniæ*.'

[282] Edward Barkley to Walsingham, May 13; H. Ackworth to Burghley, May 20.

[283] Herle's Collection of John Corbine's Speeches, May 29; N. Walshe to Burghley, June 10: *Murdin*, p. 242.

[284] Fitzwilliam to the Privy Council, June 2; to Burghley, June 10 and 20; Essex to Desmond, June 5 and 10; to Burghley, June 14; to the three Lords and Walsingham, June 17; Fitzwilliam and Essex to same, June 20; Desmond to Essex, June 20.

[285] Essex to the Privy Council, July 10.

[286] Writing to Fitzwilliam in July (No. 35) the Queen acknowledged that it was hardly fair to ask Desmond to disarm when others did not.

[287] Essex to the Privy Council, July 10; Fitzwilliam to Burghley, July 12; Ormonde to Burghley, July 16; Privy Council to Fitzwilliam, Nov. Essex and Kildare accompanied Desmond as far as Clonmel.

[288] The Queen and Privy Council to Fitzwilliam, June 15 and 20.

[289] The 'Combination,' dated July 18, 1574, is printed in *Desiderata Curiosa Hibernica*, i. 5. The Queen to Fitzwilliam, Aug. 20, in *Carew*.

[290] Fitton to Burghley, July 30; Fitzwilliam and Ormonde to the Queen, Sept. 3; Lord and Lady Desmond to the Queen, Sept. 12. Feoffment, &c., by the Earl of Desmond, Sept. 10, in *Carew*. The Derrinlaur affair was on Aug. 19; the *Four Masters* say the Desmonds were executed after capture.

[291] Privy Council to Essex, Sept. 19; Essex to Privy Council, Oct. 8; Waterhouse to Burghley, Sept. 23. Plot of the Garrison, &c., Oct. 8; *Four*

Masters, 1575.

[\[292\]](#) Essex to Burghley, June 14, 1574; to the Privy Council, Oct. 8.

[\[293\]](#) The Privy Council to Essex, Nov. 8; to Fitzwilliam, Nov. 9; the Queen to Essex, Nov. 9; Essex to Burghley, Jan. 12, 1575.

CHAPTER XXXII.

ADMINISTRATION OF FITZWILLIAM, 1574 AND 1575, AND REAPPOINTMENT OF SIDNEY.

If violence were vigour and a readiness to act on rumour decision, then the next exploit of Essex would entitle him to a high place among the leaders of men. There is no difficulty in believing that Sir Brian MacPhelim had been plotting with Tirlogh Luineach and other enemies of English rule, and it is quite possible that he or his followers had committed some barbarous outrages. He had all along been hostile to the Earl's enterprise, and it is not surprising that he should have sought to frustrate it. But he came to meet Essex at Belfast in friendly guise, and he brought his wife and other relations with him. It is plain from this that he intended no immediate treachery, but Essex, who was getting soured, could only see evidence of dissimulation. He proposed to arrest his visitors, and his officers made no opposition. The O'Neills defended their chief, and much blood was shed. 'I have,' Essex wrote to the Privy Council, 'apprehended Sir Brian, his half-brother Rory Oge MacQuillin, Brian's wife, and certain of the principal persons, and put others to the sword, to the number of 200 in all places, whereof 40 of his best horsemen.' Sir Brian, his wife, and other prisoners were sent to Dublin, and Essex announced that they would be tried according to law. It is only certain that they were executed. There was, be it observed, no state of war between O'Neill and the Earl. The chieftain was not a proclaimed traitor, and there was no warrant against him. And even if it be granted that he was technically guilty of treason, could his wife be considered equally guilty? The Earl's own account does not justify him, while the Irish annalists charge him with the

Unjustifiable
seizure of Sir Brian
MacPhelim, who is
executed.

blackest treachery. ‘Peace, sociality, and friendship,’ say the ‘Four Masters,’ ‘were established between Brian, the son of Phelim Bacagh O’Neill, and the Earl of Essex; and a feast was afterwards prepared by Brian, to which the Earl and the chiefs of his people were invited; and they passed three nights and days together pleasantly and cheerfully. At the expiration of this time, as they were agreeably drinking and making merry, Brian, his brother, and his wife, were seized upon by the Earl, and all his people put unsparingly to the sword—men, women, youths, and maidens—in Brian’s own presence. Brian was afterwards sent to Dublin, together with his wife and brother, where they were cut in quarters. Such was the end of their feast. This unexpected massacre, this wicked and treacherous murder of the lord of the race of Hugh Boy O’Neill, the head and the senior of the race of Owen, son of Nial of the Nine Hostages, and of all the Gaels, a few only excepted, was a sufficient cause of hatred and disgust of the English to the Irish.’ Some praised the Earl’s conduct, and there seems to have been no official blame, but Ormonde hinted his dislike of what had been done. Essex meant well, he said, God send it so: ‘I am loth to speak of the North, which has cost her Majesty much, but I pray God a worse come not in Sir Brian’s place.’ The Earl himself boasted ‘that this little execution hath broken the faction and made them all afeard;’ and that two of Sir Brian’s kinsmen were competitors for his inheritance, and had applied to Captain Norris, each offering to live in peace. The knight-errant who had started with visions of creating an Eden in Ulster, now thought it a triumph to make men of two minds in an house. [\[294\]](#)

Essex believed that 2,000 soldiers would suffice for Ireland, 1,300 of them being stationed in Ulster while permanent fortified posts were being built and garrisoned, and that when the building was done 500 men would easily hold the province. To this arrangement the Queen, with much hesitation, agreed. Garrisons cost money, as she knew by the experience of Maryborough and Philipstown, and like them they might after all be but very moderately successful.

Vacillation of the Queen.

As soon as Fitzwilliam knew that he was expected to represent the Crown and to furnish all garrisons in the three southern provinces with 700 men, he at once declined the task. The force actually in Ireland was about 3,000, and in case

Essex and Fitzwilliam.

of the proposed scheme not taking effect, it was to be reduced by one half. All was made dependent on perfect accord between the Deputy and the Governor of Ulster; and in fact they had never been on really cordial terms. Nor did Elizabeth herself speak with any confidence, and it is plain that personal regard and admiration for Essex were struggling in her mind with the desire to throw away no more money upon Ulster. It was in Elizabeth's nature to vacillate, and the tendency may have been increased by Burghley's illness. To keep Essex in Ireland, and at the same time to secure his failure there, may have been Leicester's policy. That some sinister influence was at work may be inferred from the Earl's complaint to Burghley that many letters sent to him were intercepted, and that he could trust no messenger but his own servants. Fitzwilliam's refusal to incur the responsibility of government without proper forces was reasonable enough, but his manner of proceeding shows how deep his feeling against Essex really was. He summarily discharged all men above 2,000; and the Earl, as he himself expressed it, 'having no longer soldiers to govern,' resigned the government of Ulster. 'Being now,' he said, 'altogether private, I do desire your Majesty's good license so to live in a corner of Ulster, which I hire for my money; where though I may seem to pass my time somewhat obscurely, a life, my case considered, fittest for me, yet shall not be without some stay in these parts, and comfort to such as hoped to be rid from the tyranny of the rebels.' In the meantime his men were unpaid and unfed; for the Vice-Treasurer had orders from the Deputy to give them nothing without the Queen's special directions, and the victualler feared that he might not have sufficient warrant. Essex, who complained bitterly that he had not even ten days' notice, appealed to the Council, and both Fitton and Loftus sided with him; for the prospect of having 1,500 disbanded soldiers let loose upon the Pale was not a pleasant one. 'To you,' Essex told Burghley, 'I am content to be beholden, yet to be generally bound to all men as I have been in this action, is to my nature such a misery as I confess all the wretchedness that I have found in Ireland hath not been comparable to this. And now, since my good deserts here, if they were any, be extinguished with dishonour, I pray you let my small sins be also forgotten. I suffer pain enough. Increase not my misery with your ill opinion.'

Fitzwilliam, as on some other occasions, showed a lamentable want of dignity, and, if we are to believe the

Troops hastily
disbanded.

Governor of Ulster, he dismissed the troops with indecent haste and with no more responsible advice than that of his wife. ‘My lady, as I am most credibly informed, kept her Majesty’s letters three days and coted every line of it, and in the end gave her final judgment that I and all my soldiers should be cassed; and it was no sooner done but here was such a general joy conceived by some about him, as though some great victory had been obtained, and indeed it agreed well with his former report, for not six weeks since he said there were two Deputies in Ireland, and named me for one, and added that either he would have all, or I should have all.’ Tirlogh Luineach, or perhaps his astute wife, knew how to profit by these dissensions, for no sooner was it known that Essex had resigned his province, than he thanked Fitzwilliam for not invading his country unjustly, as the Earl had done. He professed great readiness to treat with the Lord Deputy. His loyalty to the Queen only had prevented him from accusing Essex several times: his only desire was peace, and he had no wish to injure any person in the English districts.^[295]

Elizabeth had not bargained for being so promptly taken at her word. ‘We did never,’ she said, ‘think that upon such a sudden either you our Deputy would have refused to take that your charge with those numbers, or you the Earl have given over your government of Ulster.’ To the one she was willing to allow 700 men in addition to garrisons, hinting at the same time that she had evidently been paying for imaginary soldiers. To the other she said that the enterprise was not abandoned, and Maltby was authorised to use encouraging language. Munitions were sent, and even some money, and Sir Peter Carew was ordered to Ulster as a valuable lieutenant, and probably also a pleasant companion for the Earl. All this was open and official, but to the Earl she wrote a private letter, which, to one of his romantic temper, was probably more consoling than a Lord-Lieutenant’s commission with unlimited warrant to raise and pay troops. She could not but feel that he had failed, but her heart was touched, and she addressed him thus:—

The Queen encourages Essex.

‘For your more satisfaction we have thought good to signify unto you, that by all your actions, your wise behaviour and constancy in them, your pains and travels sustained by yourself bodily, the great charge that you have been at in your private expenses, and consuming of your revenues and patrimony in our service, and for the attaining of honour by virtue and travail, we have

great cause to think you a rare treasure of our realm and a principal ornament of our nobility; we wish daily unto God we had many such; and are sorry that in anything you should be discouraged.... What success soever your enterprise shall have we must needs have a great good opinion of you as a thankful prince ought to have; whereof you may be bold to assure yourself, and all such your friends as would be glad thereof, which be, you may be bold, for your rare virtues and noble courage, a great number.’^[296]

In his delight at this letter, and notwithstanding the doubtful tenour of Maltby’s instructions, Essex sought a reconciliation with Fitzwilliam. Both professed to bear no personal resentment, and to have quarrelled only on public grounds, but others could see that their animosity was of long standing and proportionately difficult to appease. The Earl was sanguine that now at last he was on the high road to success. ‘I would not,’ he confessed, ‘blame the Queen if she were weary of Ireland ... it is certain her Highness has spent 600,000*l.* in her time here and the realm never the better; but, trust me, sir, reformation was never thoroughly intended until now, as I think.’ Full of hope he set forward towards the Blackwater, having already employed 600 labourers to cut passes through the woods bordering on Tyrone, where the people, since his devastating raid in the previous autumn, had been living altogether on flesh. ‘They have been occupied with raids and incursions this sowing time, and their next harvest shall be by all likelihood twice as urgent, and therefore it is certain that they must either starve or obey very shortly.’^[297]

He sets out towards Tyrone.

When Essex started once more for the North, Maltby was able to say that he and the Deputy were very good friends, and that the country generally was pretty quiet, ‘but for the ordinary uncertainty of the Irish, *quod natura dedit.*’ The Scots had gone home, and Tirlogh Luineach, who saw that mischief was intended, sent his wife to Newry to sue for peace. She held out for the old rights of O’Neill, but offered to pay a ‘tribute,’ in consideration of his superiority over Maguire and MacMahon being acknowledged by the Crown. Ten days were given to Tirlogh to consider the matter further, and Essex withdrew to Drogheda, where he received a letter from the Queen which put an end to all his hopes. She allowed that he might well be surprised at this ‘sudden change, but that she had no meaning that he should proceed in the service,

The Queen again changes her mind.

otherwise than we thought it necessary for a time, in respect of the danger he had laid before her of a general revolt.' The political horizon was troubled, and on full consideration she had made up her mind that the Ulster project could not be made to pay, and must be abandoned. 'Direct the course of proceeding,' she said, 'in such sort as the enterprise may yet be so given over as our honour may best be salved' and the quiet of Ireland provided for. How all this might best be done was referred to the discretion of Essex, who was to consult the Lord Deputy and Council. Tirlogh Luineach was to be made, if possible, to relinquish his claim to the Urraghs, to content himself with the modern county of Tyrone, and to join in expelling the Scots. A fort at the Blackwater would be most desirable, if it could be built cheaply with the help of those who would be protected by it from O'Neill's tyranny.^[298]

Essex bowed loyally to her Majesty's will, spoke much of her good-nature and little of his own disappointment, and only begged that she would have some regard for his ruined fortunes. But he gently reproached the Privy Council with unkindness for not warning him before he spent his substance and his health 'in an action which, as it now appears, was never intended to be performed.' With a heavy heart he set out for the Blackwater, and began building a fort there. Tirlogh Luineach, who had 1,900 of his own followers and 1,400 Scots with him, sent to say that he was ready to make peace and to abjure Sorley Boy and his Scots, if the building operations were suspended. Essex consenting to a parley, Tirlogh supposed that he had gained his point, and insisted on Sorley being a party. 'This storm is over,' he said to his Scotch ally, 'and the Earl shall neither build nor make war.' Finding that the work went on, he proposed to attack before the defences should be tenable, but Sorley refused, saying that good watch was kept at night, and that he would only fight if Tyrone were invaded. The O'Neills had no mind to do all themselves, and Tirlogh, supported neither by clansmen nor auxiliaries, said that he would trust the English. Essex crossed the river, cut off 1,200 kine, and drove O'Neill into the bogs, following him so close that he had to leave his horse and his mantle behind. A bridge with stone piers and timber superstructure was finished, earthen bridge-heads were thrown up, and an entrenched enclosure constructed to hold 200 men and tenable by fifty; the Baron of Dungannon agreeing to find victuals for

The Essex scheme is abandoned. Fort at Blackwater.

the latter number. Essex had perhaps no great skill as an engineer; for Sidney visited the fort four months later and found it 'imperfect, not worth the charge of the keeping if there be peaceable proceeding; the bridge and gate to guard it not half reared.'^[299]

Tirlogh having sued for peace, Essex was now in a position to make it on such tolerable terms as might 'salve the Queen's honour,' his principle being to acknowledge none of the O'Neill claims, but to wink at their practical assertion. Tirlogh agreed to confine himself in general to Tyrone, to give up his claim to superiority over his neighbours, to keep the peace towards O'Donnell and other subjects of the Queen, and to furnish his contingent to all hostings. On the other hand, he was excused from coming to any governor against his will, was to have a share in the customs of Lough Foyle, and might have 300 Scots in pay, provided they belonged to the Campbell and not to the MacDonnell connection. His claim to tribute from O'Dogherty would be acknowledged whenever he could prove his title. These terms were considered reasonable by so good a judge as Maltby, but Fitzwilliam had lately taken the precaution to inform the Queen that Tirlogh Luineach might easily be dealt with without any of the fuss which Essex thought proper to make about the matter. The Deputy had seen so much of Ireland, that he had ceased to have any very high standard. Waterhouse, the devoted partisan of Essex, also thought it possible to save the point of honour, and to avoid war by a composition with the Irish; but he did not deceive himself about the real nature of a peace so made. 'All this,' he said, 'will be but patches, and (according to your country proverb) "make much work for the tinker."' If this plot which here hath good allowance and there is thought probable take not place, nor some better form of reformation devised, then it were good to persuade that all soldiers were cassed, and leave here in Dublin some bad justice for a shadow of her Majesty's possession: and let all go as it will to the devil, and never let it suck up the riches of England to be vainly spent to no purpose. So would it come to pass that within two or three years there would be twenty kings, and every one consume other in continual murders, which tragedy were far better than the remedies that have been practised here these one hundred years past. You may take this for a Christmas game, but if profit be

Advice of
Waterhouse. Profit
versus honour.

preferred before honour, then there may be somewhat said in this behalf.’^[300]

While the English Government played fast and loose with the Ulster expedition, it was possible to report that no open rebellion existed in any part of Ireland, and that the doubtful were, as a rule, bound on pledges. But burning and spoiling in a small way went on merrily. The high universally oppressed the low, and ‘some were hanged or killed here and there every day.’ Still, as a rule, it was not necessary to keep watch, and cattle, at least in the Pale, could generally be left out at night. Rumours reached Ireland that Sidney had been finding fault, but Fitzwilliam asserted that Ireland was in a better state than when the late Lord Deputy left it.^[301]

No open rebellion.

Want of money was the main reason that the Government was weak; and corruption, while it enriched individuals, woefully impoverished the State. Registers and records were tampered with—a very old complaint in Ireland—merchants defrauded the revenue, and Custom-house officers winked at their roguery. Victuallers not being sure of payment had little credit, failed to perform their contracts, and were tempted into doubtful courses. The courts of law were distrusted, at least by English residents; one of whom gives the following account of the Irish Bench and Bar:—

Want of money.
Jobbery among
lawyers.

‘Mr. Lucas Dillon and one or two more excepted, the rest of the champering lawyers whereof there be no small number, are little better to be accounted than junior barristers in the Court of Chancery; who, having read a little of Littleton’s “Natura Brevium,” within a few years think themselves sufficient to plead at any Bar, and must as the room falleth void be her Majesty’s servants, attorney or else solicitor, and so they babble and brag out matters, right or wrong, at their pleasure without controlment, especially if the cause toucheth one of their cousins.’^[302]

Desmond was quiet for the time, but the head of the other great Geraldine family was now suspected in his turn. In 1574 Kildare had been in great apparent favour with the Lord Deputy. He had offered Desmond 500*l.* in ready money to assume a submissive attitude, and it was

Kildare is
vehemently
suspected and
arrested.

thought that the best way to secure the Pale was to place him in command on the south and west borders, on condition that he should discharge his own followers and trust entirely to 100 horse and 300 foot in the Queen's pay. Fitzwilliam, who admitted that he only accepted the Earl's service for want of a better, had soon reason to believe that he had treasonable or at least dangerous intentions. John Alen, an hereditary enemy, was the first accuser, and when it became known that complaints would be listened to, there was no want of secret information. Some of the accusations were probably true, others almost certainly false. It is very likely that Kildare gave secret intelligence to Rory Oge O'More, but incredible that he should have plotted with him the abduction of Lady Fitzwilliam and her family from Kilmainham. He evidently had frequent communications with the O'Tooles and O'Byrnes, and it was sworn that one of his messengers offered to lead a party to burn Athy, where the Government had large stores. The witness objecting that the Earl would be a loser by this, the other answered, 'It is the Earl's own devise.' Much evidence, reaching back to 1572, was offered as to Kildare's plots to obtain the government as his ancestors had it, and of outrages committed at his instance; but no one dared speak openly. Sir Peter Carew's opinion, 'that Earls were dangerous men to be dealt with,' was probably generally accepted in Ireland. Suspicions were soon aroused, and the Queen very properly censured Fitzwilliam for trusting such matters to a secretary. His own or the Archbishop's hand might have sufficed. To encourage witnesses it was resolved to arrest Kildare, but the intention became known beforehand, and all important documents were made away with. After much hesitation the duty was assigned to Essex, who had no difficulty in making the arrest, but had his doubts about its policy. 'You must,' he said, 'take heed that you transfer not the greatness of some to make it trouble in some other, so were the second error worse than the first.' Short as was his confinement in Dublin Castle, Kildare managed to have interviews there with Edmund Boy, who was one of his chief accusers, and so worked upon his feelings that he made his escape. Richard Fitzgerald, another important witness, was hanged by Feagh MacHugh O'Byrne. On arriving in London a few days later, Kildare was placed in seclusion under the charge of Lord Keeper Bacon; 'his cause,' said Ormonde, 'will make the Earl of Desmond a melancholy man.' The Irish Government believed that there would be no evidence until Kildare was fairly in the Tower. [\[303\]](#)

Fitzwilliam's constant prayers for a recall had not been unheard, but it was difficult to find a successor for him, since it had been resolved that Essex should not be Lord Deputy. Sidney had been expected as early as July 1574, but he was in no hurry to start. Waterhouse had gone from Ulster to England towards the end of 1573, and had laid before the Privy Council the requests of Essex, especially as to the necessity of erecting fortifications and providing properly for provisioning the troops. 'A lack of good foresight' in high quarters was the fault which Waterhouse saw most clearly, and he complained that it was hard to get attention for the most necessary business. Statesmen pleaded that they were too busy with Desmond to mind anything else, 'wherein they travel so far southward that they have lost sight of the North Pole.' Various schemes were discussed. Some were for leaving Fitzwilliam at his post and giving him for a time the assistance of a military officer of high rank, who might pacify the country and then leave it to the Deputy. Others were for at least three Presidents independent of the chief Governor; 'to breed a certain virtuous envy in these monarchs, who should do her Majesty best service.' Others, again, were for trusting Irish lords, such as Ormonde and Kildare, leaving only matters of law and justice to the Lord Deputy. The prevailing opinion was that there should be Presidents, and that they should be appointed simultaneously with the new Deputy. Waterhouse's advice being asked, he said that if Essex were rejected there were but two persons available, Leicester and Sidney. The former could scarcely be spared, and he therefore advised the choice of the latter, whose secretary he had been. Sidney was reluctant and Elizabeth undecided, and more than a year and a half slipped by without the change being actually made. 'For God's sake despatch him,' said Fitzwilliam; 'this uncertainty is a hell of unquietness to me, and so increases mine infirmities of shoulder, arm, side, and stomach, that I look shortly to become serviceable for nothing else but the worms of this land.' He could not hope to be in England before October; too late for Bath, and leaving him no resource but physicians in whom he did not believe. [\[304\]](#)

Uncertainties.
Sidney daily
expected.

The Government of Ireland from April 1, 1573, to September 30, 1575, cost the Queen more than 130,000*l.* in ready money sent from England, besides the Irish revenue and debts incurred but not discharged. It was a principal part of

The revenue. A
pestilence,

Sidney's instructions to devise some means of checking this outflow. The Ulster account being almost closed, it was supposed that he would be able to manage with 5,000*l.* a quarter regularly paid, and that by improving the Irish revenue even that sum might in good time be reduced. Sidney was not likely to indulge in such golden dreams, and he undertook the government of Ireland for the third time with little expectation either of honour or profit. Leaving the Queen at Dudley Castle, he landed at Skerries after nearly losing two vessels in a storm. The summer had been very hot, and no rain fell from May 1 to August 1. 'A loathsome disease and dreadful malady,' say the 'Four Masters,' 'arose from this heat—namely, the plague, which raged violently among the English and Irish in Dublin, Naas, Ardee, Mullingar, and Athboy. Between those places many a castle was left without a guard, many a flock without a shepherd, and many a noble corpse without burial.'

The whole Pale being infected, it was difficult to find a safe resting-place. The well-to-do citizens of Dublin fled to Drogheda, where they were grudgingly admitted, and whither they probably brought the pestilence; for deaths occurred in the town soon after the arrival of Essex and of the old and new Deputies, who all reached it on the same day. Immobility was the fault for which Fitzwilliam had been most blamed, and his successor, by starting immediately for Carrickfergus, no doubt meant to show that he was as capable as ever of those rapid movements which had bewildered and charmed the Irish mind. A blow had just been struck in Ulster, which for the time made resistance little to be feared. The terror of Sidney's name might do the rest. [\[305\]](#)

and panic.

After his treaty with Tirlogh Luineach Essex had pressed on in pursuit of the Scots from the Antrim side, the people of the country generally showing themselves friendly. Sorley Boy appeared in force at the Bann, on the banks of which river an encounter took place. The Scots were worsted and driven into Tyrone. Clondeboyne was for the moment cleared of the intruders, and Essex, as far as in him lay, handed it over to Brian 'Ertagh' O'Neill, who said that his people were few, his cattle less, and that in striving to defend his country from the Earl 'his husbandmen were starved, dead, or run out of the country,' which he left to the disposal of the man who had reduced it to

General results of
Essex's grant.

this condition. Such, so far as the scheme of a settlement went, was the total result of the grant to Essex, who was, however, so deficient in humour as to boast ‘that no man in Clandeboyne claimeth property in anything, whereby your Majesty may see what this people are when they are roughly handled.’^[306]

His provisions failing, the Earl was obliged to quit the field, leaving 300 foot and 850 horse at Carrickfergus under the charge of John Norris, who had secret orders to undertake a combined naval and military expedition against Rathlin. With the soldiers under Norris and three frigates under ‘Francis Drake, Captain of the "Falcon,"’ it is not surprising that the affair was completely successful. All the boats at Carrickfergus were taken up, and in spite of the winds the whole force reached the island together, and landed, notwithstanding a vigorous resistance. The Scots retired into their castle, which Norris proceeded to batter with two heavy guns brought from the ship. A breach was soon made, but the first assault was repulsed, owing to the strength of the inner defences, which were probably erected by an Italian officer who was at this time in Sorley Boy’s service. The same night, however, the garrison, seeing that they could not hold out, offered to surrender for ‘their lives and their goods, and to be put into Scotland, which request Captain Norris refused, offering them as slenderly as they did largely require: viz., to the aforesaid constable his life and his wife’s and his child’s.... The soldiers, being moved and much stirred with the loss of their fellows that were slain, and desirous of revenge, made request, or rather pressed, to have the killing of them, which they did all, saving the persons to whom life was promised.... There were slain that came out of the castle of all sorts 200.... They be occupied still in killing, and have slain that they have found hidden in caves and in the cliffs of the sea to the number of 300 or 400 more.’ Eleven Scottish galleys were burned. Three hundred kine, 3,000 sheep, 100 brood mares, and enough bere to feed 300 men for a year, were found in the island. A spy, moreover, informed Essex that ‘Sorley put most of his plate, most of his children, and the children of most part of his gentlemen, with their wives, into the Rathlin with all his pledges, which be all taken and executed, as the spy saith, and in all to the number of 600. Sorley then also stood upon the mainland of the Glynnnes and saw the taking of the island, and was like to run mad for sorrow (as the spy saith), turning

Expedition to
Rathlin. Massacre.

and tormenting himself, and saying that he then lost all that ever he had.’ Essex had nothing but praise for all concerned, which indeed they deserved, if barbarity is to incur no blame; but no one seems to have wasted a thought on such considerations, and Queen Elizabeth vouchsafed her unqualified thanks.^[307]

Essex wished to found a permanent fortified post in Rathlin. Norris remained behind to reap the harvest and to hold the island until Sidney’s pleasure should be known. In the meantime, Sorley Boy, though he had lost his children, had not lost heart. He chose his time and swept away all the cattle from Carrickfergus. The garrison pursued him, got into difficult ground, and were disgracefully beaten, owing to one of those panics to which regular troops were always subject in their encounters with Highlanders. Some attributed all to the prevailing dissipation, and yet Carrickfergus was hardly a Capua. About forty Scots put the English to flight and killed sixty of them, including Captain Baker and his lieutenant. When Sidney came to Carrickfergus a month later he found it ‘much decayed and impoverished, no plough going at all, where before were many; ... cattle few or none left; churches and houses, save castles, burned; the inhabitants fled, not above six householders of any countenance left remaining; so that their miserable state and servile fear were to be pitied.’ Of so little use had the Rathlin massacre been that the Lord Deputy found the Scots ‘very haughty and proud by reason of their late victories had against our men, finding the baseness of their courage.’ The coast from Larne to the Bann was full of corn and cattle, and in the undisputed possession of Sorley, who was willing enough to come to terms, but very suspicious and afraid of the opinion of his own followers. Sidney abandoned Rathlin at once, saying that it was easy at any time to take, but very expensive and useless to keep. There was a scarcity of water about the fort, and the ‘Race of Rathlin’ is one of the stormiest pieces of sea on our coast. ‘The soldiers brought thence being forty in number, they confessed that in this small time of their continuance there, they were driven to kill their horses and eat them, and to feed on them and young colts’ flesh one month before they came away.’ Such was the real value of a position where, in the opinion of Essex, 100 men ‘would do her Majesty more service, both against the Scots and Irish, than 300 can do in

A useless fortified post in Rathlin.

The Scots supreme on the Antrim coast.

any place within the north parts.’ Sidney thought that the Glynnnes might be handed over to Sorley Boy, no better claimant appearing, but that the Route ought to be given back to the MacQuillins, having been lost only because their late chief was a ‘dissolute and loose fellow, feeble both of wit and force.’ Lady Agnes O’Neill, a true Campbell, met Sidney and asked for a grant of the Glynnnes for her son by James MacDonnell, offering to defend it against Sorley Boy, and to pay a higher rent to the Crown; but this did not recommend itself to the Lord Deputy, wise as he thought the lady, and much as he admired her manners and address. [\[308\]](#)

The northern part of Armagh under the Baron of Dungannon Sidney found all waste, and the cathedral in ruins. The southern part had been granted by the Queen to the brothers Chatterton, who were totally unable to manage the country, and were rapidly losing all. ‘They wrestle and work,’ said Sidney, ‘and go to the worse, ... tall and honest gentlemen, who have lost in that enterprise all that ever they had, and all that anybody else would trust them with, and their blood and limbs too.’ The O’Hanlons would not come to Sidney on protection, lest they should be cajoled into acknowledging the Chattertons’ title. Lecale in Down, which was Kildare’s property, had been partially, but only partially, peopled by the exertions of Essex. Ards was a little better, less owing to Sir Thomas Smith than to the natural tendencies of its old English inhabitants, whose chief, Edmond Savage, was received into protection. Kinelarty, or MacCartan’s country, was ‘all desolate and waste, full of thieves, outlaws, and unreclaimed people. None of the old owners dared occupy the land, because it hath pleased her Majesty to bestow the same upon Captain Nicholas Maltby, tied, nevertheless, to such observation of covenant and condition as Chatterton had his.’ Maltby deserved a much better provision, but could do no good with this one either to himself or to anyone else. He could only ‘make the country altogether abandoned of inhabitants.’ It was absolutely necessary for the Queen’s service that both Chatterton’s and Maltby’s grants should be revoked. Dufferin, long the property of the White family, was ‘all waste and desolate, used as they of Clandeboye list.’ Neill MacBrian Ertagh, whom Essex had acknowledged as captain, made some show of opposition at the ford of Belfast. ‘We passed over,’ said Sidney, ‘without loss of man or horse, yet, by reason of the tide’s extraordinary return, our

Hopeless condition of Ulster. Sidney’s advice.

horses swam, and the footmen in the passage waded very deep.... Clandeboyne I found utterly disinhabited. The captain refused to have conference with me, and answered, "That Con MacNeill Oge was captain, and not he" (who being appointed to be delivered to the Marshal, by negligence of his keepers, made an escape in his coming from Dublin, where before he remained prisoner).' It cannot be said that the slaughter of Sir Brian MacPhelim and his family had done much for the civilisation of Eastern Ulster, or that the system of private conquest was any great improvement upon native usages.^[309]

Sidney did not visit Tyrone, Tyrconnel, Monaghan, or Fermanagh on this occasion, but MacMahon came to Armagh, begging to be relieved from the tyranny of O'Neill on condition of paying the Queen rent; and O'Donnell and Maguire wrote to the same effect. As to Tirlogh Luineach, who came to Armagh without hesitation or condition, Sidney advised that his messenger should be graciously received at Court, and that his petition should be granted, excepting the authority which he claimed over his neighbours, and that he should be made Earl of Clan O'Neill for life. 'Considering his age, wounded and imperfect body, his ill diet, and continual surfeit, he cannot be of long life.' Magennis also, whose country of Iveagh had improved much since Sidney first freed it from the O'Neills, could do little owing to the want of a title. He might receive a full grant and the rank of Baron. The Lord Deputy's plan was to make all look to the Crown, without excepting O'Neill. Advantage might be taken of the fact that Lady Agnes 'longed to have her husband like a good subject, and to have him nobilitated.' With prophetic clearness he showed what the result of his policy must be. 'The taking from O'Neill all these captains of countries that heretofore have depended upon him and the predecessors of his name, and contenting him with the title of Earl, ... it will be the dissipation of his force and strength, ... that these lords and captains of the countries should hold absolutely of the Queen and of none else, ... in half an age his posterity shall not be of power to do any harm; which will breed a quiet in the North, which country hath heretofore, from time to time, been so troublesome.'^[310]

Sidney wishes to ennoble O'Neill.

Amid the general failure of English settlers in Ulster, Newry, in the hands of the Marshal, Sir Nicholas Bagenal, made a gratifying contrast. The town was well

Bagenal at Newry.

built, and increasing fast, the lands well cultivated, ‘and he is much to be commended; as well that he useth his tenants to live so wealthily under him, as his own bounty and large hospitality and house-keeping, so able and willing to give entertainment to so many, and chiefly to all those that have occasion to travel to or fro northwards, his house lying in the open highway to their passage.’ Essex had lately complained that Bagenal would not lend him his house, but it must be admitted that the building was well employed.
[\[311\]](#)

FOOTNOTES:

[\[294\]](#) Fitzwilliam to the Privy Council, Nov. 17, with enclosures; Waterhouse to Walsingham, Nov. 18; Essex to the Privy Council, with an enclosure, Nov. 24; to Burghley, Dec. 3; Notes on Ireland, by Ormonde, enclosed in his letter to Burghley of Dec. 8; *Four Masters*, 1574.

[\[295\]](#) Fitzwilliam to Burghley, April 26, 1575; to the Privy Council, March 31; Essex to Burghley, March 31 and April 1; to the Queen, March 31; to Burghley and Sussex, April 28; to the Privy Council, April 15; the Queen to Essex and Fitzwilliam, March 15; the Privy Council to Fitzwilliam, March 14; Tirlogh Luineach O’Neill to Fitzwilliam, April 29; Devereux, *Earls of Essex*, i. 91 and 104.

[\[296\]](#) Instructions for Captain Maltby, April 8; the Queen to Essex, April 11.

[\[297\]](#) Essex to Walsingham, May 9; to the Privy Council, March 10.

[\[298\]](#) Maltby to Burghley, May 14; Essex to the Privy Council, June 1; the Queen to Essex and to Fitzwilliam, May 22; Instructions for Mr. Ashton, same date.

[\[299\]](#) Writing to Walsingham on Jan. 12, Waterhouse particularly asked that the adventure should not be abandoned without due notice to Essex. Essex to Walsingham and to the Privy Council, and instructions per Mr. Ashton, all June 1; to the Privy Council, July 5; Waterhouse to Walsingham and to Burghley, June 24; Sidney to the Privy Council, Nov. 16, in the *Sidney Papers*. Essex told Walsingham that his chief regret was that he should have been betrayed into speaking hardly of Fitzwilliam. This came from anxiety for the Queen’s service.

[\[300\]](#) Waterhouse to Walsingham, Jan. 12, 1575; Fitzwilliam to the Queen, June 14; Instructions by Mr. Ashton, June 25; Articles with Tirlogh Luineach, June 27; Essex to the Privy Council, July 5; Maltby to Walsingham, July 5.

[\[301\]](#) Fitton to Burghley, Jan. 5; Fitzwilliam to Burghley, Jan. 7 and March 13.

[\[302\]](#) John Symcott to Burghley, March 10, 1575; also Jan. 13 and May 14; Essex to Burghley, April 10; Fitton to Burghley, Jan. 18; Jenison to Burghley, Feb. 3.

[303] Sir P. Carew to Tremayne, Feb. 6, 1574; Fitzwilliam to Burghley, July 12; to the Privy Council, August 2. Miscellaneous information against the Earl of Kildare, Feb. 9, 10, and 11, 1575. Leicester to Burghley, Feb. 27; Fitzwilliam to Burghley, Sussex, and Leicester, May 15; Essex to Walsingham, May 9; Ormonde to Burghley, May 16; Fitton to Burghley, May 15 and 18. Short note by Burghley concerning the Earl of Kildare, Dec. 8.

[304] Instructions for Mr. Waterhouse by the Earl of Essex, Nov. 1573; Waterhouse to Sidney, Dec. 17, 1573, in the *Sidney Papers*; Fitzwilliam to Burghley, Aug. 3 and Sept. 4, 1575; Sidney's patent is dated Aug. 5 in the latter year. In a letter printed in Lodge's *Portraits* (Walter, Earl of Essex), dated Aug. 28, 1574, Essex tells Burghley that Sidney had been expected 'these two months, but that the rumour had passed.'

[305] Fitton's accounts to Sept. 30, 1575. The gross Irish revenue was scarce 11,000*l.* a year; see Auditor Jenyson's statement in *Carew*, 1575 (No. 34). Instructions for Lord Deputy Sidney, Aug. 2. H. Sackford to Burghley, Aug. 12; Fitton to Burghley, Aug. 29 and Sept. 27; Sidney to the Queen, to Burghley, and to Walsingham, Sept. 28, and a letter of the same date to the Queen in the *Sidney Papers*.

[306] Essex to the Queen, July 22.

[307] Sidney's Brief Relation, 1583, in *Carew*. Essex to the Queen, July 31; to Walsingham, same date. There is a tradition that one woman hid in a cave and escaped the massacre; Hill's *MacDonnells*, p. 186. Captain Drake's pay was 42*s.* a month. The Queen to Essex, Aug. 12, in *Carew*.

[308] F. Lany to Sidney, Sept. 16; Essex to the Queen, July 31; Sidney to the Privy Council, November 15, in the *Sidney Papers*; Ralph Bagenal to Burghley, Nov. 24.

[309] Sidney to the Privy Council, June 15, 1576, in *Sidney Papers*.

[310] Sidney to the Privy Council, Nov. 15, 1575, in the *Sidney Papers*; Ralph Bagenal to Burghley, Nov. 24.

[311] Sidney to the Privy Council, *ut supra*.

CHAPTER XXXIII.

ADMINISTRATION OF SIDNEY, 1575 TO 1577.

Fitzwilliam had always maintained that Ormonde's presence was the best guarantee for the peace of the South of Ireland, and most of the Dublin officials were of the same opinion. But Sidney disliked him, both as too powerful for a subject and as a professed enemy of Leicester. All those who hoped for favour from the latter, and all those who favoured the Geraldine faction, were willing enough to take advantage of these rivalries and jealousies. Even Sir Barnaby Fitzpatrick, 'which good knight was brought up to have known his duty better,' but who had many causes of quarrel with his great neighbour, took advantage of the fact that every rebellious and disorderly person wreaked his fury upon Ormonde's property, which was so much scattered as not to be easily protected. As between the Fitzpatricks and Butlers Fitzwilliam seems to have thought that there was not much to choose, and that both chiefs were loyal enough. But others spread reports against Sir Edmund Butler and his brother Piers, saying that they refused to go to the Deputy in spite of Ormonde's promise that they should go when sent for. It seems that Piers went at once, and that Edward, who did good service as Sheriff of Tipperary, was never sent for; but some of the English Council, acting apparently under Leicester's influence, obtained an order from the Queen that Edward should come in without any protection, which he immediately did. The letter, which gave great offence to Ormonde, was signed by Leicester, Knollys, Crofts, Smith, and Walsingham, but not by Burghley and Sussex, though they also were present at Kenilworth. ^[312]

Sidney and the Butlers.

There were some who did not spare Ormonde's reputation any more than his property. In times of danger he always bore the brunt of the storm. 'Who so happy,'

Ormonde and his accusers.

he said, ‘as the most wicked, who so unhappy as the best servant?’ When Kildare was arrested many whispered that as good a case might be made against Ormonde. He defied all detractors in the most uncompromising way: they were liars and slanderers, and he only wished he knew their names. ‘If the charges against Kildare,’ he said, ‘be treasons (as I hope they are not), I defy him and pronounce him a false villain that spake them, if he meant them for me. For as I never was traitor, no more was I friend of traitor, nor maintainer of traitors. If any can charge me (as some I know would if they could) let them say their worst: I defy them, and will answer to defend my honour in my short [shirt], or any way shall become a gentleman.’ He added that as he was no traitor so was he no procurer of murders, no receiver of stolen goods, no practiser to keep stores for private gain. On the contrary, he had subdued scoundrels of all sorts, persuaded ill subjects to reform, opposed Scottish enemies, spent his living in her Majesty’s service, ‘as my house has ever been, which some perhaps may envy.’ He was accused of seeking revenge against those that robbed him and burned his villages, and against those who harboured felons. ‘My lord,’ he pleaded, ‘when my neighbours be lawless, not coming to assizes or sessions, what amends may I have by justice, though by that means I seek mine own?’ He complained that his enemies at Court remembered him better than his friends; but he was all along secure in the Queen’s personal favour, even if his great services had proved a weak defence. She took care to tell him privately that she believed no stories against him, and commanded him to write often. ‘Yet one thing,’ she added, ‘you seem to have forgotten, and wherefore we have some cause to be displeased with you, as though of anything that you write to ourself any person living should be made privy but ourself alone.’ It is hard to guess what the matter was which Ormonde was afraid to trust to paper and which Elizabeth wished to be so profound a secret; but the passage quoted shows what very great favour he enjoyed.^[313]

Sir Peter Carew, the original cause of the quarrel which had made the Butlers rebels for once, left the scene soon after Sidney’s return to Ireland. He was again preparing to prosecute his claims in Munster, and Hooker had been at Cork making overtures to chiefs living west of the city, many of whom promised to accept Carew as their landlord and to pay him rent. Three thousand cows,

Death of Sir Peter Carew.

worth as many marks, were offered in discharge of all arrears. Desmond and others promised to make him welcome, houses were taken for him both at Cork and Kinsale, and arrangements were made for provisions; but Sir Peter fell ill and died unexpectedly at New Ross, his Munster projects dying with him. He left his Idrone property to his nephew and namesake, who was also continued in the government of Leighlin.

Sir Peter Carew was a good specimen of the Tudor adventurer: loyal, brave, chivalrous and generous to lavishness; with large ideas and great energy, but capable of actions which will not bear minute inspection. Sincerely religious, though no theologian, it was noted that he never broke bread or prepared himself for sleep without saying some prayer, and he gave substantial help to Protestants wherever he found them. 'He had his imperfections,' says his friend and biographer, 'yet was he not known to be wrapt in the dissolute net of Venus, nor embrued with the cup of Bacchus; he was not carried with the blind covetousness of Plutus, nor yet subject to malice, envy, or any notorious crime.' Without regular education he had picked up a thorough knowledge of French and Italian, had read a good deal in both languages, and had that intelligent love of architecture which was somewhat characteristic of the time. He had much of the many-sidedness distinguishing the Elizabethan era, and seldom seen in this age of specialists.

His character.

On his deathbed, though he suffered greatly, he was as steadfast as of old when he supported Sir John Cheke's fainting spirit, 'yielding himself wholly to the good will and pleasure of God, before whom he poured out continually his prayers, and in praying did gasp out his last breath, and yield up his spirit.' Only a few months before his death the Queen praised his experience, wisdom, and courage; and when he was dead she granted the prayer of his many friends in carrying out the wishes of this 'trusty and true Englishman.' He was buried at Waterford with great pomp, and a stately cenotaph, raised by the piety of Hooker, commemorates him in Exeter Cathedral. When his corpse was being lowered into the grave, Sidney, who happened to be at Waterford, pronounced the following eulogium:—'Here lieth now, in his last rest, a most worthy, and noble, gentle knight, whose faith to his prince was never yet stained, his truth to his country never

spotted, and his valiantness in service never doubted—a better subject the prince never had.’^[314]

It was not Sidney’s way to let the grass grow under his feet, and he had no sooner returned from Ulster than he started on another journey. Louth he found greatly impoverished by the constant passage of soldiers north and south, and the towns of Dundalk and Ardee were miserable enough. Drogheda had profited somewhat by Essex’s profuse expenditure. Bagenal’s settlement was strong enough to defend the north border of the Pale, except on the side of Ferney, which was granted to Essex, but where he had not yet done anything. Meath the Lord Deputy found ‘cursedly scorched on the outside’ by the O’Connors and O’Molloys, who were equally bad neighbours when in open rebellion and when under protection. O’Reilly, on the contrary, used the Pale well, and he himself was ‘the justest Irishman, and his the best ruled Irish country, by an Irishman, that is in all Ireland.’ Westmeath suffered much from anarchy and from Irish neighbours, but there was good hope of reformation through the activity and discretion of Lord Delvin. The O’Ferralls had consented to have Longford made a shire. They had taken estates of inheritance, and promised speedily to pay their quit-rents, which had been in arrears since Sidney’s last visit.

Sidney’s tour.

On the borders of Dublin and what is now Wicklow cattle-lifting went on merrily by night and day, under the superintendence of Feagh MacHugh O’Byrne, who was just rising into celebrity. Kildare was impoverished, more especially the Earl’s own property, by the incursion of the O’Mores, and old Henry Cowley ‘with tears in his eyes’ told the Lord Deputy that the Barony of Carbery was 3,000*l.* poorer than when they had last met. Carlow was more than half waste through outlaws of various kinds, ‘some living under Sir Edmund Butler,’ and it was to be feared that Sir Peter Carew’s place would be ill-supplied by his young kinsman. The side of Wexford which bordered on Carlow and Kilkenny was also in very evil case. Wicklow was quiet, with the exception of Feagh MacHugh, but Agard the seneschal was away in England, and his absence threatened to be dangerous. The Kavanaghs were tolerably quiet, ‘and though much in arrears of rent, yet pay it they will and shall.’

Miserable state of
Leinster.

The settlement of the King's and Queen's Counties threatened to succumb to 'the race and offspring of the old native inhabitants, which grow great and increase in number, and the English tenants decay and let their lands to Irish tenants.... 200 men, at the least, in the Prince's pay lie there to defend them. The revenue of both countries countervails not the twentieth part of the charge; so that the purchase of that plot is and hath been very dear, yet now not to be given over in any wise.' Sidney advised caution in undertaking any more enterprises of the kind. 'Rory Oge O'More hath the possession and settling-place in the Queen's County, whether the tenants will or no, as he occupieth what he listeth and wasteth what he will.' Upper Ossory, under Sir Barnaby Fitzpatrick, now a Baron, was in good order, and needed only to be joined to some shire. O'Dunne's country was in good case, 'the lord of it a valiant and honest man after this country manner.' Sidney made the Baron Lieutenant over both King's and Queen's Counties, and found every reason to be satisfied with the appointment.

King's and Queen's
Counties.

Kilkenny, 'the sink and receptacle' of stolen goods, was not found to have profited much by the continuance of coyne and livery, 'which yet was done by order, and for the avoidance of a greater, or, at the least, a more present evil.' Ormonde, though he had no love for Sidney, entertained him very handsomely, and gave his word to Rory Oge, who accordingly came in and solemnly in the cathedral submitted and promised amendment. The Earl was made Lieutenant of Tipperary and Kilkenny, and he then escorted Sidney to Waterford, where the citizens feasted him with shows and rejoicings both by land and water. [\[315\]](#)

Kilkenny and
Waterford.

From Waterford Sidney went to stay at Curraghmore with Lord Power, and found his country 'comparable with the best ordered county in the English Pale: whereby a manifest and most certain proof may be conceived what benefit riseth both to the Prince, mesne lord, and inferior subject, by suppressing of coyne and livery.' Lord Power's neighbour, Sir James Fitzgerald, who had succeeded his brother Sir Maurice but without the title of Viscount Decies, ruled a district four times as large, with the result of making it so waste 'as it is not able to find competent food for a mean family in good order; yet are there harboured and live more idle vagabonds than good cattle bred.'

Sidney in Munster.

The smaller country gentlemen, as well as the citizens who held mortgages, were anxious to live quietly and pay their taxes. Desmond himself came to Sidney at Dungarvan, and 'very humbly offered any service that he was able to do to her Majesty.' The town was half ruined by the late rebellion of James Fitzmaurice, but Henry Davells, the constable, was labouring with some success to restore it, and to punish malefactors. The people of Youghal pleaded that they had suffered too much by the rebellion to bear the cost of a viceregal reception, and Sidney passed by Castle Martyr to Barry's Court, and thence to Cork. Kinsale, which the Deputy visited a little later, he found much decayed; the castle and pier both so ruinous that the townsmen were almost defenceless against both pirates and gales. But they were loyal and willing to help themselves, and Sidney gave them a small sum to spend in wages, on condition that they should supply everything else, and not rest till both castle and pier were again serviceable. He was much struck by the advantages of the Old Head for a fortified post. [\[316\]](#)

The citizens of Cork received the Lord Deputy with manifestations of joy, and willingly allowed the troops quarters for six weeks. The soldiers paid half their wages for board, lodging, and fire, and this arrangement satisfied all parties. The Earls of Desmond, Thomond, and Clancare, the Archbishop of Cashel, the Bishops of Cork and Cloyne and of Ross, Viscounts Barry and Roche, and Lords Courcy, Lixnaw, Dunboyne, Power, and Barry Oge attended Sidney the whole time of his stay, as did also Lord Louth, ‘who only to do me honour came out of the English Pale to that city, and did great good among great ones; for being of this country birth, and of their language and well understanding their conditions and manners, did by example of himself, being but a mean man of lands in respect of their large patrimonies and living, both at home and abroad, live more commendably than they did or were able to do; which did much persuade them to leave their barbarity and to be ashamed of their wilful misery.’ MacCarthy Reagh and MacCarthy of Muskerry were also present, and made a good impression on Sidney. They seemed to him, both for their possessions and their law-abiding disposition, to be worthy of baronies at least. The latter especially, well known in Irish history as Sir Cormac MacTeigue, was, he thought ‘the rarest man that ever was born in the Irishry; of him I intend to write specially, for truly he is a special man.’ O’Mahon came from the shores of Dunmanus Bay and O’Donoghue from the Lakes of Killarney, and there was scarcely an important chief, whether English or Irish, who was not present; Sir John of Desmond and his brother James and Sir Thomas Roe being particularly assiduous in their attendance. ‘There came also many of the ruined relics of the ancient English inhabitants of this province, as the Arundels, Rochfords, Barretts, Flemings, Lombards, Tirries, and many others whose ancestors, as it may appear by monuments, as well in writing as of building, were able, and did live like gentlemen and knights; and now all in misery, either banished from their own or oppressed upon their own.’ As representatives of the Celtic order, to which that of the Anglo-Normans had given place, came five MacSwineys, captains of gallowglasses, originally from Donegal, but maintained by the Desmonds and others as condottieri. They had no lands, but were of as much power and consequence as any landowners, ‘the greatest being both in fear of them and glad of their friendship.’ Finally, Sidney records that most of the chiefs brought their wives, ‘who truly kept

Cork. The nobles flock to Sidney.

very honourable, at least very plentiful houses,' and there were many widows of consideration, including some dowager countesses.^[317]

Sidney knew too much about Ireland to be sanguine, but he hoped that the Munster lords would consent to support 100 English foot and 50 English horse free of charge to the Queen. They generally professed themselves ready to do this from May 1, 1576, though the sincerity of one or two great ones was doubtful. But a cloud was gathering in the distance; James Fitzmaurice having fled to France early in 1575 with his wife and children and several companions, of whom the most important were the seneschal of Imokilly, a son of the Knight of Glin, and Edmund Fitzgibbon, eldest surviving son of the late White Knight, and claiming that dignity in spite of his father's attainder. Fitzmaurice maintained that his object was to make interest abroad for the Queen's pardon, and both he and the White Knight asked Ormonde to intercede for them. To Englishmen in France he said that he had been driven from Ireland by Desmond's unkindness, who had refused to give him the means of living, and that he had been forced to bring his wife and children with him because he had no house of his own in Ireland. This tallies with the statements of the family historians, one of whom attributes Desmond's conduct to the influence of his wife, who could not bear to see her only son deprived of any portion of his vast heritage. A ship of war followed the fugitives to France, and Captain Thornton gave an interesting account of their proceedings.^[318]

James Fitzmaurice.

Sailing from Glin in the Shannon, on board La Arganys of St. Malo, whose master, Michael Garrett, was no doubt a fellow-clansman, the Geraldine party landed at a village in Brittany. They brought 1,000*l.* worth of plate with them, and had, therefore, no difficulty in exchanging their Irish costume for French clothes. While the tailors were still at work they received visits from the chief townsmen of St. Malo, and when the transformation was complete, they all repaired to the town. The Governor and other principal people with their wives met them on the sands, and brought them to their lodgings at Captain Garrett's house. Here Mrs. Fitzmaurice and her family remained, but Fitzmaurice with half-a-dozen companions went on to Nantes, and from thence to Paris. He received money and good words, and it was officially given out that his object was to gain a pardon from Queen Elizabeth

Fitzmaurice lands
in France, 1576,

through French intercession. Latin versions of letters purporting to be written by Henry III. to the Queen and to De la Motte Fénelon were shown in Ireland by Geraldine partisans.

The report circulated at St. Malo was that Fitzmaurice came to seek help against Desmond; but Mrs. Fitzmaurice made no secret of her proclivities, for she refused an invitation to dine on board a Bordeaux vessel, ‘because Englishmen, her enemies, were to be there.’ Nor were the better informed ignorant that the whole enterprise was directed against England. A Devonshire merchant talked with a French officer who, in ignorance of his nationality, said that the King would have no peace with the wicked English, that St. Malo had furnished ships against Rochelle which would have been attacked long ago but for fear of the English naval power, and that a war with England was the one thing needful to unite all parties. [\[319\]](#)

where he is well received.

After his visit to the French Court, Fitzmaurice returned again to St. Malo, and in the early days of 1576 Sidney thus reported concerning him:—

His life at St. Malo.

‘He keepeth a great port, himself and family well apparelled and full of money; he hath oft intelligence from Rome and out of Spain; not much relief from the French King, as I can perceive, yet oft visited by men of good countenance. This much I know of certain report, by special of mine own from St. Malo. The man, subtle, malicious, and hardy, a Papist in extremity, and well esteemed and of good credit among the people. If he come and be not wholly dealt withal at the first (as without an English commander I know he shall not), all the loose people of Munster will flock unto him: yea, the lords, though they would do their best, shall not be able to keep them from him. So if he come while I am in the North, he may do what he will with Kinsale, Cork, Youghal, Kilmallock, and haply Limerick too, before I shall be able to come to the rescue thereof.’

From St. Malo Fitzmaurice wrote to the General of the Jesuits for a confessor, offering to pay all his travelling expenses and to support him liberally. After a time he might, if it were thought desirable, be sent into Ireland as a missionary to the rude and unlearned people. [\[320\]](#)

After his tour in Munster, Sidney proceeded from Limerick to take a like survey of Connaught and Thomond. He was attended by the Earl of Thomond and the other chiefs of the O'Briens, 'of one surname, and so near kinsmen as they descend of one grandfather, and yet no one of them friend to another;' the east and west Macnamaras, Macmahon, O'Loughlen, and many other gentlemen. Few as the people were, the Lord Deputy found the country too poor to feed them, 'if they were not of a more spare diet than others are.' He spent his first night comfortably enough in the dissolved friary at Quin, the beautiful ruins of which still remain, the second at Kilmacduagh, which is also interesting to the antiquarian, but which must have been a poor cathedral city at its best. Here Clanricarde met him, and he passed by Gort to Galway, whither all the principal men of Thomond repaired to him. He found that there had been no lack of murders, rapes, burnings, and sacrileges. So hard was the swearing that the injuries to property might be esteemed infinite in number, immeasurable in quantity, until the legal acumen of Sir Lucas Dillon reduced them within reasonable bounds. On examination it appeared that the greatest harm had arisen from the feud between Thomond and his cousin Teige MacMurrough, and they were required to enter into heavy recognizances. Sir Donnell O'Brien, the Earl's brother, was made sheriff of the county of Clare, a shire of Sidney's own creation. Connaught was now divided into four counties—Galway, Mayo, Roscommon, and Sligo. From Mayo came seven men to represent the seven septs of Clandonnells, the hereditary gallowglasses of North-West Connaught, and in effect the tyrants of the country. They agreed without difficulty to hold their lands of the Queen, and so did MacWilliam Eighter himself, who communicated with the Lord Deputy in Latin, and made a very favourable impression. MacWilliam agreed to pay 250 marks yearly, and to support 200 soldiers for two months in each year, and an English sheriff was established in Mayo at his request. Besides the various septs of Burkes, Sidney enumerates five great English families who had taken Celtic names, and who now followed MacWilliam's lead; as did O'Malley, 'an original Irishman, strong in gallies and seamen.' The five chiefs of English race claimed to be Barons of Parliament, 'and they had land enough, but so bare, barbarous barons are they now that they have not three hackneys to carry them and their train home.'

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Sidney at Limerick.
Thomond.
Connaught.

Galway itself was much decayed through the outrage of Clanricarde's sons, and the townsmen so much disheartened as to be almost ready to abandon their post.

Galway.

Sidney's presence revived them, and all men hastened to pay their respects; among them the Archbishop of Tuam, the Bishops of Clonfert and Kilmacduagh, and Birmingham, Baron of Athenry, 'as poor a baron as liveth, and yet agreed on to be the ancientest baron in this land.' O'Flaherty, O'Madden, O'Kelly, and other Celts also appeared, as well as the heads of several septs of Clanricarde Burkes, each with his appropriate Irish name. The Earl's sons came into church on Sunday, surrendered at discretion, and were brought prisoners to Dublin.

After spending three weeks at Galway, during which the hangman was not idle, Sidney went to Athenry, which he found in ashes, the very church not being spared by the young Burkes, though the mother of one of them was buried there. To rebuild the town a tax, according to a principle not yet forgotten in Ireland, was assessed upon the country, and the work was immediately begun. The castles of Ballinasloe and Clare Galway were garrisoned for the Queen, and Sidney then went by Roscommon to Athlone. On his way he noted that Clanricarde's vassals were well enough off, but that all else was ruinous. O'Connor Don, MacDermot, and others here paid their respects. From the newly made County of Longford the gentlemen came willingly enough to Roscommon and Athlone, and promised to clear off the 200 marks of revenue, which was four or five years in arrear. Part of the money was actually paid.

Athenry. The
Connaught clans.
Sidney's
reflections,

On his return to Dublin, Sidney insisted strongly upon the necessity of two Presidents. Sir William Denny was already named for Munster, and he proposed Essex or Sir Edward Montague for Connaught. English lawyers he must have, or no justice could be done. A standing army of 1,000 men he must have, or no peace could be kept. Two or three good officials—men like Tremayne—were much wanted if the revenue was to be increased. And then, above all, the Church must be reformed, 'for so deformed and overthrown a Church there is not, I am sure, in any region where Christ is professed; and preposterous it seemeth to me to begin reformation of the politic part, and to neglect the religious.'

and proposals.

The facts as to the religious state of Ireland were laid by Sidney before the Queen herself, and go far to explain the comparative failure of Anglicanism in Ireland. Hugh

Evil condition of
the Irish Church.

Brady, Bishop of Meath, a native of his diocese and a man of Irish race, though a sincere Protestant, had lately made a parochial visitation of his own diocese. Brady, who was the Lord Deputy's companion during part of his Western journey, is described by him as honest, zealous, and godly; to such a man the state of the churches under his charge must have given the gravest anxiety. There were 224 parish churches, of which 105 were impropriated to manors or possessed by the holders of monasteries which had come into the hands of the Crown. In not one of these cases was there a resident parson or vicar, and of the 'very simple and sorry curates' usually appointed to do duty only eighteen could speak English, the rest being 'Irish priests or rather Irish rogues, having very little Latin, less learning or civility.' They gained a precarious living from the offertory, and in no single case was there a dwelling-house. Many of the churches were down altogether; the great majority without roofs. Fifty-two churches were ill served by vicars, and fifty-two more in the hands of private patrons were in somewhat better but still poor case. We are left to infer that only thirteen out of 224 parishes were in such a state as the Bishop could approve. Meath was the best peopled and richest diocese in Ireland, and Sidney, not to tire the Queen with too many details, left her to guess what the dry tree was like. 'Your Majesty may believe that upon the face of the earth, where Christ is professed, there is not a church in so miserable a case.' With ruinous churches, want of labourers for the vineyard, and want of means to pay them, Sidney had no difficulty in believing that the very sacrament of baptism had fallen into disuse.

The remedies proposed were that the churches should be repaired out of the profits of the land, either by the Crown or by the tenants as equity might dictate, that

Remedies proposed.

Irish-speaking ministers should be sought at the universities or borrowed from the Regent of Scotland, and that some of the English bishops should be forced to visit Ireland, with their own eyes and at their own expense to see the spiritual nakedness of the land, and to prescribe a cure. 'They be rich enough,' he added, 'and if either they be thankful to your Majesty for the immense bounty done to them, or zealous to increase the Christian

flock, they will not refuse this honourable and religious travel; and I will undertake their guiding and guarding honourably and safely from place to place; the great desire that I have to have such from thence is for that I hope to find them not only grave in judgment, but void of affection.’^[323]

After his return from Connaught, Sidney busied himself with the revenue and general administration. He did not conceal from himself that for every penny of rent she received it cost the Queen a shilling to hold her own. ‘Yet,’ he said, ‘I will never consent that the country should be abandoned in any sort, for held it shall be; but only hereby to note unto you by the way, what a dear purchase this is and hath been to the Crown; and, by the example of this, you may judge of the rest that are of this nature.’ Sir William Drury, the new President of Munster, and William Gerrard, the new Chancellor, were promised in April but did not come till Midsummer, and in the meantime ‘the southern like the dog, the northern like the hog, mentioned in the holy book, were ready to revolt to their innate and corrupt vility.’^[324]

Expenses of
government.

O’Rourke, whom Sidney notes as the proudest man he ever saw in Ireland, came to Dublin and produced a patent of Henry VIII. which proved genuine. 20*l.* Irish was the rent reserved, but Sidney held out for 200*l.* sterling, and O’Rourke agreed to submit his cause to commissioners. O’Donnell also agreed to pay the 200 marks or 300 beeves which he had long since promised, asking only time for arrears. Sidney inquired into the very old dispute as to the tenure by which O’Connor held Sligo. O’Donnell said that 300 marks sterling had been paid to him and his ancestors since St. Patrick’s time. This was dismissed as fabulous, but a prescription of some generations was shown, while O’Connor convinced Sidney that the payment had never been made without violence, offering to give 100 marks a year to be quit of O’Donnell and to receive a sheriff peaceably, a ‘foreigner’ being preferred to an inhabitant of the country. Many other chiefs came to Dublin, and were ready to pay some yearly sum ‘all for justice; it is to be rejoiced that they so do, but more to be lamented that they have it not near to them.’ The Lord Deputy thought it very hard that he should have to do his own work and that of the President also; and, indeed, his post was no sinecure, for during the nine months that he had been in Ireland 400 men had been executed ‘by

O’Rourke,
O’Donnell,
O’Connor. Sligo.
Sidney counts the
heads of enemies.

commission ordinary and extraordinary, and by slaughter in defence of the poor husbandmen.’^[325]

The delay in appointing a President for Connaught, and the impossibility of the Viceroy being in two places at once, soon restored their courage to the Earl of Clanricarde’s sons. Such English officers as were in Connaught Fitton described as mean men, and as meek as mice to the Earl and his sons, and yet mean as they were too much for the young men. They suddenly crossed the Shannon, and cast off their English clothes with the remark, ‘Lie there for one year at least.’ The old Earl wrote to say that he would prevent them doing harm till he heard from the Deputy, to whom he scarcely offered any excuse. Writing to Ormonde and Lord Upper Ossory, he said that the 6,000*l.* which the rebuilding of Athenry would cost was too much for his country to bear, and that he himself could not raise 500*l.* The young men, paying but little attention to promises made in their names, destroyed the few houses which had been restored in the ill-fated town, killed or dispersed the labourers, burned the new gate, and sought for the stone with the royal arms, that they might break it, swearing that no such stone should stand in any wall there. Fearing for the safety of Galway, Sidney prepared to chastise the rebels in person.^[326]

Fresh troubles with
Clanricarde’s sons.

The Lord Deputy only received the news on Tuesday, and on Friday he was at Athlone with a few officers; the bulk of his forces following as they could. Clanricarde came in on protection, which was granted unwillingly, and surrendered Loughreagh as a material guarantee. Kneeling at Sidney’s feet, the Earl besought pardon for himself and his sons, still maintaining that excessive taxation was the only cause of the rebellion. The Deputy sternly reminded him that the county had agreed to the rates imposed, and gave him leave to depart unscathed within three days. This was on Friday, and on the following Sunday Clanricarde came into the parish church and made submission on his knees, confessing the treason of his sons, and submitting himself and his cause to her Majesty’s pleasure. Sidney professed himself glad to gain an Earl and his castles instead of ‘two beggarly bastard boys,’ but tacitly admitted their power to annoy by pressing once more for a President. ‘Without a sufficient man in that office,’ he said, ‘I shall but trindle Sisypheus’ stone and bring it to the brim of the bank, and then forced

Sidney and
Clanricarde.

to turn both head and hand, and so haply break either back or neck, but that is the least matter. In the meantime the Queen shall lose both honour and treasure, and her people lack both distribution of justice among them, surety of their lives, and saving of their goods.’^[327]

Having secured Galway and Athlone, Sidney went to Limerick, where he settled Sir William Drury in his presidency. Drury was a native of Suffolk, who had served England well by sea and land, at home and abroad. He had been Governor of Berwick, and had superintended the siege of Edinburgh Castle, where, in spite of Grange’s chivalry and Maitland’s guile, that last fortress of a falling cause had surrendered to Queen Elizabeth’s ally. He was now to try what skill and courage could effect in the service which had been, and was to be, fatal to the fortunes of so many eminent Englishmen. Meanwhile the young Burkes—the MacIarlas as they were called—held the open country with 2,000 Scots, besides their usual rabble. Captains Collier and Strange were besieged in Loughreagh, but Sidney thought the place practically impregnable by such a force, and prepared at his leisure to strike a well-aimed blow. Early in September he entered Connaught again, accompanied by Maltby, who had been appointed military Governor of the province, by a number of Ormonde’s men under the command of Edward Butler, and by his own son Philip, whose ‘sufficiency, honesty, virtue, and zeal’ made him remarkable even in his twenty-second year. Maltby and Butler chased John Burke and his rabble up and down the country, but could never come up with them. On Sidney drawing towards the borders of Mayo, the Scots, fearing to have their retreat cut off, fled precipitately into Ulster. All the English officers were agreed that the state of Connaught was owing to the lawlessness and ambition of the Earl and his sons—‘two cursed young men’—who would brook no superior. The people would gladly be rid of their tyranny, but had been taught by experience that great culprits generally escaped justice, and returned to plague those who had ventured to withstand them. No help, though much passive sympathy, could, therefore, be hoped for by viceroy or provincial governor.^[328]

Sir William Drury,
President of
Munster, 1576.
Sidney in
Connaught.

Sir William Drury found plenty to do in his new government, though the county was free from any great disturbance. At Cork assizes forty-two persons were

Proceeding of
Drury.

hanged, and one pressed to death; a chief of the MacSwiney gallowglasses, who had displayed a banner while driving cattle from under the walls of Cork, being among the sufferers. In derision the same banner was borne before the culprit to the place of execution. Nearly as many more were despatched at Limerick, the President's object being to strike down the local ringleaders as much as possible. 'They ride,' he said, 'all one horse, and the head of the salmon is worth a many small fishes.' Like every other English governor, Drury complained of the number of idle men retained by territorial magnates. All he could do was to procure that registers should be kept, showing on whom each kerne or gallowglass was dependent, thus making the gentlemen responsible. ^[329]

After the massacre of Rathlin, Essex determined to lead a private life. No place near Dublin was free from the prevailing infection, and he withdrew to Waterford to wait upon events.

Essex goes to
England,

He had half ruined himself and had failed entirely to do what he had proposed. 'I have wasted no hour in Ireland,' he told the Queen, 'why should I wear out my youth in an obscure place without assurance of your good opinion, and should but increase the light of another man's sun, and sit in the shadow myself?... I am no way carried with inconstancy, but loth to drown my service without certainty of friends and good opinion.'

In this temper he asked for leave to visit England. It was granted, and at the end of October 1575 he landed near his own house at Lanfey in Pembrokeshire. Even during the passage his ill-fortune pursued him. Vessels carrying his servants and baggage were dispersed by a storm, and the rough weather told upon his enfeebled frame. He was accompanied by Maltby, who was for the moment unemployed, and who thoroughly sympathised with him; but his health was so bad that Walsingham cautioned him not to travel too fast towards London. When he did arrive there he had still to complain of neglect, and of the expense to which he was put in dancing attendance on Queen and Ministers. Burghley found it necessary to 'humiliate the style' of the Earl's letters before showing them to her Majesty, and he then wrote in a more submissive strain. It was this, probably, which elicited from the Queen one of those

where he offends
the Queen,

but she soon
relents.

letters with which she well knew how to whistle back her disgusted servants. She congratulated him on his perfect conquest over his passions, which she attributed to the lessons of patience learned in the Irish service. 'And though,' she said, 'you may think that it has been a dear conquest unto you in respect of the great care of mind, toil of body, and the intolerable charges you have sustained to the consumption of some good portion of your patrimony, yet if the great reputation you have gained be weighed in the balance of just value, or tried at the touchstone of true desert, it shall then appear that neither your mind's care, your body's toil, nor purse's charge was unprofitably employed; for by the decay of those things that are subject to corruption and mortality you have, as it were, invested yourself with immortal renown, the true mark that every honourable mind ought to shoot at.... We think your demands made upon us were grounded both upon the respect of your own benefit and of our service, interpreting as we do the word benefit not to import that servile gain that base-minded men hunt after, but a desire to live in action and to make proof of your virtue; and being made of the metal you are, not unprofitably or rather reproachfully to fester in the delights of English Egypt, when the most part of those that are bred in that soil take great delight in holding their noses over the beef-pots.'

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In the end Essex received a grant of the barony of Farney in Monaghan, of the peninsula called Island Magee in Antrim, and of the office of Earl Marshal in Ireland for life. Having made his will and such other arrangements as were possible for the settlement of his estate, he returned to Ireland after an absence of about nine months. The leading of 300 men for which he had asked, and which Sidney recommended, would probably have been granted had not death cut his career short. He reached Dublin on July 23, 1576, and on August 30 was attacked by dysentery, which carried him off in three weeks.

Return and death of Essex.

In his lifetime Essex did many things which history must condemn, though he seems not in any way to have accused himself. On his deathbed he showed himself a hero, if patience under suffering and faith without worldly hope are to be considered heroic attributes. Two days before his death he wrote to Elizabeth, besought her forgiveness for any offence he might have given,

His character.

and begged her to be a mother to his children. He reminded her that his son would be poor through his debts to the Crown, and that she would be no loser by remitting them, since the minor's wardship would amount to as much or more. In another letter he recommended his son to the care of Burghley and Sussex, 'to the end that he might frame himself to the example of my Lord of Sussex in all the actions of his life, tending either to the wars, or to the institution of a noble man, so he might also reverence your lordship for your wisdom and gravity, and lay up your counsels and advice in the treasury of his heart.' He sent his love to Philip Sidney, 'and wished him so well that if God do move both their hearts, I wish that he might match with my daughter. I call him son; he so wise, so virtuous, and godly; and if he go on in the course he hath begun, he will be as famous and worthy a gentleman as ever England bred.' As regards Sidney he spoke prophetically, and it is but reasonable to suppose that had Penelope Devereux become his wife she would have been the glory instead of the scandal of her age. With almost his last words he sang a hymn which he had composed, and at the end 'he strove to praise even when his voice could not be heard.' When it failed altogether, Mr. Waterhouse—his faithful friend always—'holding him by the hands, bade him give a sign if he understood the prayers, and at the name of Jesus he held up both his hands, and with that fell asleep in Christ as meekly as a lamb.'^[331]

The Jesuit Parsons accused Leicester of poisoning Essex, and he was probably not incapable of such a deed. The charge was made at the time, but Sidney's contemporary account fully disposes of what he calls 'a false and malicious brute,' and the accusation was not made by any of those who were about the sick bed, nor was it believed by the dying man himself. But if Leicester is to be acquitted of poisoning the man whose widow he married, it is not so easy to clear him of having gained her affections clandestinely while using his political influence to keep her husband at a distance. In one letter Leicester hints that Essex does not expose his own person enough, and speaks somewhat slightly of his abilities; nevertheless, he was angry with Sidney for not doing more to facilitate his return to Ireland. On the other hand, it would appear that Essex was on friendly terms with Leicester. What seems really clear is that Essex did not care much for his wife. His will contains no loving mention of her, and his last letter to the Queen

Leicester's conduct to Essex.

speaks of the burden which dowries would lay upon his son's inheritance. On his deathbed he spoke much of his daughters, lamenting the time which 'is so frail and ungodly, considering the frailness of woman.' While asking Elizabeth to be a mother to his son, he abstained from saying a word about that son's natural mother. And it is evident that he cared little for his wife's society; for after the failure of his great enterprise he was ready to live 'altogether private in a corner of Ulster,' rather than return home. The facts seem to exonerate Leicester from the charge of poisoning, but tally very well with the common report that he kept the Earl in Ireland while he made love to the Countess. ^[332]

The Queen continually upbraided Sidney with the expense of his government. He, on the contrary, maintained that there was no waste, and that the cost of supporting an army, without which government was impossible, grew greater every day. There had been a rise in prices unaccompanied by any increase in revenue, and the soldier found it hard to live without being burdensome to the country. The gentlemen of the Pale now took the high ground that no tax could be imposed except by Parliament or a Grand Council, though the cess was a customary payment, which in one form or another had been exacted since Henry IV.'s time. Sidney stood upon the prerogative, in this case strengthened by custom, 'and not limited by Magna Charta, nor found in Littleton's Tenures, nor written in the Book of Assizes, but registered in the remembrance of her Majesty's Exchequer, and remaining in the Rolls of Records of the Tower, as her Majesty's treasure.' It was this Elizabethan way of looking at things that brought Charles I. to the scaffold, but in Sidney's time no one thought such language strange. The theory that there should be no taxation without consent of Parliament was beginning to be advanced, but few were as yet so bold as openly to propose limits to the royal power. The efficiency of ill-paid soldiers is generally small, and many landlords said they could defend themselves better and more cheaply. The Lords of the Pale were usually called to the Council Board, and had ample opportunities of protesting against the cess. They admitted that it had been regularly imposed for thirty years for victualling the army, and more lately for the viceregal household. The old 'Queen's prices' were not far from the real value, but they had crystallised into fixed rates, while the market had

Agitation against
the cess.

The truth hard to
discover.

steadily risen, and was now about 150 per cent. higher. No doubt it was difficult to assess payments in kind. 'The country,' said Lord Chancellor Gerard, 'set down notes falsifying the victuallers' proportion. Because they varied in the weight of every beef and the number of loaves which every peck of corn would make, I played the butcher and baker on several market days, and weighed of the best, meanest, and worst sort of beeves, and also weighed the peck of corn and received the same by weight in loaves, containing the weight of 3 lbs. every loaf of bread; and found the same neither too weighty as the country set down, nor too light as the victuallers allege,' &c.

The country, he said, paid a penny where the Queen paid a shilling. 'The gentlemen,' he adds significantly, 'by their own confession, never lived so civilly and able in diet, clothing, and household, as at this day; marry! the poor churl never so beggarly.'

The Lords of the Pale, however, sent three lawyers to London to plead their cause, and in the meantime refused to commit themselves by arguing. The advocates selected were men of family, and thoroughly acquainted with their views, but not agreeable to Sidney. Barnaby Scurlock he allowed to be a man of credit and influence, but he had lately indulged in 'undecent and undutiful speech;' he had made a fortune as Attorney-General, but Sussex had dismissed him for negligence. Richard Netterville was a seditious, mutinous person, who sowed discord and promoted causes against the Government—in fact, an agitator 'who had bred more unquiet and discontent among the people than any one man had done in Ireland these many years.' As to Henry Burnell, Recorder of Dublin, whom Fitzwilliam had formerly described as one of the best spoken and most learned men in Ireland, but a perverse Papist, Sidney could only wish he would mind his practice at the Bar, which had made him rich, and not meddle with her Majesty's prerogative. He was, he says, 'the least dishonest of the three, and yet he trusted to see the English Government withdrawn.'

The Pale sends counsel to London.

Sidney's high prerogative doctrines somewhat warped his mind. He condescended to say that Netterville was 'son of a second and mean Justice of one of the benches;' as if that could possibly prejudice his advocacy. He praised the

Sidney's criticisms.

Chancellor for acting as a partisan, though no doubt he was fair enough about prices. 'He hath in public places both learnedly, discreetly, wisely, and stoutly dealt in the matter of cess, and rather like a counsellor at the bar than a judge on the bench.' After all this is very doubtful praise, though Gerard was not acting in his judicial capacity. [\[335\]](#)

Before their emissaries started for England, the gentlemen of the Pale procured a bill to be brought before a Meath grand jury, of which the first clause contains these words: 'We find Sir Henry Sidney, Lord Deputy of her Majesty's realm of Ireland, Sir Lucas Dillon, &c. (all the council), ... gave commission to Thomas Cusack of Gerardston, sheriff of Meath, to charge ... cess ... corn, beef, butter, &c., and carts and carriages ... 1,800*l.* or thereabouts ... said sheriff has levied.... Sir Robert Tressilian, Chief Justice of England, was put to death for misconstruing the laws in Richard's time.' Further clauses indict the inferior ministers occupied about the cess. By advice of the presiding judge, the charge against the officers of State was erased, but the rest of the Bill was presented and justified, and Burnell said openly in the Court of Star Chamber that he would have carried the case through, but that it would have delayed his journey to England. [\[336\]](#)

True bill against the cess.

The details of the question at issue between Sidney and the Lords of the Pale are extremely obscure, and for a variety of reasons. Thus, when they complained that the exaction amounted to 9*l.* per ploughland, he offered to take 3*l.* 6*s.* 8*d.*, but they refused, ostensibly from unwillingness to burden their heirs. One explanation is that the ploughland was a very uncertain measure, though generally reckoned at 120 Irish acres, and that the acreage had always been very much understated. It was feared that Sidney would measure the land more carefully and reduce the ploughlands to a uniform size, thus extracting much more money than might be supposed from his apparently liberal offer. Many lands had been exempted by favour or custom, and such exemptions tended to multiply; it was feared that Sidney might extinguish them. Grass lands had perhaps not been taxed at all, for Sidney only allowed 700 ploughlands in Meath, Westmeath, Kildare, and Dublin. The surface of those counties, without including Wicklow, contains nearly 11,000 ploughlands of 120 Irish acres each. On inquiry, Sidney found that the charge at existing prices came nearly to 8*l.* a ploughland, 'for ease of which,

Nature of the tax.

by making the burden to be borne more universally, I by proclamation dissolved all freedoms that had not had their continuance time out of memory of man, whereof there were many, the most by a statute pretending thereby an increase of military men, which God knoweth, and I, are of little worth, ... the statute is expired.' Many repined, but 'it was proved that they had no real reason to do so.'^[337]

Netterville and his colleagues admitted that 1s. per acre Irish, or 8d. sterling, was the rent of land 'in most, or at least in many places,' within the Pale. They allowed that a foot soldier could not live on 8d. a day, nor a horseman on 9d., and they said roundly that there was no way but to increase these sums, declaring, and we may well believe declaring truly, that the Queen already lost more by the jobbing consequent on insufficient pay than she could lose by giving the extra 1d. a day, which the soldiers asked for. That so small an increase would content them reasonably they inferred from the fact that it had often been accepted by them in lieu of cess. The Pale was willing to victual soldiers maintained for its defence, provided a fair price was paid for it, Netterville and his colleagues pledging themselves to use all their influence to obtain the Queen supplies if only she would seek them constitutionally from Parliament.^[338]

On the arrival of the three Irish lawyers in London, Walsingham assured Sidney that nothing should be done to prejudice his authority. The Privy Council received the strangers coldly, and Leicester took occasion to 'ruffle that seditious knave Netterville' in a style which pleased his brother-in-law greatly. The contention that cess was altogether illegal did not recommend itself to the Queen or her Ministers. Kildare and Ormonde, Gormanston and Dunsany, were in London, and being called before the Council admitted that the cess was customary, and only begged that consideration might be showed to the Pale in time of scarcity. The triumvirate, as Waterhouse calls them, were accordingly committed close prisoners to the Fleet, and Sidney was gently cautioned to shear his sheep and not to flay them. He confessed, indeed, that he 'held a straighter hand in the matter of cess, the rather to bring them to a certain rent for the release of the same.' Netterville had seen this clearly enough, and therefore the Lord Deputy writes him down 'as seditious a varlet and as great an impugner of English government as any Ireland beareth.'^[339]

In all official letters from the Queen and the Privy Council much indignation was expressed at the idea of the royal prerogative being called in question. Sidney was instructed to deal sharply with the gentlemen who had deputed Netterville and his colleagues, and stiffly to assert the principle of the cess. Failing, after repeated arguments, to yield the point at issue until the result of their agents' mission was known, and standing in the meantime on high constitutional ground, Lords Baltinglass, Delvin, Trimleston, and Howth, with many others of the best gentlemen in the Pale, were committed to the castle. This was strictly in accordance with the Queen's orders, but in writing directly to Sidney she reprimanded him for choosing so bad a time to raise the question of the cess, and for drawing an inconvenient amount of public attention to undeniable grievances. At Court Philip Sidney accused Ormonde of thwarting his father, and contemptuously held his tongue when the Earl addressed him. Ormonde refused to quarrel, saying magnanimously that the young man was bound to take his father's part, and that he was endowed with many virtues. Indeed, nothing could be said against Ormonde but that he was a general defender of the Irish cause, like all the rest of his countrymen at Court. He hated Leicester and did not like Sidney; but, as the latter himself expressed it, 'love and loving offices' are matters of favour, not of justice. How little sympathy there was between them may be judged from the passage in which the Lord Deputy defends himself against the Queen's private strictures on his conduct. 'I am condemned, I find,' he writes to Leicester, 'for lack of policy, in that in this broken time, and dread of foreign invasion, I should commit such personages as I detain in the castle.... While I am in office I ought to be credited as soon as another; and this is my opinion, if James Fitzmaurice were to land to-morrow, I had rather a good many of them now in the castle should still remain than be abroad.'^[340]

The chiefs of the Pale under arrest.

The envoys, after tasting the hospitalities of the Tower, submitted humbly enough in form, but did not abandon their case, and the Queen, though she spoke boldly about prerogative, had evidently some sympathy with them. The prisoners in Dublin also submitted, and the Crown, having thus saved its credit, a composition was arrived at, which seems to have been substantially Burnell's work, and to which Ormonde, Kildare, and Dunsany, who were in

Composition for cess.

London, gave a preliminary adhesion. The counties of Dublin, Meath, Westmeath, Louth, Kildare, Carlow, Wexford, and Kilkenny acknowledged themselves bound to victual as many of the 1,000 soldiers and officers as the Lord Deputy should appoint, and to pay 1*d.* a day for each man of that number whether present or no, deducting that sum in the case of those men whom they were required to victual fully. They were to furnish 9,000 pecks of oats to the horsemen at 10*d.* sterling, and to sell fresh provisions to the Lord Deputy at reasonable prices for ready money. The Queen consented thoroughly to repair the old store-houses, but not to build new ones, and no other charge of any kind was to be made against her, except for damage by sea or fire; but she promised that purveyors should be punished if they abused their power. To this arrangement the cess-payers submitted with a tolerable grace, but officials complained that the Queen had made a very bad bargain.^[341]

FOOTNOTES:

^[312] Ormonde to Burghley, July 16, 1574 and Aug. 3, 1575; Privy Council to Lord Deputy Fitzwilliam, July 25, 1575; Fitzwilliam to Burghley, Aug. 3.

^[313] Ormonde to Burghley, July 16, 1574, July 24, 1575, and Aug. 23; the Queen to Ormonde, April 12, 1575.

^[314] The Queen to Sir P. Carew, April 12, 1575; Fitzwilliam to Sidney, Dec. 9, 1575; Hooker's *Life of Carew*; Carew died, Nov. 27, 1575.

^[315] This tour is described in a letter from Sidney to the Privy Council, Dec. 16, 1575; in the *Sidney Papers*, written from Waterford.

^[316] Sidney to the Privy Council, April 27.

^[317] All the above from Sidney to the Privy Council, Feb. 27, 1575-6, in the *Sidney Papers*.

^[318] O'Daly, chap. xix.; *Russell*; Ormonde to Burghley, March 20, 1575, with enclosures, the originals of which Ormonde sent to the Queen.

^[319] Captain George Thornton's Declaration, May 25, 1575; Answer of the Seneschal, &c., July 18. Fitzmaurice came to St. Malo in February.

^[320] Sidney to the Privy Council, Feb. 27, 1576, in the *Sidney Papers*. James Fitzmaurice to the General of the Jesuits, Jan. 31, 1576, in Hogan's *Hibernia Ignatiana*.

^[321] The five families were Barrett or MacPadden, Staunton or MacEvelly, Dexter or MacJordan, Nangle or MacCostello, Prendergast or MacMorris.

[322] This tour of Sidney's is detailed in his letter to the Privy Council, April 27, 1576, in the *Sidney Papers*.

[323] Sidney to the Queen, April 28, 1576.

[324] Sidney to Walsingham, April 27; to the Privy Council, June 15.

[325] Sidney to the Privy Council, June 15, 1576.

[326] Clanricarde to Ormonde and to Upper Ossory, June 28; Sidney to the Privy Council, July 9; Gerard to Walsingham, June 29; Fitton to Burghley, July 8.

[327] Sidney to the Privy Council, July 9: Submission of Clanricarde, July 8.

[328] Maltby to the Queen, Sept. 20; Sidney to the Privy Council, Sept. 20; Sir L. Dillon to Walsingham, Sept. 19; Agard to Walsingham, Sept. 11.

[329] Drury to Walsingham, Nov. 24.

[330] The Queen to Essex, 1575, *Domestic Series*, vol. xlv. p. 82; Essex to the Queen, Aug. 19, 1575; Maltby to Leicester, Nov. 12, 1575, in *Carew*.

[331] Essex to the Queen, Sept. 19, and to Burghley, Sept. 20, in *Mardin*. Devereux, i. 146.

[332] Lady Essex was at Kenilworth during the princely pleasures of 1575. Sidney to Walsingham, Oct. 20, 1576; to Leicester, Feb. 4, 1577, both in the *Sidney Papers*; Essex to the Queen, March 30, 1575; to Leicester, Oct. 7, 1574; Leicester to Ashton, May 1575; Waterhouse to Sidney, March 21, 1576, in the *Sidney Papers*.

[333] Gerard to the Privy Council, Feb. 8, 1577, in *Carew*.

[334] Fitzwilliam to Burghley, Sussex, and Leicester, July 7, 1575; Sidney to the Privy Council, May 15, 1577; to the Queen, May 20.

[335] Sidney to the Privy Council, March 17 and May 15, 1577; to the Queen, May 20, 1577, in *Sidney Papers*; where he says, 'Cess is a quantity of victual and a prisage set upon the same necessary for soldiers, ... and so much for your Deputy's house, so far under the value, as it goeth between party and party, as the soldier may live of his wages, and your Highness's officer of his entertainment, and this to be taxed by your Highness's Deputy and Council, calling to them the nobility adjoining.'

[336] Agard to Tremayne, March 22, 1577, and the enclosure.

[337] Sidney to the Queen, May 20, 1577, in the *Sidney Papers*.

[338] A great number of papers in *Carew* and *Collins*; see particularly Questions and Answers (Netterville & Co.), *Carew*, p. 61 (1577).

[339] Sidney to Leicester, May 19, in *Carew*; to the Queen, May 20; Walsingham to Sidney, April 8, in *Sidney Papers*; Privy Council to Sidney, May 14.

[\[340\]](#) Sidney to Leicester, Feb. 4 and Aug. 1577, in *Sidney Papers*; Waterhouse to Sidney, Sept. 16.

[\[341\]](#) Order of the Privy Council, March 31, 1579.

CHAPTER XXXIV.

LAST YEARS OF SIDNEY'S ADMINISTRATION, 1577 and 1578.

The letters of Lord Chancellor Gerard give a vivid picture of the state of the Pale during the controversy about cess. He divides the inhabitants into three classes —gentlemen, idlemen, and churls. Every gentleman kept a number of idle hangers-on, who sponged upon the poor cultivators, and robbed openly when refused free quarters. Their nominal master gave them neither food nor clothes but merely countenance, in return for which they were always ready to avenge his real or fancied injuries. These locusts ate up all the scanty surplus which was left to the poor cultivator. Remonstrance was vain, and perhaps the landowners had really not much choice. ‘I will not put away my thieves,’ a gentleman would argue, ‘for then such a one’s thieves would rob me; let him put away his, and I will put away mine.’ The vicious circle was hard to break, for the Government was not strong or steady enough to repress all impartially. The judges went circuit with little effect, for the juries ‘more regard whether any of the parties are of kin or allied to the justice or of the sept of the justice, or counsellor, than to the matter, and that way commonly passeth the verdict.’ Nor was there much outward magnificence to hide the inherent defects in such a judicial system. At Trim the Court of Assize was like an English cattle-pen; there was no crier, no trumpeters or javelin-men to hedge the sheriff’s dignity, and no competent officer to see that indictments were properly drawn or prisoners duly arraigned. That a desire for justice existed was shown by the conduct of a Meath grand jury, whose members were of very humble position, but who took heart at the Chancellor’s visit, and, believing that right would at last be

Lord Chancellor
Gerard on the Pale.

done, found bills against above 100 of the local oppressors for retaining idle followers.

Important causes, in Gerard's opinion, were better removed into the Chancery or Star Chamber, but the thieves might be dealt with by the hangman provided the assizes were a little better conducted. English judges were much wanted to secure something like impartiality. Gerard had sixteen years' Welsh experience, and he saw no reason why the policy which had succeeded there should not succeed in Ireland. The Lord Deputy should endeavour to keep the Irish from actual rebellion, and to persuade them to make some contribution to the revenue. Afterwards, on the borders of each county, English judges might 'deliver justice with such severity as the poor fleas may have yearly comfort to be delivered from the webs and oppression of the great spiders, ... and so by little and little to stretch the Pale further, thereby to hit the mark long shot at, and hitherto missed, which is to save the revenue of England and bring somewhat from hence.'

Gerard's scheme for governing Ireland.

Hitherto the prevailing policy had been to keep English and Irish from hurting each other, and the more successful it had been the more harm it had done. The peasants of the Pale were all Irish. They propagated their species with perfect recklessness, and it was therefore useless to expect any increased civilisation. Even in Dublin people of English race delighted in talking Irish, and habits and feelings always followed the language. It might be possible to civilise some of the Irish: the rest should be extirpated, and English farmers with good leases and moderate rents substituted for them. From this nucleus the Celtic wilderness might be gradually reclaimed. In the meantime, the prisons were few and insecure. There were no pounds. The mountains everywhere harboured thieves, and they came within four miles of Dublin. Cattle were not safe in the fields, even at the very gates. But it had once been no better in Montgomery and Radnor, in Brecknock and Monmouth. There also it had been necessary to fold the flocks securely at night until the twenty-sixth year of Henry VIII., when Wales was fully reduced to shire ground and the Presidency Court made a reality by hanging the mountain thieves instead of allowing the Lord Marchers to traffic in pardons. Dublin county might be made as quiet as Monmouthshire if compositions for crimes were sternly abolished and if successive Lord

The Irish to be civilised or extirpated.

Deputies would ‘work hanging instead of agreeing to recompense felonious offences.’^[342]

White, the Master of the Rolls, who hated Sidney and did not like English officials generally, and who ostentatiously put his trust in Burghley rather than in Walsingham, reported that Munster was quiet, but that the Lord President gained little love by burdening the people with cess. Drury argued that this quiet was owing entirely to the just severity with which he ruled, having, as he oddly expresses it, executed ‘divers malefactors of good account.’ As for the cess, money must be had somehow, for he had been forced to spend largely on the repair of Limerick Castle. Cork was without stores, and a foreign invasion might be expected at any moment; for the intrigues of James Fitzmaurice were no secret. Lord Barry compounded for an annual payment of 150*l.*, and MacCarthy Reagh for 250*l.*, but in many cases no agreement could be come to, and the uncertainty of all titles made financial reform almost desperate. Rents were as uncertain as titles, and landlords and tenants distrusted each other profoundly. But firmness had its usual effect, and the stout old soldier saw signs of increasing conformity among his subjects of all ranks.^[343]

Drury’s opinions.

Desmond, the common oppressor of all, complained loudly that the soldiers ill-treated his tenants, and exacted cess, both in money and in kind; that he and his were much the poorer, and that the Queen was never a penny the richer. This complaint was made directly to Burghley without complaining to the Lord President, a breach of decorum for which the Earl received a rebuke. The English Council with becoming gravity told Drury to make strict inquiry, but they knew, and every officer in Ireland knew, that ill-paid soldiers could not be kept in proper order. A loan of 500*l.* for the Munster service was refused by the Queen, and the President warned her that she would be put to greater expense by her refusal. He begged for a galley to cruise on the coast, and like the stout-hearted man he was he went on doing his best with scanty means and not very much thanks. Sir John of Desmond, being suspected of complicity with the Connaught rebels, was arrested, whereupon the Earl retired into Kerry, refused to go to the Deputy or President, ordered his dependents to pay no taxes, and collected a force which soon swelled to 1,000 men; professing all the time to consider his

Desmond offers to submit, 1577.

own life in danger. Sir James, with 200 foot and some horse, levied contributions in Duhallow, while Drury, besides his own servants, had but 100 available troopers. The summer passed away thus, and the winter was half over before Desmond made up his mind that he was in no danger. He agreed to disperse all his forces except twenty horsemen, and to pay something towards the expenses of the province. Having several times refused to come to the President, he came to Kilkenny at Sidney's first summons, was reconciled to Drury, with whom he had not been on speaking terms, and promised to support him as the Queen's chief officer should be supported. Sidney knew his mistress, and he advised the acceptance of these terms. Drury was forced to submit, very much against his own judgment; for Desmond, in his view, was the one great obstacle to law and order. The habit, he said, of easily pardoning great offenders, 'which both now and heretofore being used hath been the common gall to the good government of the province, and the greatest encouragement that may be to such as transgress, ... which kind of *precarium imperium* is in my judgment the unfittest way to a perfect reformation.'

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That there had been intrigues between the Desmonds and the Connaught rebels was probably true enough. An alliance was even contemplated between Lady Mary Burke and Sir John of Desmond. Both were already married, but matrimonial ties were lightly regarded in the Clanricarde family, and Sir John was not the man to let principle stand in the way of interest. By keeping the Government constantly occupied the Western gentlemen hoped to prevent administrative reform, and there was always the off chance of a foreign invasion, which might restore their waning importance. Religion went for something, but probably not yet for much. In order to cut off communications between Connaught and Munster, Drury paid particular attention to Thomond, where the Earl, a vain and vacillating man, who could do little harm and might be of some use, made loyal professions, and received nearly all the privileges he asked for, though he afterwards complained that a new tax was nevertheless imposed on his country. His experience of foreign Courts had not been so pleasant as to tempt him to fresh adventures. Very different treatment was awarded to Murrough O'Brien, noted as the best horseman in Ireland, a great favourite with Desmond and other disorderly persons, and proportionately feared by

Drury's efforts to divide Munster from Connaught.

the lovers of peace. He had been engaged in Fitzmaurice's old rebellion, and was suspected of plotting a new one. His outrages were many, and a verdict was easily obtained at Limerick. '300*l.* was offered for his life, and more would have been given, but 3,000*l.* should not have saved him; ... his death was far better than his life, and he confessed he had deserved death.'

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While Drury was occupied, Maltby, much to Sidney's satisfaction, had taken up the military command of Connaught. Clanricarde was already a prisoner; O'Connor Roe yielded at the first summons; and there were only the Earl's two sons to deal with. They were given eight days to consider whether they would submit absolutely or no. When that time had elapsed they asked for further delay, which Maltby granted, partly because his own preparations were not made. The rebels made loyal professions, 'taking God to witness that they had no intent to do anything more that should purchase her Majesty's further indignation.' This was done only to put the Governor off his guard, and a treacherous attack was made on one of his detachments, in which a few men were killed and two officers captured. The rest escaped to the castles of some well-affected gentlemen, and Maltby lost no time in entering the mountains. John Burke's district was the first attacked. All houses and corn were burned, and every human being the soldiers met was killed. 'I spared,' says Maltby, 'neither old nor young.' Ulick's district was then visited, and a strong castle reduced after two days' sap. 'I put them to the misericordia of the soldiers, who had lost their lieutenant. They were all slain to the number of twenty-two, all tall men, who were at the murder of the horsemen.' Another fruitless attempt was then made at negotiation, but Maltby saw the object was to gain time, and Ulick's followers were treated like John's. Everything that would burn was burned, both in plain and mountain, and every person met with was killed. Protection for five weeks was afterwards granted that the crops might be sown; how seed was obtained it is not easy to understand. After this tremendous lesson Connaught was quiet, and Maltby was free for a time to practise the Roman theory of government as expounded by Virgil. By Sidney's order he had a conference with Drury, and they agreed that with a little trouble the two provinces, 'being ragged countries as we found them,' might be brought into order. The greatest

Maltby punishes the
Clanricarde rebels.
His opinion.

Great severities.

obstacle was the uncertainty prevailing as to Clanricarde's fate, and it was evident that John Burke would break out again whenever he had the power. In the meantime strict military discipline was maintained, and Maltby found that his soldiers, who were chiefly Irishmen and but lately open enemies, became nearly as good as a general could desire. 'Travail, industry, and plain-dealing,' he said, 'doth prevail over the people.... He that will not hazard some limbs in these services or that standeth doubtful of everything shall prevail little in this land.... To do good among this rude nation they must be applied well, and plausible dealing doth prevail much in some of them and in others rigour doth no hurt, so as every of them must be used in their conditions. They be a people that do now seek much unto the administration of justice, and do greatly seem to covet it, which God willing they shall not want with the best advice I can give them. They are grown into a great good liking of the Government, and do use more familiarity towards us than they were wont to do, for commonly I do never stay any of them that cometh unto me, be he good or bad, but such of them as are taken by the officers if they be found faulty to cast off the same; and few of them do escape my hands. The rest do very well allow of it.'^[346]

During his last term of office Sidney had much trouble with Rory Oge O'More, who still claimed the ancient chieftry of Leix. In 1571 and 1572 Rory had been at the head of a band which fluctuated between 80 and 240 swords, and had succeeded in defying all Fitzwilliam's efforts. Arrangements were made to surround him. Kildare and Ormonde were commissioned to hunt him with all their forces, and the latter delayed a journey to England rather than leave the task unfinished. O'More was brought to make a formal and somewhat humble submission and to give hostages, of which Feagh MacHugh O'Byrne was one; but Fitzwilliam, who knew Ireland too well to be sanguine, was of opinion that the hanging of a pledge or two would not prevent Irishmen from breaking out whenever it happened to suit them. Rory was spoiling the Pale again within four months, and in the spring of 1573 the Lord Deputy pronounced him worse than ever. He submitted again the same year, and a few days afterwards gave important help to Desmond in his escape from Dublin. When that turbulent personage found himself safe in Munster, Rory Oge was one of the outlaws whom he adjured to

Rory Oge O'More,
1571 to 1578.

stand firm. Kildare was also accused of plotting with him, and this charge was never fully cleared up. ^[347]

The arrival of Sidney in Ireland was always understood by the Irish as a sign of what modern politicians call vigour, and Rory Oge, among others, thought it wise to make his peace. ‘He came unto me,’ wrote Sidney, ‘on the Earl of Ormonde’s word, and in the cathedral of Kilkenny submitted himself, repenting (as he said) his former faults, and promising hereafter to live in better sort (for worse than he hath been he cannot be), for by him and his the greatest spoil and disorders have been committed upon the Queen’s County and the Pale. I accepted him upon treaty, and trial of amendment till my return.... I have given him warning, and will keep touch with him if I can.’ ^[348]

Rory Oge submits,

For a year or more Rory seems to have kept pretty quiet; but the rumour of a Spanish invasion and the exhortations of John Burke were too much for his prudence, and the dispute about the cess laid the Pale unusually open to attack. Allying himself as of old with Connor MacCormac, who stood in the same relation to the remnant of the O’Connors as he himself did to the O’Mores, he was soon at the head of 140 men and boys. On the night of March 3, 1577, Rory and his ally brought their band to Naas, and entered the town, which they found unprepared. Their men had no muskets, but were armed with torches stuck upon long poles, with which, ‘like hags and furies of hell,’ they rushed through the street, setting fire to the low thatched houses on either side; and they were gone again within half an hour. The night was windy, the March weather had dried the thatch, and the whole place was burned to the ground in a few minutes. ‘There were,’ says Sidney, ‘about 500 men’s bodies in the town, manlike enough in appearance, but neither manful nor wakeful, for they confess they were all asleep in their beds after they had filled themselves and surfeited upon Patron Day, which day is celebrated for the most part of the people of this country birth with gluttony and idolatry as far as they dare. They had neither watch nor gate shut; ... the town is open on all sides, and without soldiers, yet how unwilling to bear any charge for their own defence.’ Rory Oge, says Hooker, ‘tarried very little in the town

but soon breaks out again, and burns Naas, 1576.

saving that he sat a little while upon the cross in the market-place,' and feasted his eyes with the flames. None of the townsmen were killed.^[349]

After this exploit Rory's force increased rapidly, and he attacked Leighlin Bridge, of which Sir Peter Carew the younger was constable, but which was actually in charge of his famous brother George, who here performed his first noteworthy service. Half the town was already burned when Carew, at the head of only seven horsemen and five musketeers, boldly sallied out against the enemy, who were between 200 and 300. Surprised in the darkness, they fled, but soon recovered, and some of them actually entered the castle. Carew managed to shut the gates, and his assailants, having suffered considerably, departed without doing any further harm. The Devonshire captain lost only two soldiers and one horse, but not a single one of his men escaped unwounded. Soon after this Captain Harrington and Alexander Cosby, son of the Captain of Leix, were taken prisoners, treacherously enough, according to the English accounts, by Rory, and carried about by him in triumph. If Cosby was, as some accounts say, an actor in the Mullaghmast tragedy, he deserved nothing better, but in this kind of warfare it is to be feared that breaches of faith were common enough on both sides. All attempts to catch Rory had hitherto been vain, and Sidney was forced to temporise for the sake of the prisoners. Robert Hartpole, who was used to this kind of service, and who had probably many friends among the country people, brought fifty soldiers to a cabin at the side of a wood, where he heard that the outlaw and his prisoners were to sleep. Finding himself in a trap, Rory tried to kill Harrington by slashing at him with his sword. He fractured his skull, broke his arm, and cut off one of his fingers; but Harrington recovered from these and other injuries. Rory had his shirt cut off by a sword, but managed to creep away between the soldiers' legs, and reached the covert with a single companion. The cabin was on the very edge of the bush. The prisoners were rescued, and sixteen people, including all the men in the house, were killed. Rory's wife was also killed, but one woman at least, a sister of Feagh MacHugh, was spared. Connor MacCormac was perhaps not present, for he afterwards made his peace with the Government and received a pension. Letters implicating John Burke and others were found in the house.^[350]

Rory captures
English officers.
Escapes capture,
1577 and 1578.

Harrington's capture gave much encouragement to discontented persons, and the Lord Deputy determined, as he expressed it, to attempt Rory's suppression by plaguing his maintainers. He went to Kilkenny on Christmas Eve, accompanied only by Sir Lucas Dillon, and found, as he expected, that the rebel had plenty of friends high and low in the town. The time from Christmas to Twelfth Day was spent in investigating the matter, and so abundant was the evidence that it would have taken till Easter to hear it all. Tipperary enjoyed comparative immunity from the operations of Government, and Rory Oge's children were fostered among Ormonde's principal tenants and officers. Fulke Grace, the Earl's constable at Roscrea, had refused to let Drury enter the castle until he had promised him protection, and he now refused to come to Sidney himself when sent for. All this and a great deal more was sworn to, but 'such partiality and affectionate dealing were found in the juries, as were the matter never so plain, the evidence never so full, if it touched any of their friends, and namely, the tenants and servants of the Earl of Ormonde, no indictment would be found—no, though the party made submission and confessed the fault; if the matter touched any of Ossory, were the evidence never so weak, the jury would find it.' The jurors were bound to appear before the Star Chamber, and the Lord Deputy returned to Dublin without catching Rory Oge. [\[351\]](#)

Sidney in Kilkenny
and Tipperary.

After his narrow escape, Rory was soon at the head of a band, and burning villages as busily as ever. He entered Carlow through one of many breaches in the wall, and fired all the thatched houses, but in retiring he was attacked by Cosby or Hartpole at a ford, and suffered great loss. But here again he himself escaped, so that even Sidney thought he bore a charmed life and talked of 'sorcery or enchantment (if it be lawful so to deem).' In the end the fatal snare was of his own laying. In order to entrap the Baron of Upper Ossory he sent a spy to tell him, as if of his own accord, that Rory had gathered a great spoil of 'pots, pans, pewter, nappery, linen, and other household stuff and implements'—a strange bait for King Edward's old playfellow—and that it might all be easily seized. The emissary was instructed to insist on a small force only being sent: a larger one would attract attention and defeat the scheme. The Baron hardly knew what to believe, but decided not to lose the chance. He brought a strong force to the

Rory is killed by
the Fitzpatricks,
1578.

appointed place, but kept aloof himself with the main body, and sent about thirty men into the wood. Rory also kept back the bulk of his followers, but showed himself, under the impression that the Fitzpatricks would not face so renowned a champion; ‘wherein,’ says Sidney, ‘he found himself very much deceived.’ The Baron’s kerne set upon him stoutly, and he fell pierced by many mortal wounds. His brother-in-law, Feagh MacHugh, swore to avenge him, and kept his word. Maltby called Rory the Robin Hood of Ireland, and the Queen’s approbation was conveyed to Lord Upper Ossory. Rory’s followers carried off his body, but the head was afterwards sent to Sidney and duly set up on Dublin Castle—the Lord Deputy afterwards complaining bitterly that the Queen made light of the service, being persuaded that it was as easy to kill such a rogue as Rory Oge as to kill ‘mad George, the keeper of the Queen’s Court.’ The Connaught annalists more correctly record ‘that there was not in Erin a greater destroyer against foreigners than that man; and he was a very great loss.’^[352]

Drury, being relieved for a moment from danger on the side of Desmond, was able to turn his attention to the disturbers of Leinster. At Limerick he hanged Rory Oge’s Brehon, who was much esteemed among the people; for the President it was enough that he practised only such law as was repugnant to her Majesty. One of Rory’s sons, accompanied by his nurse, was taken in a wood near Roscrea. Drury also found time for a not inconsiderable number of hangings, and reported with complacency that 400 had been executed by justice and martial law since he took office. At Clonmel a man was pressed to death. A sharp eye was kept on all arrivals from abroad, and a friar, fresh from Portugal, was hanged in his cowl at Limerick. The President was able to say that he had been the first to appoint English sheriffs in Thomond and Desmond. Justice, in his opinion, was liked by the people, and her Majesty’s revenues were much increased thereby.^[353]

Government of
Drury.

The affairs of the Netherlands had now become pressingly important, and Queen Elizabeth was forced to provide material help for the patriotic party. Scarcely had she made up her mind to back their bills to the extent of 100,000*l.* and to send 6,000 men to the provinces, than the victory gained at Gemblours by Don John of Austria, or rather by Alexander Farnese, seemed for a moment to place William of Orange in a desperate

The Queen finds
Sidney too
expensive.

position. The Queen saw that her help would really be wanted, and war, even clandestine war, required a great deal of money. Sidney was not a cheap Lord Deputy, and there were plenty of people at Court to tell the Queen that he had exceeded the 20,000*l.* which had been mentioned as the annual expense of his government. Ormonde was at Elizabeth's side, and Ormonde's influence was always directed against Leicester and his brother-in-law. It was at first proposed to recall the Lord Deputy in a peremptory manner. But Walsingham and Wilson, and probably Burghley also, worked in Sidney's interest, and Elizabeth's better nature prevailed over her love of money and her ill-temper towards a faithful servant who treated her somewhat too like an equal. It was suggested that Sidney should be left alone until he himself asked to be relieved, and then for a time judgment was suspended until Lord Chancellor Gerard should be heard on the question of cess and on the state of Ireland generally.^[354]

At last the Queen made up her mind that, whatever might be done by another Deputy, the present one would never consent to govern as cheaply as she wished.

Sir Philip Sidney's
advice to his father.

Walsingham privately informed Sidney that he was to be recalled, but that to save his credit he would be summoned as if for a short visit to Court for the purpose of explaining accounts and other knotty matters. The wily secretary advised his friend to put his affairs in order as soon as possible, and to be ready for any emergency. At last the summons was sent. The Queen announced that proposals for a more economical establishment had been made to her, and that before giving her decision she wished to see the Deputy, who was to bring with him the auditor and his books. Five thousand pounds were sent to keep things going until Midsummer, and out of this Sidney was to pay the soldiers. This letter, which ordered the Lord Deputy to be at Court by May 10, was more than a month on the road, and did not reach Dublin till April 23. Literal compliance was therefore impossible, and the advice which Sidney received from his son was not to leave Ireland till Michaelmas, so that his enemies might not have to say that they had driven him away. 'Your lordship is to write back,' said the young diplomatist, 'not as though you desired to tarry, but only showing that unwillingly you must employ some days thereabouts; and if it please you to add that the Chancellor's presence shall be requisite.... and then the more time passes the better it will be blown over.'^[355]

Sidney took the advice of his famous son, delaying his return till September, but sending over Waterhouse at once with such instructions as were likely to smooth his path. The Queen was reminded that the cess question was not yet fully settled, that the auditor's books could not be posted in a minute, that a foreign invasion was at hand, that there were many unfinished causes scarcely fit to be entrusted to a new hand, and that her Majesty owed her Deputy 3,000*l.*, for which he held the Treasurer's warrant. If anything could make Elizabeth acquiesce in the neglect of her orders it was an allusion to the 3,000*l.*, and she allowed Sidney to stay where he was until he had an opportunity of conferring with Gerard. Sir William Drury was nominated Lord Justice to take up the government as soon as it should be vacant. Rory Oge was disposed of soon after this, and a branch of the Scottish MacDonnells, long settled at Tinnakill, in the Queen's County, received a pension of 300*l.* a year in consideration of giving the Queen constant service as gallowglass. In the meantime the MacMahons had broken out, and driven off cattle from the Northern frontier of the Pale. Lord Louth followed with a few horsemen, and falling into an ambuscade was himself slain, as well as the eldest son of the loyal Sir Hugh Magennis. The loss of an active and thoroughly well-affected young lord of twenty-three could not be passed over, and Sidney invaded Monaghan, destroying everything that he could lay hands on. MacMahon came to Newry with a withe about his neck and sued for pardon; but Sidney had by that time left Ireland.^[356]

Sidney's last days
in Ireland.

Gerard was detained in Wales by illness, and Sidney sent first Attorney-General Snagg, and afterwards Ludovic Briskett, Clerk of the Council, to keep his cause alive at Court. Men, money, victuals, and munition were required, for there was talk of a descent by Stukeley, and the Lord Deputy wished to hold a Parliament to renew the subsidy of 13*s.* 4*d.* on each ploughland which had expired, and to renew the Act imposing a duty on wines, which was about to expire. But all eyes and ears were now turned to the Netherlands, and Waterhouse wrote to warn Sidney that he would get nothing except perhaps ammunition, and that the money last sent was regretted. 'Irish alarms,' he said, 'are so far from waking courtiers out of their sleep that, as I am sure, till they hear that the enemy is landed, they will never think of aid that may carry with it extraordinary charge. There is now no speech of the return of the Earls of

He leaves Ireland
finally.

Ormonde and Kildare.... The States have made John Norris general, &c.’ Thus matters stood when the Irish Chancellor arrived in Dublin; and no time was then lost in completing the arrangements about cess. An assembly of notables was convened from Dublin, Meath, Louth, Kildare, King’s and Queen’s Counties, Carlow, Wexford, Kilkenny, and Tipperary, and the agreement already referred to was thus made. Sidney at this time took a strong dislike to Gerard, whom he accused of ambitious dealing and of plotting against him at Court. ‘He did not let to say that he had brought over such warrants for himself and restraint for me as I could do nothing without him,’ and he was accused of boasting that Ireland should be governed with a white rod when Drury ruled by his direction. [\[357\]](#)

At eight o’clock on the evening of September 12, exactly three years after his arrival, Sidney embarked at Wood Quay, and when on board his vessel surrendered the sword to Gerard, and finally severed his connection with Ireland. If we except Strafford and Cromwell, he was perhaps the ablest man who ever reigned in Dublin Castle, and there is a charm about him which belongs to scarcely any one else even in the Elizabethan age. Who shall say how much his famous son, and scarcely less famous daughter, owed to a father whose letters of advice remain as almost unapproachable models, and whose life showed such a noble example? The official correspondence of the time is full of allusions to his powers of work, to the hours which he sat patiently through, and to the confidence which his decisions commanded. Though suffering from a painful disease, he shrank from no journey, and the rapidity of his movements was extraordinary. Fortune, ease, and health were given up to the public service, and though he complained he never hesitated. ‘I had no time,’ he said, ‘to apply my mind to take physic in Ireland.’ He well knew the value of exercise and reasonable leisure, but he denied himself both. As Elizabeth’s representative he was accustomed to take a high line, and he sometimes dared to maintain the dignity of the Crown even against the great Queen who wore it. Her cousin Ormonde should not be favoured in his causes except according to law. Mr. Christopher Hatton should not have a license to export yarn in defiance of an Irish Act of Parliament. If the Queen let fall hasty words detrimental to the Irish service, her Viceroy would rebuke her for being ‘so great an enemy to her own profit.’ [\[358\]](#)

His character.

And thus it came to pass that while Elizabeth honoured, and perhaps loved, the man in whose arms her brother breathed his last, and whose wife had lost her looks and almost her life in nursing her through the small-pox, she was not sorry when an opportunity offered of wounding his masterful spirit. When he seemed to bargain with her for the retention of the Welsh Presidency as a condition of entering on the hated Irish service, she rebuked him for daring to limit her prerogative, and when he made a gay figure at Court she said it was no wonder, for that he held two of her best offices. But she took care to leave him both places, and sometimes called him Harry. She grumbled at the expense of his government, but in the end seldom refused to give him nearly as much money as he asked for. He tells us that he lost 9,000*l.* by his Irish service, which was an enormous sum in those days, but Elizabeth, though she might never replace money so spent, at least did not neglect his children.

His relations with the Queen.

Sidney was a ready speaker and a vigorous writer. Campion professes to give one of his speeches, but about such reports there must always be some doubts. The letters, however, are there, and if Sidney spoke nearly as well as he wrote, we can well believe that a great effect was sometimes produced. His written style is full and vigorous, and gives a much better idea of Elizabethan English than that of many professed authors whose affectation of elegance only tended to obscurity. Sidney was very fond of heraldry, and not a little proud of his right to display the bear and ragged staff. Indeed, he particularly impressed upon his sons the necessity of living up to the standard of their mother's family—a family, as modern students cannot help observing, which produced Edmund Dudley, Northumberland, and Leicester. This was an amiable weakness; a certain irascibility was a worse defect in a statesman, but his anger was soon appeased, and there can be no doubt that he was personally very popular. Among many virtues this defect was noted, that he was too fond of the pleasures of the table, and among Irish-speaking people the nickname of 'big Henry of the beer' was sometimes given to him. He was once accused of flirting with a married woman, but this may have been only gossip, and affection for her husband breathes in every line of Lady Mary Sidney's letters. [\[359\]](#)

His personal qualities.

On his arrival at Court the late Lord Deputy was received coolly, chiefly perhaps because foreign affairs engrossed all attention. The lodgings assigned to him at Hampton Court were insufficient. He was ill, and his wife was ill, and yet no separate sitting-room could be found for the man who had spent his health and fortune in the thankless Irish service. Lord Chamberlain Sussex knew but too well what that service was, but he was not likely to exert himself much for Leicester's brother-in-law. The latter, indeed, was particularly weak at this time, for Simier had spitefully told the Queen of his marriage with Lady Essex. With a not uncommon inconsistency Elizabeth, though she had decided not to marry her favourite, could not bear to resign him to another, and talked about the Tower; but Sussex dissuaded her, saying that no man was to be troubled for a lawful marriage. In this the Lord Chamberlain showed singular generosity, but Sidney could not expect much favour from him. 'When the worst is known,' said Lady Mary, 'old Lord Harry and his old Moll will do as well as they can in parting like good friends the small portion allotted our long service in Court, which as little as it is seems something too much; ... in this case I am in it is not possible to be in my chamber till after sunset, when the dear good lord shall be, as best becomes him, lord of his own.'

His reception at Court.

FOOTNOTES:

[342] Gerard to Walsingham, Oct. 19, 1576; to Burghley, Nov. 15; to the Privy Council, Feb. 8, 1577; to Walsingham, same date; see in *Carew*, ad ann. 1576, p. 476; Gerard to the Queen, Note of Observations, March 29, 1578.

[343] White to Burghley, Feb. 10, 1577; Drury to Walsingham, Feb. 24; to the Queen, March 20; to Walsingham, April 14.

[344] Desmond to Burghley, March 20; Privy Council to Desmond, May 13; Drury to Walsingham, Jan. 27, 1578; to the Privy Council, Jan. 15 and April 24; Sidney to the Privy Council, Feb. 20.

[345] Council of Ireland to the Queen, Sept. 12, 1577; Petition of the Earl of Thomond, July 6, and the answer in October; Drury to Leicester, July 8, 1577, in *Carew*. The *Four Masters* call Murrough O'Brien 'the most renowned of the heirs of Carrigogunnel and Aherlow.'

[346] Sidney to the Privy Council, Jan. 27, 1577; Maltby to Walsingham, March 17, Aug. 30, Sept. 18, and Nov. 10; to Burghley, Nov. 12; Snagg to Walsingham, Nov. 5.

[347] Fitzwilliam to the Privy Council, April 12, 1571, May 6, 1572, and Nov. 5, 1573; to the Queen, Jan. 4, June 27, and Dec. 7, 1572; to Burghley, July 20, August 5 and 26, 1572, and May 20, 1573; Justice Nicholas Walshe to Fitzwilliam, Nov. 24, 1573; to Burghley, Nov. 30; Sir P. Carew to Tremayne, Feb. 6, 1574; Declaration by John Alen, Feb. 1575, and by Richard Garret, March 12, 1575.

[348] Sidney to the Privy Council, Dec. 15, 1575, in the *Sidney Papers*.

[349] Sidney to the Privy Council, March 17, 1576, and Hooker in *Holinshed*. The two accounts seem drawn from a common source.

[350] Sidney's Relation, 1583, in *Carew*. Sidney to the Privy Council, Nov. 26, 1577; Hooker's *Annals of Lough Cé*, 1577.

[351] Sidney to the Privy Council, Feb. 20. 1578, in the *Sidney Papers*.

[352] Sidney to the Privy Council, July 1, 1578, with whom Hooker closely agrees; Fitton to Burghley, July 1; Maltby to same, July 26; Lord Upper Ossory to same, Feb. 24, 1579; Council in Ireland to the Queen, Sept. 12, 1578; *Annals of Lough Cé*, 1578. The *Four Masters*, writing in the next reign, are much more guarded. In the curious poem by John Derrick, called the 'Image of Ireland,' which is in the *Somers Tracts*, and has been lately reprinted, there is a good deal about Rory Oge. The work is strictly contemporary; but it does not add much to our knowledge. The following stanzas are about the most interesting. Rory Oge loquitur:—

Much like a champion addicted to war,
Time serving fitly to anger my foes,
I summoned a number of neighbours from far,
Twice eighty persons, the best I could choose
For manhood and sleights, in whom to repose
I might in safety my life and my land:
No dastards nor shrinkings, but those that would stand.

With these I marched from place unto place,
With these I troubled both village and town,
With these in one night I fired the Naas,
With these my resisters I spoiled of renown,
With these I made many a castle come down,
With these I yielded, augmenting my fame,
The people to sword and houses to flame.

[353] Drury to the Privy Council, March 24, 1578.

[354] Waterhouse to Sidney, Aug. 21, Sept. 5, 15, 16 and 30, 1577; Walsingham to Sidney, Sept. 15, 1577, Jan. 20, 1578, all in the *Sidney Papers*.

[355] Walsingham to Sidney, Jan. 20, in the *Sidney Papers*. Queen to Sidney, March 22; Sir Philip Sidney to his father, April 25, in the *Sidney Papers*.

[356] Sidney to the Queen, April 30, 1578. Instructions for Waterhouse in the *Sidney Papers*. The Queen to Sidney, May 29, in *Carew*. Maltby to Walsingham, May 3; Sidney's Summary Relation, 1583, in *Carew*; *Four Masters*; Lodge's *Peerage*. Instructions for Snagg, A. G., June 11.

[357] Lord Deputy and Council to the Privy Council, Aug. 1; Waterhouse to Sidney, July 4, in the *Sidney Papers*, where also are the Instructions for Snagg and Briskett; Sidney's Summary Relation, 1583.

[358] Letter of advice to Lord Grey, Sept. 17, 1580, in the *Sidney Papers*. Sidney to the Queen, Sept. 15, 1577, in same; to the Queen (after reaching England), Sept. 18, 1578.

[359] Lady Mary Sidney to Edward Molineux, Oct. 11, 1578, and a second letter (undated) soon after, in the *Sidney Papers*. It is the *Book of Howth* which accuses Sidney of being a 'lusty feeder and surfeiter.' The Irish nickname might very well come from some dispute with a contractor, and not from Sidney's fondness for malt liquor. Sidney died in 1586, prematurely old, at fifty-seven years of age. In the British Museum a black letter pamphlet contains a funeral sermon by Thomas White, D.D., the founder of Sion College. The whole is interesting, more especially the following passage: 'He consumed himself in yielding light to other men; besides his special gift of affability to poor and simple men, the very grace of all his greatness. It is no hard matter for a man to be humble in low estate, but to be lowly in greatness is not a common gift; and if pride herself be often forced to dissemble humility, because lowliness maketh a simple man to be highly commended, how much more doth it excel, when it shall indeed appear in persons of value and renown! Wherefore if any man will build his house high, let him lay his foundations very low, for envy shoots at high marks, and pride goes before a fall.' Herein lay the secret of Sidney's immense popularity. His haughtiness was reserved for the great and powerful.

CHAPTER XXXV.

THE IRISH CHURCH DURING THE FIRST TWENTY YEARS OF ELIZABETH'S REIGN.

Outward uniformity was what Elizabeth chiefly aimed at in the first years of her reign, and before a Papal excommunication forced her to be the enemy of all who adhered to Rome. The Acts of Supremacy and Uniformity were passed as a matter of course, but a clause in the latter statute shows that there was every disposition to treat the Irish tenderly. Most parts of Ireland, the Act declares, were devoid of English ministers to read the Common Prayer and administer the sacraments; 'and for that also, that the same may not be in their native language, as well for difficulty to get it printed, as that few in the whole realm can read Irish letters,' it was ordained that ministers and priests who knew no English might do their office in Latin. It was a singularly ill-advised plan, for the Jesuits and friars all knew Latin, and the Irish people knew it even less than English.

The Queen aims at outward uniformity.

In Dublin, however, everyone spoke English, and the Common Prayer Book of Edward VI. was used at the installation of Sussex. Open opposition was impossible, but on the following Sunday an attempt was made to discredit the new ritual by a trick. Christ Church contained a marble Christ with a crown of thorns on His head. This statue, which had been removed by Browne and replaced by Curwen, was observed to bleed during the service, and many were ready to believe in a miracle. Sedgrave, the mayor, who had sat quiet during the former service, produced a rosary and prayed openly before the bloody effigy. A former monk of the cathedral, named Leigh, cried out that Christ could not but sweat blood since heresy had come into the Church. A tumult seemed imminent, and Sussex and his suite

The English Bible and Prayer-book. Images.

hurried out of the choir. But Curwen stood upon a bench and showed the congregation that Leigh had placed a sponge filled with blood within the crown of thorns. The Protestants were triumphant, the Roman party confounded, and Curwen's orders to have the statue broken up were obeyed without demur. Parker made good use of this occurrence to persuade the Queen to have images removed from all the churches. The exposure of so gross a fraud may have contributed to secure outward conformity in Dublin; but among the Irish-speaking people in the country it was perhaps scarcely heard of. The counter-reformation was everywhere in progress under teachers trained at Louvain. The actual state of the question as between Crown and Pope may best be arrived at by considering each diocese separately. A large Bible presented by Archbishop Heath to one or both of the Dublin cathedrals was eagerly read, and more than 7,000 copies are said to have been bought for the Irish market in two years; but they can have been of little use to those who did not know a word of English. [\[360\]](#)

The primatial see of Armagh was vacant at the accession of Elizabeth, and remained so until 1563. Sussex recommended Adam Loftus, a Yorkshireman, who was already in Ireland and distinguished as a preacher. Loftus, who was educated at Cambridge, was the friend of Cartwright, and this may have retarded his promotion for a time. In November, 1561, his preferment was announced, and almost immediately afterwards the news was contradicted on authority. 'I know not,' said Sussex, 'who hath informed that he is not worthy of that place, but if a vehement zeal in religion, good understanding in the Scriptures, doctrines, and other kinds of learning, continual study, good conversation of life, and a bountiful gift of God in utterance, be sufficient to enable him, I undertake I have better ground to enable him than any man of that land or this, of what vocation soever he be, hath to disable him.' Loftus made the usual professions of unwillingness, and Sussex remarked that the primacy was great in name, but the living very small. He had searched for three years without finding a fit man. The Lord Deputy's entreaties prevailed, and in October 1561 a *congé d'élire* was addressed to the Dean and Chapter of Armagh. This is remarkable, because the necessity for such instruments in Ireland had been already abolished by Act of Parliament. The letter was sent down to Armagh, and the Dean replied that no election was possible. The greater part of the Chapter were 'temporal

See of Armagh.
Adam Loftus.

men and Shane O'Neill's horsemen.' The appointment was accordingly made by patent. Perhaps it had been the Queen's intention to obtain only a permissive dispensation. At all events, the failure of the first attempt at capitular election was enough for her, and she did not repeat the experiment. Loftus was consecrated by Archbishop Curwen in March 1563, and the succession was thus preserved, for Curwen's authenticity has never been questioned at Rome. At the beginning of 1565 Loftus was elected Dean of St. Patrick's, and was empowered to hold the deanery along with his archbishopric, from which it must be allowed that he derived little or no profit. It does not appear that he ever saw his cathedral, which was burned by Shane O'Neill in 1566 lest it should shelter the English; and he was ready to resign a dignity which brought him not more than 20*l.* a year. 'Of the whole revenues,' he said, 'there remaineth nothing but the bare house and fourscore acres of ground at Termonfeckin. Though peace ensue the repressing of this rebel, yet these wastes will not be inhabited, nor the spoils recovered many years hereafter.' In the following year Loftus was translated to Dublin and forced to resign his deanery, which he did very unwillingly. Curwen, he said, had so impoverished his see that it was worth only 400*l.* Irish with 1,200 acres of land, and he was 'minded rather to continue in the poor state' of nominal primate with St. Patrick's thrown in. He had, however, admitted that he could do no good in the Northern see, 'for that altogether it lieth among the Irish.' Love of money was throughout the bane of Loftus, and went far to neutralise the good effects of his learning and eloquence. [\[361\]](#)

Having determined to remove Loftus to Dublin, the Queen seriously thought of making the Dean, Terence Daniel, Primate of All Ireland. He had been thought of in 1564, but was very unfit for the office, and the appointment, which would have been avowedly political, was perhaps prevented by Sidney or Parker. Loftus recommended his friend Cartwright; but Thomas Lancaster, an Englishman who had formerly been Bishop of Kildare, was preferred, and in consideration of the state of his see was allowed to hold other preferment both in England and Ireland. [\[362\]](#)

Loftus is removed to Dublin.

But neither Loftus nor Lancaster was acknowledged at Rome, and a Primate not acknowledged at Rome had small chance of reverence from the Irish masses. Donat

Papal primates.

O'Teige was provided by the Pope, and was at Armagh in the summer of 1561, when Shane O'Neill made his first attempt to burn the cathedral and its garrison of English soldiers. The pretended 'Papist Primate,' said Sussex, 'sung mass with all the friars. After mass the Primate and the friars went thrice about Shane's men, saying certain prayers, and willed them to go forward, for God was on their side. Whereupon he and all his men made a solemn vow and took their oaths never to turn their faces from the church till they had burned it and all the English churches, and so with a great shout set forward and assaulted the churchyard, where divers of them quickly left their bodies, and the rest, setting on fire the friars' house and other old houses in another part of the town, ran away.' We cannot wonder at the difficulty of obtaining canonical election for Loftus. O'Teige died in the following year, and in 1564 Richard Creagh was provided in his room.

[363]

If martyrdom consists in suffering for one's opinions, few men have earned the crown better than Archbishop Creagh. He was a Limerick man, the son of a merchant, and himself engaged in trade. A ship in which he was about to sail put to sea while he was engaged in prayer. She foundered with all hands, and this escape made Creagh more serious than ever. He went to Louvain, and afterwards intended to enter the severe Theatine order, which had been founded about the time of his birth; but Pius IV., under pain 'of cursing,' obliged him to accept the Irish Primacy. During Queen Mary's life he had already refused the Archbishopric of Cashel. From Rome he went by way of Augsburg to Antwerp, and thence to Louvain, where, dressed in his archiepiscopal robes, he gave a dinner to the doctors. He then sailed in a ship bound for Ireland, was driven to Dover by a contrary wind, and made his way to Rochester. 'There,' says his evidence before the Recorder of London, 'he found an Irish boy begging, whom he took with him to London, and there lodged at the Three Cups in Broad Street, where he tarried not past three days, and went to Paul's Church, and there walked but had no talk with any man, and so to Westminster Church to see the monuments there, and from thence came to Westminster Hall the same time that he heard say Bonner was arraigned.' He made his way to Ireland, landed in his own province, and went to a monastery to hear mass. Immediately afterwards, and within an hour of setting foot on dry land, he

Archbishop Creagh.
His sufferings.

was arrested by soldiers and sent to England. He was imprisoned and examined in the Tower, whence he escaped after a few weeks. By some extraordinary negligence, or possibly on purpose, all the doors were left open one morning. Creagh passed out at the main gate and was stopped by the Beefeaters, to whom he represented himself as the servant of Bilson, a Roman Catholic priest who was undergoing an easy imprisonment. He was allowed to go free, and it is not surprising that he should have thought his escape miraculous. [\[364\]](#)

Creagh made his way back to Ulster. According to his own account he was at all times friendly to Englishmen, anxious to serve the Queen as far as conscience would allow, and careful to prevent Shane O'Neill from plundering the Pale 'according to his cursed custom.' No sincere priest—and Creagh was undoubtedly a virtuous man—could have approved Shane's doings, and no Archbishop could be well pleased to see his cathedral a blackened ruin. But his language in the Tower differed greatly in tone from that which he held in Ulster. On Christmas Day 1566 he was with Shane, and wrote to Sidney suggesting that 'if peace should be or not, whether it should please your lordship, that we should have our old service in our churches, and suffer the said churches to be up for that use, so that the said Lord O'Neill should the less destroy no more churches, and perhaps should help to restore such as by his procurement were destroyed.' In the same letter he admits that he had close relations with Spain, and throughout uses the first person plural. Sidney's winter campaign, which broke Shane's power, perhaps made Ulster untenable, or that chief may not have been unwilling to surrender him in order to make room for Terence Daniel. However that may be, Creagh seems to have wandered into Connaught, for it was by O'Shaughnessy that he was arrested, just four months after his letter to Sidney. He was indicted in Dublin for conspiring with Shane, but the intention to try him there was abandoned. There may have been considerable doubt of the fact, and much more of Irish judges and juries; or perhaps Sidney disliked the odious task. Once more Creagh escaped, but was again arrested by some of Kildare's people and sent to London. He was never put on his trial, and remained eighteen years in the Tower. In 1579, after he had been more than eleven years in prison, one Hupton, his keeper for the last five, who thought himself, says Creagh, 'ordained to take harm

Fate of Creagh.

by Papists,' was in custody 'only for papistry.' Colwick, another keeper, was accused of carrying letters to the poor Archbishop, but he said he had never given him anything but certain sums of 20s., 10s., or 5s. at a time, 'sent him by his countrymen.' In 1574 Creagh wrote a long letter to the Council, in which he defended himself from all charges of treason or rebellion, while acknowledging that he owed obedience to the Pope. One of his legs, he said, was rendered useless by the pressure of irons for eight years. He had lost most of his teeth, and suffered from rupture, stone, 'and many other like miseries.' Yet he lived on till 1585. A memorandum made in the spring of that year notes him as 'a dangerous man to be among the Irish, for the reverence that is by that nation borne unto him, and therefore fit to be continued in prison.' A few months afterwards he died. It has been said that he was poisoned; but his manifold diseases would account for his death, and Holing the Jesuit, a contemporary writer, says simply that he was worn out by years and by the filth of his prison. The story is bad enough as it stands. [\[365\]](#)

Edward Staples, who was appointed both by King and Pope in 1529, was deprived in 1554, but remained in Ireland. 'I was,' he says, 'driven almost to begging, thrust out of my house, cast from estimation, and made a jesting among monks and friars, nor any cause why was laid against me; but for that I did marry a wife they did put an Irish monk in my place, whose chief matter in preaching hath been in railing against my old master.' Pole, he adds, chiefly objected to his praying for Henry VIII.'s soul, but promised that he should have some means of support. He was, however, left to beg, and could not even afford the journey to London. He probably died soon after Elizabeth's accession, for the Cistercian William Walsh was left in possession of his see until 1560, when he was deprived for preaching against the royal supremacy and the Book of Common Prayer. Though appointed by Pole, Walsh received no regular Papal provision till 1564. He was soon afterwards imprisoned, but escaped to France in 1572. In 1575 he had a Brief to act both for Armagh and Dublin, Creagh being in the Tower and the other primacy vacant; but it is not clear that he returned to Ireland. 'He is,' said Loftus, who had vain hopes of converting him, 'of great credit among his countrymen, and upon whom, as touching causes of religion, they wholly depend.' But Walsh could hardly live safely in Ireland, and he died

See of Meath.
Bishop Staples.

in Spain in 1578, having for some time acted as suffragan to the Archbishop of Toledo. Hugh Brady, appointed by patent in 1563, was a purely Protestant bishop. ^[366]

At the accession of Elizabeth, Raymond MacMahon was Bishop of Clogher. He died in 1560 probably, and it is not pretended that he conformed. There is a regular Papal succession from his death, but the Queen made no appointment till 1570, when she preferred the notorious Meiler Magrath. Eugene Magennis was Bishop of Down and Connor, and perhaps made some show of conformity, for he was present in the Parliament of 1560. He died in 1563, and Shane O'Neill tried to get the see for his brother, who was only twenty-three years old. The Pope refused, and in 1565 Meiler Magrath was appointed at Rome. Magrath, who was utterly unscrupulous, made all the official submissions required of him, and in 1580 was deprived by the Pope 'for the crime of heresy and many other enormities.' From that date there is a regular Papal succession. Magrath, who had been originally a Franciscan friar, became the Queen's Archbishop of Cashel in 1570; her Majesty having previously appointed John Merriman to Down and Connor. Magrath therefore enjoys the unique distinction of having been Protestant Archbishop of Cashel and Papal Bishop of Down and Connor at one and the same time. He was no ornament to either Church. ^[367]

See of Clogher.
Meiler Magrath.

Eugene O'Dogherty was Bishop of Derry at Elizabeth's accession. He was appointed by provision, and there is a regular Papal succession from him, but it does not appear that the Queen ever interfered. The same may be said of Raphoe and Dromore. Peter Wall, a Dominican, became Bishop of Clonmacnoise in 1556. On his death, in 1568, the see was united to Meath by Act of Parliament, and the Popes made no appointment until 1647. Patrick MacMahon was Bishop of Armagh from 1541 to 1568 at least, in which latter year he appears to have been deprived by bull. He died before November 1572, and in 1576 the Pope provided a successor as from his death and not from his deprivation, which may cast some doubt on the above-mentioned document. The Queen made no appointment till 1583. Kilmore was vacant at her accession, and she made no appointment till 1585. There is, however, a regular Papal succession. As a plain matter of fact the Government had no ecclesiastical jurisdiction in Ulster during the

Derry. Raphoe.
Dromore.
Clonmacnoise.

early part of Elizabeth's reign. It was different with Meath, and Bishop Brady has the credit of restoring the ruined church of Kells in 1578. That it should have been then in ruins says little for the position of religion where the State had power.^[368]

A sentiment attaches to Armagh, but Dublin was much more really important. It was beyond Shane O'Neill's power to burn either St. Patrick's or Christ Church, and a Papal nominee could hardly venture into the city or even into the diocese. Hugh Curwen, who was Archbishop from 1555 to 1568, when he was translated to Oxford, undoubtedly conformed, and it is through him that Irish Protestant bishops derive what is called apostolical succession. The Pope did not make even a titular appointment until 1600. Thomas Leverous, Kildare's old tutor, and a most excellent man, was Bishop of Kildare at Mary's death, was deprived in 1559, so far as the Government could deprive him, for refusing to take the oath of supremacy, and supported himself as a schoolmaster till his death in 1577. He was buried at Naas, within his own diocese, and his body was said to have performed many miracles. The Popes made no appointment until 1629, and the history of the Protestant see is very curious.^[369]

Alexander Craik, a Scot, was appointed by patent in 1560, and was allowed to hold the Deanery of St. Patrick's also. He is accused of impairing his bishopric by alienating the lands, but he was in the direst poverty, and he evidently had a conscience, so perhaps this may be calumny. 'Neither,' he wrote to Leicester, 'I can preach to the people nor the people understand me.' Loftus was his chaplain and only ally, and he begged to be released. His deanery of St. Patrick's was valueless to him, for William Basnet claimed to hold it by a lease of Henry VIII. Nevertheless the Crown pressed him for first-fruits, and he had not wherewithal to pay the bare expenses of his removal to Ireland. As a preacher he was overworked, and when he imported an assistant from Hampshire, the Bishop of Winchester cited the latter for non-residence. Both for the sake of his health and his pocket he begged leave to visit England, but apparently the request was refused, and in 1563 he was actually in prison for 632*l.* due on account of first-fruits which he had not the means to pay. He died in the following

Dublin.

Kildare.

Robert Daly.

Irish Protestantism
naturally
Puritanical.

year, and the see was given, unsolicited, to Robert Daly, a Prebendary of St. Patrick's, whose power of preaching in the Irish language recommended him to the Queen. The net value of his bishopric not being more than 50*l.* a year, Daly was allowed to retain his prebend as well as the vicarage of Swords. He was a sincere and energetic Calvinist, and in 1565 he wrote to Cecil lamenting the measures taken against the Puritans. 'The poor Protestants,' he said, 'being amazed at the talk doth oft resort towards me to learn what the matter means: whom I do comfort with the most fruitful texts of Scripture that I can find, willing them to put their trust in God, who promised that the faith should not decay in His elect, and never to leave His flock comfortless.' We have here the germ of many future troubles. Irish Protestantism, being the religion of a minority in a Roman Catholic country, naturally took a Calvinistic hue, and the attempt to make it conform to the views of Parker, Whitgift, Laud, and others destroyed any chance which the State Church might have had. Daly begged for such encouragement as would enable him not only to comfort his friends, but to 'suppress the stout brags of the sturdy and proud Papists.' He remained Bishop of Kildare for eighteen years, during which he was turned out of house and home three times by the rebels. The last outrage was in 1582, and is supposed to have caused his death.^[370]

The see of Ossory, which it was in Ormonde's power to protect, would naturally have been one in which the State religion might have had a fair chance. John Thonery was in possession at Mary's death, and Bale was also alive. The Kilkenny historian says the Protestant Bishops derive their succession through Thonery, but there is a difficulty about this, for an official document written in 1565 declares the see to have been long vacant, and another paper written while Bale was still alive also treats it as vacant. Now Bale died in 1563, and Thonery certainly not before 1565. Thonery was employed by the Government in 1559, and there is some evidence that he was considered still Bishop in 1567. But the Queen appointed Christopher Gafney towards the end of 1565. From these rather contradictory data it may perhaps be inferred that Thonery never conformed, but that he was not formally deprived. Probably he left the country, for he was certainly considered the true Bishop at Rome. The consistorial act nominating Thomas Strong in 1582 declares the see to have been many years vacant,

Ossory.

since the death of Thonery, the last Bishop. Strong made his way to Ireland in 1584, but found his position untenable, and died in Spain in 1602, having long acted as suffragan to the Bishop of Compostella.^[371]

Thomas O’Fihily, or Field, was Bishop of Leighlin at Elizabeth’s accession, and undoubtedly conformed, fully abjuring the Pope’s authority. He died in 1566, and was buried in his own cathedral. Here, therefore, is an undoubted link between the Marian and Elizabethan Churches. Alexander Devereux, who was made Bishop of Ferns in 1539, and consecrated by Browne, managed to hold his see through the remainder of Henry’s reign, and through the reigns of Edward, Mary, and Elizabeth, till his death in 1566. He is acknowledged both in the Papal and Protestant successions, but was a man of indifferent character and no credit to either Church.^[372]

Leighlin.

Roland Baron was made Archbishop of Cashel by Mary, and held the see till his death in 1561. But this case does not affect the succession, for Baron, on account of some informality perhaps, was never acknowledged at Rome. In 1567 rival archbishops were appointed. The Queen’s nominee was James MacCaghwell, an Irishman, whose learning and virtue had recommended him to Jewel. Jewel handed him on to Loftus, who advised that he should have Cashel, ‘the living being very small and not meet for any but of that country birth.’ The Primate evidently thought all fat things should be reserved for Englishmen like himself. The still poorer diocese of Emly was added during MacCaghwell’s episcopate; but he had little enjoyment of either see. Maurice Reagh FitzGibbon was appointed by the Pope, and in some way violently dispossessed the Queen’s man. Hooker says he wounded him with a knife, but if that happened it was more probably the act of some kerne. MacCaghwell seems, however, to have been closely imprisoned, so that his whereabouts became doubtful. Primate Lancaster said that FitzGibbon had carried his rival into Spain. For a time at least FitzGibbon got possession of the cathedral, and is said to have forced his rival to remain in the choir while he celebrated mass. The rough treatment to which MacCaghwell was subjected may have shortened his life. At all events he died in 1570, and Meiler Magrath was appointed in his place. FitzGibbon’s triumph was shortlived, for he did not venture to visit his diocese. From 1569 to 1578, he seems to have remained on the

Cashel.

Rival Archbishops.

Continent defying Walsingham's schemes to entrap him, and it is doubtful if he ever returned to Ireland.^[373]

The sees of Waterford and Lismore were united in the fourteenth century. Patrick Walsh, an Oxford graduate, who had been Dean of Waterford since 1547, was appointed in 1551 by *congé d'élire*, followed by capitular election, and remained in possession during the reign of Mary. The probability is that he was at first a waverer whose English education induced him to conform to Henry VIII.'s arrangements, and that he gradually reverted to Rome. When Sussex entered Waterford in 1558 the Bishop received him in his robes, but the Protestant ritual had not yet been re-established. Walsh resigned his deanery in 1566 in favour of Peter White, who was a very good man but certainly no Protestant. The Bishop retained his place in both successions, but when he died in 1578, Waterford, in the opinion of English Protestants, was thoroughly given up to 'superstition and idolatry,' to 'Rome runners and friars;' and so it remained during the whole of Elizabeth's reign. Walsh's Protestant successor, Marmaduke Middleton, only sat some three years, and was practically expelled by the hostility of his flock. He was translated to St. David's, and the diocese then fell for several years into the all-devouring maw of Meiler Magrath. The Popes made no appointment till 1629.^[374]

Waterford and
Lismore.

Cork and Cloyne were united in the fifteenth century, and Dominic Tirrey was appointed in 1536. He held possession of the see for twenty years, but was never acknowledged at Rome, and there is a double succession from the year 1540. The remote see of Ross does not appear to have been filled either by Henry VIII., Edward VI., or Mary. Papal appointments were made in 1519, 1526, 1554, 1559, and 1561. In 1582 William Lyon was appointed by patent, and soon afterwards received Cork and Cloyne also. The three sees have since been united in the Protestant succession, but the Papal see of Ross has continued separate, though no appointment appears to have been made between 1582 and 1647.^[375]

Cork and Cloyne.
Ross.

William Casey, who was undoubtedly a Protestant, was appointed Bishop of Limerick in 1551. He was deprived by Mary, but restored by Elizabeth in 1571. Between

Limerick.

1556 and 1571 the see was held by Hugh Lacy, who was not a Protestant, though he seems to have been something of a trimmer. Yet he made no attempt at concealment when Sidney visited his cathedral in 1568. Lacy cannot be held to have conformed, for when the temporalities were restored to Casey he continued to act as Papal Bishop till his death in 1580, not long before which he suffered a short detention in his own house. There is a regular double succession from 1571.^[376]

James Fitzmaurice, Cistercian Abbot of Odorney, was made Bishop of Ardfert and Aghadoe by the Pope in 1536. Queen Elizabeth made no appointment till 1588, some years after Fitzmaurice's death. Her nominee was unable to hold his ground in Kerry, nor was the Papal Bishop permanently resident. The facts about Killaloe are not very clear. From a comparison of dates it would appear that Bishop James O'Corren, who took the oath of supremacy in 1539, was deprived or suspended at Rome, that he afterwards resigned, that the see was for a time governed by vicars, and that Terence O'Brien was made Bishop by the Pope in 1554. Bishop O'Brien died in 1569, and the Government seems not to have interfered with him. The temporalities were soon afterwards handed over to Maurice MacBrien Arra, who, on account of his youth, was not consecrated till 1576. In the meantime the Pope had appointed Malachy O'Molony. MacBrien was educated at Cambridge, and doubtless conformed, as he remained Bishop till 1612. Being chief as well as pastor, he had a better chance of success than most of Elizabeth's men, but he had trouble with his Papal rivals, O'Molony and O'Mulrian, the latter of whom was appointed in 1576. O'Mulrian, who was a sharp thorn in the side of Government during the Desmond rebellion, died in Portugal in 1616, having been an exile for many years. John O'Nialain, appointed by Papal provision, was Bishop of Kilfenora from 1541 till his death in 1572. The Popes made no fresh appointment until 1647, nor is it certain that the Queen made any at all.^[377]

Ardfert and
Aghadoe. Killaloe.
Kilfenora.

Christopher Bodkin was Archbishop of Tuam at Elizabeth's accession. He was on fairly good terms with the Government, but there seems no reason to suppose that he turned Protestant in any real sense. As he sat uninterruptedly from 1536 to 1572, we may not uncharitably suppose him to have had rather an elastic conscience. After his death the two successions are separate. Redmund O'Gallagher was Bishop of Killala from 1549 to 1569, from which latter date the successions are separate. O'Gallagher was not at any time a Protestant. Kilmacduagh was held by Bodkin with Tuam, after which Stephen Kirwan was appointed by the Queen and Dermot O'Diera by the Pope. Elizabeth never made any appointment to Achonry, which may be considered purely Papal during her reign. The see of Elphin was held along with Clonfert till 1580, when Thomas Chester, an Englishman, was appointed by the Queen. The Papal succession is altogether separate. The local influence of Roland de Burgo enabled him to keep possession of Clonfert from 1534 till his death in 1580. He conformed so far as to take the oath of allegiance in 1561, but he was not a Protestant. The successions separate after his death. On the whole it may be said that Queen Elizabeth scarcely interfered in Church matters in Connaught; at least towards the end of her reign. [\[378\]](#)

Tuam.
Kilmacduagh.
Clonfert. Achonry.
Elphin. Ardagh.

Lists have been preserved of three archbishops and seventeen bishops 'in a certain Parliament' held in 1560, and of four archbishops and twenty-two bishops 'answerable to the Parliament in Ireland, and summoned unto the Parliament holden in 1585.' It has been assumed by some writers that all the prelates mentioned in the first list actually attended Parliament; whereas it is much more probable that many were only summoned, as is expressly stated in the second list. The mere fact of certain sees being named in any such list is no proof that the incumbents conformed to Elizabeth's arrangements. Some of the bishops, even if present, may have voted against the Acts of Supremacy and Uniformity. The position of the twenty dioceses mentioned in the list may be briefly summarised thus:—One archbishop, Curwen of Dublin, conformed. Christopher Bodkin of Tuam may, from his character, have conformed insincerely, but this is not proved. Baron of Cashel had never been confirmed by the Pope, so that his case does not count, though there is

Spiritual peers,
1560 and 1585.
Papal and
Protestant
succession.

no proof of his having conformed. Walsh of Meath and Leverous of Kildare were deprived. O’Fihily of Leighlin conformed. In the remaining cases, the evidence is not very distinct as to formal conformity or the reverse, but many can be proved to have been Roman Catholics, and none can be proved to have been Protestants. No doubt some bishops took the oath of allegiance at the beginning of Elizabeth’s reign who could not have done so after her excommunication. Some had already acknowledged the supremacy of Henry VIII., in which they were countenanced by Gardiner himself. The fact that no Christian name is assigned to the Bishops of Emly, Ross, Killaloe, Achonry, Killala, Ardfert, and Ardagh, tends to prove that many of the sees given in the list were not really represented. The Dublin officials knew something about the Leinster, and a few of the Munster bishops; of the more distant sees they knew no more than the bare names. ^[379]

The state of the Irish Church during the early years of Elizabeth was as lamentable as it is possible to conceive. A report made in 1566 by the Irish Council to the Privy Council says that Curwen of Dublin, Loftus of Armagh, and Brady of Meath did their best, both in preaching and in looking after their clergy. ‘Howbeit,’ they continue, ‘the work goeth slowly forward within their said three dioceses by reason of the former errors and superstitions inveterated and leavened in the people’s hearts; and in want of livings sufficient for fit entertainment of well chosen and learned curates amongst them, for that those livings of cure being most part appropriated benefices in the Queen’s Majesty’s possession, are letten by leases unto farmers with allowance or reservation of very small stipends or entertainments for the vicars or curates, besides the decay of the chancels, and also of the churches universally in ruin, and some wholly down. And out of their said dioceses, the remote parts of Munster, Connaught, and other the Irish countries and borders thereof (saving the commissioners for the ecclesiastical causes have travelled with some of the bishops and others, their ministers residing in the civil and nearer parts), order cannot yet so well be taken with the residue until the countries be first brought into more civil and dutiful obedience. I, the Deputy (Sidney), have given charge to the said bishops to make diligent search, and to certify me in the next term, of every the said decayed chancels and churches in their dioceses, &c.... The livings of the prebendaries of St. Patrick’s are most part in benefices with cure, and they for the most part aged men who, with the rest of the ministers

of that College, according the rules of the same, give their due attendance on that collegiate church, daily doing divine service, and devotion with due reverence and harmony convenient, and some of them do preach also. Nevertheless, they have been treated with by us the Archbishops of Dublin and Armagh, and Bishop of Meath, and are found conformable to depart with such portion of their livings as shall be thought fit by her Highness for the setting forth and maintenance of learning and teaching for this realm.... We know not as yet of any alienations or wastes suffered to be made by the clergy, nor of any appropriations of benefices by them put in use, nor that the clergy of this realm are greatly inclined to offend in that part, except the alienations or wastes done by the Bishop of Ferns, who to the use of his sons hath put away the most part of the living of his bishopric.’^[380]

Meanwhile the Popes were busily countermining. The Jesuit, David Wolfe, a Limerick man who had spent several years at Rome, was selected by Pius IV. for the Irish service. The Pope wished to make Wolfe a bishop, and to invest him with all the pomp proper to a nuncio. Lainez, who had recommended Wolfe, opposed this, lest the humility of the society should be offended, and lest the Papal insignia should make the envoy’s work harder. The General’s advice was taken, and Wolfe started for Ireland with the full power of a nuncio, but without noise or show. After having been arrested in France as a Lutheran, he reached Cork in January 1561. All his luggage had been lost at sea, and he found it difficult to obtain bare subsistence, being unwilling either to incur obligations or to beg. He managed, however, to maintain himself for several years in Connaught and Western Munster. In 1563 he issued a commission to Thady Newman, a Dublin priest, giving him power to grant absolution ‘to all and singular persons, both lay and ecclesiastical, and of either sex, in all cases even if grave and enormous, and specially from the crimes of heresy and schism, and to reconcile them to mother church on doing penance, and making a public or private abjuration.’ Wolfe, who wrote from Limerick, says the danger of the journey would not suffer him to visit Leinster. He reported among other things that Tuam Cathedral had been used as a fortress for 300 years, during which time mass had not been said there; and that Archbishop Bodkin had restored it to its proper use. There were only twenty or thirty houses in Tuam. Ardagh Cathedral was also used as a fort and in lay hands. About 1566 Wolfe fell into the

The Jesuit, David Wolfe.

power of the Government, and was confined in Dublin Castle. A bishop, probably Leverous, visited him there, and was driven away by the stench. In 1572 or 1573 Wolfe made his escape, perhaps by means of money sent from Spain, to which country he fled. The Protestant Bishop of Cork says 'he foreswore himself,' whence it seems probable that the severity of his confinement had been relaxed. Wolfe returned to Ireland with James Fitzmaurice. Perhaps he did as much as any one man to preserve the Papal power in Ireland.^[381]

FOOTNOTES:

[360] The story of the bleeding Christ is in Strype's *Life of Parker*. The item about the Bibles is given by Mant on the authority of the Loftus MS.

[361] Sussex to Cecil, Dec. 25, 1561; Lord Deputy and Council to the Queen, Sept. 2, 1562; Loftus to Cecil, Nov. 3, 1566, and March 21, 1567; Richard Creagh to Sidney, Dec. 25, 1566.

[362] The Queen to Lord Deputy Sidney, July 6, 1567, authorising him to make Terence Daniel Primate; Terence to Cecil, Oct. 5, accepting the charge. In a letter to Lord R. Dudley, July 23, 1564, Sir T. Wrothe says Daniel 'would promise to do much with Shane O'Neill, and some think he could perform it.'

[363] Brady's *Episcopal Succession*. Lord-Lieutenant and Council to the Queen, July 16, 1561.

[364] Brady's *Episcopal Succession*. Creagh's own statement in *Spicilegium Ossoriense*, i. 41, from the Vatican archives; his examinations, in the *Irish State Papers*, Feb. 22, March 17 and 23, 1565.

[365] Most of the documents relating to Creagh are collected in *Spicilegium Ossoriense*, vol. i. pp. 38-58. Holing's account is at p. 84. The Jesuit makes Creagh's escapes miraculous, but admits that he was on parole not to leave the Tower. This may account in some degree for the severity with which he was afterwards treated. See also a story, which may be apocryphal, in *O'Sullivan Beare*, tom. ii. lib. iv. cap. 10.

[366] Brady; Loftus to Cecil. July 16, 1565; Holing in *Spicilegium Ossoriense*.

[367] Brady; Cotton's *Fasti*.

[368] Brady; Cotton.

[369] Brady; Cotton; Holing in *Spicilegium Ossoriense*.

[370] Brady; Cotton; Ware; Alexander Craik to Lord R. Dudley, April 30, 1561; to Cecil, Jan. 2 and 10, Feb. 10 and 18, April 23, 1562, and Aug. 5, 1563; Robert Daly to Cecil, July 2, 1565.

[371] Brady; Cotton; Instructions to Sir H. Sidney, July 4, 1565; Shirley's *Original Letters*, p. 101; Graves's *History of St. Canice's Cathedral*, p. 295.

[372] Brady; Cotton; Memoranda of private suits, July 16, 1559.

[373] Brady collects most that is known about this curious rivalry; see also *Spicilegium Ossoriense*, i. p. 83, and Hooker under the year 1567. For MacCaghwell, see Loftus to Cecil, July 3 and Nov. 7, 1566, and Shirley's *Original Letters*, p. 132.

[374] Brady; Cotton; Captain Gilbert Yorke to Walsingham, Dec. 5, 1579; and several letters of Bishop Middleton, with recriminating answers on the part of the townsmen.

[375] Brady and Cotton.

[376] Brady and Cotton.

[377] Brady; Cotton. Ware mentions a Bishop-elect of Kilfenora in 1585, but the appointment seems to have come to nothing. No doubt the see was extremely poor.

[378] Brady and Cotton.

[379] The above is from a close comparison of the data in Cotton and Brady, and in the Parliamentary Lists in *Tracts Relating to Ireland*, vol. ii. The twenty prelates mentioned in the list of 1560 are thus disposed of:—

Conformed	2
Deprived	2
Never confirmed by the Popes	2
More or less doubtful	<u>14</u>
Total	20

[380] Lord Deputy Sidney and Council to the Privy Council, April 15, 1566.

[381] Hogan's *Hibernia Ignatiana*, pp. 15 to 20. Wolfe's commission to Thady Newman is in the R.O., Dec. 7, 1563; Interrogatories for Kian O'Gara and others, May 1572; Matthew Seaine, Bishop of Cork, to Lord Deputy Fitzwilliam, in the latter's letter to Burghley, Oct. 13, 1573.

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